

The Naval Ceremonial, Conditions Of Service And Miscellaneous Regulations, 1964

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Union of India - Act

The Naval Ceremonial, Conditions Of Service And Miscellaneous Regulations, 1964

UNION OF INDIA

India

The Naval Ceremonial, Conditions Of Service And Miscellaneous Regulations, 1964

Rule THE-NAVAL-CEREMONIAL-CONDITIONS-OF-SERVICE-AND-MISCELLANEOUS-REGULATIONS-1964 of 1964

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The Naval Ceremonial, Conditions Of Service And Miscellaneous Regulations, 1964

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1824.

S.R.O. 22E, dated 19th February, 1964 - In exercise of the powers conferred by section 184 of the Navy Act, 1957 (62 of 1957

), the Central Government hereby makes the following regulations, namely:

Chapter I

Preliminary

1.

Short title.

- These Regulations may be called the Naval Ceremonial, Conditions of service and Miscellaneous Regulations, [1964]
[Substituted by S.R.O. 68, dated 11th February, 1965]

2.

Definitions.

- In these Regulations unless the context otherwise requires :-

(a)

"Act" means the Navy Act, 1957 (
62 of 1957

);

(b)

"Active list" except in Chapter XIII means the list of officers of the Indian Navy other than those who are placed on the
"retired list" or "emergency list";

(c)

"Appendix" means an Appendix to these regulations;

(d)

"Captain" means the officer appointed to command a ship;

(e)

"Emergency list" means the list entitled as such on which officers are placed

(i)

In accordance with Chapter X of these Regulations; and

(ii)

In accordance with any other regulations in force for the time being;

(f)

"General list" means the list of officers in the Indian Navy who are holding the rank of Acting Sub-Lieutenant or above,
excluding officers on the special Duties list;

(g)

"General service" means service in the Indian Navy other than in any specialist capacity;

(h)

"Government" means the Central Government;

(i)

"Navy order" means an order issued by the Chief of the Naval staff;

(j)

"Retired list" means the list entitled as such on which officers holding permanent commissions are placed when they
retire from the Service with pension or gratuity;

(k)

"Service" means Indian Naval Service;

(l)

All words and expressions used but not defined in these Regulations and defined in the Act shall have the meanings
respectively assigned to them in the Act.

3.

Forms in appendices.

- The forms set forth in the appendices, with such variations as the circumstances of each case may require, may be
used for the respective purpose therein mentioned.

4.

Exercise of power vested in holder of Naval office.

- Any power or jurisdiction given to, and any act or thing to be done by or before, any person holding any Naval office for
the purposes of these regulations may be exercised by, or done by or before, any other person for the time being
authorised in that behalf according to the customs of the Service.

Chapter II

Ceremonies And Distinctions

Section I - Salutes to Heads of States and their Standards

5.

Salutes to the President

- In India all salutes to the President shall consist of [21gun]

[Substituted by S.R.O. 348, dated 20th September, 1978]

6.

The President.-

(1)

A [21gun]

[Substituted by S.R.O. 348, dated 20th September, 1978]

salute shall be fired on the assumption and relinquishment of office by the President, by all Indian Naval Ships in ports in India.

(2)

A [21gun]

[Substituted by S.R.O. 215, dated 4th May, 1978]

salute shall be given to the President on his arrival in and departure from India on occasions notified as 'Public', by all Indian Naval Ships present in the port of arrival or departure, and by any ship on her arrival or departure, which may arrive at or leave that port during the stay of the President

(3)

Whenever the President shall embark in any ship of war, the [National flag]

[Substituted by S.R.O. 17E, dated 5th July, 1967]

shall be hoisted at the main, and the National Flag at the [fore]

[Substituted by S.R.O. 348, dated 20th September, 1978]

of such ship; or if on board a vessel with less than two masts, they shall be hoisted in the most conspicuous part of her.

Should however, the President go on board for a short visit, the [National flag]

[Substituted by S.R.O. 17E, dated 5th July, 1967]

only shall be hoisted.

A [21 gun]

[Substituted by S.R.O. 215, dated 4th May, 1974]

salute shall also be fired from a ship or vessel on the President going on board and again on leaving her; and every one of Indian Naval Ships present shall likewise fire a [21 gun]

[Substituted by S.R.O. 215, dated 4th May, 1974]

salute on the hoisting of those flags, and such further 3[21gun] salutes shall be fired on the President quitting the ship or vessel or passing in a boat or on such other occasions as may be directed.

(4)

Whenever the President shall be embarked in a ship or vessel at sea and the before-mentioned flags shall be hoisted in her, every one of Indian Naval Ships, meeting, passing or being passed by her, shall fire a [21 gun]

[Substituted by S.R.O. 215, dated 4th May, 1974]

salute.

(5)

The National Flag at the main indicates the presence of the President on board and hence is to be hoisted at the main only on occasions when the President is actually present.

7.

[National flag at Jackstaff

[Substituted by S.R.O. 215, dated 4th May, 1974]

(1)

On occasions when an Indian Naval Ship or vessel is under way with the President embarked, such ship or vessel and all escorting Ships and vessels, shall wear the National Flag at the jackstaff : and shall wear the white ensign and National flag continuously day and night.

(2)

The provisions of sub-regulation (1) shall apply in relation to Indian Naval Ships and vessels wearing or escorting flag of

the President of a foreign Republic or a royal standard as they apply in relation to Indian Naval Ships or vessels with the President embarked or escorting a vessel in which the President is embarked.]

8.

Death of President.

- On the death of the President, Indian Naval Ships and establishments shall half mast flags from the day on which intelligence of the death is received, and they should remain at half mast until sunset on the day of the funeral. The number of guns to be fired and the times of firing the salutes shall be as prescribed by the government from time to time.

9.

[Sovereigns or heads of estate]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

(1)

Whenever any Heads of States, or the consorts of any Sovereigns, or any eminent foreign dignitary arrive at or quit any place in India, they shall, subject to the concurrence of the government, receive a 21 gun salute on their first arrival and again on their final departure, from any Shipspresent or from any battery to such place, from which salutes are usually fired, and from any ship, on her arrival or departure, which may arrive at or leave that place during the stay of such personage. A similar salute shall also be fired upon their going on board and again on leaving any of Indian Naval Ships, but concurrence of the Government will not be required in these cases. On such occasions, all Shipsshall be dressed, either overall or with masthead flags as may be ordered, in accordance with Regulation 44.

(2)

[Met with at Sea]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

- Whenever any of Indian Naval Ships meet, pass or are passed by any vessel wearing the flag or standard of the Head of a State, or the standard of the consort of any Sovereign, they shall salute that flag or standard. All such Shipsshall be dressed as laid down in sub-regulation (1) in accordance with Regulation 44.

(3)

A salute shall not be fired on the occasions of a vessel wearing a Royal Standard or of President's flag, passing Indian shore saluting batteries and not intending to berth in the vicinity thereof.

(4)

The following procedure shall be observed in the case of a foreign warship which is wearing a President's flag or Royal Standard visiting an Indian port:-

(a)

The visiting warship will salute the flag of the country.

(b)

Salute to the National Flag is returned by the shore battery or the Indian Naval Ships present.

(c)

Indian war Ships present and shore battery salute the Distinguished personage.

10.

Royal Family

- Whenever any Prince or Princess, being a member of a Royal family shall arrive at, or quit any place in India they shall on a requisition by the Government, receive a 21 gun salute on their first arrival and final departure, from all Indian Naval Ships present or from any battery at such place from which salutes are usually fired. A 21 gun salute shall also be fired whenever any Prince or Princess, being a member of a Royal family, visits an Indian Naval Ship, both on arrival and departure. The flag of the nation of such member will be displayed at the main mast.

(2)

In Foreign Ports-Whenever such visits to Indian Naval Ships shall take place in a foreign port, corresponding salutes shall be fired, and the flag of the nation of the distinguished personage hoisted, as already explained.

(3)

At Sea-Whenever any of Indian Naval Ships meet, pass or are passed by any vessel wearing the Standard of any member of a Royal family, they shall salute the Standard.

11.

Order of salutes to more than one President's Flag or Standard

(1)

Whenever any of Indian Naval Ships meet, pass or are passed by any ship or Ships which are wearing more than one President's Flag or a Royal Standard, or arrive at, or quit any port or place where more than one is flying, or when two or more President's flags or Standards are broken simultaneously, they shall fire salutes in the following order, saluting the flags or standards of-

(a)

The President of the Republic of India.

(b)

The British sovereign.

(c)

Presidents of Republics, Sovereigns, consorts or heirs-apparent.

(d)

Member of the British Royal Family.

(e)

Members of foreign Royal Families.

(2)

In these circumstances only one salute shall be fired for the Standards of any one nation, no matter how many may be hoisted.

12.

Flags of President or Standards of Royal personages at Foreign ports.

(1)

whenever any of Indian Naval Ships arrive at a foreign port in which salutes are returned, and where the flag of the President of a Republic or the standard of any Royal personage is hoisted, the customary salute to the flag of the nation to which the port belongs shall in all cases be fired first, the President's flag or the Standards present being subsequently saluted in the order directed in Regulation 11.

(2)

In case the flag of the President of the Republic, the Standard of the Royal Personage or the member of the Royal family of the nation to which the port belongs, is hoisted in the salute to the national flag shall be considered as personal to that flag or standard as representing the nation, and in this case the salute will not be returned.

In the event of this salute being returned, a further salute of 21 guns shall be fired.

(3)

In Commonwealth ports, Indian Naval Ships shall only salute the President flag or the Standards present in the order directed in Regulation 11. These salutes will not be returned.

(4)

Certain countries have regulations concerning the firing of salutes to, and in the presence of President's Flag, and the Royal Standard which differ from the rules in this Regulation and Regulation 13. When visiting foreign ports, therefore, Commanding Officers of Indian Naval Ships, shall when in doubt, ascertain the local practice in this respect and act in accordance with it, except that in no circumstances shall a Presidential or Royal salute of more than 21 guns be fired. Such foreign regulations as differ from those in this and the Regulation 13 and whose details are definitely known, are promulgated in Navy Orders.

13.

Another Authority in presence of Standard.

- In the presence ashore or afloat of any flag of the President of a Republic, or a Royal Standard no other authority of that nation shall be saluted by Indian Naval Ships.

14.

Dates for Salutes.

- The fixed dates for firing salutes in celebration of Indian anniversaries are as follows, namely:

(a)

The anniversary of the formation of the Republic of India (26th January), and

(b)

Independence Day (15th August).

On these days a [2lguns]

[Substitued by S.R.O. 348, dated 20th September, 1978]

salute shall be fired at noon from all Indian Naval Ships in port or from the shore battery when no Indian Naval Saluting ship is present. Indian Naval Ships in commonwealth and foreign ports on Republic Day shell fire a 21 gun salute. No gun salutes will be fired on Independence Day at ports outside India.

15.

Commonwealth and Foreign Festivities.

- On the occasion of the celebration of such of the important anniversaries and festivals in other countries as may be specified in Navy Orders from time to time Indian Naval Ships, in company with Shipsof other Common wealth countries or Shipsof a foreign nation. or in Common wealth or foreign ports, shall fire such salutes, not exceeding 2lguns as are fired by the Shipsor batteries of the country concerned. The flag of the country shall be displayed at the main mast during the salute, only, or Shipsdressed overall in accordance with Regulation 44, in conformity with the action taken by Shipsof the commonwealth or foreign country.

16.

Death of Sovereigns or Head States.

(1)

Orders concerning the ceremony to be observed shall be issued by the Chief of the Naval Staff on each occasion. The usual procedure to be followed shall be for flags to be half masted on the day of the funeral only, with the ensign (if available) or the national flag of the bereaved nation at the dip on the main mast. No gun salutes shall be fired unless specially ordered.

(2)

In the event of Indian Naval Ships being in company with a ship or in a port of the bereaved nation, Indian Naval Ships shall act in unison with the procedure adopted by the Commanding Officer of the foreign ship or with the observances in the port.

(3)

In the event of a ship of the bereaved nation being in an Indian port, Indian Naval Ships shall act in unison with the procedure adopted by that ship.

17.

National Mourning.

- Orders regarding the Ceremony to be observed as may be issued by the Government shall be promulgated in the Navy by the Chief of the Naval Staff on each occasion of National Mourning.

18.

Salutes not returnable.

- None of the foregoing salutes will be returned and they shall only be fired from Shipsauthorised to salute under Regulation 38.

Section II - Salutes to Indian, Commonwealth, and foreign authorities

19.

Indian and other important Commonwealth and Foreign authorities shall be saluted when in their official capacities as laid down in the following table:

TABLE OF SALUTES

Clauses

Authorities

entitled to salutes when in their official capacities

No.

of guns

By

Indian Naval Ships

Remarks

Within

what limits

Occasions

How

often by the same Flag, Board Pendant, or ship

1

2

3

4

5

6

7

I

The

President

[21]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

In

Ports in India

On

the assumption and relinquishment of office.

As

the occasion arises

Although

according to international usage a gun salute comprises of 21 guns, a larger number of guns has been prescribed for the President on account of the existence in India of certain ex-Rulers of former States carrying a privilege of 21 guns. For all international purposes, however, a gun salute shall consist of 21 gun only.

No

gun salutes will ordinary be fired on the President's visit to shore establishments.

[21]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

At

all places

On

visiting an Indian Naval Ship both on arrival and departure.

As

the occasion arises

[21]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

In

the port of arrival in or departure from India.

On

arrival in and departure from India on occasions notified as 'Public'

As

the occasion arises

II

Heads

of States and entitled Members of Royal Families.

21

On
occasion of visits to India
As
the occasion arises
Subject
to a specific requisition in each case by the Government
21
Those
of his Government
On
visiting an India Naval Ship both on arrival and departure.

As
the occasion arises
III
Governors
General of Commonwealth Countries

21
On
occasion of visits to India
As
the occasion arises
Subject
to a specific requisition in each case by the Government
21
Those
of his Government
On
visiting an Indian Naval Ship

As
the occasion arises
IV
His
Highness Maharaja Sri Sri Sri Jigme Dorji Wangchuk, Maharaja
of Bhutan

19
On
occasion of visits to India : or visit to an Indian Naval Ship.
As
the occasion arises

V
Ambassador
extraordinary and Pleni-potentiary

19
In
the case of Indian diplomatic and Consular representatives
abroad, in the ports of the countries to which they are
accredited.

(ii) In
the case of foreign and Consuls accredited to India when paying
fromal visits to Indian Naval Ships, Ship in Ports in India.

VI

Envoy

Extraordinary and Minister Plenipotentiary

17

VII

Minister

Resident, Diplomatic Officials below the rank of Envoy

Extraordinary and Minister Plenipotentiary and above that of

Charged affairs

Either

when the dignitary goes on board or when he leaves an Indian

Naval

Only

once within twelve months and by one ship only on the same day.

VIII

Charged

affairs

13

IX

Consuls

General

(including

Commissioners and Representatives of The Government)

X

Consuls

7

XI

Admiral

of the Fleet

19

XII

Admiral

17

XIII

Vice-Admiral

15

At

all places

Only

as authorised by Regulation 25.

XIV

Rear-Admiral

13

XV

Commodore

11

XVI

Field

Marshal

19

XVII

General

17

XVIII

Lieutenant-General

15

XIX

Major-General

13

XX

Brigadiar

11

XXI

Marshal

of the Air Force

19

At

all places

Official

visits to or embarkation in a ship, either on going on board or leaving her.

Only

by one ship at the port on the same day, Only once in 12 months abroad and once in 3 years at home except in case the officer has been promoted.

XXII

Air

Chief Marshall

17

XXIII

Air

Marshall

15

XXIV

Air

Vice Marshall

13

XXV

Air

Commodore

11

XXVI

Captain

of the Navy and Officer below that rank.

7

As

a return salute only as directed by Regulation 24.

Table Of Salutes To Governors Of States [* * *]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

Clauses

Authorities

entitled to salutes when in their official Capacities

No.

of guns

By

Indian Naval Ships

Remarks

Within

what limits

Occassions

How

often by the same Flag, Broad, Pendant, or ship

1

2

3

4

5

6

7

I.

Governors

of

States[* * *]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

17

Those

of his Government

On

assumption and relinquishment of Officer

Explanation. 1 - Gun salutes will be given on the assumption and relinquishment of Office by the Governors [* * *]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

where Artillery units are available locally or within a distance of 50 miles. Indian Naval Ships will not fire these salutes.
'The table is for information only.

2. Governors within their own jurisdiction, will be given appropriate gun salutes on the occasion of official visit to foreign warships visiting India.

20.

Rule of former States.

- Gun salutes shall be given as a personal privilege of rulers in the capital of their former states, on the occasion of their succession to the Gaddi, marriage, birth of the heir-apparent, and demise, provided Artillery units are locally available. The list of rulers entitled to gun salutes is set forth in Appendix I.

21.

Salutes on Embarking and Disembarking.

- When the ship, from which a diplomatic, or a Naval, Army or Air Force Officer entitled to be saluted on embarking or disembarking under Regulation 19 shall be either a ship of war not authorised to salute under Regulation 38, or a merchant ship, the senior naval officer may direct the prescribed salute to be fired from any of Indian Naval Ships present.

22.

Acting in Higher Posts.

(1)

Indian Naval, Army or Air Force officers, temporarily acting in any higher command, shall be entitled during their temporary tenure, to all the honours and salutes that may appertain to such command.

(2)

Officers, temporarily acting in any civil office, shall be entitled, during their temporary tenure, to all the honours and salutes that may appertain to such office.

23.

In Presence of Senior Authority.

(1)

No junior Naval authority shall be saluted in the presence of a senior naval authority.

(2)

Similarly, no junior Army or Air Force authority shall be saluted in the presence of a senior Army or Air Force authority respectively.

(3)

Personal salutes (namely those fired on being visited by officials), as well as salutes to Flag, are included in each case.

24.

Salutes to Flag.

(1)

The flag or broad pendant of the senior Naval authority present (afloat or ashore) shall be saluted as follows:

(a)

By the next senior officer present:

(i)

On being first hoisted in the period of the former's new command;

(ii)

After the flag of the former's new rank has been hoisted on promotion.

(b)

By a single ship, or by senior officer only of two or more ships of the same fleet or squadron, on meeting or on arrival, subject to clause 3.

(c)

By a junior Flag Officer or Commodore:

(i)

After such officer has hoisted his flag or broad pendant in the period of his new command;

(ii)

After hoisting the flag of his new rank on promotion.

(2)

These salutes shall be returned according to the scale; But if more than one salute has been fired, the return salute in answer to the whole shall consist of the same number of guns as that to which the officer receiving the salute is entitled.

25.

Limitation on salutes to same authority

- No Flag Officer, Commodore, Captain or other Officer in command, shall salute the same Flag Officer or Commodore more than once during his command except in the case of promotion.

26.

Limitation as to Rank.

- Officers below the rank of Commandore, Brigadier or Air Commodore shall not be saluted in any part of the world; nor shall salutes be exchanged between Indian Naval Ships, forts and batteries.

Section III - Salutes to National Flags and to Foreign Flag Officers

27.

Salutes to National Flags

(1)

Salute to the national flag of a country consists of 21 guns.

(2)

The Captain of a ship, or the senior officer of more than one ship, visiting a foreign port where there is a fort or saluting battery, or where a ship of the nation may be lying shall salute the national flag with 21 guns, on being satisfied that the salute will be returned. A salute shall not be fired when the ship is passing through territorial waters with no intention of anchoring, or making fast in any way, in them, even if a saluting station is passed, unless unusual circumstances make it desirable. The salute shall be fired on each occasion that a ship visits a foreign port, except that of a ship leaving port temporarily, when, by agreement with the local authorities, the salute on her return may be dispensed with.

(3)

When a ship visits a foreign port where there is no saluting battery and no ship of the nation is lying on arrival, and a ship of the nation arrives during the visit, a salute to the national flag shall only be fired after mutual agreement between the Senior Officers of the ships concerned.

(4)

If the ship of a senior Indian officer is already present in the port, the junior will not fire a salute.

(5)

Salutes to a national flag shall not be fired by Indian Naval Ships when visiting Commonwealth Countries.

28.

Recognised Governments.

- Salutes to foreign Royal personages and other foreign authorities and flags are only authorised in the case of a Government formally recognised by the Government.

29.

Salutes to Foreign Functionaries.

- Salutes in conformity with the table of salutes given in Regulation 19, shall be fired in compliment to foreign officials, from either ships or batteries, in the same manner and in circumstances similar to those in which salutes to an Indian Official would be fired.

30.

Foreign Flag Officers and Commodores.

(1)

If one or more Indian ships of war should meet a foreign ship of war at sea, wearing the flag of a Flag Officer or the broad pendant of a Commodore of superior rank to the Senior Officer in command of an Indian Naval Ship or Ships aforementioned, such Senior Officer shall salute, subject to Regulation 25, the foreign Flag Officer with the number of guns accorded to his rank in Regulation 31. If the meeting takes place in port, the salute shall not be fired until the proper national salutes shall have been interchanged, and then only if the local regulations admit thereof.

(2)

If ships wearing the flags or broad pendants of officers of equal rank meet at sea and their relative seniority in rank is unknown or in doubt, they should mutually salute without delay.

(3)

If ships wearing the flags or broad pendants of officers of equal rank meet in port, the ship arriving later, irrespective of seniority in rank, shall salute the flag(s) or broad pendant(s) first, subject to conditions stipulated in sub-regulation (1).

(4)

When the fleets or squadrons of several nations are making use of the same port, the following modifications to sub-regulation (1) should be brought into force, with the concurrence of the senior naval authorities of each nation represented:-

(a)

On the occasions stated in Regulation 24, sub-regulation (1)(a)(i) and (ii), the flag or broad pendant of the senior naval authority concerned should be saluted by the senior naval authorities of the other nations present who may be junior to the first mentioned Flag Officer.

(b)

On the occasions stated in Regulation 24, sub-regulation (1)(b) the ship or Senior Officer of ships arriving or meeting, subject to sub-regulation (3) of Regulation 24, shall only salute the flag or broad pendant of the senior naval authority of the whole of the nations represented if such Flag Officer be his senior in rank, and also provided that an officer senior to the officer arriving and of his own nation is not already in company with that foreign Flag Officer. If on the other hand, an officer of his own nation, who is senior to him, is already there, the ship or Senior Officer of ships arriving shall fire only such salute as may be due to his own Senior Officer under Regulation 24, if any. If the Senior Officer of ships arriving is himself senior to all the senior naval authorities already in port, all the latter shall, subject to Regulation 24, sub-regulation (3) salute him after the prescribed national salutes, if any, have been interchanged.

(c)

On the occasions stated in Regulation 24, sub-regulation (1)(c), a junior Flag Officer or commodore shall, unless otherwise ordered, fire the prescribed salute to the senior naval authority of his own nation only. Should he himself

already hold that position, he shall salute the flags or broad pendants of the senior naval authorities present of the other nations who may be senior to him [and will himself be saluted by those junior to him in accordance with clause (a)]. In the latter case, he shall if possible, take step to inform the Flag Officers whom he proposes to salute of the time at which he intends to do so.

(d)

As regard return salutes, ships will be guided by Regulation 24, sub-regulation (2) or Regulation 42, sub-regulation (2)(b), whichever is applicable, according to whether the salute has been fired by a ship of the same nation or by a foreign ship.

(e)

If any doubt should arise in the application of Regulation 24, sub-regulation (3), to the orders contained herein, the salute should be fired.

31.

Scale of Salutes.

(1)

The following scale, which has been agreed to by the maritime powers generally, shall be observed in the interchange of salutes between Indian Naval Ships and foreign ships of war which bear the flag of a flag officer, or the broad pendant of a Commodore, or Captain commanding a squadron or division:

Guns

The

flag of an Admiral of the fleet or Flag Officer who ranks with a

Field Marshal

19

The

flag of an Admiral

17

The

flag of a Vice-Admiral

15

The

flag of a Rear Admiral

13

The

broad pendant of a Commodore, or a Captain in command ranking as

a commodore

11

(2)

For the purpose of this Regulation, as a rank of full Admiral does not exist in the French Navy, a Vice-Admiral of that nation, who is also Chief of Naval Staff or Inspector-General of the Navy (who will fly a square flag of the national colours with three blue stars in triangle on the white portion) shall be regarded as a full Admiral, and shall be saluted with 17 guns.

32.

In presence of Senior Authority.

- The provisions of Regulation 23 shall apply to a junior authority in the presence of a senior authority of the same nation except in the case of a personal visit.

33.

Salutes to Foreigners visiting Indian Naval Ships.

(1)

If a foreigner of high distinction or a foreign general officer or air officer visits any one of Indian Naval Ships, he may be saluted on his going on board, or on leaving the ship, with the number of guns which he, from his rank, would receive on visiting a ship of war of his own nation; or with such number of guns not exceeding 19 as may be deemed proper; should the number of guns to which he is entitled from ships of his own nation be less than is given to officers of his rank under

Regulation 19, he shall be saluted with the greater number.

(2)

On all occasions of an official visit of a foreign Flag Officer or Commodore to any one of Indian Naval Ships, he may be saluted on his going on board, or on leaving the ship, with the number of guns specified in Regulation 31. This salute shall be personal salute and shall be distinct from the salute to flag provided for under Regulation 30.

(3)

The personal salutes fired in accordance with this Regulation shall not be returnable and, with reference to Regulation 29, shall not be subject to the limitations laid down in column 6 of the Table of Salutes given in Regulation 19.

34.

Ships unable to salute.

- If from any special cause one of Indian Naval Ships from which a salute may reasonably be expected is unable to salute, the circumstances shall be explained on the spot.

35.

Lowering flags.

(1)

Indian Naval Ships shall not on any account lower their flags to any foreign ships whatsoever, unless the foreign ships shall first, or at the same time, lower their flags to them.

(2)

where by custom, and as an act of courtesy, merchant ships lower their colours to ships of war, Indian Naval ships shall be punctilious in returning such salute, but shall be careful to avoid any suggestion of awaiting this mark of respect.

(3)

Any flagrant or repeated cases of disregard of this practice, particularly by Indian merchant ships, shall be reported to the Chief of the Naval Staff.

(4)

Indian Fleet Auxiliaries shall be punctilious in lowering their colours to foreign ships of war. They are not required to lower their colours to Indian Naval Ships but shall hoist their distinguishing pendants when entering an Indian Naval port, joining the fleet, or passing Indian Naval Ships at sea.

Section IV - Salutes in General

36.

Permission of Senior Officer.

- No salutes shall be fired from Indian Naval Ships without previous communication, by signal or otherwise, with the Senior Officer present.

37.

For one Office only.

- Should any one of the officers fill more than one office entitling him to a salute, he shall be saluted in that which entitles him to the greatest number of guns.

38.

Ships authorised to salute.

(1)

Unless otherwise directed by the chief of the Naval Staff salutes shall be fired by all ships except destroyers, commanded by a Captain or Commander and carrying four or more Q.F. guns of the same nature, suitably placed, or provided with a saluting armament of light Q.F.guns. Ships in the Reserve Fleet, however, that would otherwise be regarded as saluting ships shall, generally, be considered non-saluting ships while in Reserve.

(2)

In cases where, from any special circumstances, omission to fire a salute to a foreign power or officer cannot explained without causing offence the salute shall be fired, by any ship which can possibly do so with safety, whether authorised to fire salutes by sub-regulation(1) or not.

39.

Time of Firing.

- As a general rule no salutes should be fired by Indian Naval Ships between sunset and 0800. A salute fired by a foreign man-of-war within this period should, however, be returned. In foreign waters, the custom of the country shall be

followed.

40.

Salutes not authorised.

- No other salutes than those authorised shall be fired, except on the occasion of a great victory to Indian Arms or other important National events, when the Chief of the Naval Staff may direct such salutes to be fired. If out of India, the firing of such salutes may be directed by the Senior Indian Naval Officer present in consultation with the local representative of India, if any.

Section V - Salutes which shall be returned or not returned

41.

To Indian Authorities.

- The following regulations shall be observed in regard to return salutes:

(a)

Salutes to the President shall not be returned;

(b)

From Foreign ships-of-war-All salutes from foreign ships of war, either to Indian Naval Ships or forts, shall be returned gun for gun. Should there be no fort or battery from which such salutes can be returned, the senior Naval office present will return them gun for gun.

42.

To Foreign Distinguished Personages and Authorities.

- In the case of salutes from Indian Naval Ships, forts, and batteries to foreign distinguished personages and other functionaries, the following arrangement entered into with the maritime powers shall be observed namely:

(1)

Salutes not returned. - Salutes from ships of war which will not be returned:-

(a)

To Presidents of Republics, Royal personages, Chiefs of States or members of Royal families, whether on arrival at, or departure from, a port, or upon visiting ships of war.

(b)

To diplomatic, Army, Air Force, or consular authorities, when visiting ships of war.

(c)

To foreigners on visiting ships of war.

(d)

Upon occasions of national festivals or anniversaries.

(e)

To naval officer on occasions of visits to ships of war as provided under Regulation 33.

Explanation. - By this sub-regulation Indian Naval Ships will not return a personal salute to an Indian officer fired by foreign vessels; nor will such return salute be expected by the officers of a power which adheres strictly to the international arrangement. If, however, on any occasion where personal salutes are exchanged, a personal salute, fired by one of Indian Naval Ships or by the ships of some third nation to a foreign officer, is returned, it is an excess of courtesy which it would be impossible not to reciprocate by returning any personal salute to an Indian officer fired immediately afterwards the conditions. Indian Naval ships may even take the initiative in returning personal salutes, if such is known to be the custom of the nation whose ship has saluted, and if it is expected that a personal salute to an officer of that nation will presently have to be fired and will be returned.

(2)

Salutes returned. - Salutes from ships of war which will be returned gun for gun

(a)

To the national flag on anchoring at a foreign port, except in the circumstances detailed in sub-regulation (2) of Regulation 12.

(b)

To the flags or broad pendants of foreign Flag Officers and Commodores or Captains Command ranking as Commodores when met with at sea or in harbour.

(3)

Reciprocity with Foreign Ships.-When foreign ships of war salutes the Indian National Flag or other personages, or any of India's functionaries in similar circumstances, the same rules shall be reciprocally observed by Indian Naval Ships present as to returning or not returning the salutes.

43.

From Merchant Ships.

- When Commonwealth, foreign or Indian merchant ships, or any ships not in the Indian Navy, salute Indian Naval Ships, the return salutes shall be five guns to a single ship and seven to more than one sailing in company.

Section VI - Dressing Ship and Flags to be hoisted when saluting or returning salutes

44.

Dressing Ship.

(1)

On the occasions laid down in Regulation 14 all Indian Naval Ships and vessels in port, which are supplied with necessary material, shall be dressed overall from the time of hoisting colours until sun set.

(2)

Indian Naval Ships under way in the vicinity of an anchorage, and those not fitted with dressing lines, shall dress only with ensigns at their mast heads and national flag at the Jackstaff. This method shall also be adopted by other ships by order of the Senior Officer present, should conditions render dressing ship overall inexpedient.

(3)

Indian Naval Ships shall also be dressed by order of the Senior Officer present when in the presence of a President's flag or Royal Standard on occasions of visits of a President or Royal personages, and on certain Commonwealth or Foreign ceremonial occasions when in the presence of ships, or in the waters of the nations concerned. The manner of dressing and time during which ships shall be dressed shall be stated on each of these occasions according to circumstances.

(4)

On occasions when [Indian Naval Ships]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

are dressed in honour of an Indian ceremonial or personage, ships wearing an Admiral's flag or Commodore's broad pendant shall wear the white ensign only at masts not occupied by either of the above; other ships shall wear the white ensign at each mast.

(5)

On occasions when Indian Naval Ships are dressed in honour of a Commonwealth or foreign ceremonial or personage, single-masted ships wearing the President's standard, flag or broad pendant shall wear the country's ensign alongside this standard, flag or broad pendant; other singlemasted ships shall wear the country's ensign alone. In ships with more than one mast wearing the President's standard, the country's ensign shall be worn at the fore. In ships with more than one mast wearing a flag or board pendant, the country's ensign shall be worn at the main, and the flag or broad pendant at the fore; other ships shall wear the country's ensign at the main and the white ensign at the remaining masts. Ships not supplied with the appropriate country's ensign shall wear the white ensign instead, and be subject to the provisions of sub-regulation (4).

45.

Flags hoisted during Salutes.

(1)

When salutes are interchanged with foreign ships of war or forts and batteries; or when salutes to Flag Officers and personal salutes are fired in honour of foreigners, the following rules as to the flags that shall be displayed shall be observed by Indian Naval Ships :

(a)

President of a Republic or Chief of a State and the like ?

In the case of a foreign President of a Republic or Chief of a State and a Royal personage

The

ensign of the nation of such President of Republic or Chief of

State, personage and the like, shall be hoisted at the main, if necessary alongside the President's standard, flag or broad pendant which may already be hoisted in that position.

(b)

National Ensign ? On arrival at a foreign port.

The

ensign of the nation which is being saluted shall be hoisted at the main during the salute, if necessary alongside President's standard, flag or broad pendant which may already be hoisted in that position.

(c) Foreign

Flag Officer ? When meeting a foreign Flag Officer or when returning the salute of any foreign Flag Officer or ship of war.

The

ensign of the foreign nation shall be hoisted at the fore during the salute or return salute, if necessary alongside any flag or broad pendant which may already be hoisted in that position.

(d)

Visits of Foreign Authorities ? On the occasion of visits from Governors General, Governors or Officers administering a Government, Diplomatic, Naval Army, Air or Consular Authorities or of persons of High Distinction entitled to salutes.

The

ensign of the foreign nation to which the person saluted belongs shall be hoisted at the fore during the personal salute, if necessary alongside any flag or broad pendant which may already be hoisted in that position.

Explanation. - When there is no recognised ensign, the national flag shall be used.

(2)

The distinguishing flags particularised in Regulation 60 shall be hoisted respectively at the fore whenever any of Indian Army, Air, Diplomatic or Consular Authorities are receiving salutes to which they may be entitled; should, however, the proper distinguishing flag not be on board the ship saluting, the blue ensign shall be hoisted. Should the ship not have a blue ensign, a white ensign may be hoisted at the fore when saluting any of the Indian authorities referred to.

Section VII - Visits of Ceremony and Courtesy Calls

46.

Courtesy Calls.

(1)

Courtesy Calls on the President shall be made by all officers of the rank of Commander and above, by signing in the Visitors Book kept at the Rashtrapati Bhavan, on the following occasions :

(a)

on transfer of the officer to and from Delhi on permanent duty;

(b)

on assumption of office by the new President (by officer staying in Delhi only).

(2)

On the occasion of their first visit to a State, the Chief of the Naval Staff and the Flag Officer Commanding, Indian Fleet shall call on the Governor and the Chief Minister of the State. Such calls during subsequent visits shall not be obligatory unless, in the meantime, a new Governor or a new Chief Minister has assumed office. Courtesy calls by other naval officers shall not be necessary.

Explanation. - It shall not be necessary for the Governor or the Chief Minister to return any calls by Service Officers.

(3)

Exchange of visits between naval officers on the one hand and Army and Air Force officers on the other shall be on the

following basis :

(a)

Calls shall be exchanged only between the senior most officers in the station;

(b)

The junior shall first visit the senior.

(c)

Where the officers are of equal seniority, the officer last arriving at the station shall pay the first visit.

(d)

Return visit shall be paid within 24 hours, either in person or by a representative, as the circumstances may require.

47.

Visits of Ceremony and Courtesy Calls outside India.

(1)

The procedure governing the /is its of Indian Naval Ships to Commonwealth ports which has been agreed to by the countries concerned is as follows-

Visits of Indian Naval Ships are classified in three categories

(a)

Formal. - Formal visits are made as a matter of courtesy and involve full ceremony including the exchange of official calls and the firing of gun salutes, except as provided in Regulation 27(5).

(b)

Informal. - Informal visits are also courtesy visits, but official formalities are restricted to the exchange of official calls and firing of salutes, except as provided in Regulation 27(5).

(c)

Routine and Operational. - Routine or operational visits are those made in the normal course of duties of Indian Naval Ships for such purposes as exercises and practices, obtaining supplies, etc. No formal ceremonies or calls are required.

(2)

Formal and informal visits to Commonwealth ports shall be arranged by the Government by notifying the Government concerned that a visit is intended. Indian Naval Ships need not ask prior concurrence of the Government or administration concerned, before visiting a Commonwealth port.

(3)

Routine and operational visits to Commonwealth ports shall be arranged by the Chief of the Naval Staff direct with the British or the Commonwealth Naval Authority except under circumstances specified in sub-regulation (6), intimation being sent at the same time to the Foreign Service Officer concerned for his information.

(4)

All categories of visits to foreign ports shall be arranged by the Government and the prior concurrence of the Government concerned to the proposed visit, shall be necessary in each case except in the circumstances specified in sub-regulation (6).

(5)

When the preliminary arrangements have been made, the Senior Officer of the visiting fleet or squadron, or the Commanding Officer of a single ship, shall notify the Indian Consular Authorities direct of the date and time of the intended arrival of the squadron or ship and the probable duration of the visit. The requirements of the Fleet or Squadron or ship, such as fresh provisions, water and the like shall also be intimated. Ceremonial visits shall be exchanged in accordance with Regulations 47 to 50.

The customary visit to the Governor or chief authority at a foreign port shall always be made unless there is some special reason for not doing so. Communication shall always be established with the Consular Officer on arrival.

(6)

In the event of a visit of Indian Naval Ship to a foreign port being in an emergency, like, stress of weather, landing sick personnel, and the like, the Commanding Officer of the ship shall inform the Consular Officer if any at the port to be visited, of the proposed visit and request him to inform the local authorities. The Indian Representative at the seat of Government of the country visited shall be notified at the same time that the visit will be made, and requested to inform the Government of the informal character of the proposed visit.

Communication shall be established with the Consular Officer on arrival, and the Commanding Officer should consult

with him as to the practicability of exchanging any ceremonial visits. When a call is made at a naval port, visits shall always be paid to the naval authority.

48.

Foreign and Commonwealth Authorities (including Naval Authorities.

(1)

The Head of a State and the Governor of a Province, Territory or Colonial possession, if residing in or near the port, shall receive the first visit from the Senior Officer in command of Indian Naval ship or squadron visiting a foreign or a commonwealth port. This visit will be returned in person to Flag Officers and Commodores, and by a Aide-de-Camp or other officer to officers of lower rank.

(2)

The chief civilian authority of the port shall, as a general rule, receive the first visit from the Senior Officer in command of Indian Naval ship or squadron visiting a foreign or a commonwealth port.

(3)

The Flag or other officer in chief command of the arriving ship or ships shall pay the first visit to the Senior Officers of the Army and Air Forces in the vicinity of the port if he be equal in rank., and the visit shall be returned within twenty-four hours of being paid. When the officers are not of equivalent rank the inferior shall pay the first visit, the same limit of time being observed as to the visit and its return. The procedure for returning visits between Naval, Army and Air Force officers will be similar to that laid down in clause (e) of sub-regulation (5) of Regulation 51.

(4)

The following rules shall be observed by all naval officers in regard to the interchange of visits with officers of Commonwealth and friendly foreign warships in all ports whether Indian, Commonwealth or foreign:

(a)

On the arrival of any warship of another country, the Flag or other officer in command of one or more warships, in port, whatever may be his rank, shall send an officer to such arriving ship, or in the case of a fleet or squadron, to the ship of the officer in chief command of it, to offer the customary courtesies. The Captain of the ship to which this visit is paid shall send an officer to return it.

(b)

Within twenty-four hours of his arrival, the Flag or other officer in the chief command of the arriving ship or ships shall visit the officer in chief command of the fleet or squadron or single warship of another country present at the port, if he be his equal in grade, and the visit will be returned within twenty-four hours of being paid. In the case of officers of different grades, the officer of inferior grade shall pay the first visit, the same limits of time being observed as to the visit and its return.

(c)

Officers of superior grades are to return the visits as follows :-Flag Officers and Commodores are to return the visits of Captains and those of grades superior to Captain; they shall send their Flag Captains to return the visits of Commanders, Lieutenant-Commanders and other officers in command. Captains and officers of a lower grade shall return the visits of Commanders and officers of inferior rank in command.

(d)

After the interchange of visits between the Senior Officers has taken place, the Captains or other officers in command of the several ships of war arriving shall visit the Captains or other officers in command of the warships in port, who shall return their visits.

(e)

Indian Naval officers may expect that strict reciprocity shall be observed in similar circumstances by foreign and Commonwealth naval officers in respect of these visits of ceremony.

Explanation 1. - For the purpose of this regulation, the professional Head of an Armed Service including Navy shall be regarded as the Senior Officer regardless of his actual rank and seniority. As regards calls between officers holding these appointments, the normal rules of rank and seniority shall apply.

Explanation 2. - The grades referred to in sub-regulation (4) are-

(a)

Admiral.

(b)

Vice-Admiral.

(c)

Rear-Admiral.

(d)

Commodore.

(e)

Captain.

(f)

Commander.

(g)

Lieutenant-Commander or other officer in command.

49.

Indian Diplomatic Functionaries.

(1)

Every Flag or other officer in command shall, on arrival, pay the first visit to Indian diplomatic functionaries in charge of embassies or legations, or of above the rank of Chargé d'Affaires, but they shall receive the first visit from diplomatic functionaries below that rank.

(2)

In case of doubt as to the status of a diplomatic functionary in charge of an embassy or legation, an officer should be sent on shore to ascertain it previous to the interchange of visits.

Explanation. - For the purpose of this regulation, diplomatic functionaries include diplomatic functionaries of the Commonwealth.

50.

Consular Authorities including Commonwealth Consular Officers.

(1)

On the arrival of a fleet, flotilla, squadron, or ship at a foreign port, the first visit shall be made by the naval or consular officer who is subordinate in rank to the other, according to the following scale :

(a)

Consuls General

To

rank with, but after Rear-Admirals.

(b)

Consuls

To

rank with, but after Captains.

(c)

Vice-Consuls

To

rank with, but after Lieutenant-Commanders.

(d)

Consular Agents

To

rank with, but after Lieutenants.

(2)

The Officer-in-Charge of a consular post during the absence of the titular incumbent shall take for the time being the rank of that incumbent.

51.

Presidents or Governors-General of the Fully Self-Governing Countries of the Commonwealth.

- '[1] The Presidents or Governors-General of the fully self-governing countries of the Commonwealth shall receive a visit from the Senior Officer in Command of an Indian Naval Ship or Squadron visiting a port where the President or Governor-General is present. Return visits shall not be paid.

(2)

Governors, Commissioners, Administrators and Army and Air Force Officers. - The following procedure in regard to the interchange of visits between Naval officers and Governors, Administrators, and the like, and officers in command of Army and Air Force shall be observed.

(a)

Official visits shall be exchanged

(i)

On the arrival of one or more of Indian Naval Ships at a port at which the Governor, Administrator or Commissioner is present-between him and the Senior Officer in command of the squadron or ship.

(ii)

On the first arrival at a port of a Flag Officer or Commodore flying his Broad Pendant since taking up his appointment-between him and the Governor, Administrator or Commissioner.

(iii)

On a Governor, Administrator or Commissioner, newly appointed, assuming office-between him and all Flag Officers and Commodores flying their Board Pendants, present.

(b)

Visits : How to be paid

(i)

A Governor shall always receive the first visit from the Senior Officer in command of the squadron or ship.

(ii)

An Administrator or Commissioner shall pay the first visit to all Flag Officers and Commodores flying their Broad Pendants, but shall receive the first visit in all other cases.

(iii)

Noval, Army and Air Force Officers. - Exchange of visits shall be on the basis that the junior officers will pay the first visit to the senior officer. In the case of officers of equivalent ranks the same principles shall apply, but in the case of officers of the same seniority the officer last arriving at the port shall pay the first visit.

(iv)

Priority of Visit. - When an officer has to pay a series of visits to Civil, Naval, Army or Air Force Officers, no sequence or priority of such visits has been laid down, and they shall be mutually arranged to suit the convenience of the officials concerned.

(c)

Return Visits : To be paid within twenty-four hours

(i)

A Governor shall return in person visits of all Flag Officers and Commodores flying their Broad Pendants.

(ii)

An Administrator or Commissioner shall do so in person to all Captains.

(iii)

A Flag Officer or Commodore flying his Broad Pendant shall do so in person to all Administrators or Commissioners.

(iv)

In all other cases the return visit shall be paid by an Aide-de-camp or other officer deputed.

(v)

All Flag Officers and Commodores shall return in person visits of Colonels and Group Captains, and those of superior rank; they shall send a Captain or Commander to return the visits of Lieutenant-Colonels, Wing Commanders, or other officers in command.

(vi)

Captains and officers of lower rank in command of Indian Naval Ships shall return in person the visits of Lieutenant-Colonels, Wing Commanders, Majors and Squadron Leaders.

(d)

Inability to Visit. - Should the Governor, or any other officer administering the Government find that, from indisposition or pressure of important business he is unable to return or pay a visit in person, he shall depute his Aide-de-Camp or some other officer to do so.

In like manner, should a Flag Officer or Commodore flying his Broad Pendant, from indisposition or pressing occupation, be precluded from paying or returning a visit, he shall depute his Flag Lieutenant or other officer not below that rank to do so.

In each case, the officer failing to pay the required visit in person shall report the circumstances and assign the reasons which led to the omission to the department under which he is acting.

(e)

Acting Officers. - Officers acting temporarily in higher civil offices or commands shall, in respect of these visits, be upon the same footing as if they were confirmed in such offices or commands.

(f)

Boats for Visits. - The Senior Officer present shall arrange, when necessary, to provide a suitable boat to enable the Diplomatic, or Consular Officer to pay any official visits afloat, and to take him ashore on the officer notifying his wishes to that effect.

Explanation. - The term 'Governor' in this Regulation includes 'Lieutenant Governor.

Section VIII - Distinguishing Flags and Pendants of Naval Authorities

52.

Admiral to the Fleet.

- The national flag shall be worn at the main by an Admiral of the Fleet as his proper flag.

The following flags shall be worn by Flag Officers, except Chiefs of the Staff, as their proper flags:

Admiral

A

white flag with the red St. George's cross with blue Dharma Chakra superimposed at the centre.

Vice-Admiral

A

white flag with the red St. George's cross with blue Dharma Chakra superimposed at the centre, with one red roundel in the upper canton of the flag next the staff.

Rear-Admiral

A

white flag with the red St. George's cross with blue Dharma Chakra superimposed at the centre, with one red roundel in the upper canton and one in the lower canton next the staff.

The diameter of the red roundel shall be half the vertical depth of the white of the cantons next the staff, and the roundel shall be in the centre of the canton.

53.

Painted on Boats.

- When Vice-Admirals and Rear-Admirals have their flags painted on their boats, the same distinctive roundels at least 2 inches in diameter shall be shown on the flag.

54.

Commodore.

(1)

A Commodore, except a Chief of Staff or Captain of the Fleet, shall wear a white broad pendant with the red St. George's cross, with blue Dharma Chakra superimposed at the centre, with one red roundel in the upper canton next the staff.

(2)

The diameter of the red roundel shall be half the vertical depth of the white in the cantons next the staff, and the roundel shall be in the centre of the canton.

55.

Chief of Staffs and Captain of the Fleet's Boat.

- A Chief of Staff or Captain of the Fleet shall have painted on his boat the flag of the Flag Officer or Officer on whose staff he is serving.

56.

Convoy Commodore's Flag

- The Convoy Commodore's Flag shall be a white rectangular flag with a blue St. George's cross of the same dimensions as an Admiral's flag.

57.

Flags and Pendants Ashore.

- An officer entitled to wear a flag, broad pendant, or pendant afloat, may fly the same flag, broad pendant, or pendant ashore, at any naval establishment or other place on shore where naval jurisdiction may, for the time being, prevail.

58.

Flags and Pendant's Displaced.

(1)

By President's Standard and the like. - The President's Standard shall always be worn at the main, the flag of an Admiral or the broad pendant of a Commodore if necessary, being shifted to another mast or ship as the case may require.

(2)

The flags of other functionaries ordered to be hoisted in ships of war in accordance with Regulations 60 to 62 shall not displace at the mast-head the flag of an Admiral of any grade nor the broad pendant of a Commodore. When, therefore, a flag or broad pendant is hoisted, the distinguishing flag of the Civil, Army or Air Functionary shall, if possible, be hoisted side by side with the other, subject to the discretion conferred on the Senior Naval Officer in Regulation 62.

59.

Senior Officers Present Afloat.

(a)

When two or more of Indian Naval Ships are present in a port or roadstead, the starboard pendant may be hoisted at the starboard yardarm of the Senior Officer's ship as a distinguishing flag in addition to the masthead pendant, provided that the ship is not already flying a flag or broad pendant.

(b)

When Indian Naval Ships are in company with warships of other nations (including Commonwealth), the starboard pendant shall be flown by the Senior Indian Naval Officer present in the manner described above in addition to any flag or broad pendant.

Section IX - Distinguishing Flags of other Authorities

60.

Particulars of Flags.

(1)

The flags authorised by the Government to be displayed afloat are :

(a)

By Governors [***]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

- The distinguishing flag of the State.

(b)

By Indian Diplomats.-The provisions of sub-regulation (2) of Regulation 62 shall, as far as may be, apply to the flags to be displayed by Indian diplomats.

(c)

By the Chief of the Army Staff, General Officers Commanding-in-Chief and General Officers Commanding-The Army Flag (Rectangular-Scarlet with cross swords and ASOKA LIONS in centre in yellow).

(d)

By the Chief of the Air Staff, and the Air Officers Commanding-The Air Force Ensign.

(2)

No other distinguishing flag or flags shall be worn afloat by any of these functionaries.

61.

When to be hoisted.

- Whenever any of the functionaries mentioned in Regulation 60 are embarked

(a)

in one of Indian Naval Ships on the occasion of an official visit-the proper distinguishing flag shall be hoisted at the fore whenever the functionary is receiving a salute to which he is entitled :

(b)

in one Indian Naval Ships for passage-the proper distinguishing flag, with the approval of the Senior Naval Officer, may similarly be hoisted and be kept flying within the limits of the respective Government, Mission or Command, provided the functionary be proceeding on the public service. The distinguishing flag of Consular Authorities shall be hoisted in boats only and not in ships, except when they are being saluted;

(c)

in a boat for the purpose of paying visits of ceremony or on other official occasions-the proper distinguishing flag within the respective limits prescribed in cl. (b) maybe hoisted at the bow, but when the boat belongs to one of Indian Naval Ships, she shall have her white ensign flying;

(d)

in Indian ships and boats, other than those of Indian Naval ships, such functionaries are, with the sanction of the owners or masters, authorised to fly their proper distinguishing flags on the same occasions and within the same limits, and this regulation shall be deemed a sufficient warrant to the master under the Merchant Shipping Act, 1958 for so doing, but the permission to hoist such masthead flags indicative of the presence on board of any of these functionaries in no way affects or alters the character or status of the merchant ship in time of peace or in time of war, whether the Government of India is belligerent or neutral.

62.

Approval of Senior Officer.

(1)

With regard to the previous approval of the Senior Officer, whenever a requisition is received for the embarkation or conveyance of any of the functionaries mentioned in Regulation 60, the Senior Officer present, in the absence of special orders from senior authority shall issue the necessary directions, provided that, after consultation with, and on requisition from, the official to be embarked, he considers it for the benefit of the service about to be performed that such flag should be hoisted within the authorised limits. Should the officer who has to determine the question consider it, in the circumstances, undesirable that the distinguishing flags should be hoisted, he shall inform the functionary of his reasons, and at once report the same for the information of the Chief of the Naval Staff.

(2)

In the event of an Ambassador or High Commissioner, or such other officer, being detached on a foreign mission in his official capacity as Ambassador or High Commissioner, special instructions, shall be issued in each case as to the flag which should be hoisted in a man-of-war in which he may be embarked; in the absence of instructions from the senior authority, the Senior Officer present shall exercise his discretion in consultation with the official about to embark.

63.

General and/or Air Officers in Amphibious Operations.

- In amphibious operations with either or both of the other Services, should the General and/or Air Officers Commanding the Army and/or Air Forces be embarked in a ship of war or transport, the distinguishing flag or flags authorised by Regulation. 60 may be hoisted at the fore of such ship or transport to denote the presence of the headquarters.

Section X - President's Colour Ensign, Jack and Pendant

64.

The President's Colour.

(1)

The President's Colour shall be paraded on shore in India on the following occasions, namely-

(a)

by a Guard of Honour mounted for the President;

(b)

by a Guard of Honour mounted for a foreign Sovereign, or the President of a Republican State;

(c)

on 26th January, the Republic Day;

(d)

on such important ceremonial occasions as may be ordered by the Chief of the Naval Staff.

(2)

The President's Colour shall only be lowered to the President, Foreign Sovereigns, Presidents of Republican States, Governors-General of [***]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

within their jurisdictions.

(3)

The President's Colour when carried uncased shall be received at all times with the highest respect with arms presented, officers saluting and the band playing the National Anthem.

65.

White Ensign Ashore.

(1)

On occasions of important ceremonial reviews or international Naval displays on shore outside India, the White Ensign may be carried with naval landing parties at the discretion of the Senior Naval Officer present.

In countries the Government of which is recognised by the Government of India, the White Ensign may be carried by naval detachments on important ceremonial occasions

(a)

when the head of the State or his representative is present; or

(b)

when the omission of the White Ensign might cause misunderstanding or offence.

(2)

At the discretion of the Chief of the Naval Staff or Senior Naval Officer present, the White Ensign may be hoisted at a flag staff ashore in India or in countries the Government of which is recognised by the Government of India, on such occasions as the "Beating the Retreat" or at the saluting base in a march past or review.

(3)

Except for the occasions specified in sub-regulations (1) and (2) the parading of the White Ensign is unauthorised.

66.

Ships in Commission.

(1)

All Indian Naval Ships of war in commission shall wear the following colours:

(a)

a White Ensign, with the red St. George's cross and the National flag in the upper canton, in the manner prescribed in Regulation 70;

(b)

the National Flag, which should be of smaller dimensions than the ensign, at the Jack staff when in harbour, at anchor or moored to a buoy or alongside. Ships in dock or ships in dockyard hands shall not wear the National Flag at the Jack staff;

(c)

a pendant under the terms of Regulation 67.

(2)

Economy in Ensigns and Flags.--On all occasions and especially in bad weather, ensigns and flags of no greater breadth than is necessary shall be worn.

(3)

Ships not in commission shall not wear colours except on occasions of their launch.

67.

Masthead Pendant.

(1)

All Indian Naval Ships in commission when commanded by an executive officer, and when not wearing a flag or broad pendant, shall fly at the main masthead a pendant having a St. George's cross with blue Dharma Chakra superimposed at the centre, on a white field and in the part next to the mast with a white fly.

(2)

If necessary, in order to avoid fouling radio aerials and other obstruction aloft, a shorter pendant may be flown, provided

it can easily be seen at a short distance from the ship.

(3)

At a shore establishment (commanded by an officer appointed in command of one of Indian Naval Ships) in commission, a masthead pendant shall be flown at the head of the Flagstaff, when a Flagstaff is fitted.

68.

Flags, etc., in Boats.

(1)

Flag Officers and Commodores entitled to fly their flag or broad pendant in a ship or shore establishment, and other officers holding an appointment in command of a ship in commission or shore establishment or sea-going tender to one of Indian Naval Ships, when proceeding on duty in a boat, may fly in the bows, the flag, broad pendant, or masthead pendant applicable to their rank.

(2)

The Officer of the Guard, proceeding on duty in a boat, shall fly masthead pendant both by day and by night.

(3)

Members of a court-martial on their way to or from the court shall fly a masthead pendant in the bows of their boat.

(4)

The National Flag shall never be displayed from any of the boats of Indian Naval Ships except to denote the presence of an Admiral of the Fleet.

(5)

The following indicator plates shall be established for use in boats by the Senior Naval Officers when the full ceremonial prescribed in Regulations 82 to 84 is not required:

(a)

A Red Disc with a white St. George's Cross painted thereon;

(b)

A Blue Disc with a white St. George's Cross painted thereon;

(c)

A White Disc with five black crosses painted thereon.

All discs are to measure approximately 10 inches in diameter.

(6)

The use of the above Flag Plates and Discs is as follows :

(a)

The Red Disc shall be displayed on formal occasions when the Flag Officers and Commodores who are entitled to wear a Broad Pendant, are proceeding on duty, and when the full ceremonial, laid down in Regulations 82 to 84, is not required.

(b)

The Blue Disc shall be displayed on formal occasions when non-executive officers of Rear-Admiral's rank and above, and Commodores not entitled to wear a Broad Pendant, are proceeding on duty.

(c)

The White Disc maybe used on informal occasions by the Senior Officers in clauses (a) and (b). When this disc is shown, only courtesy salutes shall be accorded.

69.

Ensign, Hoisting and Hauling Down.

(1)

Indian Naval ships, when lying in home ports and roads in India, shall hoist their ensigns at 0800 daily, but when abroad, at 0800 or 0900 as the Senior Officer shall direct; and they shall be worn if the weather permit, or the Senior Officer present sees no objection thereto, throughout the day until sunset, when they shall be hauled down.

(2)

When bands are ordered to play at the hoisting of the Colours, they will play the Indian National Anthem, and then should warships of other countries be present, the National Anthems of those countries, playing first the anthems of the countries represented by Flag Officers in the order of the seniority of these officers, and the remainder in an order varied from day to day.

(3)

When in foreign port, bands shall play the National Anthem of the country in which the port is situated immediately after the Indian National Anthem.

(4)

When bands are not paraded, the bugle shall sound the general salute.

(5)

Whenever a ship shall take up her berth, or get under way, if there be sufficient light for the ensign to be seen, it shall be hoisted, though earlier or later than aforesaid; also on her passing, meeting, joining, or parting from, any other of Indian Naval Ships, and also, unless there should be sufficient reason to the contrary, on her falling in with any other ship or ships at sea, or when in sight of, and near, the land, and especially when passing or approaching forts, batteries signal or coastguard stations, light houses, or towns.

70.

Wearing the White Ensign.

(1)

The White Ensign shall be worn-

(a)

In Harbour-At the ensign staff;

(b)

At Sea-At the ensign staff whenever possible, but in bad weather or whenever the ensign staff is not available from any cause, such as the ship being cleared for action, and the like, it should be worn :

(i)

In ships with one mast, on a staff in a suitable position on the after superstructure.

(ii)

In ships with two masts, either as in (i), or at a small gaff to be fitted as a "peak" on the main mast.

(2)

The senior officer present shall arrange for the necessary uniformity, especially as regards ships of the same class.

(3)

The Captain shall see that two white ensigns are always displayed in a conspicuous position, without interfering with signalling.

71.

Launchings of Indian Naval Ships.

- Colours shall be worn at all launchings of Indian Naval Ships whether Dockyard or Contract built, at which there is a Naming Ceremony; the White Ensign shall be worn at the Ensign Staff and the National Flag at the Jackstaff. It shall not be necessary to hoist any other flag.

The largest reasonable size flag should be worn, the following being taken as a guide:

(a)

Light Fleet and Escort Carriers and Cruisers

Ensign

12

Breadths

National

Flag

8

Breadths

(b)

Destroyers and Smaller Craft

Ensign

8

Breadths

National

Flag .

6

Breadths

72.

Wearing the White Ensign in Boats.

(1)

Boats belonging to Indian Naval Ships shall fly the ensign on the following occasions:

(a)

In foreign waters;

(b)

In Indian waters

(i)

when Indian Naval Ships are dressed;

(ii)

when going alongside a foreign warship on all occasions, day and night;

(c)

When flying in the bows one of the special flags referred to in Regulations 51 and 60, whether in India, or in foreign waters.

(2)

In India, boats shall only fly the ensign in accordance with Cls. (b) and (c) of sub-regulation (1) between the time the colours are hoisted in the morning and sunset, except as provided for in sub-clause (ii) of the said Cl. (b).

(3)

In foreign waters, boats shall fly their ensigns when away from their ships at any time between dawn and dark, and on the occasion specified in sub-clause. (ii) of Cl. (b) of sub-regulation (1).

(4)

When the colours are half masted in ships, boat's ensign (if flown) shall also be half-masted.

(5)

When a corpse is being conveyed in a boat, either in Indian, or foreign waters, that boat shall fly her ensign at half-mast.

(6)

In boats under sail, ensigns shall be flown by launches and pinnaces only.

Note. - The same procedure as followed in Indian waters shall be followed in Commonwealth waters.

73.

Public Offices.

(1)

Ships and vessels (including boats and launches using inland waterways) employed in the service of any public office in India wear a blue ensign, and a smaller blue ensign as a jack, but in the centre of the fly of such ensign and jack shall be inserted the badge of the office to which they belong. If a department or local Government has no distinctive badge, the Government of India crest, namely, 3 Asoka Lions, may be inserted in the flag.

(2)

Ships and vessels employed in the service of the Indian Air Force shall wear the Indian Air Force ensign in place of the blue ensign described above.

74.

Merchant Ships to wear Red Ensign.-

Except as provided in Regulations 75 to 77, all ships registered in India and all vessels which are not registered in any British possession but are owned exclusively by persons domiciled in India or by bodies corporate established in India, shall wear the Red Ensign consisting of a red flag with a width one-half of its length and the National Flag of India superimposed in the top quarter next to the staff, that being the proper National Colours.

75.

Merchant Ships allowed to wear the Indian Blue Ensign.

(1)

Indian Merchant ships may wear the Indian Blue Ensign plain and under faced, consisting of a Royal Blue Flag, the width being one half of the length and the National Flag of India superimposed in the top quarter next to the Staff,

provided the following conditions are fulfilled:

(a)

The officer commanding the ship must be an officer on the retired or emergency list of the Indian Navy or an officer of the Indian Naval Reserve.

(b)

The crew must include (in addition to the Commanding Officer) officers of the Indian Naval Reserve to the number specified from time to time by the Chief of the Naval Staff, but officers on the retired or emergency list of the Indian Navy may be included in the number specified.

(c)

Before hoisting the Blue Ensign, the officer commanding the ship must be provided with a warrant issued by the Chief of the Naval Staff.

(d)

The fact that the Commanding Officer holds a warrant authorising him to hoist the Blue Ensign must be noted on the ship's articles of agreement.

(2)

Commanding Officers failing to fulfil the conditions mentioned in sub regulation (1) unless such failure is due to death or other circumstances over which they have no control, shall not be entitled to wear the Blue Ensign.

(3)

Indian merchant ships in receipt of Government subvention may be allowed to wear the Blue Ensign under a warrant issued by the Chief of the Naval Staff with any badge that may be prescribed in the Warrant.

(4)

In order to ascertain that the conditions mentioned in sub-regulation (1) are strictly carried out, the Captain of one of Indian Naval Ships meeting a ship wearing the blue ensign may send on board an officer not below the rank of Lieutenant at any convenient opportunity. This restriction as to the rank of the boarding officer shall not limit or otherwise affect the authority or the duties of Naval officers under the Merchant Shipping Act, 1958 or in time of war.

(5)

Applications for permission to wear the blue ensign on board Indian Merchant ships in receipt of Government subvention, should be made direct to the Chief of the Naval Staff by the owners and for other Indian Merchant ships, applications should be made through the Director General of Shipping Bombay.

76.

Indian Fleet Auxiliaries and Vessels other than ships of war, on naval service allowed to wear the Indian Blue Ensign (Defaced).

(1)

Vessels other than ships of War employed in Naval service by the Government whether belonging to or under charter to Government shall wear the Blue Ensign defaced by an anchor in horizontal position. The Anchor emblem shall be in yellow colour and be displayed in the centre of the fly. The dimension of the emblem shall not exceed that of a circle whose diameter is 13/30th of the width of the flag.

(2)

The fly shall be half of the flag farthest away from the mast.

77.

Vessels owned by Organisations under the, Ministry of Transport and Communications, Government of India, allowed to wear the Indian Blue Ensign defaced by Badges of Office.

(1)

Vessels owned by organisations under the Ministry of Transport and Communications, except the Light House Department and Port Administration shall wear the Indian Blue Ensign defaced by an Ashoka Chakra superimposed over the shanks of the anchor in a vertical position. The defacing shall be done in light golden colour.

(2)

Vessels owned by the Light House Department of the Ministry of Transport and Communications, shall wear the Indian Blue Ensign defaced by a Light House in a vertical position with two white light beams emanating horizontally from the beacon. The defacing shall be done in a light golden colour.

(3)

Badges of office referred to in sub-regulations (1) and (2) shall be displayed in the centre of Fly, the dimensions of the badge not exceeding that of a circle whose diameter is 13 /30th of the width of the Flag.

Explanation. - The Fly shall be half of the flag farthest away from the mast.

Section XI - Honours and Marks of respect

78.

Guards of Honour.

(1)

The personages entitled to Guards of Honour are:-

(a)

The President, when his arrival and/or departure is public or official, and is notified as such to the appropriate military authorities.

(b)

The Vice-President.

(c)

The Prime Minister.

(d)

Governors and Sadar-i-Riyasat of the State of Jammu and Kashmir within their jurisdictions.

(e)

The Defence Minister (including Minister of Defence Production and Deputy Minister of Defence),

Provided that:-

(i)

The Defence Minister (including the Minister of Defence Production and Deputy Minister of Defence) shall be presented a guard of honour only on ceremonial occasions directly connected with the Services or on such exceptional occasions as may in each case be held by the Central Government to require the presentation of a Guard of Honour;

(ii)

Governors [***]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

shall, in addition, be presented, within their respective jurisdictions, a Guard of Honour on arrival to take over the appointment and departure on relinquishing such appointment.

(f)

Rulers of merged and integrated States :-

(i)

Within the limits of their former States :

on the occasion of their succession to the Gaddi and marriage of rulers who maintained Indian State Forces before integration or merger, provided troops are available.

Explanation. - Guards of Honour on accession to the Gaddi shall in the case of minor rulers be presented on the attainment of majority.

(ii)

Outside the limits of their States :

when attending State functions, to which they have been officially invited, as the Chief guest, provided troops are available.

(g)

Heads of Foreign and Commonwealth Missions of the rank of Ambassador or High Commissioner or Minister Plenipotentiary accredited to India, on the occasion of the presentation of their credentials to the President.

(h)

Heads of States, Members of a Royal Family and Governors-General of Commonwealth countries, on their arrival at, and departure from, the Capital, and at other places in India visited by them, where troops are available and on visiting Indian Naval Ships. At Delhi, and where possible elsewhere, they shall be presented with an Inter-Service Guard of Honour.

(i)

Prime Ministers and Foreign Ministers of Foreign and Commonwealth States. An Inter-Service Guard of Honour shall be

provided for them on arrival at, and departure from Delhi, on a requisition by the Government.

(2)

Strength of the Guard of Honour :

150.

rank and file for the President, visiting Heads of States and Governors-General of Commonwealth Countries. 100 rank and file for the Vice-President and the Prime Minister; visiting Prime Ministers of Foreign and Commonwealth States; and Heads of Missions referred to in cl. (iv) of sub-regulation (1).

50. rank and file for all others.

(3)

Single-Service Guards of Honour at Naval ports shall be provided by the Navy, at Indian Air Force. Air Ports by the Air Force, and at other places by the Service which is most conveniently situated to provide a Guard of Honour.

(4)

A combined Inter-Service Guard of Honour will comprise of the Army, Navy and Air Force personnel. However, for the ceremonial functions on the 15th August and the 26th January, at Delhi, members of the Police may be included.

As a general principle and regardless of the station, an Inter-Service Guard of Honour shall be commanded in rotation by each of the three Services.

(5)

No Guard of Honour shall be provided between sunset and Colours.

79.

The President.

(1)

The President shall be received on board any of Indian Naval Ships or on arrival at naval establishments by a Guard of Honour commanded by a Lieutenant Commander or a Lieutenant, the officers saluting, the bugles sounding the "alert", with arms presented, and the band playing the National Anthem. If the band is not available, the bugles shall sound the General Salute.

(2)

The honours and marks of respect laid down in sub-regulation (1) shall be paid as applicable to Heads of States or Members of Royal Families, except that the whole of the appropriate National Anthem followed by the Indian National Anthem shall be played. The first six bars only shall be played in the case of Members of the British Royal Families, except His Royal Highness the Prince Philip, Duke of Edinburgh in whose case the whole of the first verse of the National Anthem shall be played.

(3)

Governors-General of Commonwealth countries shall be received on board Indian Naval Ships with honours and marks of respect due to foreign Heads of State (except piping).

80.

Foreigners of High distinction.

- Foreigners of high distinction who are received with a guard of honour when visiting ships of their own nation shall be similarly received when visiting Indian Naval Ships.

Explanation. - National anthems of other countries shall always be played in full.

81.

Toasts in Naval Messes and at Official Dinners.

(1)

All toasts drunk in Naval Messes shall be in non-alcoholic drinks.

(2)

The health of the President shall be honoured, seated, in all Naval messes, on board ship and on shore, on all occasions, except :

(a)

When the National Anthem is played; the toast shall then be drunk standing.

(b)

When toasts to Heads of Foreign States are being drunk, they and that of "The President of India" shall be drunk standing whether National Anthems are played or not.

(3)

Whenever the health of the British Sovereign is ordered to be drunk it shall be honoured, seated, in all Naval Messes, on board or on shore, except under the conditions specified in cls. (a) and (b) of sub-regulation (2).

(4)

The toasts to the President, the British Sovereign and Heads of Foreign States shall be drunk on the occasions shown in the Table appended to this Regulation. The procedure outlined in this Regulation shall be arranged beforehand between the Indian Officer, who is the host, and his guests.

(5)

When a foreign national anthem is played in accompaniment to a toast, an abbreviated version shall not be used unless it has been ascertained that this shall be in accordance with the custom of the country concerned.

(6)

If two or more national anthems are played they shall be played in the order in which countries are named in the collective toast.

TABLE

Sl.

No.

Nationality

of Guests

First

Toast

Second

Toast

Third

Toast

Forth

Toast

Toast

Proposed

by

Toast

Proposed

by

Toast

Proposed

by

Toast

Proposed

by

1

2

3

4

5

6

7

8

9

10

1

Indian-

(a)Indian

Officers(alone)

The

President,

Mess

President

(b)Indian

and Birth Officers serving with the Armed Forces of India.

Do

Do

2

Commonwealth

Officers or other Commonwealth Personages

Head

of State to which the guests belong

Do

The

President

Mess

president

Explanation

1.- In all Naval Messes, whether on board or on shore, the above toasts shall be honoured, seated, except on occasions detailed in clauses (a) and (b) of sub-regulation (2) when they shall be drunk standing.

3

Foreign-

(a)

One nation only is represented

Head

of State to which guests belong

Mess

President

The

President

Senior

Officer of foreign guests

(b)

More than one nation is represented:-

(i)If

head of State visited is present in person

Head

of State visited.

Mess

President

Collective

toast to heads of remaining States represented named in order of the rank and seniority of their respective representatives officers present.

Mess

President

The

President

Head

of State visited.

Explanation

2.- This procedure shall also be followed if a Head of State is present, otherwise than in a port of his own country.

Explanation

3.- If more than one Head of State is present, the Mess President shall propose a joint toast to the Heads of States present naming first the Head of State visited, or, in his absence, Head of State who is senior by date of accession. The Head of State who is thus named first, shall propose the third toast to the President.

(ii)

In a foreign port when Officers of the State visited are present.

Collective

toast to Heads of several States represented naming the Head of State being visited first, and the remainder in the order of the rank and seniority of the respective representative officers present.

Mess

President

The

President

Senior

Officer of foreign guests.

(iii) Otherwise

than at and (ii)

(i) Collective

toast to Heads of several States represented, named in the order of the rank and seniority of the respective representative officers present.

Mess

President.

The

President

Senior

Officer of foreign guests

4

Commonwealth

and Foreign-

(a) Commonwealth

and one foreign nation.

Head

of State to which foreign guests belong.

Do.

Head

of State to which Commonwealth guests belong.

Do

The

President

Senior

Officer of foreign guests.

(b) Commonwealth

and more than one foreign nation:-

(i) If

Head of State visited is present in person.

Head

of State visited.

Mess

President

Collective

toast to Heads of remaining foreign States represented, named in the order of the rank and seniority of their respective representative officers present.

Mess

President

Head

of state to which Commonwealth guests belong

Head

of State visited.

The

President

Head

of State visited.

Explanation

4.- This procedure shall also be followed if a Head of State is present otherwise than in a port of his own country.

Explanation

5.- Same as Explanation 3 with the exception that the third toast shall be proposed to the Head of State to which Commonwealth guests belong and a fourth toast to the President.

(ii) In

a foreign port when officers of State visited are present.

Collective

toast to Heads of several States represented, naming the Head of State visited first and the remainder in order of the rank and seniority of the respective representative officers present

Mess

President

Head

of State to which Commonwealth guests belong.

Senior

Officer of foreign guest.

The

President

Senior

Officer of foreign guests.

(iii)

Otherwise than at (i) and (ii)

Collective

toast to Heads of several States represented, named in the order

of the rank and seniority of the respective representative officers present.

Mess

President

Head

of the State to which guests of Commonwealth belong

Senior

Officer of foreign guest

The

President

Senior

Officer of foreign guests.

Explanation

6.- Should the Head of Commonwealth be present in person the Mess President shall propose a separate toast to her before the first toast under 4(a), 4(b) (ii) and (iii) and after the first toast at 4(b) (i), in each case the subsequent toast to the Head of State to which Commonwealth guests belong, by Head of State or Senior Officer of foreign guests shall then be omitted.

82.

Admiral of the Fleet, Admiral, Vice-Admiral, the Chief of the Naval Staff and a Commander-in-Chief.

- An Admiral of the Fleet, an Admiral, Vice-Admiral, the Chief of the Naval Staff or a Commander-in-Chief being a Flag Officer or Commodore, when flying his flag or broad pendant, shall be received on board any of Indian Naval Ships, or on arrival at naval establishments, by a guard commanded by a Lieutenant-Commander or a Lieutenant, with arms presented, the officers saluting, the bugles sounding the "alert", and the band playing a salute as laid down in Regulation 93. If the band be not available, the bugles shall sound the General Salute. These honour and marks of respect shall also be paid to Honorary Admirals of the Fleet and Honorary Admirals.

83.

Rear-Admiral.

- A Rear-Admiral, not being the Chief of the Naval Staff or a Commander-in-Chief, when flying his flag, shall be received on board any of Indian Naval Ships, or on arrival at naval establishments, by a guard commanded by a Lieutenant or a Sub-Lieutenant, with arms presented, the officers saluting the bugles sounding the "alert", and the band playing a salute as laid down in Regulation 93. If the band be not available the bugles shall sound the General Salute.

84.

Commodore.

- A Commodore not being the Chief of the Naval Staff or a Commander-in-Chief, when flying his board pendant, shall be received on board any of Indian Naval Ships, or on arrival at naval establishments by a guard commanded by a Lieutenant or a Sub-Lieutenant with arms presented, the officers saluting, the bugles sounding the "alert", and the band playing a salute as laid down in Regulation 93. If the band be not available, the bugles shall sound the Commodore's salute.

85.

Captains.

- A Captain, when flying his pendant shall be received on board any of Indian Naval Ships, or on arrival at naval establishments, by a guard under the orders of a Petty Officer, with arms presented.

86.

Captain and Commander.

- Captains and Commanders, when attending as members of a court-martial, shall be received by a Petty Officer's guard, but such guard shall present arms only to the President of the Court.

Explanation. - When the officers referred to in Regulations 82 to 86 proceed on board any of Indian Naval Ships or arrive at naval establishments, otherwise than by boat, in circumstances under which they would be flying their flags or pendants if they had proceeded by boat, they shall receive the marks of respect laid down in those Regulations.

87.

Bugle.

(1)

The "alert" is a mark of respect due to rank and shall be sounded on the bugle, between the hours of colours and sunset, in addition to the occasions laid down in Regulations 82 to 84, for the Vice-President, the Prime Minister and the Defence Minister, and if in uniform for all Flag Officers, Commodores and officers of equivalent rank when coming on board and leaving any of Indian Naval Ships, or when visiting naval establishments.

[Piping the side]

[Inserted by S.R.O. 17-E dated 5th July, 1967]

(2) Between the hours of colours and sunset the side shall be piped to the following, coming on board or leaving one of Indian Naval Ships:

(a)

The President.

(b)

All Flag Officers in uniform.

(c)

All Commodores in uniform, if authorised under Regulations 54 and 55 to wear a broad pendant.

(d)

All executive officers in uniform holding an appointment in command of a ship in commission (including a shore establishment where the latter condition applies) or sea-going tender, and all non-executive officers in uniform holding an appointment in command of a shore establishment in commission, when proceeding on board or leaving one of Indian Naval Ships. Officers coming on board by a barge should not be piped unless arriving at a prearranged time. The side shall not be piped at any shore establishment.

(e)

Members of a court-martial attending or leaving the court.

(f)

Officer of the Guard when flying a pendant.

(g)

A corpse being brought on board or leaving a ship.

(3)

All foreign naval officers in uniform should be piped at all hours.

88.

Officers on Half or Retired Pay.

- The marks of respect referred to in Regulation 87 shall equally be paid to officers on half or retired pay when they go on board any of Indian Naval Ships, or arrive at establishments, in their proper uniform.

89.

President of a Republic, Royal Personage, Flag Officer or Commodore, passing in Boat.

(1)

When a President, or Royal personage is passing in a boat or tender, or when the Flag Officer, or Commodore as specified in Regulation 84, with his flag or broad pendant flying in a boat or tender, is passing a ship not under way, the guard and band shall be paraded, the bugles sounding, and the salute as laid down in Regulations 82 to 84 given, unless otherwise ordered.

(2)

If a ship, not under way, is flying the flag or broad pendant of an officer senior to the Flag Officer or Commodore passing in a boat or tender, the "alert" shall be sounded on the bugle but guard and band shall not be paraded.

(3)

When a Flag Officer, Commodore, or officer of equivalent rank, in uniform is passing a ship not under way in a boat showing a Red or Blue disc as appropriate, the "alert" shall be sounded on the bugle.

90.

Officers of Army and Air Force.

- Officers of the Army, the Military Nursing Service and the Air Force, being in their proper uniforms, shall be received on

board any of Indian Naval Ships or on arrival at naval establishments, with the same honours and marks of respect as are directed to be paid in Regulations 82 to 84 to officers of a corresponding rank in the Navy, when the occasion of the visit is of a similar nature to those therein laid down, except as regards piping the side.

91.

Foreign Officers.

- Similar honours and marks of respect shall be paid, under the same conditions, to foreign officers of equivalent rank as laid down in Regulations 82 to 84 and 87 to 92.

92.

The Vice-President, the Prime Minister, Governors, [***]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

Officers of Diplomatic and other Non-Military Services, etc.

(1)

The Vice-President and the Prime Minister of India, when visiting any of the Indian Naval Ships or establishments in their official capacity shall be received with the "alert" by a guard commanded by a Lieutenant-Commander or a Lieutenant with arms at the present, the officers saluting, and the bugles sounding the General Salute. On shore the strength of the guard shall be 100 rank and file.

(2)

The Governors [***]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

within their jurisdiction shall also be received on board Indian Naval Ships or establishments with the same honours and marks of respect due to the President except piping and gun salute, with the following reservations:

(a)

The abbreviated version of the National Anthem shall be played.

(b)

The strength of Guard on shore shall be 50 rank and file.

(3)

The Defence Minister, the Minister of Defence Production and the Deputy Minister of Defence, when visiting any of the Indian Naval Ships or establishments in their official capacity shall be received by a guard commanded by a Lieutenant or a Sub-Lieutenant with arms at the present, the officers saluting and the bugles sounding the "alert". On shore the strength of the guard shall be 50 rank and file.

(4)

Other distinguished persons who are entitled to fly a masthead flag while on board, when taking passage in one of the Indian Naval Ships, shall be received by a guard as laid down in Regulation 83 on their first arrival on board and final departure from the ship, and on other occasions when leaving and returning to the ship with their flag flying.

(5)

Similarly, when such distinguished persons, with their flags flying in a boat or tender, pass one of Indian Naval Ships which is not under way, they shall be saluted by such ship in a manner similar to that laid down in sub-regulation (1) of Regulation 89, the appropriate salute being played by the band.

(6)

Subject to any special instructions laid down in station Orders, Governors in foreign countries should normally receive the same marks of respect as are given to Indian Officials in similar positions.

(7)

All officers of the Government Diplomatic and other services who are entitled to salute of 11 guns or more shall be received on board Indian Naval Ships with the "alert". It is, however, quite proper for ships' companies to be called to attention by pipe, when junior Indian Representatives pay official visits and this should be done when the Senior Naval Officer present considers that Indian prestige will be enhanced thereby.

(8)

The Prime Minister of the Commonwealth and foreign countries, when visiting one of Indian Naval Ships in their official capacity, shall be received with the "Alert".

(9)

It is at the discretion of the Senior Officer present to order that other distinguished persons visiting Indian Naval Ships in

their official capacity shall be received with the "alert", when he considers that this action would be appropriate.

(10)

When officers or personages who are about to be, or have been received with an "alert" in accordance with sub-regulation (8) of this Regulation, pass one of Indian Naval Ship which is not under way, the "alert" shall be sounded on the bugle.

(11)

Officers of Government of India's Diplomatic and other services who are also Flag, General or Air Officers, are entitled in every respect to the honours due to their Naval, Army or Air Force rank if these are higher than those due to their civil office, but on occasions of reception on board Indian Naval Ships the band shall play the salute applicable to the civil appointment held.

(12)

Except as directed in this Regulation, officers of the Government Diplomatic, and other non-military service are not entitled to the honours prescribed in this Regulation.

93.

The National Anthem.

(1)

There are two versions of the National Anthem, namely : (i) the full version comprising the first stanza of the song 'Jana Gana Mana' (playing time approximately 52 seconds) and (ii) a short version consisting of the first and the last line of the same stanza (playing time approximately 20 seconds).

The two versions are played on the following occasions when bands are available:-

(a)

Full version

(i)

On all ceremonial occasions when the President is present (including broadcasts by the President on the National Days);

(ii)

On all ceremonial occasions for Governors [***]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

when they attend ceremonial parades within their States;

(iii)

At Republic and Independence Day Parades when the National Flag is broken; and

(iv)

at "Colours" when a guard and band are paraded.

(b)

Short version.

On all other ceremonial occasions.

(2)

"The Low Land Sea" when played. - "The Low Land Sea" shall be played only at the reception of Admirals of the Fleet, Admirals, the Chief of the Naval Staff and Commanders-in-Chief in Indian Naval Ships and establishments.

(3)

Other Musical Salutes. - The following airs shall be played on the authorised occasions

(a)

General Salute for Flag Officers not entitled to "The Low Land Sea" and Commodores "Iolanthe".

(b)

General Salute for Governors, High Commissioners, etc. General Officers, Brigadiers, Air Officers, Air Commodores, Foreign Officers and Officials....."Garb of Old Gaul".

(c)

March Past for the Indian Navy....."Hearts of Oak".

(d)

[Promote]

[Substituted by S.R.O. 361, dated 10th November, 1975]

in review Order....."Nancy Lee".

94.

Honours from Army and Air Force.

(1)

Officers of the Indian Navy, being in their proper uniform, shall have the same honours and marks of respect from the Army and the Air Force units as the officers of corresponding rank in those Services.

(2)

Officers other than executive officers shall not be received by garrison, regimental, Air Force Station, or ship guards.

95.

Times at which Military Honours, etc., shall be rendered.

- The military honours and marks of respect authorised in the foregoing regulations shall, unless otherwise ordered, be rendered at the departure as well as at the reception of the personages and officials specified.

96.

Morning and Evening Guns.

- Whenever the President is on board any of Indian Naval Ships with his standard flying, a morning and evening gun shall be fired from the ship bearing the President's standard. In every ship present carrying a band, the reveille or daylight can shall be sounded immediately after firing of the morning gun, and the tattoo shall be sounded for a quarter of an hour previous to the firing of the evening gun.

97.

Ceremonial for Two Ships passing between Sunrise and Sunset.

(1)

When two ships pass one another, of which only one is under way-

(a)

if either is a ship wearing a President's flag or is a flagship or a foreign warship, the junior ships shall sound the "alert" on the bugle; the other shall immediately do likewise and after a short interval, also sound the "carry on". The junior ship shall, after a short interval, also sound the "carry on". If guards and bands are paraded, the junior ship shall give the salute applicable, as laid down in Regulations 82 to 84, the senior ship's guard receiving the salute at the "slope"; but if one of these ships is a foreign warship, a similar salute to those laid down in Regulations 82 to 84 shall be given by the junior and returned in full by the senior, the bands playing the national anthem of the foreign nation. In cases of doubt as to seniority, Indian Naval Ships shall be prepared to give the salute first at the most opportune moment, provided they are satisfied that it is likely to be returned in a similar manner;

(b)

if neither ship be a flagship, nor a warship of a foreign nation, the bugle shall not be used, but similar marks of respect shall be paid and returned by pipe. If guards and bands are paraded, the guards shall remain at the "slope".

(2)

In all cases when both ships are under way the above marks of respect shall be paid and returned by pipe only, guards if paraded, coming to the "slope". If a foreign warship under this sub-regulation should act or appear likely to act as laid down in sub-regulation (1), reciprocal action shall be taken by Indian Naval Ships passing or being passed by such warship.

98.

Hours for Guards and Bands.

(1)

In harbour, the following shall be the normal times within which guards and bands are liable to be paraded. At other times they shall not be required unless specially ordered before hand except as specified in sub-regulation (2).

Week days (except Saturdays and Sundays)

From "Colours" to 1300 and from 1400 to sunset or 1800, whichever is the earlier.

or

from 1430 to sunset or 1800, whichever is the earlier (when a longer dinner hour is in force).

Saturdays and Sundays

From "Colours" to 1200

Guards and bands will not be required from 11 hours before carrying out general drill until 1 hour after the general drill is

completed.

(2)

Guards and bands shall be required at any hour between "Colours" and sunset (or 1800) on week days and 1200 on Sundays, unless otherwise ordered, when proceeding into or out of harbour, or when passing or being passed by a ship or boat flying a President's flag or Royal Standard or flag of a Distinguished personage, or by a foreign warship.

99.

Reception of VIPs at Arrival and Departure.

(a)

All VIPs like the Prime Minister, Governor, Chief Minister, Minister, Commissioner or Deputy Commissioner as the case may be shall be received by the senior most civil official present in the station, regardless of his seniority vis-a-vis other officials in the station. Where a Guard of Honour is provided, the senior most civil official present shall conduct the VIP to the Guard of Honour, and stand back until the inspection of the Guard of Honour is over. Immediately after the inspection, the seniormost civil official shall escort the VIP and proceed to introduce to him the officials and non-officials present, in accordance with their seniority in the Table of Precedence [issued by the President's Secretariat]

[Substituted by S.R.O. 140, dated 26th May, 1973]

. The same procedure shall be followed at departures.

(b)

When no Guard of Honour is provided, the seniormost civil official, receiving the VIP, shall proceed to introduce to him the officials and non-officials present, according to their seniority in the Table of Precedence.

(c)

At Delhi, the seniormost civil official receiving the VIP shall first introduce to him the Military Secretary to the President, when the latter is representing the President, at the reception/departure, after that the Guard of Honour shall be inspected, and the remaining officials and non-officials presented to the VIP, according to their seniority in the Table of Precedence.

Explanation 1. - The above procedure shall apply only when the arrival and/or departure of a VIP is 'public' and intimated as such, to the authorities concerned.

2. Members of Parliament shall ordinarily take their place, according to their position in the Table of Precedence, in the list of officials and non-officials to be presented to the VIP.

(d)

At the capital, foreign VIPs shall be received by the Chief of Protocol, on behalf of the Government, in the absence of any instructions to the contrary.

(e)

Approved photographers shall be allotted a specified place, at an appropriate distance, by the seniormost receiving officer, if necessary, in consultation with the Guard Commander, from where they may take photographs of the reception, and the like. They shall not be allowed to approach any nearer, till after the reception of the VIP, the inspection of the Guard of Honour, if any, and the introduction of officials and non-officials present. Even then, photographers, and the like, shall not be permitted to go any nearer the VIP than prescribed by the seniormost receiving officer. Approved photographers, and the like, may be permitted to take photographs of the reception, and the like, from a distance. On no account should photographers, Pressmen, and the like, be permitted to crowd or cluster round the VIP or to embarrass him in any other manner.

100.

Salutation by Civilian VIPs

(a)

Form of Salutation civilians. both ladies and gentlemen-required to take a military salute or receive a Guard of Honour shall return the compliments as follows :

(i)

Gentlemen wearing Indian head-dress or none at all, by raising the right hand to the forehead as (in Civilian salutation) and touching the right of the forehead with the fingers slightly inclined, the obverse of the palm facing the right eye, and the reverse outwards. When wearing European head-dress, by raising the hat with the right hand.

(ii)

Ladies shall acknowledge the salute in the same manner as above or in any other suitable manner. The hand or hat

should be lowered only after the troops have marched past, or after each group has marched past, where there are more than one.

(b)

Position of AsDC, the Parade Commander and the Seniormost Service(s) officer(s).

The VIP alone stands on the dais. If he has AsDC attending on him, they may stand on the sides of the saluting dais, a little to the rear of the VIP. The Parade Commander after he has saluted and passed in front of the VIP at the head of the Parade may leave the column and take up a position next to the VIP below the dais, on the flank from which the Parade marches on.

Explanation 1. - At the ceremonial parades held on the Republic Day (26th January) and the Independence Day (15th August) the salute shall ordinarily be taken by the seniormost civil representative of Government, for example the Governor, Chief Minister, Cabinet Minister, Commissioner, Collector or Deputy Commissioner, as the case may be.

Explanation 2. - At the Republic Day Parade in the Capital, the seniormost officers of the three services stand behind the President below the dais while the Services units are marching past. The Parade Commander marches off with his column. In State Capitals where the local police also participate in the march past on the Republic Day, the seniormost Police official of the State may also stand behind the VIP along with the seniormost officers of the three Services present at the Station.

101.

State Receptions.

(a)

State Reception shall be accorded to Heads of States, Governors-General of Commonwealth Countries and other Foreign VIPs on a requisition by the Ministry of External Affairs.

(b)

The term 'State Reception' shall ordinarily comprise of the following-

(i)

Gun Salute.

(ii)

Playing of the full version of the National Anthem of the State concerned followed by the Full version of our own.

(iii)

Guard of Honour.

(iv)

Reception at the airport or seaport or railway station by the President or his representative and/or Cabinet Ministers.

(v)

Stay for the first night with the President at the Rashtrapati Bhawan.

(vi)

State Banquet by the President (optional).

Section XII - Naval Salutes and marks of Respect

102.

Naval Personal Salute.

(1)

The Naval Salute shall be made by bringing up the right hand to the cap, hat or helmet naturally and smartly, but not hurriedly, with the thumb and fingers straight and close together, elbow in line with the shoulder, hand and forearm in line, the thumb being in line with the outer edge of the right eyebrow, with the palm of the hand turned to the left.

(2)

When passing an officer, the salute shall be commenced just before meeting, and continued until well past the officer, the person saluting looking towards him at the same time:

(3)

Every officer shall return a salute made to him; a salute made to two or more officers shall be returned by the senior officer only.

(4)

A naval salute shall be made on all occasions with the right hand only.

(5)

In plain clothes the salute shall be made by raising the hat or cap.

103.

Salutes between Officers.

- A junior officer, whether alone or in company with other officers, shall salute his senior officer when passing, addressing or being addressed by him, making the salute, which the senior should return. A junior officer, when in company with a senior officer, shall only salute officers senior to the latter.

104.

Salutes on Board.

(1)

When coming over the gangway, or on to the quarter deck, the salute shall be made by all officers and men.

(2)

Chief Petty Officers, Petty Officers and men shall salute when addressing, or being addressed by, an officer, and again on withdrawing.

(3)

Chief Petty Officers, Petty Officers and men when being passed by an officer shall stand to attention.

(4)

Officers, Chief Petty Officers, Petty Officers and men, if wearing head-dress, shall face in the required direction and salute :

(a)

Whenever the National Anthem or any foreign National Anthem is played.

(b)

When Colours are hoisted.

(c)

When Colours are lowered at sunset.

Explanation. - Parties of men fallen in shall be called to attention, the officer or sailor in charge saluting.

105.

Salutes on Shore.

(1)

The following shall be saluted :-

(a)

The President;

(b)

Naval officers, commissioned officers of the Army other than junior Commissioned Officers, Nursing Officers of Military Nursing-Service and Commissioned Officers of Air Force, in uniform;

(c)

Naval Officers in plain clothes, who, either by reason of their position or because they belong to the same ship, are known to be officers.

The salute, in addition to being a mark of respect, is a simple act of courtesy and good manners. It behoves all officers and sailors to recognize a senior officer and accord him the prescribed salute.

(2)

The rules for paying marks of respect in the following circumstances shall be as indicated against each:

(a)

A Chief Petty Officer, Petty Officer, or man, who is standing about shall face and salute an officer who passes him; if sitting when an officer approaches, he shall rise, stand to attention and salute.

(b)

Organized parties of men in charge of an officer or sailor shall be called to attention, the officer or sailor in charge only saluting.

(c)

When other parties of Chief Petty Officers, Petty Officers, or men on shore are passing or being passed by an officer, all shall salute.

(d)

Officers and sailors riding a bicycle (pedal or motor) shall salute.

(e)

The senior officer or sailor in a vehicle, whether driver or passenger, shall salute when passing a senior officer, the remaining passengers in the vehicle meanwhile sitting to attention.

Explanation. - No officer shall expect to be saluted if a rider or driver is in difficulty or danger.

(3)

Officers and men shall also salute on the following occasions:-

(a)

On passing a funeral;

(b)

On passing uncased colours carried by Naval, Army, or All Force Units;

(c)

If wearing headdress, when the National Anthem or any foreign National Anthem is played;

(d)

When colours are hoisted;

(e)

When colours are lowered at sunset.

(4)

Individual officers and sailors shall stand to attention, uncovered whenever the National Anthem or any foreign National Anthem is played.

(5)

Salutes shall not be exchanged in such places as drillsheds, railway stations, stands at race meetings or football matches, except when an officer or sailor is being addressed personally by a superior or when making a report.

(6)

Salutes shall be given to foreign Royalty and foreign officers in uniform in the same way as to Indian officers.

(7)

Certain senior officers are entitled to fly official distinguishing flags on their cars. Such flags shall not be displayed unless the entitled officer is in the car. Officers junior to those concerned and all sailors shall salute such flags.

(8)

Officers of the rank of a Commodore and equivalent in other two Services and above display Star Plates to denote their presence in the car.

The Colour of the plate denotes the Service to which the officer belongs.

Blue for Navy, Red for Army and Light Blue for Air Force

One

Star

Commodore

Two

Stars

Rear-Admiral

Three

Stars

Vice-Admiral

Four

Stars

Admiral

Five

Stars (in a circle)

Admiral

of the Fleet.

(9)

Painting of ship's boats.

(a)
The barge and any other personal boats of the Chief of the Naval Staff Shall be painted green.

(b)
The barge and any other personal boats of other Flag Officers shall be painted blue.

(c)
Except for restrictions in (a) and (b) above, boats may be painted any colour or combination of colours at the discretion of the Captain, subject to the approval of the Senior Officer.

(d)
Salute and marks of respect in boats shall be in accordance with Regulation 107.

106.
Inspections, etc., without Arms.

(1)
When inspected by a Flag Officer, or Captain, or by the officer in command of the ship of whatever rank, ships companies are inspected covered, and the right-hand Chief Petty Officer or Petty Officer only shall salute on the arrival of the inspecting officer. This sailor should be the senior of those fallen in.

(2)
If the inspecting officer wishes the sailors to uncover their heads, the drill "Off Caps" shall be carried out. Chief Petty Officers and Petty Officers will not uncover, but shall salute.

(3)
When being mustered by a Flag Officer, or Captain or by the officer in command of the ship, of whatever rank, all sailors below Petty Officer shall salute as they pass round.

(4)
When inspected by an officer at Divisions, Quarters. Watch fall in and on all other occasions of falling in for inspections without arms, Chief Petty Officers, Petty Officers and men shall be called to attention.

107.
Salutes and Marks of Respect in Boats.

(1)
The following rules for the paying and returning of marks of respect in boats shall be observed:

(a)
The officer in charge of the boat or the coxswain shall always salute, except where the design of the boat is such that the officer in charge or the coxswain is in an inconspicuous position, in which case one of the members of the boat's crew shall be detailed to salute.

(b)
The senior of the officers in the boat shall also salute whenever this is practicable.

(c)
The salute shall be acknowledged by the officer being saluted, unless he details an officer to do so. If no officer is available, the coxswain of the boat may be detailed to answer the salute.

(d)
Where boats carrying officers of equal rank pass each other, no exchange of salutes shall take place.

(2)
In addition to saluting, special marks of respect shall be paid to Royal and important personages and senior officers, as given in the table in cl. 6.

(3)
All officers shall be saluted by the officer in charge of the boat or coxswain when getting into or leaving the boat.

(4)
In private boats, officers and men should pay and return salutes as dictated by courtesy, but only the officer or the sailor in most convenient position should salute.

(5)
The Officer of the Guard with his pendant flying shall be saluted by all officers of junior rank, as in the case of Captain with his pendant flying. The Officer of the Guard will salute all officers senior to himself.

(6)

Table of Special Marks of Respect in Boats.

Personages

or occasion

Boat

when passing

Boat

alongside Landing Place, Accommodation Leader or made fast

Power

Boat

Boat

under Oars

Boat

under Sail

1

2

3

4

5

The

President, a President of a Republic, Royal Personages, Ambassadors, Governors-General and their equivalents in other countries.

Crew

called to attention

Explanation

: (i) In decked-in-power boats, members of the crew who are not engaged in keeping the boat alongside and all passengers stand to attention and face in the direction of the personage or officer being saluted.

(2)

The Chief of the Naval Staff, Commander-in-Chief, Flag officers and Commodores, and their equivalents in the other services and nations, when flying the appropriate flag of their command in their barges or boats.

Stop

Engines

Toss

Oars

Let

fly sheets

(ii)

In open boats of all types members of the crew who are not engaged in keeping the boat alongside and all passengers sit up-right and squarely on the thwarts or benches.

(3)

A boat containing a Service Funeral Party with the body.

(iii)

Boatkeepers sit at attention, and the senior sailor in the boat salutes.

(4)

During the hoisting of colours, and the lowering of colours at

sunset, and during the firing of gun salutes.

(5)

The Chief of the Naval Staff, Commanders-in-Chief and Flag Officers not flying a flag, Commodores not flying a Broad Pendant, officers of equivalent rank of other services and other nations, when not flying a flag, non-executive officers of Rear-Admiral's rank and above.

Note.- In the Indian Navy, the Red and Blue Discs referred to in sub-regulation (5) of Regulation 68 will be shown.

Reduce

speed to slow

Lay

on oars

Let

fly sheets.

Crew

called to attention.

(6)

The Chief of the Naval Staff, Commanders-in-Chief, Flag Officers, Commodores and officers of equivalent rank in uniform or plain clothes when showing the White Disc described in sub-regulation (5) of Regulation 68.

(7)

Any Indian or Foreign Naval Officer flying a pendant.

Explanation. -(i) Marks of respect are paid by all boats on occasions (3) and (4) above. Otherwise only by boats in which officers junior to the personage or officer passing are passengers.

(ii)

In boats fitted with crutches, oars shall never be tossed, but the salutes given by laying on oars.

Section XIII - Funeral Honours

108.

State Funerals.

(a)

A State Funeral shall be accorded to any dignitary, when ordered by the Government of India.

(b)

The detailed procedure for State Funerals shall be as given in Appendix II.

(c)

The following shall be observed when State mourning has been announced by the Government of India during a prescribed period:

(i)

There shall be no official entertainment;

(ii)

All flags on public or official buildings shall be flown at half-mast; colours in Indian Naval Ships and shore establishments shall remain at half-mast from the time of receipt of orders promulgating state mourning until sunset on the day of the funeral.

109.

Flag and General Officers, Air Marshals, etc.

(1)

At the funerals of Flag Officers, Commodores, General Officers, Brigadiers, Air Officers or Air Commodores, who have died on service, minute guns shall be fired whilst the body is proceeding to the place of cremation or interment, but these minute guns shall not exceed the number to which the officer's rank entitled him when living. They shall also be fired, after the body is deposited in the grave, or in the sea or cremated, a salute of cannon, amounting to the same

number of guns as the deceased officer was entitled to when living; in the event of any such officer dying afloat and being buried at a place on shore where there is a fort, minute guns shall be fired from the ship whilst the body is being conveyed to the shore; and after the body is landed, minute guns shall be fired by the fort while the funeral procession is moving from the landing-place to the place of cremation or interment; the minute guns both from the ship and the fort, shall not exceed twice the number of the guns the officer was entitled to when living.

110.

Captains and Commander in Command of a ship.

(1)

At the funeral of a Captain or Commander in Command of a ship, seven minute guns shall be fired by the ship he commanded, whilst the body is proceeding to the place of cremation or interment. After the body is deposited in the grave, or in the sea or cremated, a salute of seven guns shall also be fired by the same ship. If the ship be alone, the officer succeeding to the Command shall order this to be done.

The minute guns and salute shall be fired only by the ship which the officer commanded, and this shall be done whether the ship is present at the port of cremation or interment or not. If circumstances do not permit of the minute guns being fired by the ship which the officer commanded, they shall not be fired by any other ship in lieu.

(2)

If the funeral takes place ashore the procedure laid down in Regulation 111 shall be carried out in addition.

111.

All Officers and Men.

(1)

At the funeral of an officer, man or boy of any of Indian Naval Ships three volleys of musketry shall be fired over the grave or over the body when committed to the sea, the salute of guns laid down in Regulation 109 for a Flag Officer or Commodore and in Regulation 110 for a Captain or Commander in command of a ship being fired in addition.

(2)

On all occasions of naval funerals the Senior Officer present shall regulate the strength and composition of the funeral and firing parties, the number of officers and men forming the parties being, however, subject to the means at the disposal of the Senior Officer present.

112.

A gun carriage may be used for carrying coffins of deceased personnel of the Indian Navy.

113.

(1)

Honours shall be paid officially only at the funeral of officers or men who have died on active service and whose bodies are committed to the sea, cremated or buried within the precincts of a naval port or at the place where the ship is lying. Notwithstanding this Regulation, however, the Chief of the Naval Staff may, at his discretion, authorize the rendering of honours at the funerals of officers who have held certain high appointments.

(2)

Where the rendering of honours at the funerals of Naval personnel who have died on active service is precluded by sub-regulation (1), application may be made (or relatives applying may be referred) to the local Army or Indian Air Force authorities, who are authorized by the Chief of Army Staff or the Chief of the Air Staff to render honours whenever possible, provided that no public expense is incurred beyond the value of the blank ammunition fired and that the place of funeral is within a reasonable distance.

(3)

At the funeral of officers on unemployed full pay or half pay or on the retired list, or of pensioners who possess war medals or good conduct medals, a gun-carriage and a bugler to sound the "Last Post" may be lent, when desired, together with bearer party and men to drag the gun-carriage. This privilege shall, however, only be granted when the cremation or burial is within the precincts of a naval port and upon the conditions that there is no interference with Service duties, that no expense to the public is entailed, and that the services of the men on the bearer and gun-carriage parties are entirely voluntary.

(4)

Expense for which it would be necessary to seek repayment from the representatives of the deceased shall not be incurred, whether they are willing to defray it or not.

114.

Civil Officials.

- Civil officials shall have at their funerals the same number of guns fired as minute guns, while the procession is going to the cremation or burial ground, as they were entitled to as salutes when living. Those who are not entitled to salutes when living shall not have guns fired at their funerals.

115.

Half Masting Colours.

(1)

Colours half-masted for a funeral on shore shall be lowered at the time the funeral procession is due to leave the place where the body has been lying, and re-hoisted when sufficient time has elapsed for the cremation or interment.

(2)

When the body leaves a ship, the colours shall be lowered when the body is removed from where it has been lying on board the ship, and re-hoisted when sufficient time has elapsed for the cremation or interment.

(3)

For a funeral at sea, colours shall be lowered when the body is removed from where it has been lying and re-hoisted when the funeral service is ended.

(4)

When a body is being removed from a ship to await cremation or interment, colours shall not be half-masted, but the boat conveying it shall fly a boat's ensign at half-mast.

(5)

When colours are ordered to be half-masted throughout the day, they shall be hoisted close up when colours are hoisted in the morning, and immediately lowered to half-mast. At sunset they shall first be hoisted close up and then lowered in the usual manner.

(6)

When in foreign ports, if warships of the countries concerned half-mast their colours on the death of one of their Nationals, Indian Naval Ships shall as a matter of courtesy conform by half-masting their own colours. In the event of a foreign ship being in an Indian port on such an occasion. Indian Naval Ships in company shall half-mast their colour on the day of the funeral only unless special orders are issued by the Chief of the Naval Staff.

(7)

Indian Naval Ships approaching or leaving an anchorage where ships of any other country are wearing a foreign national flag at half-mast at the main, or have their colours at half-mast, shall, while within sight of the ships in port, hoist or keep the foreign national flag at half-mast or half-mast their own colours.

(8)

On the death (otherwise than in battle) of a Flag Officer whose flag is flying in one of Indian Naval Ships or naval establishments, his flag shall be half-masted and kept at half-mast until sunset on the day of the funeral when it shall be hoisted close up and then finally struck.

(9)

If, however, the funeral is to take place at a distance from the ship or port in which the flag is flying, the flag shall be kept at half-mast until sunset on the day on which the body is removed from the ship or port for the purpose of burial or cremation.

(10)

Instructions regarding half-masting of colours on the death of the President as contained in Regulation 8 shall also be applicable in the event of death of the Vice-President and the Prime Minister.

Section XIV - Order of Precedence on Ceremonial occasions

116.

Precedence on Occasions of Ceremony.

- In general, officers shall be introduced in the following order :

(a)

The Second in Command of the Ship;

(b)

The Executive Officer where he is not also the Second in Command;

(c)

Commissioned Officers being Heads of Departments, in order of seniority;

(d)

The remaining officers, in order of seniority irrespective of Branch.

Chapter III

Recruitment Of Cadets

Section I - Regular Entry Cadets

117.

Recruitment.

(1)

Recruitment of Regular Entry Cadets in the [Executive, Engineering and Electrical Branches]

[Substituted by S.R.O. 50, dated 19th February, 1981.]

of the Indian Navy shall be made through a

competitive examination. This examination may be called the Army, Navy and Air Force Examination for admission to the National Defence Academy, and shall be held by the Union Public Service Commission twice a year in accordance with the Government of India, Ministry of Defence Notification published in the Gazette of India on each occasion.

(2)

The following terms and conditions shall govern the selection and training of Regular Entry Cadets of the Indian Navy.

(3)

Eligibility. - A candidate shall be an unmarried male and shall fulfil the conditions regarding the nationality as laid down by the Government.

Explanation. - A widower or a person who has divorced his wife shall not be treated as an unmarried male for the purpose of this regulation.

["(4) Age limits.-The age limits shall be as prescribed in notification issued by the Union Public Service Commission at the time of each recruitment to the Army, Navy and Air Force wings of the National Defence Academy."]

[Substituted by S.R.O. 61, dated 3rd March, 1982]

["(5) Educational Qualifications.-Candidates must possess the educational qualifications as prescribed, in the rules relating to the National Defence Academy Examination, from time to time]

[Substituted by S.R.O. 61, dated 3rd March, 1982]

(6)

Selection.- (a) U.P.S.C. Examination.-The procedure for submission of application, places of examination, syllabus and other details of the examination shall be notified in the Gazette of India from time to time.

(b)

Services Selection Board. - Candidates who qualify at the written examination shall appear before a Services Selection Board for interview and other tests.

Explanation.-Candidates appearing before the Services Selection Board shall undergo the prescribed tests at their own risk and shall not be entitled to claim any compensation or other relief from Government in respect of any injury which they may sustain in the course of or as a result of these tests, whether due to the negligence of any person or, otherwise Parents /Guardians of the candidates shall be required to sign a certificate to this effect on the form appended to the application.

(c)

Medical Board. - Candidates who are declared qualified by the Services Selection Board shall be required to appear for medical examination before a Board of Military Medical Officers. Candidates should be medically fit in all respects, in accordance with the medical standards laid down by the Chief of the Naval Staff from time to time for selection as Regular Entry Cadets in the Indian Navy. Those candidates who are not found fit by the Medical Board shall not be admitted to the Academy. The development of the candidate should be such that by the time he attains the age of 17 1/2 years, he will reach the required standard of medical fitness. Candidates desiring to appeal against the findings of the Medical Board may do so. An appeal fee of Rs. 40 shall be charged which shall, however, be refunded to :

(i)

all successful candidates except those who, although successful, do not join the Academy for personal reasons;

(ii)

those candidates who withdraw their appeals before the Appeal Medical Board is convened;

(iii)

such candidates in whose case the Appeal Medical Board is not convened for administrative reasons.

The decision of the Appeal Medical Board shall be final.

(d)

Final Selection. - Candidates to be finally selected should secure the minimum qualifying marks in the written examination, and the Services Selection Board interview. Subject to this condition and to their being declared medically fit, successful candidates shall be placed in the order of merit on the basis of total marks secured in the written examination and the Services Selection Board interview. The final selection for admission to the Academy shall be made in this order up to the number of vacancies available for each course.

(7)

Training. - Candidates finally selected shall undergo a three years' course at the National Defence Academy. After this three years' training, the successful candidates shall undergo further specialised training in Indian Naval Ships and establishments.

(8)

Discipline. - While at the National Defence Academy, cadets shall be subject to the discipline of the Academy. During training in Indian Naval Ships and establishments they shall be subject to the Navy Act, 1957.

(9)

Declaration. - (a) Candidates must undertake not to marry until they complete their full training at the National Defence Academy, and later on at Indian Naval Ships and establishments. A candidate who marries subsequent to the date of his application, though successful at the written examination or Services Selection Board or medical examination, shall not be selected for training. A candidate who marries while under training shall be discharged and shall be liable to refund all expenditure incurred on him by the Government.

(b)

Before a candidate joins the Academy, the parent or guardian shall be required to sign:

(i)

[a certificate to the effect that he fully understands that he or his son or ward shall not be entitled to claim any compensation or other relief from the Government in respect of any injury which his son or ward may sustain in the course of or as a result of the training, or where bodily infirmity or death results in the course of or as a result of a surgical operation performed upon or anesthesia administered to him for the treatment of any injury received as aforesaid or otherwise.]

[Substituted by S.R.O. 17-E, dated 5th July, 1967.]

(ii)

A bond to the effect that, if for any reason considered within the control of the cadet, he wishes to withdraw before the completion of the initial training, or he marries whilst under training or he fails to accept a commission, if offered, he shall be liable to refund the whole or such portion of the cost of tuition and training, food, clothing and pay and allowances, received, as may be decided upon by the Government.

(10)

Allowances. - (a) The cost of training including accommodation and allied services, books, uniform, messing and medical treatment shall be borne by the Government. Parents or guardians of cadets shall however, be required to meet their pocket and other private expenses. Where a cadet's parent or guardian has an income less than [Rs. 350 /-]

[Substituted by S.R.O. 17-E, dated 5th July, 1967.]

p.m. and is unable to meet wholly or partly the pocket expenses of the cadet, financial assistance up to Rs. 30 p.m. may be granted in the first two years and Rs. 40 p.m. in the third year by the Government. A candidate desirous of securing financial assistance may, immediately after his, final selection, submit an application through the District Magistrate of his District, who shall, with his recommendation, forward the application to the Director of Military Training, Army Headquarters.

[Provided that in a case where two or more sons or wards of a parent or guardian are simultaneously undergoing training at the National Defence Academy, financial assistance as aforesaid may be granted to all of them for the period they simultaneously undergo training if the income of the parent or guardian does not exceed Rs. 400/- p.m.]

[Substituted by S.R.O. 17-E, dated 5th July, 1967.]

(b)

In addition to the uniform provided free by the Government, cadets should be in possession of some other items of clothing. In order to ensure correct pattern and uniformity, these items shall be made at the Academy and the cost shall be met by the parents or guardians of the cadets. Cadets applying for financial assistance may be issued with some of these items of clothing free or on loan. They may only be required to purchase certain items.

(c)

During the period of training, Service cadets shall receive pay and allowances of the substantive rate held by them as a sailor or as a boy or an apprentice at the time of selection as cadet. They shall also be entitled to receive increments of pay, if any, admissible in that rate. If the pay and allowances of their substantive rate be less than the financial assistance admissible to direct cadets, and provided they are eligible for such assistance, they shall also receive the difference between the two amounts.

(11)

Resignation and discharge.-No cadet shall normally be permitted to resign while under training. A civilian cadet who is not considered suitable to complete the full course at the Academy and/or at the Indian Naval Ships and establishments may with the [approval of the Government or the Chief of the Naval Staff]

[Substituted by S.R.O. 195, dated 30th July, 1985]

, be withdrawn from training and discharged. A Service cadet under these circumstances may be reverted to his original appointment. A cadet thus discharged /reverted shall not be eligible for readmission to a subsequent course. Cases of cadets who are allowed to resign on compassionate grounds, shall however, be considered on merits.

[SECTION II

[Substituted by S.R.O 183, dated 6th June, 1978]

- Graduate Special Entry Cadets]

118.

Recruitment of Special Entry Cadets.

(1)

Recruitment of Special Entry Cadets in the [Executive, Engineering and Electrical Branches]

[Substituted by S.R.O. 50, dated 19th February, 1981]

of the Indian Navy shall be made through a competitive examination. This examination may be called the Indian Navy Examination and shall be held by the Union Public Service Commission twice a year in accordance with the Government of India, Ministry of Defence, notification published in the Gazette of India on each occasion.

(2)

The following terms and conditions shall govern the selection and training of Special Entry Cadets of the Indian Navy.

(a)

Eligibility. - A candidate must be an unmarried male and must fulfil the conditions regarding the nationality as laid down by the Government.

Explanation. - A widower or a person who has divorced his wife will not be treated as an unmarried male for the purpose of this regulation.

(b)

[Age limits. - A candidate should be between 19 and 22 years of age on the 1st day of the month in which the course at Naval Academy, Cochin is due to commence.

[Substituted by S.R.O. 183, dated 6th June, 1978]

Note : The age limits shall in no case be relaxed.

(c)

Educational Qualifications. - A candidate should be a science graduate in Physics and Mathematics or he should possess a degree in Engineering"]

(3)

Selection. - (a) U.P.S.C. Examination. - The procedure for submission of applications, places of examination, syllabus and other details of the examination shall be notified in the Gazette of India from time to time.

(b)

Services Selection Board. - Candidates who qualify at the written examination shall be required to appear before a Service Selection Board for interview and other tests.

Explanation. - Candidates appearing before the Services Selection Board shall be required to appear for medical examination before shall not be entitled to claim any compensation or other relief from Government in respect of any injury which they may sustain in the course of or as a result of these tests, whether due to the negligence of any person or otherwise. Candidates shall be required to sign a certificate to this effect on the form appended to the application. In the case of candidates who are minors, the required certificate shall be signed by their parents or guardians on the prescribed form.

(c)

Candidates who are declared qualified by the Services Selection Board shall be required to appear for medical examination before a board of Military Medical Officers. Candidates should conform to the medical standards laid down by the Chief of the Naval Staff from time to time for selection as Special Entry Cadets in the Indian Navy. Those candidates who are not found fit by the Medical Board shall not be selected. Candidates desiring to appeal against the findings of the Medical Board may do so. An appeal fee of Rs. 40 shall be charged which will, however, be refunded to :

(i)

all successful candidates except those who, although successful, do not join the Academy for personal reasons;

(ii)

those candidates who withdraw their appeals before the Appeal Medical Board is convened;

(iii)

such candidates in whose case the Appeal Medical Board is not convened for administrative reason;

The decision of the Appeal Medical Board shall be final.

(d)

Candidates to be finally selected shall secure the minimum qualifying marks in the written examination and Services Selection Board interview. Subject to this condition and to their being declared medically fit, successful candidates shall be placed in the order of merit based on the total marks secured in the written examination and the Services Selection Board interview. The final selection shall be made in the order of merit up to the number of vacancies available.

(4)

[(a) Selected candidates shall be appointed as cadets and undergo the entire training in Naval Ships or Establishments.

(b)

The period of training as cadets at Naval Academy, Cochin shall be six months and thereafter their training as cadet (afloat), Midshipman, Acting Sub-Lieutenant and Sub-Lieutenant shall be regulated as provided in regulation 121(2), (a-ii),(b),(c) and (d).

"(5) Cadets, during training at the Naval Academy, Cochin in Indian Naval Ships and Establishments, shall be subject to the Navy Act.]

[Substituted by S.R.O. 183, dated 6th June, 1978]

(6)

Declaration.

(a)

Candidates shall undertake not to marry until they complete their full training at the 2[Naval Academy Cochin] and later on at the Indian Naval Ships and establishments. A candidate who marries subsequent to the date of his application, though successful at the written examination or Services Selection Board or medical examination, shall not be selected for training. A candidate who marries while under training shall be discharged and shall be liable to refund all expenditure incurred on him by the Government.

(b)

Before a candidate joins the academy, the candidate and/or his parent/guardian shall be required to sign :

(1)

[a certificate to the effect that he fully understands that he or his son or ward shall not be entitled to claim any compensation or other relief from the Government in respect of any injury which he or his son or ward may sustain in the course of or as a result of the training or where bodily infirmity or death results in the course of or as a result of a surgical operation performed upon or anesthesia administered to him for the treatment of any injury received as aforesaid or otherwise.]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

(ii)

a bond to the effect that, if for any reason considered within control of the candidate, his son/ward wishes to withdraw before completion of the initial training, or he marries whilst under training or he fails to accept a commission, if offered, he shall be liable to refund the whole or such portion of the cost of tuition and training, food, clothing and pay and allowances received, as may be decided upon by the Government.

(7)

(a)

The cost of training including accommodation and allied services, books, uniform, messing and medical treatment shall be borne by the Government. Parents or guardians of cadets shall however, be required to meet their pocket and other private expenses while they are at the [Naval Academy Cochin]

[Substituted by S.R.O. 183, dated 6th June, 1978]

When a cadet's parent or guardian has an income less than [350/-]

[Added by S.R.O. 19E, dated 5th July, 1967]

per mensem and is unable to meet wholly or partly the pocket expenses of the cadet, financial assistance up to Rs. 40 per mensem may be granted by the Government. A candidate desirous of securing financial assistance may, immediately, after his selection, submit an application through the District Magistrate of his District, who shall with his recommendations forward the application to the Director of Military Training, Army Headquarters.

[Provided that in a case where two or more sons or wards of a parent or guardian are simultaneously undergoing training at the National Defence Academy, financial assistance as aforesaid may be granted to all of them for the period they simultaneously undergo training if the income of the parent or guardian does not exceed Rs. 400/- p.m.]

[Substituted by S.R.O. 19-E, dated 5th July, 1967]

(b)

In addition to the uniform provided free by the Government, cadets should be in possession of some other items of clothing. In order to ensure correct pattern and uniformity, these items will be made at the Academy and the cost shall be met by the parents or guardians of the cadets. Cadets applying for financial assistance may be issued with some of these items of clothing free or on loan. They may only be required to purchase certain items.

(c)

During the period of training, Service cadets may receive pay and allowances of the substantive rate held by them as a sailor or as a boy or an apprentice at the time of selection as cadet. They shall also be entitled to receive increments of pay, if any, admissible in that rate. If the pay and allowances of their substantive rate be less than the financial assistance admissible to direct cadets, and provided they are eligible for such assistance, they shall also receive the difference between the two amounts.

(8)

No cadet shall normally be permitted to resign while under training. A civilian cadet who is not considered suitable to complete the full course at the Academy and/or at the Indian Naval Ships and establishments may, with the approval of the Government, be withdrawn from training and discharged. A Service cadet under these circumstances may be reverted to his original appointment. A cadet thus discharged or reverted shall not be eligible for re-admission to a subsequent course. Cases of cadets who are allowed to resign on compassionate grounds, may, however, be considered on merits.

Section III - Cadets From Training Ship "Dufferin"

119.

Selection and Training of "Dufferin" Cadets.

(1)

The following terms and conditions shall govern the selection and training of "Dufferin" cadets as special entry cadets of the Indian Navy :

(a)

Eligibility. - A candidate must be an unmarried male and must fulfil the conditions regarding the nationality as laid down by the Government.

Explanation. - A widower or a person who has divorced his wife will not be treated as an unmarried male for the purpose of this regulation.

(b)

Age limits. - A candidate must be between [17 years and 20 years]

[Substituted by S.R.O. 25E, dated 29th October, 1967]

on the 1st day of the month in which the course at the National Defence Academy is due to commence. The age limits shall in no case be relaxed.

(c)

Educational Qualifications. - A candidate must have passed the Final Dufferin Passing Out Examination either :

(i)

with Extra First Class Certificate with at least 50 per cent, marks in Trigonometry; or

(ii)

with First Class Certificate with at least 50 per cent marks in each academic subject and in Trigonometry.

(2)

(a)

Application shall be submitted by a Dufferin cadet to the Captain Superintendent, Training Ship "Dufferin" who shall forward it to the Chief of the Naval Staff with his recommendation that the cadet is, in his opinion, suitable to hold a commissioned rank in the Indian Navy. The application shall be submitted on the prescribed form. Copies of this form shall be available with the Captain Superintendent, Training Ship "Dufferin".

(b)

Candidates recommended by the Captain Superintendent, Training Ship "Dufferin" and considered suitable by the Chief of the Naval Staff shall be required to appear before a Services Selection Board for interview and other tests.

Explanation. - Candidates appearing before the Services Selection Board shall undergo the prescribed tests at their own risk and shall not be entitled to claim any compensation or other relief from Government in respect of any injury which they may sustain in the course of or as a result of these tests, whether due to the negligence of any person or otherwise. Candidates shall be required to sign a certificate to this effect on the form appended to the application. In the case of candidates who are minors, the required certificate shall be signed by their parents or guardians on the prescribed form.

(c)

Candidates to be finally selected should secure the minimum qualifying marks at the Services Selection Board. Subject to this condition and to their being declared medically fit, successful candidates shall be placed in the order of merit based on the total marks secured in the written examination and the Services Selection Board interview. The final selection shall be made in the order of merit up to the number of vacancies available.

(d)

Medical Boards. - Candidates who are declared qualified by the Services Selection Board shall be required to appear for medical examination before a Board of Military Medical Officers. Candidates should conform to the medical standards laid down by the Chief of the Naval Staff from time to time for selection as special entry cadets in the Indian Navy. Those candidates who are not found fit by the Medical Board shall not be selected. Candidates desiring to appeal against the findings of the medical board may do so. An appeal fee of Rs. 40 shall be charged which is, however, refundable to:

(i)

candidates who, as a result of re-examination, are found fit except those who although successful, do not join the Indian Navy for personal reasons;

(ii)

candidates who withdraw their appeals before the Appeal Medical Board is convened; and

(iii)

candidates whose request for re-examination is not granted.

The decision of the Appeal Medical Board shall be final.

(3)

Selected candidates may be appointed as cadets and shall undergo one year's training at the National Defence Academy. On completion of this training they shall be required to undergo further training in Indian Naval Ships and establishments.

(4)

Discipline. - While at the National Defence Academy, cadets shall be subject to the discipline of the Academy. During training in Indian Naval Ships and establishments, they shall be subject to the Navy Act, 1957.

(5)

(a)

Candidates must undertake not to marry until they complete their full training at the National Defence Academy and later on at the Indian Naval Ships and establishments. A candidate who marries subsequent to the date of his application, though successful at the Services Selection Board or medical examination, shall not be selected for training. A candidate who marries while under training shall be discharged and shall be liable to refund all expenditure incurred on him by the Government.

(b)

Before a candidate joins the Academy, the candidate and/or his parent/guardian shall be required to sign:

(i)

[a certificate to the effect that he fully understands that he or his son or ward shall not be entitled to claim any compensation or other relief from the Government in respect of injury which he or his son or ward may sustain in the course of or as a result of the training or where bodily infirmity or death results in the course of or as a result of a surgical operation performed upon or anesthesia administered to him for the treatment of any injury received as aforesaid or otherwise.]

[Substituted & Added by S.R.O. 17-E, dated 5th July, 1967]

(ii)

a bond to the effect that, if for any reason considered within control of the candidate, his son/ward wishes to withdraw before completion of the initial training or he marries whilst under training or he fails to accept a commission, if offered, he shall be liable to refund the whole or such portion of the cost of tuition and training, food, clothing and pay and allowances received, as may be decided upon by the Government.

(6)

(a)

The cost of training including accommodation and allied services, books, uniform, messing and medical treatment shall be borne by the Government. Parents or guardians of cadets shall however, be required to meet their pocket and other private expenses while they are at the National Defence Academy. When a cadet's parent or guardian has an income less than 1[Rs. 350/-] per mensem and is unable to meet wholly or partly the pocket expenses of the cadet, financial assistance up to Rs. 40 per mensem may be granted by the Government. A candidate desirous of securing financial assistance may, immediately after his selection, submit an application through the District Magistrate of his District, who shall with his recommendations forward the application to the Director of Military Training, Army Headquarters.

[Provided that in a case where two or more sons or wards of a parent or guardian are simultaneously undergoing training at the National Defence Academy, financial assistance as aforesaid may be granted to all of them for the period they simultaneously undergo training if the income of the parent or guardian does not exceed Rs. 400/- p.m.]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

(b)

In addition to the uniform provided free by the Government, cadets should be in possession of some other items of clothing. In order to ensure correct pattern and uniformity, these items will be made at the Academy and the cost shall be met by the parents or guardians of the cadets. Cadets applying for financial assistance may be issued with some of these items of clothing free or on loan. They may only be required to purchase certain items.

(7)

No cadet shall normally be permitted to resign while under training. A cadet who is not considered suitable to complete the full course at the Academy and/or at Indian Naval Ships and establishments may, with the approval of the Government, be withdrawn from training and discharged. A cadet thus discharged shall not be eligible for re-admission to a subsequent course. Cases of cadets who are allowed to resign on compassionate grounds may, however, be considered on merits.

Section IV - Cadets From National Cadet Corps

120.

Selection and Training of Cadets from the National Cadet Corps.

(1)

The following terms and conditions will govern the selection and training of cadets of the Senior Division, Naval Wing of the National Cadet Corps as special entry cadets of the Indian Navy.

(a)

Eligibility. - A candidate must be an unmarried male and must fulfil the conditions regarding the nationality as laid down

by the Government.

Explanation. - A widower or a person who has divorced his wife will not be treated as an unmarried male for the purpose of this regulation.

(b)

Age limits. - A candidate must be between [17 years and 20 years]

[Substituted by S.R.O. 25-E, dated 29th October, 1967]

of age on the 1st day of the month in which the course at the National Defence Academy is due to commence. The age limits shall in no case be relaxed.

(c)

[Educational Qualifications. - A candidate must have passed-

[Substituted by S.R.O. 25-E, dated 29th October, 1967]

(i)

the Intermediate or an equivalent examination of a University or Board approved by the Government of India with English, Mathematics, and at least one of the subjects Physics or Chemistry as principal subjects or

(ii)

the first year examination, under the three-year Degree Course of a University approved by the Government of India, with Mathematics and at least one of the subjects Physics or Chemistry as subjects of the examination.

Provided that before joining the Degree Course, the candidate passed the Higher Secondary examination or the pre-University or equivalent examination or obtained the Cambridge School Certificate with Mathematics and at least one of the subjects Physics or Chemistry, or

(iii)

the pre-Engineering examination of the Delhi Polytechnic, Delhi or of a University approved by the Government of India, or

(iv)

the first year examination under the five-year Engineering Degree Course of a University approved by the Government of India;

Provided that before joining the Degree Course, the candidate passed the Higher Secondary examination or pre-University or equivalent examination or obtained the Cambridge School Certificate with Mathematics and at least one of the subjects Physics or Chemistry, or

(v)

the Cambridge Higher School Certificate examination with Mathematics, Physics and Chemistry as his optional subjects, or

(vi)

any other examination which may be recognised by the Government of India as equivalent to the above.]

(d)

Other Qualifications. - A candidate must :

(a)

have served for not less than two academic years in the Senior Division, Naval Wing of the National Cadet Corps;

(b)

be in possession of Certificate 'C' (Naval); those who have appeared or intend to appear for Certificate 'C' examination are also eligible to apply but their final selection shall depend on producing the Certificate before the commencement of the course; and

(c)

be in possession of a certificate of good conduct and character from his University or Principal of his College.

(e)

A candidate shall not be eligible to apply after twelve months of leaving the Senior Division, Naval Wing of the National Cadet Corps.

(2)

(a)

Applications shall be submitted by a cadet to his Officer Commanding, N.C.C. Unit, Naval Wing, who shall forward in through the Circle Commander concerned to the N.C.C. Directorate, Ministry of Defence, New Delhi. The N.C.C.

Directorate will forward the applications to the Chief of the Naval Staff. The applications shall be submitted on the prescribed form. These forms will be available at all N.C.C. Units.

(b)

Candidates who are considered prima facie suitable shall be required to appear before a Services Selection Board for interview and other tests. The Government reserve the right to make a preliminary selection on the basis of candidates' educational and other qualifications and any other relevant factors, and then call up only those who seem likely to be the best candidates.

Explanation. - Candidates appearing before the Services Selection Board shall undergo the prescribed tests at their own risk and shall not be entitled to claim any compensation or other relief from Government in respect of any injury which they may sustain in the course of or as a result of these tests, whether due to negligence of any person or otherwise. Candidates shall be required to sign a certificate to this effect on the form appended to the application. In the case of candidates who are minors the required certificate must be signed by their parents or guardians on the prescribed form.

(c)

Candidates to be finally selected should at least secure the minimum qualifying marks at the Services Selection Board. Subject to this condition and to their being declared medically fit, successful candidates shall be placed in the order of merit based on the total marks secured in the written examination and the Services Selection Board interview. The final selection shall be made in the order of merit up to the number of vacancies available.

(d)

Medical Boards. - Candidates who are declared qualified at the Services Selection Board shall be required to appear for medical examination before a Board of Military Medical Officers. Candidates should conform to the medical standards laid down by the Chief of the Naval Staff from time to time for selection as special entry cadets in the Indian Navy. Those not passed at fit by the medical board shall not be selected. Candidates desiring to appeal against the findings of the Medical Board may do so. An appeal fee of Rs. 40 shall be charged which is, however, refunded to :

(i)

candidates who, as a result of re-examination, are found fit except those who although successful, do not join the Indian Navy for personal reasons;

(ii)

candidates who withdraw their appeals before the Appeal Medical Board is convened; and

(iii)

candidates whose request for re-examination is not granted.

The decision of the Appeal Medical Board shall be final.

(3)

Selected candidates may be appointed as cadets and shall be required to undergo one year's training at the National Defence Academy. On completion of this training, they shall also be required to undergo further training in Indian Naval Ships and establishments.

(4)

While at the National Defence Academy, cadets shall be subject to the discipline of the Academy. During training in Indian Naval Ships and establishments, they shall be subject to the Navy Act, 1957.

(5)

(a)

Candidates must undertake not to marry until they complete their full training at the National Defence Academy and later on at the Indian Naval Ships and establishments. A candidate who marries subsequent to the date of his application, though successful at the Services Selection Board or medical examination, shall not be selected for training. A candidate who marries while under training shall be discharged and shall be liable to refund all expenditure incurred on him by the Government.

(b)

Before a candidate joins the Academy, the candidate and/or his parent or guardian shall be required to sign-

(i)

[a certificate to the effect that he fully understands that he or his son or ward shall not be entitled to claim any compensation or other relief from the Government in respect of injury which he or his son or ward may sustain in the course of or as a result of the training or where bodily infirmity or death results in the course of or as a result of a

surgical operation performed upon or anaesthesia administered to him for the treatment of any injury received as aforesaid or otherwise.]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

(ii)

a bond to the effect that, if for any reason considered within control of the candidate, his son or ward wishes to withdraw before completion of the initial training or he marries whilst under training or he fails to accept a commission, if offered, he shall be liable to refund the whole or such portion of the cost of tuition and training, food, clothing and pay and allowances received, as may be decided upon by the Government.

(6)

(a)

The cost of training including accommodation and allied services, books, uniforms, messing and medical treatment shall be borne by the Government. Parents or guardians of cadets shall however, be required to meet their pocket and other private expenses while they are at the National Defence Academy. When a cadet's parent or guardian has an income less than [Rs.350/-]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

per mensem and is unable to meet wholly or partly the pocket expenses of the cadet, financial assistance up to Rs. 40 per mensem may be granted by the Government. A candidate desirous of securing financial assistance may immediately after his selection, submit an application through the District Magistrate of his District, who shall with his recommendations, forward the application to the Director of Military Training, Army Headquarters.

[Provided that in a case where two or more sons or wards of a parent or guardian are simultaneously undergoing training at the National Defence Academy, financial assistance as aforesaid may be granted to all of them for the period they simultaneously undergo training if the income of the parent or guardian does not exceed Rs. 400/- p.m.]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

(b)

In addition to the uniform provided free by the Government, cadets should be in possession of some other items of clothing. In order to ensure correct pattern and uniformity, these items shall be made at the Academy and the cost shall be met by the parents or guardians of the cadets. Cadets applying for financial assistance may be issued with some of these items of clothing free or on loan. They may only be required to purchase certain items.

(7)

Resignation and discharges. - No cadet shall normally be permitted to resign while under training. A cadet who is not considered suitable to complete the full course at the Academy and/or at Indian Naval Ships and establishments may, with the approval of the Government, be withdrawn from training and discharged. A cadet thus discharged shall not be eligible for re-admission to a subsequent course. Cases of cadets who are allowed to resign on compassionate grounds, may, however, be considered on merits.

Chapter IV

Training And Promotion Of Subordinate And Junior Officers

Section I - Officers in the Executive Branch-Cadet entry

121.

Cadet entry.

(1)

The following provisions shall govern the training and promotion of cadet entry subordinate and junior officers in the Executive Branch of the Indian Navy.

(2)Length of Training.-

(a)

Cadets

(i)

National Defence Academy

Regular

entry cadets

3

years.

Special
entry cadets

1

year.

(ii)

Afloat training

6

months.

(b)

Midshipmen

Afloat

training

1

year

(e)

Acting Sub-Lieutenants

Technical

courses

12

months.

(d)

Sub-Lieutenants

A minimum period of 3 months' sea service to obtain a Watch keeping Certificate.

(3)

Promotion.

(a)

Midshipment. - On completion of 6 months' afloat training as a cadet and subject to passing the Cadet's Passing Out Examination and being recommended for promotion, cadets shall be promoted to Midshipmen.

(b)

Acting Sub-Lieutenants. - On completion of [6 months']

[Substituted by S.R.O. 237, dated 24th May, 1975]

service as Midshipmen, and subject to passing the Seamanship Examination and being recommended for promotion, Midshipmen shall be granted the rank of Acting Sub-Lieutenant with seniority of the date on which they are promoted.

(c)

Sub-Lieutenants. - Acting Sub-Lieutenants shall be confirmed in rank with original seniority on the day following the successful completion of their technical courses.

(d)

Lieutenants. - Confirmed Sub-Lieutenants shall be appointed to sea and shall be promoted to the rank of Lieutenant at the discretion of the Chief of the Naval Staff, provide they have obtained the following certificates from their Captains:

(i)

that the officer is competent to take charge of a Watch at sea as Lieutenant and to perform efficiently the duties of that rank;

(ii)

that he is recommended and is fit in all respects for promotion to the rank of Lieutenant.

Explanation. - These certificates shall not be granted before the officer has served three months at sea as a confirmed Sub-Lieutenant. No officer can, however, be promoted before the date of his seniority as a Lieutenant calculated in accordance with sub-regulation (6).

(4)

If a Sub-Lieutenant, through no fault of his own, is unable to obtain a Watchkeeping Certificate by the date on which he becomes due for promotion to Lieutenant, details of the case together with the Captain's recommendation shall be referred to the Chief of the Naval Staff in order that consideration be given to the grant of the acting rank of Lieutenant. If

the grant of acting rank is approved, the officer shall be given seniority as from the date on which he became due for promotion to Lieutenant, and pay of rank shall be effective from that date or from six months after date of first effective appointment as a Sub-Lieutenant (confirmed) whichever is later. On obtaining a Watchkeeping Certificate, the acting rank shall be confirmed as from the original date.

(5)

Failure in Examination.

(a)

Cadets and Midshipmen

(i)

Cadets and Midshipmen who fail in the Cadet's Passing Out

Examination or the Seamanship Examination as the case may be, shall be put back for a term of six months and then re-examined.

(ii)

A second failure in either of these examinations shall entail liability to discharge from the service.

(b)

Acting Sub-Lieutenants

(i)

Officers failing in not more than two subjects in any one course, but obtaining pass marks for that course shall be given further instruction and re-examined in the subject(s) in which they have failed.

(ii)

Officers failing to obtain pass marks for the course or failing in more than two subjects shall be required to do the whole course again.

(iii)

Officers failing in any of the following courses shall be penalised by the loss of seniority as a Lieutenant as follows:

Navigation

Direction

Gunnery

T.A.S.

Signal

Communication

one

month

War

Course

[Divisional

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

Electrical

Naval

Aviation

Supply

and Secretariat

Half

month

Marine

Engineering

A.B.C.D.]

Note - Failure in a course does not invalidate the concurrent award of any time gained as a result of the number of points earned in other courses.

(iv)

Officers passing on re-examination shall be given a 'pass' class only and no marks shall be awarded.

(v)

Those who fail in the examination at their second attempt shall be liable to be discharged from the Service.

(6)

Seniority. - The period of 'time to serve' as a Sub-Lieutenant (acting and confirmed) for the purpose of calculating seniority as a Lieutenant shall be 3 years subject to adjustment according to the time forfeited or based on the total number of points earned.

(7)

Gain in time. - Officers shall be eligible for gain in time for the purpose of calculating seniority as a Lieutenant on the results of the Passing Out Examination in Cadet Training Ship, the Midshipmen's Seamanship examination and Technical Courses up to a maximum period of 12 months based on the total number of points earned.

(8)

Cadets and Midshipmen whose period of training is lengthened on account of sickness may be eligible for an ante-date of seniority as a Lieutenant, subject to approval by the Chief of the Naval Staff in each case.

Section II - Officers in the Executive Branch on Short Service Commissions

122.

Short Service Commissions.

(1)

The following provision shall govern the entry, training and promotion of officers granted Short Service Commissions in the Executive Branch of the Indian Navy.

(2)

Nationality.-A candidate must be an unmarried male and must fulfil the conditions regarding the nationality as laid down by the Government.

(3)

[Educational or Technical Qualifications. - A candidate shall possess any of the following qualifications:

(a)

A degree of a recognised University and having passed with Mathematics and the Physics either as optional or as compulsory subjects in the degree examination or in Intermediate or Higher Secondary or Pre-University School Certificate Examination; Or

(b)

Government of India, Ministry of Shipping and Transport Certificate of Competency (Foreign-going) either as a Second Mate, or Mate Master of other similar certificate recognised by the Central Government or any other qualification which may be recognised by the Central Government as equivalent to the above.

Explanation. - The subjects quoted in Cl. (a) above termed by any other name such as General Mathematics or Physical Science, would be acceptable provided the Chief of the Naval Staff is satisfied for the candidates have attained requisite standard in these subjects.]

[]

(4)

Age limits. - Candidates shall conform to the following age limits on entry:

Lower

age limit

Upper

age limit

(a)

Graduates

19½

years

25

years

(b)

Those holding a Certificate of Competency mentioned in Cl. (b) of sub-regulation (3).

20

years

30

years

Explanation. - Upper age limit in the case of cl. (b) may be relaxed by the Government in exceptional circumstances.

(5)

Medical Standards. - Candidates shall conform to the prescribed medical standards.

(6)

Selection. - Candidates who are considered prima facie suitable shall be interviewed by a Services Selection Board, and the final selection shall be made by the Government taking into consideration the Board's recommendations subject to medical fitness.

[(6-A) Declaration. - Before a candidate reports for training, he and his parent or guardian are required to sign a bond, as given in Appendix XI.]

[Substituted by S.R.O. 21-E, dated 6th June, 1970]

(7)

Duration of Commission. - The period of Short Service Commission shall be seven years commencing from the date of reporting for, or commencement of, training whichever is later. This may be extended by a specified period at the discretion of the Chief of the Naval Staff with the consent of the officer concerned, provided the period of extension does not exceed two years at a time and the total service of the officer does not exceed ten years. On expiry of their Short Service contract, including any period of extension thereof, officers shall be placed on the Emergency List for a period of 5 years.

(8)

Rank on Entry.

(a)

Those holding Certificate of Competency as a Master or a Mate shall be entered as Acting Lieutenant. Suitably qualified candidates who are in possession of a Certificate of Competency as a Master, may be granted up to a maximum of 2 years seniority in the rank of Lieutenant, at the discretion of the Chief of the Naval Staff. I'

(b)

Those holding Certificate of Competency as a Second Mate shall be entered as Acting Sub-Lieutenant. Suitably qualified candidates may be granted up to a maximum of 11h years seniority in that rank at the discretion of the Chief of the Naval Staff.

(c)

Others shall be entered as Acting Sub-Lieutenant.

(9)

Period of Probation. - An officer shall be on probation for a period of 1 year or until completion of initial training whichever is later.

(10)

Initial Training. - Candidates shall undergo a prescribed course of training. On completion of training they shall be required to pass an examination.

Cases of failure in the examination shall be referred to the Chief of the Naval

Staff for consideration. Those who fail in the examination may, at the discretion of the

Chief of the Naval Staff, be given further training in the subjects in which they had failed and be re-examined. Such of these officers who, in the opinion of the Chief of the Naval Staff, will not benefit by further training shall be discharged from the Service as being unsuitable. Those who fail in the examination at the second attempt shall also be discharged from the Service as being unsuitable.

(11)

Confirmation. - On completion of their probationary period, provided their progress and conduct have been satisfactory, officer entered as Lieutenant, shall be confirmed as such with their original seniority. Acting Sub-Lieutenants, on completion of their probationary period, provided they have passed the examination referred to in sub-regulation (10) and their progress and conduct have been satisfactory, shall be confirmed in the rank of Sub-Lieutenant, with their original seniority.

(12)

Promotion to Lieutenant.

(a)

Depending on the marks obtained in the examination referred to in sub-regulation (10) officers entered as Acting Sub-Lieutenants will serve for a period of 21h-31i years in the rank of Sub-Lieutenant (acting and confirmed) before promotion to the rank of Lieutenant.

(b)

No officer shall be promoted to the rank of Lieutenant unless he has obtained a full Naval Watchkeeping Certificate where an officer fails to obtain a full Naval Watchkeeping Certificate before he becomes due for promotion to the rank of Lieutenant, his promotion shall be delayed correspondingly and the time thus lost shall not count as reckonable service for promotion :

Provided that where the Chief of the Naval Staff is satisfied that an officer has been unable to obtain the Naval Watchkeeping Certificate owing to the exigencies of service, such officer may be promoted to the rank of acting Lieutenant on the due date and confirmed in the rank of Lieutenant on obtaining the said certificate [with seniority of date of promotion to Acting Lieutenant.]

[Inserted by S.R.O. 17-E, dated 5th July, 1967]

:

Provided further that where the Chief of the Naval Staff is satisfied that an officer specialising as Pilot or Observer for employment in Naval Air Arm has been unable to obtain a Watchkeeping Certificate owing to the exigencies of service such officer may be promoted to the rank of confirmed Lieutenant, when he is due for such promotion.

(c)

Where an officer has been promoted to the rank of confirmed Lieutenant under the second proviso to cl. (b), such officer shall not be eligible for further promotion, whether acting or substantive, until he obtains the Naval Watchkeeping Certificate and he shall be required to obtain the same within one year of his becoming available for employment in the General Service.

(13)

Refund of Cost of Training. - If an officer voluntarily withdraws from initial training, or resigns during the probationary period, he shall be required to refund the cost of training in whole or in part, as maybe determined by the Government, and all monies received by him as pay and allowances from the Government together with the interest on the said money calculated at the rate in force for Government loans.

(14)

Permanent Commissions. - Suitable officers maybe considered for the grant of Permanent Commission in the Indian Navy at any time after successful completion of the period of probation, subject to the existence of vacancies and the regulations current at the time.

Section III - Officers in the Engineering Branch-Cadet Entry

123.

Training and Promotion in the Engineering Branch.

(1)

The following provisions shall govern the training and promotion of the sub-ordinate and junior officers in the Engineering Branch of the Indian Navy.

(2)

Length of Training. - The various phases of initial training shall be as under:

(a)

National Defence Academy

Regular

entry cadets

3

years.

Special

entry cadets

1

year.

(b)

Afloat Training

6

months.

(c)

Basic Engineering Course

126

weeks (2 years and 5 months approximately).

(d)

Post-graduate afloat training

1

year.

(e)

Specialisation Course

1

year.

Explanation. - Officers earmarked for Ordnance Engineering will undergo a post-graduate afloat training of 8 months and the Specialisation course for 16 months.

(3)

Promotion.

(a)

Midshipmen. - On completion of 6 months' afloat training as cadet and subject to passing the Cadets' Passing Out Examination and being recommended for promotion, cadets shall be promoted to the rank of Midshipmen.

(b)

[Acting Sub-Lieutenants.

[Substituted by S.R.O. 5-E, dated 24th May, 1975]

- On completion of [6 months'] service as Midshipmen and provided they are reported as "Satisfactory" by the Commanding Officer, Indian Naval Ship SHIVAJI, officers shall be promoted to the rank of Acting Sub-Lieutenant with seniority of the date of promotion.

(c)

Sub-Lieutenants. - Acting Sub-Lieutenants shall be confirmed in rank with original seniority on the day following the successful completion of the Basic Engineering Course.

(d)

Lieutenants. - Sub-Lieutenants shall be appointed to sea for Watchkeeping duties. They shall be promoted to the rank of Lieutenant at the discretion of the Chief of the Naval Staff provided:

(i)

they have obtained the Engine Room Watchkeeping Certificates;

(ii)

they are recommended by their Commanding Officers as fit in all respects for promotion to the rank of Lieutenant.]

(e)

[Officers who specialise as Constructors and are unable to obtain their Engine Room Watchkeeping Certificate, owing to the exigencies of the service, may be promoted to the confirmed rank of Lieutenant, when due for such promotion. They shall also be eligible for further promotion (acting or confirmed) notwithstanding their not being in possession of the Engine Room Watchkeeping Certificate. They shall, however, be required to obtain the said Watchkeeping Certificate within one year of becoming available for employment in the General Service.]

[]

[Note:-Officers who are unable to obtain the Engine Room Watchkeeping Certificate owing to the exigencies of service may be granted the acting rank of Lieutenant at the discretion of the Chief of the Naval Staff from the date on which they otherwise become due for promotion to the rank of Lieutenant in relaxation of the provisions of sub-regulation (3)(d)(i). In such cases the officers will be confirmed in the rank of Lieutenant from the due date on obtaining the requisite certificate.]

[Substituted by S.R.o. 76, dated 17th February, 1967]

(f)

[Cases of officers who do not secure the Engine Room Watchkeeping Certificate within 8 months of sea service shall be referred to the Chief of the Naval Staff. No officer shall be promoted before the date of his seniority as a Lieutenant calculated in accordance with sub-regulation(6)]

[Substituted by S.R.o. 5-E,d ated 12th May, 1966]

(4)

Failure in Examinations.-

(a)

Cadets

(i)

Cadets who fail in the Cadet's Passing Out Examination shall normally be put back a term and then re-examined. Relegation of a term as a cadet shall entail loss of six months seniority for promotion to Midshipman.

(ii)

A second failure in examination shall entail liability to discharge from the Service.

(b)

Basic Engineering Course

(i)

An officer who fails to reach the required standard at any of the term progress examination during the Basic Engineering Course shall be put back one term.

(ii)

An officer who fails to qualify in the final examination of the Basic Engineering Course shall be put back a term at the conclusion of which he shall be re-examined, and if then successful, confirmed in the rank of Sub-Lieutenant with original seniority. Failure in final examination shall entail loss of seniority towards promotion to the rank of Lieutenant up to a maximum of 6 months.

(iii)

Second failure in the final examination of the Basic Engineering Course shall entail liability to discharge from the Service.

(c)

Specialisation Course

(i)

An officer who fails to qualify in the final examination of the Specialisation Course shall be put back a term at the conclusion of which he shall be re-examined. The officer shall also be penalised by the loss of up to a maximum of 3 months' time towards seniority as Lieutenant.

(ii)

An officer failing twice in the final examination of the Specialisation Course shall be liable to be discharged from the Service.

(d)

Basic Engineering and Specialisation Courses. - Officers who pass in their second attempt the final examination of the Basic Engineering Course or the Specialisation Course shall not be entitled to gain in time admissible under sub-regulation (5).

(5)

Gain in time. - Officers shall be eligible for the following maximum gain in time for the purpose of calculating seniority as a Lieutenant on the results of Passing Out Examination in Cadet Training Ship and the final examination of the Basic Engineering Course and the Specialisation Course :

(a)

Passing Out Examination in Cadet Training Ship

1

month.

(b)

Basic Engineering Course

7

months.

(c)

Specialisation Course

4

months.

The gain in time shall not be admissible to officers who pass these examinations in their second attempt.

(6)

Seniority. - The period of 'time to serve' as a Sub-Lieutenant (acting and confirmed) for the purpose of calculating seniority as a Lieutenant shall be 3 years subject to adjustment according to the time forfeited or time gained in respect of this promotion.

(7)

[Cadets and Midshipmen whose period of training is extended on account of sickness may be eligible for an antedate of seniority as a Lieutenant, subject to approval by the Chief of the Naval Staff, in each case.]

[Inserted by S.R.O. 76,dated 17th February, 1967]

Section IV - Officers in the Engineering Branch on Short Service Commissions

124.

Training and Promotion of Short Service Commissioned Officers.

(1)

The following provision shall govern the entry, training and promotion of officers granted Short Service Commissions in the Engineering Branch of the Indian Navy.

(2)

Nationality. - A candidate must be an unmarried male and must fulfil the conditions regarding nationality as laid down by the Government.

(3)

Technical qualifications. - A candidate must possess any one of the following qualifications:

(a)

Government of India, Ministry of Transport and Communications Certificate of Competency as 1st class Engineer of a steamship or other similar certificate recognised by the Government.

(b)

A Degree in Marine or Mechanical Engineering from a recognised University, or equivalent qualification in Mechanical Engineering recognised by the Institute of Engineers (India) as exempting from Secs. 'A' and 'B' of their Associate Membership Examination.

[***]

[Omitted by S.R.O. 17-E, dated 5th July, 1967]

(4)

Age limits. - Candidates must conform to the following age limits on entry:-

Lower

age limit

Upper

age limit

(a)

Those who fall under clause (a) of sub regulation (3)

19½

years

30

years

(b)

Others

19½

years

25

years

Explanation. - Upper age limit may be relaxed in cases falling under clause (a) by the Government in exceptional circumstances.

(5)

Medical Standards. - Candidates must conform to the prescribed medical standards.

(6)

Selection. - Candidates who are considered prima facie suitable shall be interviewed by a Services Selection Board and the final selection shall be made by the Government taking into consideration the Board's recommendations subject to medical fitness.

(7)

Duration of Commission. - The period of Short Service Commission shall be seven years commencing from the date of reporting for, or commencement of, training whichever is later. This may be extended by a specified period at the discretion of the Chief of the Naval Staff, with the consent of the officer concerned, provided the period of extension does not exceed two years at a time and the total service of the officer does not exceed ten years. On expiry of their Short Service contract, including any period of extension thereof, officers shall be placed on the Emergency List for a period of 5 years.

(8)

Rank on Entry. - (a) Those possessing a Certificate of Competency referred to in cl. (a) of sub-regulation (3) shall be entered as a Lieutenant. Suitably qualified candidates may be granted up to a maximum of 2 years seniority in the rank at the discretion of the Chief of the Naval Staff.

(b)

Others shall be entered as an acting Sub-Lieutenant.

(9)

Period of Probation. - All officers shall be on probation for a period of 11h years. This may be extended up to 2 years at the discretion of the Chief of the Naval Staff, in the case of officers who fail to obtain their Engine Room Watchkeeping Certificates at the first attempt.

(10)

Initial Training. - (a) Candidates possessing Certificate of Competency referred to in cl. (a) of sub-regulation (3) shall undergo a Divisional Course and obtain an Engine Room Watchkeeping Certificate before being 1[transferred] for duties. Others shall be given professional prescribed training, and on its completion, they shall be required to pass an examination. They shall then be sent to sea to obtain Engine Room Watchkeeping Certificate.

(b)

Cases of failure in the examination shall be referred to the Chief of the Naval Staff for consideration. Those who fail in the examination may, at the discretion of the Chief of the Naval Staff, be given further training in the subjects in which they had failed and be re-examined. Such of these officers who, in the opinion of the Chief of the Naval Staff will not benefit by further training shall be discharged from the Service as being unsuitable. Those who fail in the examination at the second attempt shall also be discharged from the Service as being unsuitable.

(11)

Confirmation. - On completion of their probationary period, provided they have obtained the Engine Room Watchkeeping Certificate and their progress and conduct have been satisfactory, the officers in possession of Certificate of Competency referred to in cl. (a) of sub-regulation (3) shall be confirmed in the rank of Lieutenant with their original seniority in that rank. Other officers shall, on completion of their probationary period, be confirmed in the rank of Sub-Lieutenant with seniority of date as Acting Sub-Lieutenant provided :

(a)

their progress and conduct have been satisfactory;

(b)

they have passed the examination referred to in sub-regulation (10); and

(c)

they have obtained the Engine Room Watchkeeping Certificate.

(12)

Promotion. - Depending on the marks obtained in the examination, Sub-Lieutenants shall serve for a period of 11h years to 21h years in that rank (including the period served as Acting Sub-Lieutenant) before promotion to the rank of Lieutenant. Should an officer fail to obtain an Engine Room Watchkeeping Certificate before he is due for confirmation in the rank of Lieutenant or Sub-Lieutenant, his promotion to the rank of Lieutenant shall be delayed correspondingly and the time thus lost shall not count as reckonable service for promotion :

Provided that where the Chief of the Naval Staff is satisfied, that any officer has been unable to obtain a Watch keeping Certificate owing to the exigencies of Service, such officer may be promoted to the rank of Acting Lieutenant on the due date and confirmed in the rank of Lieutenant [on obtaining the requisite certificate with seniority of date of promotion to Acting Lieutenant.]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

[Explanation.

[Substituted by S.R.O. 5-E, dated 12th May, 1966]

- Officers who specialise as Constructors and are unable to obtain their Engine Room Watch keeping Certificate, owing to the exigencies of the service, may be promoted to the confirmed rank of Lieutenant when due for such promotion. They shall also be eligible for further promotion (acting or confirmed) notwithstanding their not being in possession of the Engine Room Watch keeping Certificate. They shall, however, be required to obtain the said Watch keeping Certificate within one year of becoming available for employment in the General Service.]

(13)

Refund of cost of Training. - If an officer voluntarily withdraws from initial training, or resigns during the probationary period, he shall be required to refund the cost of training in whole or in part, as maybe determined by the Government, and all monies received by him as pay and allowances from the Government together with the interest on the said money calculated at the rate in force for Government loans.

(14)

Permanent Commissions. - Suitable officers may be considered for the grant of Permanent Commissions in the Indian Navy at any time after successful completion of the period of probation subject to the existence of vacancies and the regulations current at the time.

Section V - Officers in the Electrical Branch-Cadet Entry

125.

Training and Promotion of subordinate and junior officers.

(1)

The following provisions shall govern the training and promotion of subordinate and junior officers in the Electrical Branch of the Indian Navy.

(2)

Length of Training. - The various phases of initial training shall be as follows :

(a)

National Defence Academy

Regular

entry cadets

3

years.

Special

entry cadets

1

year.

(b)

Afloat Training

6

months.

(c)

Basic Engineering Course

126

weeks (2 years and 5months approximately)

(d)

Post-Graduate afloat training

6

months.

(e)

Specialisation Course

1

year.

(J)

Industrial training

6

months.

(3)

Promotion.

(a)

Midshipmen. - On completion of 6 months' afloat training as cadet and subject to passing the Cadet's Passing Out Examination and being recommended for promotion, Cadets shall be promoted to the rank of Midshipmen.

(b)

Acting Sub-Lieutenants. - On completion of [6 months]

[Substituted by S.R.O. 237, dated 24th May, 1975]

service as Midshipmen and provided they are reported as "Satisfactory" by the Commanding Officer, Indian Naval Ship SHIVAJI, officers shall be promoted to the rank of Acting Sub-Lieutenant with the seniority of the date of promotion.

(c)

Sub-Lieutenants. - Acting Sub-Lieutenants shall be confirmed in rank with original seniority on the day following the successful completion of the Basic Engineering Course.

(d)

Lieutenants. - Sub-Lieutenants shall be appointed to sea for sea training and award of Certificate of Competency. They shall be promoted to the rank of Lieutenant at the discretion of the Chief of the Naval Staff, provided:

(i)

they have obtained the Certificate of Competency;

(ii)

they are recommended by their Commanding Officers as fit in all respects for promotion to the rank of Lieutenant.

(e)

Cases of officers who do not receive the Certificate of Competency within 6 months of sea service shall be referred to the Chief of the Naval Staff. No officer shall be promoted before the date of his seniority as a Lieutenant calculated in accordance with [Sub-regulation (6)]

[Substituted by S.R.O. 17E, dated 5th July, 1967]

[Explanation.

[Substituted by S.R.O. 17E, dated 5th July, 1967]

- Officers who are unable to obtain the certificate of competency owing to the exigencies of service may be granted the acting rank of Lieutenant at the discretion of the Chief of the Naval Staff from the date on which they otherwise become due for promotion to the rank of Lieutenant in relaxation of the provisions of sub-clause (i) of cl. (d). In such cases they shall be confirmed in the rank of Lieutenant on obtaining the certificate of competency with seniority of date of promotion to Acting Lieutenant.]

(4)

Failure in Examinations-(a) Cadets.

(i)

Cadets who fail in the Cadet's Passing Out Examination shall normally be put back a term and then re-examined. Relegation by a term as a cadet shall entail loss of 6 months' seniority for promotion to the rank of Midshipman.

(ii)

A second failure in this examination shall entail liability to discharge from the Service.

(b)

Basic Engineering Course.

(i)

An officer who fails to reach the required standard at any of the term progress examinations during the Basic Engineering Course shall be put back one term.

(ii)

An officer who fails to qualify in the final examination of the Basic Engineering Course shall be put back a term at the conclusion of which he shall be re-examined, and if then successful, confirmed in the rank of Sub-Lieutenant with original seniority. Failure in the final examination shall entail loss of seniority towards promotion to the rank of Lieutenant up to a maximum of 6 months.

(iii)

A second failure in the final examination of the Basic Engineering Course shall entail liability to discharge from the Service.

(c)

Specialisation Course.

(i)

An officer who fails to qualify in the Specialisation Course shall be put back a term at the conclusion of which he shall be re-examined. The officer shall also be penalised by the loss of up to a maximum of 3 months' time towards seniority as Lieutenant.

(ii)

An officer failing twice in the final examination of the Specialisation Course shall be liable to be discharged from the service.

(d)

Basic Engineering and Specialisation Courses. - Officers who pass in their second attempt the final examination of the Basic Engineering Course or the Specialisation Course shall not be entitled to gain in time admissible under sub-regulation (5).

(5)

Gain in time. - Officers shall be eligible for the following maximum gain in time for the purpose of calculating seniority as a Lieutenant based on the results of the Passing Out Examination in Cadet Training Ship and the final examinations of the Basic Engineering Course and the Specialisation Course:

(a)

Passing Out Examination in Cadet Training Ship

1

month.

(b)

Basic Engineering Course

7

months.

(c)

Specialisation Course

4

months.

The gain in time shall not be admissible to officers who pass these examinations in their second attempt.

(6)

Seniority. - The period of "time to serve" as a Sub-Lieutenant (acting and confirmed) for the purposes of calculating seniority as a Lieutenant shall be three years subject to adjustment according to the time forfeited or time gained in respect of this promotion.

(7)

[Cadets and Midshipmen whose period of training is extended on account of sickness may be eligible for an antedate of seniority as a Lieutenant, subject to approval by the Chief of the Naval Staff, in each case.]

[Inserted by S.R.O. 76, dated 17th February, 1967]

Section VI - Officers in the Electrical Branch on Short Service Commissions

126.

Training and Promotion of officers in the Electrical Branch.

(1)

The following provisions shall govern the entry, training and promotion of officers granted Short Service Commissions in the Electrical Branch of the Indian Navy.

(2)

Nationality. - A candidate must be an unmarried male and must fulfil the conditions regarding the nationality as laid down by the Government.

(3)

Technical qualifications. - A candidate must possess a Degree in Electrical Engineering of a recognised University or equivalent qualification in Electrical Engineering recognised by the Institute of Engineers (India) as exempting from Sections 'A' and 'B' of their Associate Membership Examination.

(4)

Age limits. - Candidates must not be below 19½ years and over [25 years]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

of age on entry. The upper age limit may, however, be relaxed in the case of specially suitable candidates at the discretion of the Government.

(5)

Medical Standards. - Candidates must conform to the prescribed medical standards.

(6)

Selection. - Candidates who are considered prima facie suitable shall be interviewed by a Services Selection Board and the final selection shall be made by the Government taking into consideration the Board's recommendations subject to medical fitness.

(7)

Duration of Commission. - The period of Short Service Commission shall be seven years commencing from the date of reporting for, or commencement of, training whichever is later. This may be extended by a specified period at the discretion of the Chief of the Naval Staff, with the consent of the officer concerned, provided the period of extension does not exceed two years at a time and the total service of the officer does not exceed ten years. On expiry of their Short Service contract, including any period of extension thereof, officers shall be placed on the Emergency List for a period of 5 years.

(8)

Rank on Entry. - Selected candidates shall be entered in the rank of Acting Sub-Lieutenant.

(9)

Period of Probation. - An officer shall be on probation for a period of 1 year or until such time as completion of initial training whichever is later.

(10)

Initial Training.

(a)

Candidates shall be given an initial prescribed training. On completion of this training they shall be required to pass an examination.

(b)

Those who pass in this examination shall be sent to sea for further training, where they will have to obtain a certificate of competency on completion of the sea training. Cases of failure in the examination shall be referred to the Chief of the Naval Staff, for consideration. Those who fail in the examination may, at the discretion of the Chief of the Naval Staff, be given further training in the subjects in which they had failed and re-examined. Such of these officers who, in the opinion of the Chief of the Naval Staff, will not benefit by further training shall be discharged from the Service as being unsuitable. Those who fail in the examination at the second attempt shall also be discharged from the Service as being unsuitable.

(11)

Confirmation. - Acting Sub-Lieutenants on completion of their probationary period and provided they qualify in the examination referred to in sub-regulation (10), and their progress and conduct have been satisfactory, shall be confirmed in the rank of Sub-Lieutenant with seniority of date of entry as Acting Sub-Lieutenant.

(12)

Promotion to Lieutenant.

(a)

Depending on the marks obtained in the examination, Sub-Lieutenants shall serve a period of 1½ years to 2½ years in the rank of Sub-Lieutenant (including the period served as Acting Sub-Lieutenant) before promotion to the rank of Lieutenant.

(b)

No officer shall be promoted to the rank of Lieutenant unless he has obtained a certificate of competency on completion of sea training :-

Provided that where the Chief of the Naval Staff is satisfied that any officer has been unable to obtain a certificate of competency owing to the exigencies of Service, such officer may be promoted to the rank of Acting Lieutenant on the due date, and confirmed in the rank of Lieutenant on obtaining the requisite certificate with seniority of date of promotion to Acting Lieutenant.

(13)

Refund of Cost of Training. - If an officer voluntarily withdraws from initial training, or resigns during the probationary period, he shall be required to refund the cost of training in whole or in part, as may be determined by the Government, and all monies received by him as pay and allowances from the Government together with the interest on the said money calculated at the rate in force for Government loans.

(14)

Permanent Commissions. - Suitable officers maybe considered for the grant of Permanent Commissions in the Indian Navy at any time after successful completion of the period of probation, subject to the existence of vacancies and the regulations current at the time.

Chapter V

Appointment Of Officers

129.

Officers generally.

- The appointment of officers to the Service shall be made by the Government.

130.

General Regulations.

(1)

Officers shall not be permitted to select or decline appointments.

(2)

Applications to have an appointment cancelled shall not be made except for urgent reasons, which are to be stated fully in writing. If an officer makes such an application, his Commanding Officer or Superior Authority shall state whether or not he recommends that the application shall be granted.

(3)

Applications for appointments to particular ships or establishments shall be considered as objectionable and shall not be forwarded to the Chief of the Naval Staff; but if two officers desire to exchange their appointments, and provided that adequate reasons are given, an application for exchange may be submitted, the Captains of the respective ships stating thereon that they have no objection to the request being complied with; but if they have objections, these shall be specified.

(4)

The Captain shall bear in mind that no application for the discharge or transfer of an officer from his ship, nor for such lengthened leave of absence as might render his return improbable, will be entertained unless he shall certify on the application that he is satisfied with the conduct of shall officer; he shall also certify on every application for survey on an officer, as well as for his discharge or transfer, that the request is not made for the purpose of removing the officer from the ship in consequence of any misconduct.

(5)

Though the conduct of an officer may not be such as to warrant disciplinary action by court-martial or disciplinary court, he may be considered unsuitable for the appointment he holds, for example, through lack of professional ability, personal qualities or conduct. Where his shortcomings compel his Commanding Officer to apply for his relief, the officer shall be fully informed before the application is forwarded to the Administrative Authority; the application must be accompanied by or comprised in a report upon the officer, and those adverse parts of the report of which the officer has been informed shall be underlined in red ink. (The adverse remarks shall be shown to the officer in accordance with instructions issued by the Chief of the Naval Staff from time to time.)

131.

Officers to report non-availability.

- When an officer is not immediately available for employment from any cause whatsoever, he shall report the fact, for the information of the Chief of the Naval Staff, through the usual channels.

132.

Appointment to other navies.

(1)

All officers are liable for service with any other navy as may be directed by the Government. In selecting officers for such service, preference may be given to volunteers, but if the requisite number of suitable volunteers is not forthcoming, officers may be detailed as for any other appointment.

(2)

[All Officers are liable for service in any military, civil or other appointment whether in India or abroad as may be directed by the Government or by the Chief of the Naval Staff when specifically so authorised by the Government.]

[Substituted by S.R.O. 245, dated 26th July, 1980.]

133.

The Chief of the Naval Staff.

- The Chief of the Naval Staff shall be a Flag Officer appointed by the President as the Chief of the Naval Staff, or in his absence on leave or otherwise, an officer appointed by the Government to officiate as such, or in the absence of such officiating appointment, the officer on whom the Command devolves in accordance with Regulation 221(4).

134.

Captains and above.

- The appointments of officers of all branches of the rank of Captain and above, shall be made by the Government on the recommendation of the Chief of the Naval Staff.

135.

Other officers.

- Other officers shall be appointed by the verbal or written order of the Chief of the Naval Staff, or the verbal or written order of any other of their superior officers duly authorised to appoint. These orders shall be signified to officers in such manner as the Chief of the Naval Staff may at any time think proper.

136.

Flag Officer's personal staff.

- A Flag Officer or Commodore may select his Secretary and Flag Lieutenant where allowed from such officers as the Chief of Naval Staff may make available for appointment.

137.

Chief of Staff and Chief Staff Officer.

- When the Chief of the Naval Staff shall deem it expedient to appoint a Chief of Staff or Chief Staff Officer, he shall be a Flag Officer, Commodore or Captain, at the discretion of the Chief of the Naval Staff. If a Commodore or Captain not in command of the ship in which he is borne, is appointed he shall be given an appointment as additional Captain of that ship.

138.

Captain of the Fleet.

- When the Chief of the Naval Staff shall deem it expedient to appoint a Captain of the Fleet, he shall be a Captain of such seniority as the Chief of the Naval Staff may consider desirable, save that in exceptional circumstances the Chief of the Naval Staff may appoint a Commodore; and if he is not also in command of the ship in which he is borne, he shall be given an appointment as additional Captain of that ship.

139.

Reserve Officers.

- Officers of the Indian Naval Reserve and Indian Naval Volunteer Reserve shall be appointed by the Chief of the Naval Staff to Indian Naval Ships for training, in accordance with the Regulations for the Indian Naval Reserve and Indian Naval Volunteer Reserve.

140.

Officers of the Executive Branch below the rank of Commander, and officers of other branches of any rank, whose ships may be captured or lost may, if dismissed their ships by a sentence of court-martial, or if, having been invalidated, they have sufficiently recovered before an opportunity has offered of sending them home, be appointed or ordered to do duty by the Administrative Authority, or senior officer, or by any other officer, without the express authority from the Chief of the Naval Staff, should the exigencies of the service require it. Every such case shall, however, be reported by separate letter to the Chief of the Naval Staff.

141.

Removal of Captain.

(1)

An officer in command of a ship to which he has been properly appointed shall not, except as hereinafter provided be removed from his command by any superior officer without the prior approval of the Chief of the Naval Staff.

(2)

Where the Flag or the Senior Officer considers it expedient in the interest of public service to change an officer from the command of one ship to the command of another, he may do so with the consent of the two officers concerned.

(3)

Where the circumstances are such which render the removal of an officer from the command of a ship essentially necessary for the public service and are so urgent as not to permit a prior reference to the Chief of the Naval Staff, the Flag or Senior Officer may direct the removal of the officer from command, reporting the circumstances immediately to the Chief of the Naval Staff.

(4)

Where a vacancy arises in command of a ship, the Flag or Senior Officer may appoint a suitable officer to the command of such ship, reporting the circumstances to the Chief of the Naval Staff.

(5)

Any appointments made under sub-regulations (2) to (4) shall be provisional until the final directions of the Chief of the Naval Staff are obtained.

142.

Local Appointments and Transfers.

(1)

Administrative Authorities and other officers in command of stations or squadrons shall transmit to the Chief of the Naval Staff by every available opportunity a return of all officers appointed by them or directed to act in vacancies.

(2)

When a Medical Officer is transferred together with his stores from one ship of a squadron to another by local administrative action, as may occur, for instance, with the Squadron Medical Officer of a destroyer or mine sweeping squadron, the Senior Officer of the squadron shall report the date of transfer by letter through proper channel to the Chief of the Naval Staff without delay.

(3)

On all occasions of transfer of Flag, or of the Senior Officer of a squadron, the Flag or Senior Officer shall report to the Chief of the Naval Staff his proposals for the transfer of officers.

143.

Voluntary Retirements and Resignations.

(1)

An application from an officer to retire voluntarily or to resign his commission shall be made through, and with the approval of the Captain who shall furnish the certificate prescribed by Regulation 130. When an officer is liable to refund outfit allowance or a portion thereof, an application to resign shall be accompanied by a statement that the officer is aware of such liability and is prepared to refund the amount due in the event of his request being approved.

(2)

The Retired List is restricted to officers with Permanent Commissions who withdraw from the Active List with retiring pension or service gratuity; officers placed on the Retired List are liable to be recalled for further service in war or emergency. Permanent Officers who withdraw without entitlement to retiring pension or service gratuity are not eligible for inclusion in the Retired List, but may voluntarily enrol their names on the Emergency List, in which case they accept liability to recall to service in an emergency. Officers who, on withdrawal from the Active List, are not enrolled on the Retired List or on the Emergency List shall resign their Commissions and serve their connection with the Navy. They shall not be subsequently entitled to use their naval rank. Short Service officers shall have an automatic liability for service on the Emergency List for a period specified in their original engagement.

(3)

An application from an officer to be released abroad where he is serving, shall be referred to the Chief of the Naval Staff for decision and shall be accompanied by all relevant details about the position of any dependants, so that it may be confirmed that the applicant is making reasonable provision for the maintenance of any dependants in India.

(4)

The orders of the Government shall be obtained on all applications from officers to retire voluntarily or to resign their Commissions.

144.

[Seniority of Officers-Sub-Lieutenant and Below.

[Substituted by S.R.O. 199, dated 10th December, 1969]

- The relative position in the Navy List of officers of the same seniority in the rank shall be determined in alphabetical order.

(2)

Lieutenants. - Seniority as Lieutenant shall be determined on the basis of time gained or lost during initial training. Officers of the same seniority as Lieutenants shall be placed in the Naval List in accordance with their date of commission. If the date of commission also happens to be the same, then the age shall determine the relative position in the Navy List, that is to say, the order, the senior.

(3)

Lieutenant Commanders and above. - If two officers are promoted on the same date, they shall retain the same relative position in the Navy List as in their previous rank.]

145.

[Tenure of appointments.

[Inserted by S.R.O. 3-E, dated 24th March, 1966]

- The normal tenure of office of the Chief of the Naval Staff shall be three years or upto the prescribed age of compulsory retirement whichever is earlier. Tenure of service in the substantive rank of Vice-Admiral shall be three years which may be extended to four years. Tenure of service in the substantive rank of Rear Admiral shall normally be three years extendible by a second tenure or extensions thereof in all not exceeding three years. There shall be no fixed tenure of service for officers of the rank of Captain and below.]

146.

Rank of Officers holding naval appointments.

- [(1)]

[Substituted by S.R.O. 199, dated 10th December, 1969]

All appointments shall normally be filled by officers of the requisite rank who are best qualified to hold them, but the Chief of the Naval Staff is authorised to appoint, in any particular case, an officer of the rank next below or next above that by which the post is normally filled, should administrative convenience require such action, subject to the condition that in the former case acting higher rank is not granted and in the latter case no increase in the number of officers of the higher rank is involved.

(2)

[The Chief of the Naval Staff is competent to transfer officers and sailors from one Ship or Shore Establishment to another as supernumeraries for temporary service provided that the total complement of the Indian Navy as a whole is not thereby exceeded.]

[Inserted by S.R.O. 17-E, dated 5th July, 1967]

[146-A. Unpaid acting ranks.

[Inserted by S.R.O. 3-E, dated 24th March, 1966]

- Unpaid acting ranks appropriate to the appointments held may be granted to officers if considered necessary in the interest of service.]

147.

Officers-how-borne.

- Officers serving afloat or ashore shall be borne on the books of the ship or establishment in which they are serving or to which they are attached.

148.

Honorary Naval Aides-de-camp.

- Officers of the Navy may be selected for appointments as Honorary Aides-de-camp to the President of India and the Governors of the States of India.

149.

Joining Time.

(1)

An officer transferred from one ship or establishment to another necessitating change of station, provided he is not required to arrive by a particular date, may be allowed joining time on the following scale subject to a maximum of 30 days :

(i)

Six days for preparation;

(ii)

Actual time spent in the journey performed by air, subject to the provision of sub-regulation (5);and

(iii)

One day in respect of each of the following distances or fractions thereof:

Journey

by rail

500

Kilometers

Journey

by sea

350

Journey

by river

150

Journey

by road by motor car

250

Journey

by other means

25

Explanation. - For computing distances, only the actual mileage will be reckoned and not any assumed or weighted mileage for which fare may be charged by railways.

A road journey not exceeding five miles to or from an air port, railway station or steamer port at the beginning or end of a journey shall not count for joining time. In calculating the amount of joining time admissible, Sundays shall be ignored, but shall be included in the thirty days maximum.

(2)

Joining time counts as duty.

(3)

Joining time may be allowed in conjunction with annual leave but not with any other kind of leave. An Officer holding acting rank shall retain his acting rank during the period of joining time, provided he does so during the annual leave preceding the joining time.

(4)

Joining time shall count from the day following the date the officer is relieved of his duties.

(5)

For purposes of joining time by air under clause (ii) of sub-regulation (1) a part of a day should be treated as a day.

(6)

[The Chief of the Naval Staff may sanction an extension of joining time beyond what is admissible under the scale authorised in sub-regulation (1); provided the maximum period of thirty days is not exceeded. This will be subject to the following conditions :

(i)

When an individual has been unable to use the ordinary mode of travelling or, notwithstanding due diligence on his part, has spent more time on the journey than is allowed by the rules; or

(ii)

When such extension is considered necessary for public convenience or for the saving of such public expenditure as is caused by unnecessary or purely formal transfers;

(iii)

When the rules have in any particular case operated harshly; as for example, when an individual has through no fault on his part missed a steamer or fallen sick on the journey.]

(7)

[Joining time, as provided in sub-regulation (1) may be allowed to an individual at the time of proceeding to another station to attend a course of instruction of more than three months if he does not retain Service accommodation at the last duty station for the duration of the course. It may also be allowed to an individual who while on temporary duty or on a course of instruction at another station irrespective of its duration,, is posted on permanent duty to a new station and is required to proceed direct from the station of temporary duty or course of instruction. In such a case, the joining time will be reckonable from the station of temporary duty or course of instruction.]

[Substituted by S.R.O. 69, dated 4th January, 1972]

(8)

(a)

An individual who is transferred from an appointment in INDIA to an appointment ex-INDIA or vice versa or from an appointment ex-INDIA to another appointment ex-INDIA or who at the end of a course of instruction abroad is appointed to a station in India other than that from where he proceeded on the course, shall be entitled to joining time as follows :

The actual period spent in transit from the old duty station to the new duty station by the approved route, including enforced halts, if any, as certified by the Heads of Missions concerned in countries where enforced halts occur that the halt was necessary to catch the connecting transport, [plus 6 days for preparation which may be availed of at any station including the old duty station.]

[Substituted by S.R.O. 4-E, dated 27th March, 1968]

Explanation. - The six days preparation period shall, however, run concurrently with the period of enforced halt, if any, at the starting station in the case of an individual appointed to or returning from ex-INDIA on permanent transfer or returning after attending a course of instruction abroad when informed of the station of posting before embarkation.

(b)

An individual who is appointed ex-INDIA from his temporary duty station shall be struck off the strength of that appointment from the date of his leaving the temporary duty station and shall be entitled to joining time as in clause (a) reckoning from the station of temporary duty.

(9)

The joining time of an officer transferred from Naval to Civil or foreign employ or on re-transfer to Naval Service shall be governed by the regulations of the borrowing Civil Department or Government and not by these Regulations.

150. Officers on the Retired and Emergency Lists.

- Officers on the retired and emergency lists shall be liable for service under the Government, if required in the event of war or emergency.

Chapter VI

General Service Officers Promotion And Ages Of Compulsory Retirement

Section I-General

151.

Promotions in Gazetted Appointments.

(1)

All promotions in the ordinary course up to the rank of Lieutenant Commander and Acting Commander shall be made by the Chief of the Naval Staff, the usual draft notifications being forwarded to the Government for publication in the Gazette of India. Recommendations for promotions to substantive Commander and above shall be submitted to the Government for their approval. Necessary orders for promotion shall be conveyed by the Chief of the Naval Staff.

(2)

Substantive promotions up to and including the rank of Lieutenant Commander shall be governed by time scale. Promotion up to the rank of Lieutenant shall be subject to passing of professional examinations. To be eligible for promotion, an officer must have a satisfactory record of service and be recommended.

(3)

[Substantive promotions to the rank of Commander and above shall ordinarily be made by selection from amongst the officers who are placed in medical categories S1 AI, S2 AI and S2 A2 (permanent) and shall be limited to the number of vacancies in the authorised

cadre :

Provided that the cases of officers whose medical categories have made them unfit for sea service in S3 AI, S3 A2 may be considered for promotion for shore establishments only if the following conditions are fulfilled, namely :

(a)

that the medical authorities certify that the officer is capable of performing the normal ashore duties of the rank in the branch in which he is being promoted in his medical category; and

(b)

that the medical authorities also certify that any disability, disease or defect from which the officer is suffering is not likely to be aggravated by service conditions when he is employed on duties compatible with his medical category and within the restrictions placed by the medical board :

Provided further that only such officers who fulfil the conditions (a) and (b) above shall be considered for promotion as are considered fit by the Chief of the Naval Staff on the basis of their past performance and confidential reports.]

[Substituted by S.R.O. 234, dated 11th June, 1977]

(4)

All promotions other than those governed by time scale shall normally be made half-yearly on the 30th June and 31st December.

Explanation. - Substantive promotion by time scale under sub-regulation (2) shall be admissible to officers during the period of leave pending retirement.

(5)

(a)

Substantive promotions to the rank of Commander of officers, not promoted by selection against the authorised cadre of Commanders under sub-regulation (3) may be made, subject to their being considered fit in all respects, by time scale on completion of 24 years reckonable commissioned service provided they have not attained the age of compulsory retirement. Officers so promoted shall not be reckoned against the authorised cadre of Commanders, but shall be held in a separate "non-selection" list except that an officer promoted to the acting rank of Commander before completing 24 years' service and made substantive under this sub-regulation while holding the rank of Acting Commander on completing 24 years' service, shall be held against an authorised Commander's appointment.

(b)

The authorised cadre of Lieutenant-Commanders or Lieutenants or Sub-Lieutenants shall be reduced to the extent of the number of officers borne on the "non-selection" list of Commanders.

(c)

For purposes of this sub-regulation reckonable commissioned service means the actual commissioned service rendered, except that an ex-Branch List Officer shall be permitted to reckon, on the date of substantive promotion to the rank of Lieutenant-Commander, 11 years commissioned service or the actual commissioned service, including service in the Branch List, whichever is less.

(d)

Officers promoted by time scale to the rank of Commander shall retain on the "non-selection" list their interse seniority as before their promotion.

(6)

Full pay commissioned service and periods of leave on furlough rates of pay, that is to say service reckonable for increased pay, shall reckon as qualifying service for substantive promotion by time scale up to and including the rank of Commander (non-selection) and by selection to Commander and higher ranks.

(7)

The following periods shall also reckon as qualifying service mentioned in sub-regulation 6:

(a)

Periods of captivity on Prisoner of War rates of pay;

(b)

Periods of leave without pay, subject to sub-regulation (8); and

(c)

Any ante-dated seniority granted under the rules from time to time.

Explanation. - Seniority forfeited by sentence of Court-martial under the Navy Act, 1957 and the period of absence without leave shall not reckon as service for promotion.

(8)

An officer who has lost service qualifying for substantive promotion in consequence of his having been granted leave without pay shall, if otherwise qualified, be promoted to the next higher rank, but without the pay and allowances thereof, with effect from the date on which he would have qualified by seniority if he had not been granted leave without pay. On completion of the prescribed period of qualifying service on full pay, the officer shall become entitled to the pay and allowances of his higher rank.

(9)

Medical Officers shall be governed by the Army rules applicable to officers of the Army Medical Corps and the Army Dental Corps as appropriate.

152.

Special Promotion of Commissioned Officers (other than those of the Instructor Branch and of the Branch List) for Gallantry in Action or Specially Meritorious Service in War.

(1)

An officer of the rank of Lieutenant, Lieutenant-Commander or Commander may be promoted with the approval of the Government to the next higher rank for gallantry in action or specially meritorious service in war, provided that:

(a)

in the case of an officer of the rank of Lieutenant or Lieutenant-Commander, he has completed 2 years' service in that rank, of which one year shall have been at sea; and

(b)

in the case of an officer of the rank of Commander, he has completed one year's service at sea in that rank.

An officer of the rank of Lieutenant on promotion to the next higher rank on the active list shall be entitled to the pay of such rank from the date of promotion. Officers of the rank of Lieutenant-Commander or Commander on promotion to the next higher rank shall not, however, be entitled to the full pay of the higher rank until they are re-appointed in such rank. If not re-appointed on promotion, they shall continue on the full pay of their former rank.

(2)

Recommendations for the special promotion of commissioned officers shall be made through normal channels, to the Chief of the Naval Staff for obtaining the approval of the Government.

153.

The Government may, for reasons to be recorded in writing, relax in any case the condition of sea service prescribed for promotion to the ranks of Commander and Captain in all Branches.

Section II - Executive Branch-Promotion

154.

(1)

Promotions of Short Service Commission Officers Ex-Direct entry Granted Permanent Commission shall be made, in the case of-

(a)

those entered as Acting Sub-Lieutenant.-Sub-Lieutenant to Lieutenant-on attaining 31h years' seniority in the rank of Sub-Lieutenant including period spent as Acting Sub-Lieutenant;

(b)

those entered as Sub-Lieutenant.-Sub-Lieutenant to Lieutenant-on attaining 21/2 years' seniority in the rank of Sub-Lieutenant.

(2)

In cases falling under clause (a) or clause (b) of sub-regulation (1) the period to serve in the rank of Sub-Lieutenant may be reduced by a maximum of 12 months depending on the results of the examination held on completion of initial training.

Explanation 1. - No officer shall be promoted to the rank of Lieutenant unless he has obtained a full Naval Watchkeeping Certificate. Should an officer fail to obtain a full Naval Watchkeeping Certificate before he becomes due for promotion to the rank of Lieutenant, his promotion shall be delayed correspondingly and the time thus lost shall not count as reckonable service for promotion.

[Explanation 2.

[Inserted & Renumbered by S.R.O. 13-E, dated 23rd June, 1973]

- In the case of officers employed permanently on provost duties, the conditions of obtaining full Naval Watchkeeping Certificate may be waived.]

[Inserted by S.R.O. 330, dated 18th June, 1970.]

[Explanation 3.

[Inserted & Renumbered by S.R.O. 13-E, dated 23rd June, 1973]

- An exception to this Regulation may, however, be made in the case of an officer if the Chief of the Naval Staff is satisfied that the officer has been unable to obtain a Watchkeeping Certificate owing to the exigencies of the Service. In such a case, the officer shall be promoted to the rank of Acting Lieutenant on the due date and confirmed in the rank of Lieutenant on obtaining the requisite certificate, with the seniority of the date of promotion to Acting Lieutenant. An officer, who has been given the opportunity to obtain a Naval Watchkeeping Certificate but fails to do so within one year of being given the opportunity, shall be liable to be discharged from the Service at the discretion of the Government.]

154A.

[Promotion to Lieutenant.

[Substituted by S.R.o. 329, dated 2nd June, 1970]

- Officers who are specialising or have specialised as pilots and observers for employment in Naval Aviation and who are unable to obtain their Naval Watchkeeping Certificate, owing to the exigencies of the Service, may be promoted to the confirmed rank of Lieutenant, when due for such promotion. They shall not, however, be eligible for further promotion (Acting or confirmed) until and unless they obtain the Naval Watchkeeping Certificate which must be obtained by them within one year of becoming available for employment in the General Service.]

155.

Promotion of Officers from the rank of Lieutenant and above.-

(a)

from Lieutenant to Lieutenant-Commander.-On attaining 8 years' seniority in the rank of Lieutenant.

(b)

from Lieutenant-Commander to Commander.

(i)

By Selection. - By selection from officers who have attained 2 years' seniority but not more than 8 years' seniority in the rank of Lieutenant-Commander. An officer should have served afloat for at least one year in the rank of Lieutenant-Commander or Acting Lieutenant-Commander.

Explanation. - [(1) The condition of afloat service in this clause shall not apply to officers permanently employed on Naval provost duties.]

[Renumbered & Inserted by S.R.O. 362, dated 30th October, 1967]

[Explanation

[Renumbered & Inserted by S.R.O. 362, dated 30th October, 1967]

2. - In the case of officers employed on armament inspection duties, this clause shall have effect subject to the

modifications that.-

(i)

the conditions of afloat service shall not apply, and

(ii)

the maximum period of seniority in the rank of Lieutenant Commander shall be 10 years instead of 8 years.]

(iii)

By Time Scale.-In accordance with Regulation 151.

(c)

from Lieutenant to Lieutenant-Commander and above. - Officers attained 4 years' seniority in the rank of Commander. An officer should have served afloat for at least one year in the rank of Commander or Acting Commander.

(d)

from Captain to Rear-Admiral. - By selection from officers of the rank of Captain.

156.

Promotion of Officers Ex-Lower Deck.

(a)

confirmation in the rank of Sub-Lieutenant.-3[(i) Subject to satisfactory completion of professional courses and recommendation, officers shall be confirmed in the rank of Sub-Lieutenant on completion of one year's service in the rank of Acting Sub-Lieutenant with the seniority of date of promotion to that rank.

(ii)

[An Acting Sub-Lieutenant who on completion of one year's service as such is not recommended for confirmation in his rank for reasons of failure in the professional courses on re-examination or for misconduct shall be given the option of discharge from the service under the provisions of the existing rules in respect of subordinate officers of the Indian Navy withdrawn from training or of reversion to the lower deck. In the event of reversion, he shall revert to the Chief Petty Officer's rating unless his reversion is due to misconduct not meriting discharge from service in which case he is to revert to his former rating.

[Renumbered & Inserted by S.R.O. 17E, dated 5th July, 1967]

(iii)

The time served as Acting Sub-Lieutenant, shall if the officer is not confirmed, count as Chief Petty Officer's time unless failure to obtain confirmation is due to misconduct not meriting discharge from service in which case the time served in the acting capacity shall count as time in the rating held prior to appointment as Acting Sub-Lieutenant.]

(b)

from Sub-Lieutenant to Lieutenant. - On attaining 3 years' seniority in the rank of Sub-Lieutenant (including period spent as Acting Sub-Lieutenant).

[Explanation.

[Inserted by S.R.O. 17-E, dated 5th May, 1967]

- 1. The period mentioned in clause (b) above may be reduced or increased depending upon the results achieved in the professional courses. The maximum 'gain in time' for the purpose of calculating seniority as a Lieutenant shall be twelve months.]

2. For purpose of obtaining Watchkeeping Certificate, officers shall be governed by Regulation 154.

(c)

from Lieutenant to Lieutenant-Commander and above. - Officers shall be governed by the promotion regulations as laid down for Permanent Commission Officers in Regulation 155.

Section III - Engineering Branch-Promotion

157.

Promotion from Sub-Lieutenant (E) to Lieutenant (E) of Short Service Commission Officers Ex-Direct Entry Granted Permanent Commission shall be made.

- On attaining 21 years' seniority in the rank of Sub-Lieutenant. This period may be reduced by a maximum of 12 months depending upon the results of the examination held on completion of initial training.

Explanation. - [(1) No officer shall be promoted to the rank of Lieutenant unless he has obtained a Naval Watchkeeping Certificate. Should an officer fail to obtain a Naval Watchkeeping Certificate before he is due for promotion to the rank of Lieutenant, his promotion shall be delayed correspondingly and the time thus lost shall not count as reckonable service

for promotion. An exception to this Regulation may, however, be made in the case of an officer if the Chief of the Naval Staff is satisfied that the officer has been unable to obtain a Watchkeeping Certificate owing to the exigencies of the Service. In such a case the officer shall be promoted to the rank of Acting Lieutenant on the due date and confirmed in the rank of Lieutenant on obtaining the requisite certificate, with the seniority of date of promotion to Acting Lieutenant. An officer who has been given the opportunity to obtain a Naval Watchkeeping Certificate but fails to do so within one year of being given the opportunity, shall be liable to be discharged from the Service at the discretion of the Government.]

[Inserted by S.R.O. 5-E, dated 12th May, 1966.]

[Explanation 2.

[Inserted by S.R.O. 5-E, dated 12th May, 1966]

- Officers who specialise as constructors and are unable to obtain their Engine Room Watchkeeping Certificate, owing to the exigencies of the service, may be promoted to the confirmed rank of Lieutenant when due for such promotion. They shall also be eligible for further promotion (acting or confirmed) notwithstanding their not being in possession of the Engine Room Watchkeeping Certificate. They shall, however, be required to obtain the said Watchkeeping Certificate within one year of becoming available for employment in the General Service.]

158.

Promotion of Officers from the Rank of Lieutenant and above shall be made :

(a)

from Lieutenant to Lieutenant-Commander. - On attaining 8 years' seniority in the rank of Lieutenant.

(b)

from Lieutenant-Commander to Commander:

(i)

By Selection. - By selection from officers who have attained 2 years' seniority but not more than 10 years' seniority in the rank of Lieutenant-Commander. An officer should have served at least one year afloat in the rank of Lieutenant Commander or Acting Lieutenant-Commander as Engineer Officer of one of Indian Naval Ships or as Senior Engineer of a cruiser and above.

(ii)

By Time Scale. - In accordance with Regulation 151.

(c)

from Commander to Captain. - By selection from officers who have attained 4 years' seniority in the rank of Commander. An officer should have served at least one year afloat in an appointment tenable by an officer of the rank of Commander.

(d)

from Captain to Rear-Admiral. - By selection from officers of the rank of Captain.

159.

Promotion of Officers Ex-Lower Deck

- (a) confirmation in the rank of Sub-Lieutenant. - [(i) Subject to the satisfactory completion of professional courses and recommendation, officers shall be confirmed in the rank of Sub-Lieutenant on completion of one year's service in the rank of Acting Sub-Lieutenant with the seniority of date of promotion to that rank.]

[Renumbered Inserted & Substituted by S.R.O. 17-E, dated 5th July, 1967]

(ii)

[An Acting Sub-Lieutenant who on completion of one year's service as such is not recommended for confirmation in his rank for reasons of failure in the professional courses on re-examination or for misconduct shall be given the option of discharge from the service under the provisions of the existing rules in respect of subordinate officers of the Indian Navy withdrawn from training or of reversion to the lower deck. In the event of reversion, he shall revert the Chief Petty Officer's rating unless his reversion is due to misconduct not meriting discharge from service in which case he is to revert to his former rating.]

[Renumbered Inserted & Substituted by S.R.O. 17-E, dated 5th July, 1967]

(iii)

The time served as Acting Sub-Lieutenant, shall if the officer is not confirmed, count as Chief Petty Officer's time unless failure to obtain confirmation is due to misconduct not meriting discharge from service in which case the time served in the acting capacity shall count as time in the rating held prior to appointment as Acting Sub-Lieutenant.

(b)

from Sub-Lieutenant to Lieutenant. - On attaining 2 years and 8 months' seniority in the rank of Sub-Lieutenant (including period spent as Acting Sub-Lieutenant).

[Explanation. 1

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

- The period mentioned in clause (b) above may be reduced or increased depending upon the results achieved in the professional courses. The maximum 'gain in time' for the purpose of calculating seniority as a Lieutenant shall be twelve months.]

2. For the purpose of obtaining a Naval Watchkeeping Certificate, officers shall be governed by Regulation 157.

(c)

from Lieutenant to Lieutenant-Commander and above. - Officers shall be governed by Regulation 158.

Section IV - Electrical Branch-Promotion

160.

Promotion from Sub-Lieutenant (L) to Lieutenant (L) of Short Service Commission Officers Ex-Direct Entry granted Permanent Commission shall be made.

- On attaining 2' years' seniority in the rank of Sub-Lieutenant. This period may be reduced by a maximum of 12 months depending upon the results of the examination held on completion of initial training.

Explanation. - No officer shall be promoted to the rank of Lieutenant unless he has obtained a certificate of competency on completion of sea training. Should an officer fail to obtain a certificate of competency before he becomes due for promotion to the rank of Lieutenant, his promotion shall be delayed correspondingly and the time thus lost shall not count as reckonable service for promotion. An exception to this Regulation may, however, be made in the case of an officer if the Chief of the Naval Staff is satisfied that the officer has been unable to. obtain a certificate of competency owing to the exigencies of the Service. In such a case, the officer shall be promoted to the rank of Acting Lieutenant on the due date and confirmed in the rank of Lieutenant on obtaining a certificate of competency, with the seniority of date of promotion to Acting Lieutenant. An officer who has been given the opportunity to obtain a certificate of competency but fails to do so within one year of being given the opportunity, shall be liable to be discharged from the Service at the discretion of the Government.

161.

Promotion of Officers from the rank of Lieutenant and above shall be made.

(a)

from Lieutenant to Lieutenant-Commander. - On attaining 8 years' seniority in the rank of Lieutenant.

(b)

from Lieutenant-Commander to Commander:-

(i)

By Selection. - By selection from officers who have attained 2 years' seniority but not more than 10 years' seniority in the rank of Lieutenant-Commander. An officer should have held charge of electrical machinery of one of Indian Naval Ships for at least one year in the rank of Lieutenant-Commander or Acting Lieutenant-Commander.

(ii)

By Time Scale.-In accordance with Regulation 151.

(c)

from Commander to Captain.-By selection from officers who have attained 4 years' seniority in the rank of Commander. An officer should have served one year afloat in an appointment tenable by an officer of the rank of Commander.

(d)

from Captain to Rear Admiral.-By selection from officers of the rank of Captain.

162.

Promotion of Officers Ex-Lower Deck

- (a) Confirmation in the rank of Sub-Lieutenant. - [(i) Subject to the satisfactory completion of professional courses and recommendation, officers shall be confirmed in the rank of Sub-Lieutenant on completion of one year's service in the rank of Acting Sub-Lieutenant with the seniority of date to promotion to that rank.

(ii)

An Acting Sub-Lieutenant who on completion of one year's service as such is not recommended for confirmation in his

rank for reasons of failure in the professional courses on re-examination or for misconduct shall be given the option of discharge from the service under the provisions of the existing rules in respect of subordinate officers of the Indian Navy withdrawn from training or of reversion to the lower deck. In the event of reversion, he shall revert the Chief Petty Officer's rating unless his reversion is due to misconduct not meriting discharge from service in which case he is to revert to his former rating.

(iii)

The time served as Acting Sub-Lieutenant, shall if the officer is not confirmed, count as Chief Petty Officer's time unless failure to obtain confirmation is due to misconduct not meriting discharge from service in which case the time served in the acting capacity shall count as time in the rating held prior to appointment as Acting Sub-Lieutenant.]

(b)

from Sub-Lieutenant to Lieutenant. - On attaining 1½ years' seniority in the rank of Sub-Lieutenant (including period spent as Acting Sub-Lieutenant).

[Explanation. 1

[Remembered Inserted & Substituted by S.R.O. 17-E, dated 5th July, 1967]

- The period mentioned in clause (b) above may be reduced or increased depending upon the results achieved in the professional courses. The maximum 'gain in time' for the purpose of calculating seniority as a Lieutenant shall be twelve months.]

[Remembered Inserted 7 Substituted by S.R.O. 17-e, dated 5th July, 1967]

2. For the purpose of obtaining a certificate of competency, officers shall be governed by Regulation 160.

(c)

from lieutenant to lieutenant-commander and above - Officers shall be governed by Regulation 161.

[***]

[Omitted by S.R.O. 50, dated 19th February, 1981.]

[***]

[Omitted by S.R.O. 50, dated 19th February, 1981.]

Section VI - Promotion in Instructor Branch Officers entered after 1st January, 1955

166.

Entry and Qualifications for entry.

- [(1) All entries after the 1st February, 1963, into the Instructor Branch shall be in the rank of Acting Instructor Sub-Lieutenant.]

[Remembered Inserted & Substituted by S.R.O. 17-E, dated 5th July, 1967]

(2)

The minimum academic qualification for entry is a first class Pass Degree or a first or second class B.A. or B.Sc. Honours Degree of a recognised University with Mathematics or Physics as one of the principal subjects, in the final degree examination. Candidates who possess a degree in Engineering will also be eligible for entry into the Branch. Preference may be given to those who possess, in addition, teaching qualifications or have had teaching experience.

(3)

Candidates must be between the age of 21 and 25 years on the date of entry. In the case of candidates with teaching experience or other special qualifications, the upper age limit may be specially relaxed by the Government.

(4)

Suitable candidates shall be required to appear before a Services Selection Board and their final selection shall be made on the recommendation of this Board.

(5)

Officers entering into the Instructor Branch shall conform to the medical standards prescribed by the Chief of the Naval Staff from time to time.

[166-A. Declaration.

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

- Before a candidate reports for training he and his parent or guardian are required to sign a bond, as given in Appendix XI.]

167.

Probation and refund of cost of training.

(1)

[Acting Instructor Sub-Lieutenant shall be on probation for a period of [one year]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

from the date of entry. At the commencement of this probationary period, they shall undergo a Divisional Course and other prescribed courses of training pertaining to the duties of Instructor Officers. Provided they qualify in their respective courses, and provided they are suitable in all other respects, they shall be confirmed in the permanent cadre of the Instructor Branch on completion of their period of probation in the rank of Sub-Lieutenant their seniority as Instructor Sub-Lieutenants being reckoned from the date of entry. Officers who fail to qualify in the examinations held on conclusion of initial training shall be penalised as follows :]

(a)

Officers failing in the Basic and Divisional Course in the first attempt may be allowed to do the course again in those subjects but they shall lose their seniority in the rank of Instructor Sub-Lieutenants by one month.

(b)

Officers failing in one or two principal subjects in General Education Course in the first attempt may be allowed to do the course again in those subjects but they shall lose their seniority in the rank of Instructor Sub-Lieutenants by one month for each subject in which they fail.

(c)

Officers who fail in more than two subjects of the General Education Course shall be discharged.

(d)

Officers who fail to qualify in the second attempt either in the Basic and Divisional Course or the General Education Course or who are otherwise considered unsuitable shall be discharged.

(2)

If an officer voluntarily withdraws from training, or resigns during the probationary period, he shall be liable to pay forthwith to the Government in cash such sums as the Government shall fix, but not exceeding such expenses as shall have been incurred by the Government on account of the officers training and all monies received by him as pay and allowances from the Government, together with interest on the said money calculated at the rate in force for Government loans.

168.

[Promotion from Instructor Sub-Lieutenant to Instructor Lieutenant.

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

- Subject to the provisions of sub-regulation. (1) of regulation 167, promotion shall be made by time scale on completion of 3 years' service as Instructor Sub-Lieutenant (acting and confirmed).]

170.

Promotion from Instructor Lieutenant to Instructor Lieutenant-Commander.

- Promotion shall be made by time scale, on attaining 8 years' seniority as Instructor Lieutenant.

171.

Promotion from Instructor Lieutenant-Commander to Instructor Commander.

(a)

By selection. - Promotion shall be made by selection from officers who have attained 2 years' seniority but not more than 10 years' seniority in the rank of Instructor Lieutenant-Commander, subject to vacancies.

(b)

By time scale. - Substantive promotions to the rank of Instructor Commander of officers, not promoted by selection against the authorised cadre of Instructor Commander, may be made, subject to their being considered fit in all respects, by time-scale on completion of 24 years' reckonable commissioned service, provided they have not attained the age of compulsory retirement. Officers so promoted shall not be reckoned against the authorised cadre of Instructor Commanders, but shall be held in a separate "non-selection" list except that an officer promoted to the acting rank of Instructor Commander before completing 24 years' service and made substantive under this clause while holding the rank of Acting Instructor Commander on completing 24 years' service shall be held against an authorised Instructor Commander's appointment.

The authorised cadre of Instructor Lieutenant-Commanders or Lieutenants shall be reduced to the extent of number of officers borne on the "non-selection" list of Instructor Commanders.

Explanation. - For purposes of this clause, reckonable commissioned service means the actual commissioned service rendered, except that an ex-Branch List officer may be permitted to reckon on the date of substantive promotion to the rank of Lieutenant-Commander, 11 years' commissioned service or the actual commissioned service, including service in the Branch List, whichever is less.

Officers promoted by time scale to the rank of Commander will retain on the non-selection list their inter se seniority as before their promotion.

172.

Promotion from Instructor Commander to Instructor Captain.

- Promotion shall be made by selection from officers who have attained 4 years' seniority in the rank of Instructor Commander, subject to vacancies.

173.

Acting Promotions.

- Promotion to the acting rank of Instructor Lieutenant-Commander and above shall be regulated under the regulations relating to acting promotions of officers provided for in Regulation 202.

174.

Eligibility for promotion.

- To be eligible for promotion in accordance with Regulations 168 to 173, an officer must have a satisfactory record of service and be recommended.

Officers entered before 1st January, 1955

Section VII - Ages of Compulsory Retirement

179.

(1)

Ages of Compulsory Retirement of Officers of all Branches (except Branch List Officers, Officers of the Instructor Branch and Medical Branch)

[Admiral]

[Substituted by S.R.O. 229, dated 3th March, 1970]

60

years

Vice-Admiral

58

years

Rear-Admiral

57

years

Captain

55

years

Commander

50

years (See explanation below)

Lieutenant-Commander

and below

48

years

Officers

of the rank of Commander and below Ex-Branch List.

50

years. Extendable at the discretion of the Ministry of Defence

up to 55 years.

(2)

Notwithstanding the provisions of sub-regulation (1), officers of all branches shall be allowed to retire, at the discretion of

the Government, at any time after reaching the age of 40. They shall normally be placed on the retired list on attaining the maximum pension of their rank, if this occurs earlier than attaining the age limits mentioned in sub-regulation (1), but not before attaining the age of 48 years. They may, if required, be retained [***]

[Omitted by S.R.O.7-E, dated 5th July, 1967]

on the active list, until reaching the age of compulsory retirement of the rank held.

(3)

[***]

[Omitted by S.R.O.7-E, dated 5th July, 1967]

Explanation. - Officers promoted by time-scale, who have completed 26 years' service before reaching this age limit, shall be retired earlier on completion of 26 years' service but not before attaining 48 years of age. Similarly officers who have been able to complete the prescribed period of service as acting, or acting combined with substantive Commander counted for the retiring pension of that rank, either before 24 years or thereafter, shall be retired earlier than 50, but not before attaining 48 years of age.

180.

[(1) Ages of compulsory retirement for Instructor Officers.

[Substituted by S.R.O. 17-E, dated 5th July, 1967.]

- Ages of compulsory retirement of officers shall be as given below:]

Instructor

Captain

55

years.

Instructor

Commander

50

years.

Instructor

Lieutenant Commander and below

48

years

Explanation. - The ages of compulsory retirement of officers who entered service prior to 1st February, 1963, including those promoted ex-Branch List, shall be as given below :

(i)

Officers who possess the minimum academic qualifications prescribed in sub-regulation (2) of regulation 166

All

ranks

55

years

(ii)

Officers other than those specified in item (i)-

Instructor

Captain

55

years.

Instructor

Commander

52

years.

Instructor

Lieutenant Commander and below

50

years.

(iii)

The ages of retirement of Ex-Branch List Officers of the rank of Instructor Commander and below shall be extendible to 55 years at the discretion of the Ministry of Defence.

(2)

Notwithstanding the provisions of cl. (1) above, officers may be allowed to retire, at the discretion of the Government, at any time after reaching the age of 40. They shall normally be placed on the retired list on attaining the maximum pension of their rank, if this occurs earlier than attaining the age limits as in sub-regulation (1) but in any case, not before attaining the age of 1[48 years]. They may, if required, be retained [***]

[Omitted & Substituted by S.R.O. 17-E, dated 5th July, 1967]

on the active list until reaching the age of compulsory retirement of the rank held.

(3)

[***]

[Omitted & Substituted by S.R.O. 17-E, dated 5th July, 1967]

Chapter VII

Branch Officers (Other Than Instructor Branch) Promotion And Ages Of Compulsory Retirement

Section I - Promotion to Commissioned Officers (Branch List)

181.

Promotion as Commissioned Officers.

(1)

Promotion of duly qualified sailors as Commissioned Officers of the Branch List shall be made by the Chief of the Naval Staff by selection from the roster of eligible sailors.

(2)

All candidates for Branch Rank must pass the prescribed examinations and must possess the other qualifications which are specified below.

(3)

The character of all candidates must be such as would, if continued, qualify them for the Long Service and Good Conduct Medal. The award at any time of a character inferior to "Good" will disqualify a sailor.

The particulars of candidates who are considered exceptionally deserving or who have distinguished themselves by meritorious or special services but who have not attained the requisite standard of character, may be submitted to the Chief of the Naval Staff, for consideration.

(4)

A report on form I.N. 708, specified in Appendix III shall be rendered on 31st May and 30th November to the Chief of the Naval Staff, through the Captain, Naval Barracks (Drafting Office), in respect of candidates for Branch Rank as indicated in sub-regulation (7).

If, however, the candidates become fully eligible as indicated in sub-regulation (7) prior to 31st May or 30th November, a report on form I.N. 708 is to be rendered on them without waiting for the half-yearly reports.

(5)

Reports on form I.N. 708 shall also be rendered on the sailors when they leave ships or establishments, in addition to those rendered half-yearly. Sections I to IV and Sec. VI of form I.N. 708 are not to be completed unless the candidate has served for at least 3 months in a ship. Where no recommendation is made, the words "under 3 months" are to be inserted on the form. On the first occasion of a candidate being recommended for Branch Rank, a notation of the fact shall be made on his Service Certificate and a copy of his Service Certificate and of the Trade History Sheet, where applicable, shall accompany the first return on the form. If a candidate is not recommended, a report shall nevertheless be rendered, the reasons for his non-recommendation being briefly stated.

(6)

A separate form shall be used for each candidate.

(7)

The reports shall be rendered on form I.N. 708 and shall commence, as indicated in the following table :

Branch
Rank
When

to commence
Commissioned
Gunner
After
passing the educational test and the examination in Seamanship
for Branch Rank.
Commissioned
Gunner Torpedo and Anti-Submarine
Commissioned
Boatswain
Commissioned
Boatswain (Diving)
Commissioned
Boatswain (Plotter Radar)
Commissioned
Physical Training Officer
Commissioned
Communication Officer
After
passing the educational test and passing professionally for
Yeoman of Signals or Petty Officer Telegraphist.
Commissioned
Master-At-Arms
After
passing the educational test and the preliminary professional
examination.
Commissioned
Airman
Commissioned
Bandmaster
Commissioned
Shipwright Officer
Commissioned
Engineer
Commissioned
Ordnance Engineer
After
passing the educational test and the professional examination.
Commissioned
Air Engineer
Commissioned
Electrical Officer (Power
(Radio)
(Air Electrical) (Air Radio)
Commissioned
Wardmaster
After
passing the educational test and the professional examination.
Commissioned
Writer Officer
Commissioned

Stores Officer

Commissioned

Stores Officer (Catering)

(8)

If a candidate for Branch Rank should misconduct himself in a manner which would disqualify him for the Long Service and Good Conduct Medal, his misconduct shall be reported individually to the Chief of the Naval Staff through the Captain, Naval Barracks (Drafting Office), to whom form I.N. 708 "half-yearly report of candidates for Branch Rank" is forwarded and his name shall be removed from the roster for promotion.

If a candidate is found unsuitable for promotion, this fact shall also be reported to the Chief of the Naval Staff through the Captain, Naval Barracks (Drafting Office), whether or not he has previously been recommended.

(9)

Before a candidate for Branch Rank is discharged to undergo qualifying courses for promotion to Branch Rank, he shall be medically examined in the ship or establishment in which he is serving, and a certificate that he is in all respects physically fit shall be forwarded to the Captain of the establishment in which the courses are to be held. All candidates shall be medically examined before promotion to Branch Rank and such promotions will be dependent on medical fitness.

(10)

A candidate for Branch Rank may be given the acting rank on promotion. At the expiration of one year's service, an acting commissioned officer of the Branch List may be confirmed in his rank provided his conduct and qualifications have been satisfactory and he is recommended by his Commanding Officer. This recommendation shall not be forwarded until the officer has completed one year in the acting rank. His seniority shall reckon from the date of his acting appointment. An acting commissioned officer of the Branch List who is invalided before completing one year's service as such, may, at the discretion of the Chief of the Naval Staff, be confirmed in his rank before retirement, provided his record is satisfactory.

An acting commissioned officer of the Branch List who, on completion of one year's service as such is not recommended for confirmation in his rank, for reasons of unsuitability, inefficiency or misconduct, may be given the option of discharge from the service or reversion to the lower deck. In the event of reversion, he shall revert to the Chief Petty Officer's [rank] [Substituted by S.R.O. 192,dated 10th September, 1973]

unless his reversion is due to misconduct or inefficiency in which case he shall revert to his former [rank]

[Substituted by S.R.O. 192,dated 10th September, 1973]

The time served as acting commissioned officer of the Branch List shall, if the officer is not confirmed, count as Chief Petty Officer's time unless failure to obtain confirmation is due to misconduct or inefficiency, in which case the time served in the acting capacity shall count as time in the [rank]

[Substituted by S.R.O. 192,dated 10th September, 1973]

held prior to appointment as acting commissioned officer of the Branch List.

(11)

To be eligible for confirmation in rank, an acting Commissioned Gunner, an acting Commissioned Gunner (Torpedo & Anti-Submarine), an acting Commissioned Boatswain, an acting Commissioned Boatswain (Diving) and an acting Commissioned Boatswain (Plotter Radar) shall also be required to be in possession of a watch-keeping certificate certifying that he has kept watch at sea and in harbour under a commissioned officer and has a sound knowledge of the duties of the Officer of the Watch, including measures necessary for the safety of the ship.

(12)

To be eligible for confirmation in rank, an acting Branch Rank Officer shall also be required to pass a Divisional Course. 182.

Promotion as Commissioned Gunner, etc. - Commissioned Gunner, Commissioned Gunner (Torpedo & Anti-Submarine), Commissioned Boatswain, Commissioned Boatswain (Diving), Commissioned Boatswain (Plotter Radar) and Commissioned Physical Training Officer.

(1)

To be eligible for promotion, a candidate must :

(a)

be not more than 37 years of age on the date of promotion; this age limit may be relaxed by the Chief of the Naval Staff

up to a maximum of one year in exceptional cases;

(b)

be a Petty Officer or an acting Petty Officer with not less than one year's service in the actual performance of the duties of such sailors;

(c)

have qualified in the prescribed course of instruction.

(2)

Before a candidate is selected to undergo the prescribed course referred to in cl. (c) sub-regulation (1) he must :

(a)

be qualified under Regulation 181;

(b)

be qualified for' [promotion] to acting Petty Officer;

(c)

have passed the educational test for Branch Rank;

(d)

have passed the seamanship examination for Branch Rank. Prior to taking the seamanship examination a candidate will be required to produce a certificate to the effect that he is in all respects medically fit. This examination is to be held by a Board to be constituted under the authority of the Chief of the Naval Staff;

(e)

have qualified in the Radar Plotting 1st class specialist qualification course, if a candidate for Commissioned Boatswain (Plotter Radar);

(f)

be a Diver-I qualified in deep sea diving if a candidate for Commissioned Boatswain (Diving).

(3)

On passing the seamanship examination for Branch Rank, a candidate's name shall be placed on a roster for selection to undergo the course referred to in cl. (c) sub-regulation (1). The date of passing of candidates examined during the six monthly periods ending 31st May or 30th November shall be regarded as 31st May or 30th November respectively. The order on the roster shall be determined by those dates, the relative order in each half-yearly batch determined by seniority as sailor on that date.

(4)

The educational test may be taken either before or after the seamanship examination, but a candidate who has not passed this test before passing in seamanship examination shall be required to do so within 3 years of the date of passing in seamanship examination. If he does not do so, his name shall be removed from the roster. A candidate whose name has been so removed, and who subsequently passes the educational test, may have his name replaced on the roster, but his position thereon shall be determined by the date of passing the latter examination.

(5)

Before taking the seamanship examination, a candidate must :

(a)

be either a Petty Officer or a Leading [seaman]

[Substitued by S.R.O. 192, dated 10th September, 1973]

passed professionally for Petty Officer who holds a certificate from his Captain that he has a reasonable chance of passing the examination;

(b)

have served for 4 years in sea-going ship, the actual period being stated on his certificate of passing seamanship examination;

(c)

state whether he elects to qualify for Commissioned Gunner, Commissioned Gunner (Torpedo & Anti-Submarine), Commissioned Boatswain, Commissioned Boatswain (Diving), Commissioned Boatswain (Plotter Radar) or Commissioned Physical Training Officer. The election made by a candidate on passing the seamanship examination for Branch Rank as to the branch in which he desires to qualify for promotion shall, as a general rule, be regarded as final; but transfers to the other branches may be allowed at the discretion of the Chief of the Naval Staff

according to the requirements of the Service. The position on the roster of a candidate for undergoing the qualifying course who has been transferred from the roster of another rank, will be determined by the date of his transfer.

(6)

Candidates who satisfy all the requirements of sub-regulation (1) may be considered for promotion to Branch Rank.

(7)

A candidate for the Branch Rank who fails in the prescribed qualifying course, may, on the expiry of 2 years from the date of failure, be allowed a further opportunity to qualify, if still otherwise eligible, and may be given his original position on the course roster, provided he satisfies the following conditions :

(a)

recommended for a further trial by the Captain of the ship or establishment concerned, and

(b)

continuously recommended for Branch Rank under Regulation 181.

If accepted for the course, he shall be required to take all the courses and examination and on qualifying he may be considered for promotion along with other eligible sailors.

(8)

Candidates qualified for Commissioned Gunner, Commissioned Gunner (Torpedo & Anti-Submarine), Commissioned Boatswain, Commissioned Boatswain (Diving), Commissioned Boatswain (Plotter Radar) and Commissioned Physical Training Officer shall be sent to sea as soon as possible, candidates holding the [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

of Leading Seaman being given the [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

of acting Petty Officer immediately on completion of the qualifying courses.

(9)

A Leading Seaman given the [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

of acting Petty Officer may be confirmed as Petty Officer at the expiration of 12 months if recommended in all respects for Branch Rank. If not so recommended or if found unsuitable for Branch Rank at any time before the expiration of 12 months, he shall revert to his substantive [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

, being eligible for subsequent [promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

to Petty Officer [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

in the ordinary course.

183.

Promotion as Commissioned Communication Officer.

(1)

A candidate to be eligible for promotion, as a Commissioned Communication Officer must

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age limit up to a maximum of one year in exceptional cases;

(b)

have qualified in the prescribed course of instruction.

(2)

Before a candidate is selected to undergo the course referred to in Cl. (b) of sub-regulation (1), he must :-

(a)

be qualified under Regulation 181;

(b)

have not less than 2 years service as Leading Signaller or Leading Telegraphist or as Leading Signaller and Yeoman of Signals combined, or as Leading Telegraphist and Petty Officer Telegraphist combined;

(c)

have passed professionally for Yeoman of Signals or Petty Officer Telegraphist;

(d)

have passed the educational test for Branch.

(3)

In forwarding the half-yearly recommendations, the recommending officer shall pay particular attention to a candidate's administrative ability, and power of exercising control over his department and the men under his orders.

(4)

Candidates shall be selected to undergo the prescribed course from a roster of eligible men, due regard being paid to recommendations, service qualification and seniority.

(5)

Candidates who satisfy all the requirements of sub-regulation (1) may be considered for promotion to Branch Rank.

(6)

Before promotion to Branch Rank, a candidate must have served one year at sea as Yeoman of Signals or Petty Officer Telegraphist. A Leading Signaller or Leading Telegraphist shall be granted, after the qualifying course, the [rank] of Acting Yeoman of Signals or Acting Petty Officer Telegraphist in sufficient time to ensure his having served in that capacity for a year before his turn of promotion is expected.

(7)

A candidate for the Branch Rank who fails in the prescribed qualifying course may, on the expiry of 2 years from the date of failure, be allowed a further opportunity to qualify if still otherwise eligible and may be given his original position on the course roster, provided he satisfies the following conditions:

(a)

recommended for a further trial by the Captain of the ship or establishment concerned; and

(b)

continuously recommended for Branch Rank under Regulation 181;

If accepted for the course, he shall be required to take all the courses and examination and on qualifying he may be considered for promotion along with other eligible sailors.

184.

Promotion as Commissioned Airman.

(1)

A candidate to be eligible for promotion as a Commissioned Airman must-

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age limit up to a maximum of one year in exceptional cases;

(b)

be a Petty Officer Airman (Aircraft Handler), (Safety Equipment), (Meteorological Observer), or (Photographer) or an Acting Petty Officer Airman (Aircraft Handler), (Safety Equipment), (Meteorological Observer), or (Photographer), or a Petty Officer Airman Fitter (Air Frame), (Engine) or (Ordnance) or an Acting Petty Officer Airman Fitter (Air Frame), (Engine) or (Ordnance) or Petty Officer Aircrewman with not less than one year's service in the actual performance of duties in such [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

.

(c)

have qualified in the prescribed course of instruction.

(2)

Before a candidate is selected to undergo the course referred to in Cl. (c) of sub-regulation (1), he must;

(a)

be qualified under Regulation 181;

(b)

be qualified for advancement to Acting Petty Officer;

(c)

have passed the educational test for Branch Rank;

(d)

have passed the preliminary professional examination. This examination is to be held by a Board to be constituted according to the instructions issued by the Chief of the Naval Staff.

(3)

Before taking the preliminary professional examination, a candidate must;

(a)

hold at least the Leading '[seaman]' and should have passed professionally for Petty Officer;

(b)

have served for 4 years in a sea-going ship and/or a Naval Air Station.

Explanation. - In the case of existing Naval Air Arm sailors who have been transferred from the General Service and who are serving as such on 25th August, 1956, any deficiency in the required 4 years' service in a sea-going ship and/or a Naval Air Station shall be deemed to have been waived.

(4)

On passing the preliminary professional examination, a candidate shall be placed on a roster for selection to undergo the courses referred to in Cl. (c) of sub-regulation (1). The date of passing of candidates examined during the six monthly periods ending 31st May or 30th November shall be regarded as 31st May or 30th November respectively and the order on the roster shall be determined by these dates, the relative order in each half-yearly batch being determined by the seniority in '[rank]' on that date.

(5)

The educational test may be taken either before or after the preliminary professional examination, but a candidate who has not passed the test before passing this examination shall be required to do so within 3 years of the date of passing the preliminary professional examination. If he does not do so, his name shall be removed from the roster. A candidate whose name has been so removed, and who subsequently passes the educational test, may have his name replaced on the roster, but his position thereon shall be determined by the date of passing the latter examination.

(6)

Candidates who satisfy all the requirements of sub-regulation (1) shall be considered for promotion to Branch Rank.

(7)

A candidate for the Branch Rank who fails in the prescribed qualifying course may, on the expiry of 2 years from the date of failure, be allowed a further opportunity to qualify if still otherwise eligible and may be given his original position on the course roster, provided he satisfies the following conditions :

(a)

recommended for a further trial by the Captain of the ship or establishment concerned, and

(b)

continuously recommended for Branch Rank under Regulation 181.

If accepted for the course, he shall be required to take all the courses and examination, and on qualifying, he may be considered for promotion along with other eligible sailors.

185.

Promotion as Commissioned Master-At-Arms.

(1)

A candidate to be eligible for promotion, as a Commissioned Master-At-Arms must :

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age limit up to a maximum of one year in exceptional cases;

(b)

be a Master-At-Arms with not less than one year's service in that [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

(c)

have passed the prescribed course of instruction.

(2)

Before a candidate is selected to undergo the course referred to in Cl. (c) of sub-regulation (1), he must pass a preliminary professional examination.

(3)

To be eligible to sit for the preliminary professional examination, a candidate must:

(a)

be qualified under Regulation 181;

(b)

be at least a Regulating Petty Officer, passed professionally for Master-At-Arms; and

(c)

have passed the educational test for Branch Rank.

(4)

Candidates who pass the preliminary professional examination shall be placed on a roster for selection to undergo a further course and examination for Commissioned Master-At-Arms in accordance with the date of passing the preliminary professional "examination. In making the selection, due consideration shall be given to seniority, percentage of marks obtained in the preliminary professional examination and their reports on the form specified in Appendix III.

(5)

The educational test may be taken either before or after the preliminary professional examination but a candidate who has not passed the test before passing this examination is required to do so within 3 years of the date of passing the preliminary professional examination. If he does not do so, his name shall be removed from the roster. A candidate whose name has been so removed and who subsequently passes the educational test may have his name replaced on the roster but his position thereon shall be determined by the date of passing the latter examination.

(6)

Candidates who satisfy all the requirements of sub-regulation (1) may be considered for promotion to Branch Rank.

(7)

A candidate for the Branch Rank who fails in the prescribed qualifying course may, on the expiry of 2 years from the date of failure, be allowed a further opportunity to qualify, if still otherwise eligible, and may be given his original position on the course roster, provided he satisfies the following conditions :-

(a)

recommended for a further trial by the Captain of the ship or establishment concerned, and

(b)

continuously recommended for Branch Rank under Regulation 181.

If accepted for the course, he will be required to take all the courses and examination, and on qualifying, he will be considered for promotion along with other eligible sailors.

186.

Promotion as Commissioned Ship Wright Officer.

(1)

A candidate to be eligible for promotion, as a Commissioned Ship Wright Officer must :

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age limit up to a maximum of one year in exceptional cases;

(b)

have passed the prescribed professional examination for promotion.

(2)

Before a candidate is recommended to take the professional examination, he must :

(a)

be qualified under Regulation 181;

(b)

have passed the educational test for Branch Rank;

(c)

have served for not less than six years since being rated Acting Artificer 4th class, of which 31h years must have been in a sea-going ship.

(3)

Candidates who satisfy all the requirements of sub-regulation (1) may be considered for promotion to Branch Rank.

187.

Promotion as Commissioned Engineer.

(1)

A candidate to be eligible for promotion, as a Commissioned Engineer must :

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age limit up to a maximum of one year in exceptional cases;

(b)

have passed the prescribed professional examination.

(2)

Before a candidate is recommended to take the professional examination, he must :

(a)

be qualified under Regulation 181;

(b)

have passed the educational test for Branch Rank;

(c)

(i)

have served for not less than six years since being rated Acting Artificer 4th class, of which 31h years must have been in a sea-going ship.

(ii)

Mechanician-have served for not less than 2 years in a sea-going ship as a mechanician after completion of the Mechanician course;

(d)

be capable of taking charge of machinery of small ship.

(3)

Candidates who satisfy all the requirements of sub-regulation (1) may be considered for promotion to Branch Rank.

188.

Promotion as Commissioned Air Engineer.

(1)

A candidate to be eligible for promotion, as a Commissioned Air Engineer must :

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age limit up to a maximum of one year in exceptional cases;

(b)

have passed the prescribed professional examination for promotion.

(2)

Before a candidate is recommended to take the professional examination, he must :

(a)

be qualified under Regulation 181;

(b)

have passed the educational test for Branch Rank;

(c)

(i)

have served for not less than six years since being rated Acting Artificer 4th class, of which at least 31h years must have been in a sea-going ship and/or a Naval Air Station;

(ii)

have served for not less than two years in a sea-going ship and/or a Naval Air Station after completing the Mechanician course;

(3)

Candidates who satisfy all the requirements of sub-regulation (1) may be considered for promotion to Branch Rank.

189.

Promotion as Commissioned Electrical Officer.

- (1) Commissioned Electrical Officer (Power) (Radio) (Air/Electrical) (Air/Radio). - A candidate to be eligible for promotion as a Commissioned Electrical Officer (Power) (Radio) (Air/Electrical) (Air/ Radio) must :

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age limit up to a maximum of one year in exceptional cases;

(b)

have qualified in the prescribed course of instruction.

(2)

Before a candidate is selected to undergo the course referred to in Cl. (b) of sub-regulation (1) above, he must pass a preliminary professional examination.

(3)

Before a candidate is recommended to take the preliminary professional examination, he must :

(a)

be qualified under Regulation 181;

(b)

have passed the educational test for Branch Rank;

(c)

(i)

in the case of Artificer.-have served for not less than six years since being rated Acting Artificer 4th class, of which 31h years must have been in a sea-going ship for General Service sailors. For Naval Aviation sailors, this 31h years service must be in a sea-going ship and/or a Naval Air Station;

(ii)

in the case of Mechanician-have served for not less than 2 years in a sea-going ship as Mechanician after completing the Mechanician course;

(iii)

in the case of Chief Electrician (Power), Petty Officer Electrician (Power), Chief Electrician (Radio), Petty Officer Electrician (Radio) (both in the General Service and in the Naval Aviation Branch-have served for not less than six years of which at least 31h years must have been in a sea-going ship for General Service sailors. For Naval Aviation sailors, this 31h years service must be in a sea-going ship and/or a Naval Air Station. Six years service must include at least one year's service as Petty Officer or Acting Petty Officer.

(4)

Candidates who pass the preliminary professional examination shall be placed on a roster for selection to undergo the final qualifying course. The order on the roster shall be determined by the date of passing the preliminary professional examination, candidates who pass on the same date being arranged in order of seniority.

(5)

Candidates who satisfy all the conditions of sub-regulation (1) may be considered for promotion to Branch Rank.

(6)

A candidate for Branch Rank who fails in the prescribed qualifying course may, on expiry of 2 years from the date of failure, be allowed a further opportunity to qualify it shall otherwise eligible, and may be given his original position on the course roster, provided he satisfies the following conditions :

(a)

recommended for a further trial by the Captain of the ship or establishment concerned, and

(b)

continuously recommended for Branch Rank under Regulation 181.

(c)

have passed the preliminary professional examination again.

If accepted, he shall be required to take all the courses and examination, and on qualifying, may be considered for promotion alongwith other eligible sailors.

190.

Promotion as Commissioned Wardmaster.

(1)

A candidate to be eligible for promotion, as a Commissioned Wardmaster must :

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age limit up to a maximum of one year in exceptional cases;

(b)

be a Sick Berth Chief Petty Officer of not less than 1 year's service in that [rank]

[Substituted by S.R.O. 192,dated 10th September, 1973]

and have obtained adequate experience in that [rank].

[Substituted by S.R.O. 192,dated 10th September, 1973]

(c)

have passed the prescribed course of instruction.

(2)

Before a candidate is selected to undergo the prescribed course, he must :

(a)

be qualified under Regulation 181;

(b)

be a Sick Berth Chief Petty Officer or a Sick Berth Petty Officer who has passed the examination for Sick Berth Chief Petty Officer;

(c)

have passed the educational test for Branch Rank;

(3)

Candidates who satisfy all the conditions of sub-regulation (1) may be considered for promotion to Branch Rank.

(4)

A candidate for the Branch Rank who fails in the prescribed qualifying course may, on the expiry of 2 years from the date of failure be allowed further opportunity to qualify if still otherwise eligible, and may be given his original position on the course roster, provided he satisfies the following conditions :

(a)

recommended for a further trial by the Commanding Officer of the ship or establishment concerned; and

(b)

continuously recommended for Branch Rank under Regulation 181;

If accepted, he shall be required to take the full course and the examination, and on qualifying, may be considered for promotion alongwith other eligible sailors.

191.

Promotion as Commissioned Writer Officer.

(1)

A candidate to be eligible for promotion, as a Commissioned Writer Officer must :

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age limit up to a maximum of one year in exceptional cases;

(b)

have qualified in the prescribed professional course and examination.

(2)

Before a candidate is selected to take the professional course and examination, he must :

(a)

be qualified under Regulation 181;

(b)

be a Leading Writer, qualified professionally for Petty Officer Writer;

(c)

have completed 7 years of service;

(d)

have passed the educational test for Branch Rank.

(3)

Candidates who satisfy all the conditions of sub-regulation (1) may be considered for promotion to Branch Rank.

(4)

A candidate for the Branch Rank who fails in the prescribed qualifying course may, on the expiry of 2 years from the date of failure, be allowed further opportunity to qualify if still otherwise eligible, and may be given his original position on the course roster, provided he satisfies the following conditions:

(a)

recommended for a further trial by the Commanding Officer of the ship or establishment concerned; and

(b)

continuously recommended for Branch Rank under Regulation 181;

If accepted, he shall be required to take all the courses and the examination, and on qualifying, may be considered for promotion alongwith other eligible sailors.

192.

Promotion as Commissioned Stores Officer.

(1)

A candidate to be eligible for promotion, as a Commissioned Stores Officer must :

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age limit up to a maximum of one year in exceptional cases;

(b)

have qualified in the prescribed professional course and examination.

(2)

Before a candidate is selected to take the professional course and examination,he must;

(a)

be qualified under Regulation 181;

(b)

be a Leading Store Assistant, qualified professionally for Stores Petty Officer;

(c)

have completed 7 years of service;

(d)

have passed the educational test for Branch Rank.

(3)

Candidates who satisfy all the conditions of sub-regulation (1) may be considered for promotion to Branch Rank.

(4)

A candidate in the Branch Rank who fails in the prescribed qualifying course may, on the expiry of 2 years from the date of failure, be allowed further opportunity to qualify if still otherwise eligible, and may be given his original position on the course roster, provided he satisfies the following conditions:

(a)

recommended for a further trial by the Commanding Officer of the ship or establishment concerned; and

(b)

continuously recommended for Branch Rank under Regulation 181;

If accepted, he shall be required to take all the courses and examination, and on qualifying, may be considered for promotion along with other eligible sailors.

193.

Promotion as Commissioned Stores Officer (Catering).

(1)

A candidate to be eligible for promotion, as a Commissioned Stores Officer (Catering) must :

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age

limit up to a maximum of one year in exceptional cases;

(b)

have qualified in the prescribed professional course and examination.

(2)

Before a candidate is selected to take the professional course and examination, he must;

(a)

be qualified under Regulation 181;

(b)

be a Leading Cook or Leading Steward, qualified professionally for Petty Officer Cook or Petty Officer Steward;

(c)

have completed 7 years of service;

(d)

have passed the modified educational test for Branch Rank.

(3)

Candidates who satisfy all the conditions of sub-regulation (1) may be considered for promotion to Branch Rank.

(4)

A candidate for Branch Rank who fails in the prescribed qualifying course may, on the expiry of 2 years from the date of failure, be allowed further opportunity to qualify, if still otherwise eligible, and may be given his original position on the course roster, provided he satisfies the following conditions :

(a)

recommended for a further trial by the Commanding Officer of the ship or establishment concerned; and

(b)

continuously recommended for Branch Rank under Regulation 181;

If accepted, he shall be required to take all the courses and examination, and on qualifying, may be considered for promotion along with other eligible sailors.

194.

Promotion as Commissioned Bandmaster.

(1)

A candidate to be eligible for promotion, as a Commissioned Bandmaster must :

(a)

be not more than 37 years of age on the date of promotion; provided that the Chief of the Naval Staff may relax the age limit up to a maximum of one year in exceptional cases;

(b)

have qualified in the prescribed course of instruction.

(2)

Before a candidate is selected to undergo the course referred to in Cl. (b) of sub-regulation (1), he must pass a preliminary professional examination.

(3)

To be eligible to sit for the preliminary professional examination, a candidate must:

(a)

be qualified under Regulation 181;

(b)

beat least a Lending Bandsman, passed professionally for Petty Officer;

(c)

have passed the educational test for Branch Rank.

(4)

Candidates who pass the preliminary professional examination shall be placed on a roster for selection to undergo a further course and examination for Commissioned Bandmaster in accordance with the date of passing the preliminary professional examination. In making the selection, due consideration shall be given to seniority, percentage of marks obtained in the preliminary professional examination and their reports on the form specified in Appendix III.

(5)

The educational test may be taken either before or after the preliminary professional examination but a candidate who has not passed the test before passing this examination, shall be required to do so within 3 years of the date of passing the preliminary professional examination. If he does not do so, his name shall be removed from the roster. A candidate whose name has been so removed and who subsequently passes the educational test may have his name replaced on the roster, but his position thereon shall be determined with reference to the date of passing the latter examination.

(6)

Candidates who satisfy all the requirements of sub-regulation (1) may be considered for promotion to Branch Rank.

(7)

A candidate for the Branch Rank who fails in the prescribed qualifying course may, on the expiry of 2 years from the date of failure, be allowed a further opportunity to qualify, if still otherwise eligible, and may be given his original position on the course roster, provided he satisfies the following conditions :

(a)

recommended for a further trial by the Captain of the ship or establishment concerned, and

(b)

continuously recommended for Branch Rank under Regulation 181.

If accepted for the course, he shall be required to take all the courses and examination, and on qualifying, he may be considered for promotion along with other eligible sailors.

Section 11 - Promotion to Senior Commissioned Officer and Above

195.

General.

- Selections for promotions shall normally be made on 31st March and 30th September. Promotions to the rank of Lieutenant shall be limited to the number of vacancies allotted for the purpose.

196.

Commissioned Officer (Branch List) to Senior Commissioned Officer.

- Promotions from Commissioned Officer (Branch List) to Senior Commissioned Officer shall be made by selection, at the discretion of the Chief of the Naval Staff, from officers who have attained 6 years seniority and not more than 12 years seniority as Commissioned Officer (Branch List).

197.

Senior Commissioned Officer to Lieutenant.

- Promotions from Senior Commissioned Officer to Lieutenant shall be made by selection from Senior Commissioned Officers who have completed 10 years service in the ranks of Senior Commissioned Officer and Commissioned Officer (Branch List) combined and who, on promotion, will be eligible to serve for at least 5 years before reaching the age limit for compulsory retirement. Special cases, where the limit of 5 years is likely to cause hardship, may be considered by the Government on their merits. Seniority in the rank of Lieutenant, shall be counted from the date of promotion.

198.

Gallantry in action or Specially Meritorious Service in War.

(1)

A Senior Commissioned Officer may be promoted to the rank of Lieutenant and a Commissioned Officer (Branch List) to Senior Commissioned Officer, for gallantry in action or specially meritorious service in war before he would have become eligible by the preceding Regulations. On promotion, they shall, for all purposes, be treated in the same way as other officers of corresponding rank promoted in peace-time.

(2)

Recommendations for special promotion of Senior Commissioned Officers may be made by the commanding officer concerned, through normal channels, to the Chief of the Naval Staff for consideration of the Government.

Recommendations for the special promotion of Commissioned Officers (Branch List) may be made by the commanding officer concerned through normal channels for approval of the Chief of the Naval Staff.

199.

Lieutenant-Commander and above.

- Officers shall be promoted to the rank of Lieutenant-Commander and above under the regulations applicable to the General Service Officers.

Section III - Selection Promotion to Lieutenant

200.

Senior Commissioned Officer and Commissioned Officer (Branch List) to Lieutenant.-(Selective Promotion).

(1)

Promotions from Senior Commissioned Officer and Commissioned Officer (Branch List) to Lieutenant shall be made by selection from Branch Officers who have been confirmed in the rank of Commissioned Officer (Branch List) and who have attained the age of 25 years and are within the upper age limit of 35 years. The date of determining eligibility for promotion shall be 31st January for the following March selections and 31st July for the following September selections.

(2)

The following categories of officers shall be eligible for promotion in the different Branches :

Executive Branch-

Senior Commissioned Gunner and Commissioned Gunner.

Senior Commissioned Gunner (Torpedo & Anti-Submarine) and Commissioned Gunner (Torpedo & Anti-Submarine).

Senior Commissioned Boatswain and Commissioned Boatswain.

Senior Commissioned Boatswain (Diving) and Commissioned Boatswain (Diving).

Senior Commissioned Boatswain (Plotter Radar) and Commissioned Boatswain (Plotter Radar).

Senior Commissioned Physical Training Officer and Commissioned Physical Training Officer

Senior Commissioned Communication Officer and Commissioned Communication Officer.

Senior Commissioned Master-At-Arms and Commissioned Master-At-Arms.

Senior Commissioned Airman and Commissioned Airman.

Commissioned Bandmaster.

Engineering Branch-

Senior Commissioned Engineer and Commissioned Engineer.

Senior Commissioned Shipwright Officer and Commissioned Shipwright Officer.

Senior Commissioned Air Engineer and Commissioned Air Engineer.

Senior Commissioned Ordnance Engineer and Commissioned Ordnance Engineer.

Electrical Branch

Senior Commissioned Electrical Officer (Power) and Commissioned Electrical Officer (Power).

Senior Commissioned Electrical Officer (Radio) and Commissioned Electrical Officer (Radio).

Senior Commissioned Electrical Officer (Air Electrical) and Commissioned Electrical Officer (Air Electrical).

Senior Commissioned Electrical Officer (Air Radio) and Commissioned Electrical Officer (Air Radio).

["Senior Commissioned Writer Officer and Commissioned Writer Officer.

Senior Commissioned Stores Officer and Commissioned Stores Officer.

Senior Commissioned Stores Officer (Catering) and Commissioned Store Officer (Catering)".]

[Inserted & Omitted by S.R.O. 50, dated 19th February, 1981]

(3)

Officers selected for promotion shall undergo special courses of instruction, and on completion of the respective courses, provided they are recommended, they shall be promoted. During the course, they shall retain their existing rank as Branch Officers, and if not recommended for promotion on termination of the course, they shall revert to their former duties as Branch Officers.

Explanation. - Senior Commissioned /Commissioned Bandmaster selected for promotion to Lieutenant shall not be required to undergo any special courses of instruction before promotion.

(4)

Unless they already have a watchkeeping certificate, officers of the Executive Branch shall, in the first instance, be promoted to Acting Lieutenant and sent to sea to obtain experience in watchkeeping. On obtaining such a certificate, they shall be confirmed as lieutenants. Officers who already have a watchkeeping certificate shall be promoted to the rank of confirmed Lieutenant on satisfactory completion of the course.

Explanation. - Watchkeeping Certificates are not required in the case of Senior Commissioned or Commissioned Master-at-Arms and Senior Commissioned or Commissioned Bandmaster for confirmation as Lieutenant. On confirmation, these officers shall have no claim to revert to the General Service in the Executive Branch.

(5)

[Engineering and Electrical]

[Substituted by S.R.O. 50, dated 19th February, 1981]

Officers shall be promoted to the rank of confirmed Lieutenant.

(6)

On promotion to the rank of Lieutenant, officers shall be permitted to count half their service from the date of promotion to Branch Officer towards their seniority as Lieutenant. The ante-dated seniority as Lieutenant shall be calculated as from the date of selection that is to say 31st March or 30th September.

(7)

Officers will be promoted to the rank of Lieutenant-Commander and above under the regulations applicable to General Service Officers.

Section IV - Ages of Compulsory Retirement

201.

Retirement Age.-Branch Officers of all categories shall be compulsorily retired on reaching the age of 50 years.

Commissioned Officers (Branch List) not selected for promotion to Senior Commissioned Officers within 6 months of attaining 12 years seniority shall be liable to be placed on the retired list on attaining 12 years seniority, even though they may not have reached the age of compulsory retirement.

Chapter VIII

Grant Of Acting Ranks To Commissioned Officers

202.

Scope, application, etc.

(1)

This regulation shall govern the grant of paid acting ranks of Lieutenant Commander and above to Commissioned Officers of the Navy and for retention or relinquishment of such ranks by officers during periods of leave, on transit from one appointment to another, and during courses, etc.

(2)

(a)

This regulation shall apply to Commissioned Officers both Permanent and Short Service, in all Branches except officers of the Army Medical and Army Dental Corps seconded to the Navy.

(b)

This regulation shall not affect the position of officers already holding acting ranks granted otherwise than for the duration of a specific appointment under any orders of a competent authority made before the commencement of these regulations except that their reversion to their confirmed rank shall be governed by the provisions of sub-regulation (9).

(c)

Acting promotion of officers of the Army Medical and Army Dental Corps seconded to the Navy shall continue to be regulated under the rules applicable to their respective Corps.

Grant of acting ranks

(3)

General. - (a) Acting ranks under the provisions of this Regulation shall initially be unpaid. Acting rank shall become paid after 21 consecutive days of duty in the appointment carrying the higher rank from the date of its grant, though the grant of pay shall then become retrospective. Acting rank shall not be converted into paid acting rank unless it is held by an officer on the 22nd day.

(b)

If an officer proceeds on annual leave or combined leave (annual leave plus furlough) or on courses of instruction of less than 10 weeks' duration while holding an unpaid acting rank, the period spent on leave other than furlough, or such courses shall be considered as on duty for the purpose of conversion of unpaid acting rank into paid acting rank, provided he is borne against the same appointment on the date he qualifies for such conversion.

(c)

When an officer is appointed on return from combined leave (annual leave plus furlough) to the same appointment or another appointment carrying equivalent rank, he shall, for purposes of the grant of paid acting rank, be governed by the provisions of Cl.(b).

(d)

Acting promotion shall not be granted when the duties of an appointment are carried out as an interim arrangement.

(4)

Lieutenant-Commander.-(a) The grant of acting rank of Lieutenant-Commander shall be in the nature of a quasi-permanent promotion to this rank. Promotion shall be by selection from among all eligible officers.

(b)

Promotions shall normally be made half-yearly on the 30th June and the 31st December and shall be effective from those dates.

(5)

The number of promotions shall not exceed the number of vacancies in the sanctioned cadre of Lieutenant-Commanders; the sanctioned cadre of Lieutenant-Commanders for this purpose shall be reckoned as 25 per cent of the total sanctioned cadre of [Lieutenant-Commanders, Lieutenant and Sub-Lieutenant]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

in each Branch or such other percentages as may be fixed by the Government from time to time.

(6)

To be eligible for promotion, an officer must satisfy the following conditions:-

(a)

has attained 6 years' seniority as Lieutenant.

(b)

is recommended by his Captain; and

(c)

Possesses a full Naval Watch-Keeping Certificate if an Executive Officer, or an Engine-Room Watch-Keeping Certificate if an Engineer Officer, or a Certificate of Competency if an Electrical Officer.

(7)

Commander and above. - (a) Acting ranks of Commander and above shall only be granted to officers who are selected to fill appointments carrying a rank higher than their confirmed rank, and will become effective from the date an officer actually assumes and performs duty in that appointment. The grant of acting rank shall, however, not be automatic upon an officer assuming the higher appointment.

(b)

Selection of officers for the grant of acting rank shall be primarily based on merit, but other factors such as availability and/or suitability of an officer to fill a particular appointment shall also be taken into consideration.

(8)

Promotion to acting ranks shall be restricted to one step above an officer's confirmed rank and also to the number of vacancies in the sanctioned cadre of each rank except as provided in Explanation (2) under sub-regulation (16).

Retention and relinquishment of acting ranks

(9)

General. - An officer holding acting rank shall be liable to reversion to his confirmed rank under the following circumstances, or such other rules as may be prescribed from time to time :

(a)

if there is a reduction or re-adjustment of the cadre affecting that rank;

(b)

if, in the opinion of the Chief of the Naval Staff, he is found to be unable to carry out satisfactorily the duties of the higher rank, or he is otherwise unsuitable for holding the higher rank;

(c)

if he fails in courses or examinations prescribed by the Government from time to time.

(10)

Subject to the provisions of sub-regulation (9) :

(a)

the acting rank of Lieutenant-Commander shall be held by officers at all times, whether on duty or on leave/furlough, and

(b)

except as provided in sub-regulations (12) to (16), acting ranks of Commander and above shall be held by officers only so long as they actually perform the duties of the appointment for which the higher rank was granted.

(11)

Any acting rank held by Short Service Commission Officers at the time of transfer to a permanent commission may be retained subject to the provisions of sub-regulation (9).

(12)

On transfer. - (a) From one appointment in India to another appointment in India. - An officer holding acting rank in an appointment in India on transfer to another appointment in India shall retain his acting rank during the transit period, provided:

(i)

the appointment to which he is transferred carries an equivalent or a higher rank;

(ii)

he had held the acting rank for a minimum period of three months (or for a total period of 91 days when broken periods of paid acting rank are counted) prior to relinquishment of the appointment from which transferred; and

(iii)

the move is carried out direct by the first available opportunity.

Explanation 1. - Subject to the fulfilment of the conditions referred to in sub-clauses (i) and (ii)

(i)

an officer under transfer from one appointment to another who is granted annual leave with the consent of or by the Captain of his new ship /establishment, may be taken against the new appointment from the date he is struck off strength of his last appointment provided the new appointment is vacant. He shall be deemed to have proceeded on leave from the new appointment and shall retain his acting rank during the period of leave against that appointment;

(ii)

an officer who is transferred from one appointment to another whilst on annual leave and the relieving officer reports for duty before the expiry of leave of the outgoing officer, may be taken against the new appointment with the consent of the Captain of his new ship/establishment from the date he is struck off the strength of his last appointment provided the new appointment is vacant. He shall retain his acting rank during the balance of his leave against the new appointment.

Explanation 2. - Officers who are transferred from one appointment to another carrying a lower rank shall relinquish the higher acting rank during the transit period.

(b)

From an appointment in India to an appointment ex-India and vice versa.

(i)

An officer transferred from an appointment in India to an appointment ex-India or vice versa, shall be granted the acting rank, if the new appointment carries a higher rank, from the date of embarkation.

(ii)

An officer holding acting rank in an appointment in India on transfer to another appointment carrying an equivalent rank ex-India or vice versa shall continue to hold the acting rank until the date of assumption of the new appointment or until the new appointment falls, vacant, whichever is later, but the retention of acting rank within Indian limits prior to embarkation shall be subject to the fulfilment of the conditions in Cl. (a).

Explanation 1. - Subject to the fulfilment of the conditions referred to in sub-clauses (i) and (ii) of cl. (a), officers who are appointed ex-India as Naval Attaches or Advisers will retain their acting rank during the transit period from the date of their being struck off the strength to the date of assumption of appointment ex-India, provided that the total period from the date of their being struck off the strength in India to the date of embarkation does not exceed seven days. Officers who proceed to the port of embarkation from a temporary duty station will be struck off the strength of their appointment from the date of leaving the temporary duty station and will retain their acting rank as above, provided the period from that date to the date of embarkation does not exceed seven days.

Explanation 2. - Acting rank will be retained subject to the above conditions by such officers during the return journey, that is to say from the date of vacating appointment ex-India to the date preceding that on which appointment is assumed in India.

(c)

From an appointment ex-India to another appointment ex-India. - An officer holding acting rank in an appointment ex-India on transfer to another appointment carrying equivalent rank ex-India will retain his acting rank during the transit period under the conditions in Cl. (a).

(13)

During periods of leave. (a) Annual leave. - (i) An officer holding an acting rank who proceeds on annual leave and on expiry returns to the same appointment, shall retain his acting rank for the entire period of annual leave. No acting promotion in replacement shall be made during this period.

(ii)

An officer holding acting rank who proceeds on annual leave and on expiry does not return to the same appointment shall retain his acting rank for the entire period of annual leave, provided he continues to be borne against his last appointment for the duration of the annual leave period. No acting promotion shall be made in his place for this period and he shall be struck off the strength of his ship or establishment from the date following that of expiry of annual leave : Provided that an officer who on expiry of annual leave takes up an appointment in which he is granted the same acting rank may be struck off his last appointment and retain the acting rank during the period of annual leave in the following circumstances :

On transfer from a shore appointment provided it does not involve an acting promotion being made in replacement; and

On transfer from an afloat appointment even though it may entail making an acting promotion in replacement.

(b)

Furlough. - An officer holding acting rank who proceeds on furlough shall retain his acting rank if under these regulations he is entitled to retain the acting rank during the period of annual leave :

(i)

When furlough is taken by itself;

(ii)

When furlough is combined with annual leave.

Officers proceeding on leave pending retirement or resignation shall not be entitled to retain the higher rank during the period of furlough.

The retention of acting rank during the period of furlough shall not be taken into account for purposes of any additional pension admissible on the basis of an acting rank nor will it have any other financial effect. Officers will receive their pay and allowances under the Pay and Allowances Regulations for the Indian Navy.

(c)

Sick leave. - (i) An officer holding acting rank who is granted sick leave shall retain paid acting rank from the date of first absence from duty for a period of six months (which will include the period of annual leave of the year) or until he is taken on the strength of a ship or establishment and fills a specific vacancy in the authorised complement of that ship or establishment carrying a lower rank, whichever is earlier.

Explanation. - If the annual leave of the year or a part of that leave had been taken earlier, the period of six months referred to above will be reduced by a corresponding period.

(ii)

He will remain on the strength of his ship or establishment during that portion of sick leave which represents annual leave. Acting promotion in his place shall be admissible after the expiry of annual leave included in the period of sick leave:

Provided that an officer holding an acting rank in an afloat appointment who is granted sick leave, and in whose case a replacement is necessary, shall be struck off the strength of his ship and shall retain acting rank from the date of first absence from duty for a period of six months (which shall include the period of annual leave of the year) or until he is taken on the strength of a ship or establishment and fills a specific vacancy in the authorised complement of that ship or establishment carrying a lower rank whichever is earlier.

Explanation 1. - If the annual leave of the year or a part of that leave had been taken earlier, the period of six months referred to above will be reduced by a corresponding period.

Explanation 2. - Acting promotion in his place shall be admissible from the first day of absence on sick leave.

(d)

Leave on termination of engagement of Short Service Commission Officers. - Promotion in replacement shall not be permissible during the period of leave on termination of engagement granted to Short Service Commission Officers.

(14)

Courses of Instruction. - (a) Of less than ten weeks' duration.-An officer detailed to attend a course or courses totalling less than ten weeks' duration shall remain on the strength of his ship or establishment and shall retain acting rank. No

acting promotion in his place will be admissible. If however, it becomes definitely known during the course(s) that the officer will not return to his last appointment at the end of his course(s), he will be struck off the strength of his ship or establishment from the date it becomes known that he will not return. In that event, he shall relinquish any acting rank held from the date on which he is struck off.

Explanation 1. - An officer attending a course(s) of less than ten weeks duration may be transferred proforma during the course to another ship /establishment in a vacant equivalent appointment. When such a transfer is carried out, the officer shall continue to retain any acting rank which, from the date of transfer, will count against the strength of his new ship or establishment. Acting promotion in replacement in the original ship or establishment shall be permissible from the date the officer is taken on the strength of his new ship or establishment.

Explanation 2.-This clause shall apply in all cases of attendance of courses of less than ten weeks, irrespective of the actual duration of absence from ship or establishment.

(b)

Of ten weeks' duration or more. - An Officer detailed to attend a course or courses of ten weeks' duration or more will be struck off the strength of his ship or establishment from which date acting promotion in replacement will be admissible.

He shall retain acting rank in accordance with the following provisions.

An officer who has held acting rank for an unbroken period of not less than 3 months at the time of proceeding on a course in or ex-India shall retain such rank as under :

(i)

during the journey period as well as any pre-course attachment or training that is to say from the date of being struck off duty to the date of commencement of the course;

(ii)

for the duration of the course;

(iii)

from the date of the conclusion of the course to the date of the officer reports back for duty, or on completion of any leave (not exceeding 60 days) granted at the end of the course, whichever is earlier. Thereafter, the retention of acting rank shall be governed by the normal regulations;

(iv)

an officer who falls sick during a course shall relinquish acting rank under clause (c) of sub-regulation (13); but it may be restored to him with effect from the date of relinquishment if he subsequently returns and completes the course.

An officer who relinquishes acting rank under this clause, but recovers too late to finish the course may, if he rejoins the course next following without returning to duty in ship or establishment, shall reassume acting rank with effect from the date of commencement of the next course, or the date of joining it, whichever is later;

(v)

an officer holding acting rank who, on completion of a course of ten weeks' duration or more, proceeds to attend a course of less than ten weeks' duration without having joined his ship or establishment, shall continue to retain his acting rank, provided that the holder of the acting rank will be allowed this concession only if he is reabsorbed in the establishment of his ship or establishment in the same rank on completion of the first course.

Explanation 1. - An officer holding acting rank who, on completion of a course falling under clause (a) proceeds to attend a course falling under clause (b) without having joined his ship or establishment shall continue to retain his acting rank.

Explanation 2. - An officer holding acting rank who, on completion of a course falling under clause (b), proceeds direct to attend another course falling under that clause, shall continue to retain his acting rank during the second course. On the completion of the second course, the relinquishment of acting rank will be governed by sub-clause (iii) of clause (b).

Explanation 3. - An officer granted acting higher rank for a specified period in an officiating capacity, or in an appointment sanctioned for a specified period, shall not be eligible to retain that rank when detailed to attend a course of instruction. If however, such an officer is promoted to that acting rank in the normal course before proceeding on a course and would have continued to retain that rank if he had not proceeded on the course, he shall not be required to relinquish that rank if he fulfils all other conditions for holding that acting rank during the course.

(15)

Officers under arrest. - (a) An officer who ceases to carry out the duties of his appointment through being placed under open or closed arrest, or by suspension from duty shall vacate his appointment and relinquish his acting rank after 21 days.

(b)

If the officer is subsequently acquitted or, for any reason, is not brought to trial, or his character is vindicated to the satisfaction of the Chief of the Naval Staff, he may be re-appointed to the appointment he has vacated with effect from the date of vacation, and his acting rank shall then be deemed to have been held by him continuously.

(c)

If such an officer is convicted and receives a sentence of less than dismissal from the Naval Service, he may, at the discretion of the Chief of the Naval Staff be reappointed from the date he returns to duty provided he has not received the punishment of dismissal from the ship.

(d)

If such an officer is convicted and receives a sentence of dismissal from the ship, he may, at the discretion of the Chief of the Naval Staff be transferred to another appointment carrying the same acting rank.

(e)

The officer temporarily filling the appointment in place of the officer under arrest may, in the case of the conviction of the latter, be granted acting rank for the period when such rank was not held by the accused (that is to say from the 22nd day after the date on which the accused was placed under arrest or suspended from duty).

(f)

These provisions shall not affect the principle that two officers cannot draw pay for the same appointment at the same time, and as the officer under arrest may be reappointed under clause (b), and may hold the appointment continuously, the promotion of the officer temporarily performing the duties of the appointment will not be published until the result of the trial and the like is known.

(16)

Officers on temporary duty. - (a) An officer proceeding on temporary duty shall not be required to relinquish his acting rank, if during such duty he is not filling a vacancy in any other ship or establishment for which an authorised establishment exists. No acting promotion in his place shall be made.

(b)

If, however, the absence on temporary duty exceeds or is expected to exceed three months and a replacement is considered necessary, steps may be taken to authorise an appointment for the duty, with a rank commensurate with its responsibilities. Acting promotion shall then be admissible in place of the absentee from the date the new appointment is created.

Explanation 1. - The term "period of transit", wherever it occurs, will be deemed to include joining time and periods of handing over or taking over. For this purpose, the maximum periods of handing over or taking over (including all holidays) shall be as follows :

(a)

Where physical check of stores is involved 7 days.

(b)

In cases other than (a) above 4 days.

Explanation 2. - The grant and retention of acting ranks under this Regulation will not involve any increase in the sanctioned cadre, either in the respective ranks or in the total cadre, of the particular Branch, except as indicated in Explanation 3.

Explanation 3. - Any excess in the number of officers of and above the rank of Acting Commander who, are permitted to retain acting ranks under the provisions of Cls. (a), (b) and (c) of sub-regulation (12), the proviso to sub-clause (ii) of Cl. (a) of sub-regulation (13), Cl. (c) of sub-regulation (13), and Cl. (b) of sub-regulation (14), shall be borne against the sanctioned cadre in the lowest rank, that is, Lieutenant-Commander or Lieutenant or Sub-Lieutenant of the particular Branch.

(17)

Officers who are prisoners of war or missing. - (a) Officers holding acting rank at the time they are captured by the enemy or become missing shall continue to hold that rank so long as they are prisoners of war or missing but no part of the period during which the officer is prisoner of war or missing shall reckon towards any period of service necessary to qualify for pay of an acting rank.

(b)

Retention of acting rank by officers who are recovered or released from the enemy's custody shall be governed as under

:

(i)

Officers who are sent on leave directly after a brief stay at a Reception Camp shall retain their acting rank from the date of their recovery or release from the enemy's custody up to the date of proceeding on leave and thereafter for the period of annual leave, and for the period admissible for taking over the new appointment.

(ii)

In the case of sick officers who are admitted into the hospital directly on recovery or release from the enemy's custody, retention of acting rank shall be governed under clause (c) of sub-regulation (13). For this purpose, the date of recovery or release shall be treated as the date of the first absence from duty.

(18)

Acting promotions to the rank of Captain and above shall be notified in the Gazette of India.

Chapter IX

Grant Of Permanent Commission To Short Service Commission Officers

203.

Grant of Permanent Commission.

(1)

Subject to the availability of vacancies in the stabilised cadre of the Navy, Permanent Commission may be granted from time to time to Short Service Commission Officers of the rank of Sub-Lieutenant and above who are considered suitable and are recommended by the Chief of the Naval Staff.

(2)

Officers granted Permanent Commission may be transferred with their existing rank and seniority. The retention of any acting rank held by an officer at the time of transfer to a Permanent Commission shall be governed by Regulation 202.

(3)

Short Service Commission Officers selected for the grant of Permanent Commission in the Navy shall conform to the medical standard laid down by the Chief of the Naval Staff from time to time.

Chapter X

Officers On The Retired And Emergency Lists

204.

Liability of officers on the retired and emergency lists to serve when recalled and other matters arising therefrom.

(1)

[Officers of the Retired and Emergency Lists of the Indian Navy shall be liable to be recalled by the Central Government for service upto the age of fifty five years, in the event of war, during grave emergency or when grave emergency appears imminent.]

[Substituted by S.R.O. 344, dated 22nd October, 1975]

(2)

Such officers, while re-employed, shall receive pay and allowances as directed by the Government in each case.

(3)

They shall be required to provide themselves with necessary articles of uniform comprising the following dresses

(a)

Dress No. 2 (white Dress-Sword optional).

Dress No. 4 (white Undress).

Dress No. 6 (white Mess Dress).

Dress No. 6A (white Mess Undress).

Dress No. 6B (Tropical Mess Undress).

Dress No. 8 (Tropical Mess Dress).

(b)

And, if selected for service in cold climate:-

Dress No. 1 (Blue Dress-Sword optional).

Dress No. 3 (Blue Undress).

(c)

The provision of the following dresses is optional:-

Dress No. 5 (Blue Mess Dress).

Dress No. 5A (Blue Mess Undress).

Dress No. 7 (Blue Working Dress).

Dress No. 10 (Blue Tropical Working Dress).

(4)

A list of ex-naval officers eligible for re-employment in an emergency shall be maintained as the Emergency List. All officers who are permitted to resign from the Active List for private reasons shall be eligible for enrolment on this list.

(5)

Officers whilst enrolled shall be allowed to retain their Commissions and to wear, on State and other occasions of ceremony, the uniform of their rank at the time of resignation or of any higher rank to which they may be subsequently promoted, but they shall not be entitled to receive pay or pension when not employed.

(6)

When employed, officers on this list, if promoted subsequently to being placed on the Emergency List, shall receive the rate of full pay of higher rank, and those not so promoted shall receive the current full pay of the rank they held at the time of their resignation from the Service; but time on the Emergency List when the officer is not serving does not count for increases of full pay governed by seniority. Such officers shall be entitled to conveyance at public expense from and to the normal place of residence to the place where they are required to report for duty. Allowances may be granted towards the cost of outfit, the amounts and conditions of payments being determined at the time.

(7)

Officers actually selected to fill appointments to be taken up in time of war or emergency, shall undergo such instruction as may be considered necessary to fit them for the duties they are called upon to perform. For attendance at such courses of instruction such officers shall be entitled to :

(a)

pay in accordance with sub-regulation (6),

(b)

travelling expenses.

(c)

accommodation when available, if desired.

Plain clothes may be worn by such officers and no outfit allowance shall be given to them.

(8)

The names of Emergency List Officers shall be shown in the Navy List.

(9)

An officer who withdraws his name from the Emergency List shall be required to resign his Commission.

(10)

Engineer/ Electrical Officers shall be placed on the List only if their profession continues to be connected with engineering. The nature of their employment or intended employment shall be stated by candidates when volunteering, and also, if enrolled, once a year after their names are placed on the Emergency List.

(11)

Officers called from the Emergency List for service during war or emergency may be dealt with as regards promotion under the regulations which are in force at the time for officers of the same class on the Active List. In special cases, officers may be promoted at the discretion of the Government irrespective of the regulations governing the promotion of officers on the Active List, but such special promotion shall not extend to Flag or equivalent rank and may, as a rule, only be granted on ceasing service.

(12)

Officers shall be required to write annually on the 1st January to the Chief of the Naval Staff stating their address and, until they reach the age of 55, whether they are still fit to serve; otherwise their names shall be removed from the List, with the approval of the Government. They shall report at once any change in their address, and before proceeding out of India (otherwise than for purely temporary purposes), they shall obtain the approval of the Government through the Chief of the Naval Staff.

(13)

Before officers on the Emergency List enter into any engagement under or on behalf of foreign governments or accept

any form of employment which may take them away from India, thus rendering them not available for service in the Indian Navy at short notice, they shall first obtain the approval of the Government through the Chief of the Naval Staff.

(14)

Officers on the Emergency List shall not be eligible for promotion when not employed, except as stated below :

(a)

Lieutenants shall be eligible for promotion to the rank of Lieutenant-Commander on attaining 8 years' seniority as a Lieutenant.

(b)

Sub-Lieutenants, who have passed for Lieutenant, shall be eligible for promotion to the latter rank on attaining 3 years' seniority as a Sub-Lieutenant.

Chapter XI

Rank And Command

Section 1 - Officers in general

205.

Classification and Relative Rank of Officers.

(1)

The Officers of the Indian Navy are classified and shall rank and command with each other, as indicated in the table at Appendix IV.

(2)

The branches into which officers are classified shall be-

(a)

Executive

(b)

Engineering

(c)

Electrical

[***]

[Omitted by S.R.O. 50, dated 19th February, 1981]

(e)

Instructor

(f)

Medical

(g)

Shipwright.

206.

Parchment Commission.

- On appointment as Sub-Lieutenant or in a higher rank or on promotion to the rank of a Commissioned Officer (Branch List), the name of the person concerned shall be submitted to the Government with a request for the Parchment Commission to be issued in his favour.

207.

(1)

Subject to the following provisions as to the right of Command, steps in rank given on or after retirement shall confer the right to the title, uniform, and other advantages of the higher rank.

(2)

Where a step or steps have been granted automatically by virtue of and in strict seniority, the officers shall take command according to their seniority on the retired list.

(3)

Except as provided above, steps in rank given on or after retirement, shall not give the right of command amongst naval officers, which shall be governed by their seniority in the rank last held on the active list on the date of retirement.

(4)

When, however, an officer on the retired list is granted higher acting rank, he shall command according to such acting

rank in the same manner as though he were on the active list.

(5)

When a retired officer holding higher acting rank is promoted to the substantive rank on the retired list, he shall continue to take command in the acting rank granted to him before such substantive promotion, unless directions to the contrary are received from the Chief of the Naval Staff.

208.

Order of Command.

(1)

All executive officers of the same rank shall rank and command according to their seniority in that rank and if they are of the same seniority according to the order in which their names stand in the Navy List, or when not inserted in the list, according to the date of their first commissions, or orders, in their existing rank.

(2)

Officers other than executive officers shall rank with each other and with executive officers according to rank and seniority.

[(2-A) For inter-se-seniority among officers holding the rank of Commander, those promoted by selection against the authorised cadre of Commanders shall rank higher than those promoted by time-scale and held in a separate "non-selection" list. Officers promoted to the acting rank of Commander before completing 24 years' service and made substantive by time-scale while holding the rank of acting Commander on completing 24 years service, shall rank and command among officers promoted by selection according to the date of substantive promotion to the rank of Commander.]

[Substituted by S.R.O. 3-E, dated 24th March, 1966.]

(3)

[Unpaid acting rank carries with it the same advantages of precedence and command as substantive or paid acting rank and shall have effect so long as the officer is holding the appointment for which it is given.]

[Inserted by S.R.O. 3-E, dated 24th March, 1966]

(4)

[Officers shall command as laid down in Regulation 225.]

[Inserted by S.R.O. 3-E, dated 24th March, 1966]

(5)

[Officers shall rank with officers of the Army and the Indian Air Force, in the order given in Regulation 250.]

[Inserted by S.R.O. 3-E, dated 24th March, 1966]

209.

Commodore.

- A Commodore shall rank above all Captains and below Rear Admirals throughout his tenure of appointment as Commodore. Among themselves, Commodores shall rank and command according to their seniority as Captain.

210.

Order of Command-Indian Navy and Reserves.

(1)

Officers of the Indian Navy and Officers of the Indian Naval Reserve and Indian Naval Volunteer Reserve who are given "Qualified Officers" status, take rank and command in relation to each other according to their respective ranks and substantive seniorities. Officers of the same rank and substantive seniority take rank and command in the order : Indian Navy, Indian Naval Reserve, Indian Naval Volunteer Reserve.

(2)

"Qualified Officers" of the reserves take rank and command before officers of the reserves of corresponding rank of any seniority who are not "Qualified Officers".

(3)

Officers of the reserves who are not "Qualified Officers" take rank and command after officers of the Indian Navy and 'Qualified Officers' of the reserves of corresponding rank of any seniority. In relation to each other they take rank and command according to their respective ranks and seniorities. Officers of the same rank and seniority take rank and command in the order (1) Indian Naval Reserve,

(2)

Indian Naval Volunteer Reserve.

211.

Commonwealth and Foreign Naval Forces.

- An Officer of a Commonwealth Naval Force, or a foreign Naval Force, shall rank with an officer of the Indian Navy according to his rank and seniority in the force to which he belongs.

212.

Use of Naval ranks.

(1)

Apart from the Commissioned Officers of the Indian Navy and its Reserves on active service, the following categories of persons only are entitled to use naval ranks with their names; the recognised method of doing so is indicated below in each case :

(a)

Permanent Commissioned Officers of the Indian Navy who retire with pension or gratuity, for example, Captain, I.N. (Retd.).

(b)

Persons granted Honorary Commissions-(Hony.) Lieutenant CommanderI.N.

(c)

Officers of the Emergency List of the I.N.-Lieutenant Commander, I.N. (Emergency List).

(d)

Officers of the I.N.R. and I.N.V.R. on retirement-Commander I.N.R. (Retd.),-Commander..... I.N.V.R. (Retd.).

(2)

Where the use of naval rank is permitted under sub-regulation (1), the rank used will be the substantive rank [or the higher paid acting rank held for a minimum period of 2 years at the time of retirement.]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

Section II - Flag Officers and Commodores

213.

Flag Officers.

- Flag Officers are classed and shall rank and command in the following order :

Admirals of the Fleet

Admirals

Vice-Admirals

Rear-Admirals.

214.

Flag Officer Promoted.

- Should an Admiral, a Vice-Admiral, or a Rear Admiral, flying his flag as such by appointment, receive official notification of his promotion, he shall at once alter his flags to that of his new rank.

215.

Commodore.

(1)

A Captain may be constituted a Commodore when it may be deemed expedient. A Commodore shall, as a general rule, receive an appointment as a Captain of the ship in which his broad pendant is hoisted, and shall not have a Captain of the same ship under him unless specially authorised.

(2)

If transferred to another ship temporarily, it shall not be necessary for a Commodore to have an appointment to such ship; but if it be found necessary for him to remain in such latter ship, an appointment shall then be made to the ship in which he is borne.

216.

Flying of Broad Pendant.

- A Commodore shall fly his broad pendant, where authorised to do so, only in the ship to which he is appointed, or in her tenders and boats, except in the circumstances provided for in Regulations 223 and 224.

217.

Flag or other Officer in Command of a Fleet, of a Flotilla, of a Squadron or of an Area.

(1)

A Flag or other officer who is appointed in command of a fleet, of a flotilla, of a squadron or of an area shall assume the title of the command when he has relieved his predecessor and taken over his duties.

(2)

(a)

In the event of the absence or sickness of the Flag or other officer in command of a fleet, of a Flotilla or a squadron, command shall devolve upon the next senior executive officer of that fleet, flotilla or squadron as the case may be, (Short title SOPA).

(b)

In the event of the absence or sickness of the Flag or other Officer in command of an area, command shall devolve upon the next senior executive officer in the port where he is stationed (not the area).

218.

Senior Officer disabled in action.

- If an officer commanding a fleet, flotilla or squadron be from any cause rendered incapable of directing the operations of the fleet, flotilla or squadron in battle, or in the presence of an enemy, he may send for the officer next in command to come on board his (the Senior Officer's) ship, and to direct from thence all operations; and such Second in Command, if he be a Flag Officer or a Commodore, shall leave his flag or broad pendant flying on board his own ship, notwithstanding his absence from her on such duty.

219.

Senior Officer killed in action.

- If a Flag Officer or a Commodore commanding a fleet, flotilla or squadron should be killed in battle, his flag or broad pendant shall continue to fly until the battle is ended or the enemy is no longer in sight; but the officer next in command shall immediately be informed of the event by signal or otherwise, as may at the time be most advisable; and he shall forthwith assume the chief command, reparing to, and managing the fleet, flotilla or squadron from the ship of the former Flag Officer or Commodore commanding, should he judge it expedient to remove to her; in which case, if he be a Flag Officer or a Commodore, he shall leave his own flag or broad pendant flying on board the ship he quits until the battle is ended.

220.

Junior Flag Officer killed in action.

- If any other Flag Officer or Commodore, not commanding a fleet, flotilla or squadron should be killed in battle, his flag or broad pendant shall continue to fly until the battle is ended; but the Flag Officer or Commodore commanding the fleet, flotilla or squadron shall immediately be informed of the event by signal or otherwise, as may be most advisable.

221.

Deputy Chief of the Naval Staff.

(1)

The Deputy Chief of the Staff shall be a Flag Officer appointed as such by the Government.

(2)

The Deputy Chief of the Naval Staff shall also be the Chief of Staff to the Chief of the Naval Staff.

(3)

In the absence of the Chief of the Naval Staff from the Headquarters, the Deputy Chief of the Naval Staff may exercise such of the former's functions as may be authorised by him, save such powers as may, under law, be exercised only by the Chief of the Naval Staff.

(4)

Death or serious illness of the Chief of the Naval Staff.-If the Chief of the Naval Staff should die, or if the state of his health should make it absolutely necessary for him to quit his command without waiting for the appointment of his successor, the Deputy Chief of the Naval Staff shall forthwith assume command of the Service until such time as the directions of the Government are received.

222.

Transfer of Command.

- During the day on which a Flag Officer transfers the command to his successor, the flags of both officers shall remain

flying.

223.

Shifting Flags or Broad Pendants.

- Flag Officers and Commodores may shift their flags or broad pendants to, and may move on board, any other ship as the circumstances at the moment may induce them to deem proper for the good of the Service.

224.

Senior Officer proceeding to another Ship.

(1)

When it shall be absolutely requisite for the Senior Officer of two or more ships, not being a Flag Officer or Commodore, to be absent from his own ship and to go on board another ship under his orders, for the better conducting of any important service on which he may be engaged, he shall direct the officer commanding such ship, to bear him in his proper rank, as lent for particular service, and while so borne, the said Senior Officer shall have the same command and authority in every respect as he would have had if present in his own ship.

(2)

In the event of the ship commanded by the Senior Officer of two or more ships, who is not a Flag Officer, being wrecked or lost, such Senior Officer may direct himself to be borne as additional in his proper rank, in one of the ships under his orders; and while so borne, or until an officer senior to him shall arrive on the spot and otherwise direct, he shall have the same command and authority as he had before his own ship was lost.

(3)

In either of the cases covered by sub-regulations (1) and (2), the Senior Officer shall relinquish all command and authority on board the ship in which he is temporarily borne by his own order as soon as the exigencies of the Service will admit thereof, and he shall forthwith report to his superior authority, for the information of the Government, the circumstances which rendered it necessary for him to avail himself of the provisions of this Regulation.

Section III - General Regulations

225.

Military Command.

(1)

It is the authority vested in officers of the Executive Branch and in sailors mentioned in Regulation 249 to command one or more ships or boats or aircraft according to their training and duties, or to direct any work or undertaking which requires the cooperation of different branches of the Service. It may be conferred on other officers and sailors by appointment or by direction of superior authority.

(2)

Officers and men entitled to exercise military command are not necessarily qualified by training and duties to perform all the functions mentioned in sub-regulation (1), and this must be borne in mind when detailing officers and men for duties.

(3)

All persons entitled by definition to military command are qualified to assume the direction of work or undertakings which require the cooperation of different branches of the Service. Persons not entitled to military command may be entrusted by superior authority with the direction of such work or undertakings when appropriate.

(4)

Command of ships and boats shall be limited to qualified officers of the Executive Branch and seaman sailors, except when conferred by superior authority on other persons qualified by ability and experience.

(5)

Command in the Air may be assumed only in accordance with the Regulations for Naval Air Arm.

(6)

Officers and sailors qualified as aircrew and appointed for flying duties but belonging to branches not entitled to military command may exercise it in the performance of their flying duties in the air, on board a ship and on the ground.

(7)

Non-executive officers appointed in command of shore establishments may exercise such functions of military command as may be necessary for the proper performance of their duties.

(8)

No officer of the Indian Navy shall be entitled to any military command unless he is serving on full pay, is borne on the

books of one of Indian Naval Ships, and is carrying out naval duties.

(9)

Officers holding appointments under civil departments of the Government shall not, without the express orders of the Chief of the Naval Staff, assume any command over or issue any orders to personnel of the Indian Navy other than those officers and men who are serving under their orders in their respective departments.

(10)

Officers employed on Naval Armament Inspection duties shall take precedence within the Naval Armament Inspection pool according to their seniority in the inspection grade. Except when appointed temporarily additional to a seagoing ship and given appropriate specialist duties in the ship in accordance with Regulations for Naval Armament Inspection, they shall be in the same position as officers outside the executive category, in that while they may be given such power of command as their duties require, they do not automatically assume command of officers and/or sailors other than those placed under their orders.

(11)

Except as provided in sub-regulations (3), (6), (7) and (9) and in Regulation 226, no officer or sailor not entitled to military command shall assume command over officers and men of other branches unless those have been appointed or detailed for duty in his department or placed under his orders.

(12)

Honorary Rank or an Honorary Commission shall not carry with it any military command.

226.

Maintenance of Good Order.

- It shall be the duty of every Officer, Chief Petty Officer, Petty Officer and [Leading seaman (or equivalent rank)]

[Substituted by S.R.O 192, dated 10th September, 1973]

of all branches of the Service to ensure that order and regularity are preserved in his vicinity among those officers and men, of whatever branch and whether on duty or not, who hold a rank, [***]

[omitted by S.R.O. 192, dated 10th September, 1973]

, junior to him, and the provisions of sub-regulation (11) of Regulation 225 shall not be taken as precluding him from giving any orders to such persons junior to him as are necessary to enable him to carry out this duty.

227.

Command of Ship, order of.

- A seagoing ship shall always be represented by an executive officer of the rank of Captain or below.

228.

Command of Officers of Non-Executive Branches.

(1)

Notwithstanding the relative rank and authority conferred by these Regulations on officers of branches other than the Executive Branch, they shall, whatever their rank, be under the command of the Captain and the Executive Officer of the ship in which they may be and of the Officer of the Watch for the time being; and in all matters outside their own departments (except as provided in Regulations 225, 226 and 236) they shall be subject to the authority of the senior officer of the Executive Branch present or in charge of the Service on which they are employed.

(2)

In no case shall officers of the non-Executive Branches be deemed to be superior in rank to, or take precedence of, the officer appointed to command the ship or establishment in which they are employed or the officer or other person on whom the command of such ship or establishment may properly devolve in the absence of the officer appointed to the command thereof.

229.

Officer of Executive Branch Present.

- If two or more officers not of the Executive Branch are in the presence of an officer of the Executive Branch under whose command the senior of these officers is serving, the others, whatever their rank and standing may be, shall not take precedence of the officer of the Executive Branch, within the sphere of his command.

230.

Officer in Command-Rank and Precedence.

- Officers in command of Indian Navy Ships shall take rank and precedence over the officers placed under their

command on all occasions, whether on shore or afloat.

231.

Command in Temporary Absence of Captain.

- Except in a shore establishment, the senior executive officer on board (other than an officer appointed additional for staff or special duties, or an officer not qualified to command ships or boats) shall, in the temporary absence of the Captain, be responsible for everything done on board. As Commanding Officer for the time being, he shall assume the powers and duties of the Captain. In a shore establishment, command shall descend in the branch of the Captain, provided that an officer of any branch other than the Executive Branch shall not assume command if there is an officer of the Executive Branch senior to him; but command shall not devolve on any officer appointed additional for staff or special duties or for courses. If the officer appointed as Captain of a shore establishment is an officer of a branch other than that from which the Captain would normally be appointed in accordance with the establishment sanctioned, the command of that establishment shall, in the temporary absence of the Captain, descend as though the branch of the Captain were the branch specified in the sanctioned establishment.

[**]

[Omitted by S.R.O. 278, dated 21st July, 1977]

232.

Command when Captain in Sick or Absent.

(1)

If the Captain has ceased to exercise command whether through sickness or for any other reason, or because of absence on duty, or leave during which he will be away from the ship, the officer next in command shall assume powers and duties as though he had himself been appointed in command. In such circumstances he has full powers of punishment as Captain of the ship.

(2)

When the Captain, without having ceased to exercise command, is absent from his ship, the officer next in command shall be responsible for every thing done on board. He shall act as Commanding Officer for the time being and shall assume the powers necessary to carry out this duty other than the powers of punishment vested in the Captain.

233.

Command when Executive Officer does not succeed.

- When the officer succeeding to the command is other than the Executive Officer of the ship, he shall not take upon himself the routine duties of the Executive Officer, except by order of the Captain or in the case of necessity.

234.

Authority of Officer of the Watch.

- Every officer or other person under the rank of Captain, not being either the Executive Officer or the Commanding Officer of the ship for the time being, shall be subordinate to the Officer of the Watch, whatever may be his rank, in regard to the performance of the duties with which he is charged.

235.

Officers borne additional.

- When it is desired that an officer borne additional for staff or special duties should practise or gain experience in ship, or handling, and the like, authority for him to take charge of a watch at sea or in harbour may be given by the senior officer of the squadron or unit, provided that nothing in this regulation shall put him in the line of succession to command.

236.

Presiding Officer at Assemblages.

- At boards of inquiry, survey, and other similar assemblages of officers, the officer who, by virtue of his office, would under the foregoing regulations take the military command, shall normally preside irrespective of the relative rank of the other members, whose precedence amongst themselves on such occasions shall be determined by Regulation 208. The convening authority may, however, at his discretion appoint an officer not of the Executive Branch to preside.

237.

Officer Promoted.

- An officer who is promoted shall take rank and command accordingly only if he is re-appointed to his ship in the higher rank. If not so re-appointed, he shall continue to perform the duties of, and assume command in the rank from which he

has been promoted, but he shall be senior to other officers of that rank, until relieved or until other instructions are issued by the Chief of the Naval Staff.

238.

In tenders or boats.

- An officer absent on service in a tender or boat attached to the ship in which he is borne, shall have the same command as he would have, were he actually on board the ship in which he is borne.

239.

Authority when Wrecked or Lost.

- When one of Indian Naval Ships is wrecked, or otherwise lost or destroyed or taken by the enemy, the command, power, and authority given to the Captain, and to the other officers and the crew with respect to each other, shall remain and be in full force, as effectually as if the ship were not lost.

240.

Officers lent.

- Officers lent by competent authority to do duty on board any other ship, although borne as supernumeraries, shall take the same rank and command, and be considered in every respect for the time they are so employed, as if they actually belonged to the complement.

241.

Officers taking Passage.

- Any officer taking passage in one of Indian Naval Ships, may, though borne as supernumerary, be ordered to do duty if of inferior rank or junior to the Executive Officer of the ship in which he is embarked; and while so employed he shall take the same rank and command, and shall be considered in every respect as if he actually belonged to the complement; but if the Captain of the ship shall die, the acting command thereof is vested in the officers mentioned in Regulation 231 and in no case shall it be assumed by a supernumerary officer, except when he shall have received the express authority mentioned in Regulation 242 or be in the position of the senior officer described in Regulation 224.

242.

Additional for Special Service.

- Captains and other officers of the Executive Branch, borne on the books of any of Indian Naval Ships as "Additional, for special or particular service", shall never assume the charge and command of the ships in which they are so borne, or any other charge or command, except that which may appertain to the special or particular service for which they are borne, unless they receive from the Chief of the Naval Staff express authority to the contrary.

243.

"Additional" not for Special Service.

- Captains and other officers of the Executive Branch who are borne on the books of any of Indian Naval Ships as "Additional", but not for any special or particular service, shall take rank and command in the ships in which they are so borne, and be considered as if they belonged to the complements of such ships.

244.

Other Officers "Additional".

- Officers of branches other than the Executive Branch, and all persons not included in the Regulations 242 and 243 who are borne on the books of any of Indian Naval Ships as "Additional", shall perform the duties for which they are appointed, shall be considered as belonging to the ships in which they are borne, and shall take rank and precedence according to their respective positions in the Indian Navy.

Section IV - Acting Rank

245.

Acting promotion of officers of the Army Medical and Army Dental Corps seconded to the Navy shall continue to be regulated under the rules applicable to their respective corps.

246.

Confirmed officers take command over acting.

- Officers of acting rank shall rank and command after those holding the corresponding confirmed rank, and in relation to officers of the same denomination shall rank and command according to the order in which their names stand in the Navy List, unless the Chief of the Naval Staff may otherwise direct.

Section V - Ship's Company

247.

(1)

The crews of Indian Naval Ships shall rank and command after Naval Cadets according to this Regulation.

(2)

Any sailor of any one of the following [ranks]

[Substituted by S.R.O. 192, dated 10th September, 1973]

shall rank and command before any sailor of a [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

below it in the following list, except that sailors exercising Military Command rank and command before all sailors placed under their command

Chief Petty Officer

Petty Officer

Leading [seaman]

[Substituted by S.R.O. 192, dated 10th September, 1973]

Able [seaman]

[Substituted by S.R.O. 192, dated 10th September, 1973]

Ordinary [seaman]

[Substituted by S.R.O. 192, dated 10th September, 1973]

Boy [seaman]

[Substituted by S.R.O. 192, dated 10th September, 1973]

(3)

Sailors belonging to any one of the [ranks]

[Substituted by S.R.O. 16-e, dated 13th August, 1968]

mentioned in sub-regulation (2) shall rank and command among themselves according to their seniority in that [ranks]

[Substituted by S.R.O. 16-e, dated 13th August, 1968]

provided, that :

(a)

[Chief Engine-Room Artificers, Chief Ordnance Artificers, Chief Electrical Artificers, Chief Shipwright Artificers, Chief Aircraft Artificers, Chief Mechanics, Chief Aircraft Mechanics and Chief Electrical Mechanics shall rank and command over all other [sailor] of these eight branches. "Chief" [sailor]

[Substituted by S.R.O. 16-E, dated 13th August, 1968.]

within one of these branches shall rank and command between themselves according to seniority in "Chief" [sailor]

[Substituted by S.R.O. 16-e, dated 13th August, 1968]

"Chief" [sailor]

[Substituted by S.R.O. 16-e, dated 13th August, 1968]

of two or more of these branches shall rank and command between themselves by seniority as Chief Petty Officer.

Where "Chief" [sailor]

[Substituted by S.R.O. 16-e, dated 13th August, 1968]

of any of these eight branches are together with Chief Petty Officers of other branches they will rank and command according to seniority as Chief Petty Officer.]

(b)

Engine-Room Artificers, Ordnance Artificers, Electrical Artificers, Shipwright Artificers and Aircraft Artificers of a particular class shall rank and command over all Engine-Room Artificers, Ordnance Artificers, Electrical Artificers, Shipwright Artificers and Aircraft Artificers of a lower class. Within one of these branches, sailors of the same class shall rank and command according to their seniority in that class.

(c)

[For purposes of departmental work only, in the absence of the departmental officer, the seniormost artificer or mechanic sailor of the department concerned may be directed to take charge of the department and deputise for the departmental officer.]

[Relettered by S.R.O. 11-E, dated 13th August, 1968]

(4)

Acting sailor shall rank and command immediately after corresponding confirmed sailors, and among themselves according to the dates they attained their acting [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

(5)

Sailors of the same branch [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

on the same day shall rank and command according to the order in which they appear on the roster for [promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

. Sailors of different branches, and sailors whose relative position has not already been determined by roster, shall rank and command according to the order in which they attained man's [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

. Sailors who have been [reduced rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

and [re-promoted]

[Substituted by S.R.O. 361, dated 10th November, 1975]

will reckon their previous service in their present [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

for purposes of rank and command.

(6)

Where a situation arises in regard to the exercise of rank and command not specifically governed by the above provisions, Commanding Officers should deal with the case according to its merits with a view to the best interests of the Service.

(7)

Relative rank of Chief Petty Officers, Petty Officers and men of the Indian Navy with Non-Commissioned Officers and men of the Army and the Indian Air Force shall be as laid down in Regulation 250.

248.

Pensioners and Fleet Reservists.

- The provisions of sub-regulations (3) and (5) of Regulation 247 shall not apply to pensioners and Fleet Reservists called up for further service in emergency. They shall rank and command according to seniority based on the time served in active service, including time served on mobilisation.

249.

Military Command by Sailors.

- The following sailors shall be entitled to exercise military command :

Seamen :

Chief Petty Officer

Petty Officer

Leading Seaman

Able Seaman

Ordinary Seaman

Signal :

Chief Yeoman of Signals

Yeoman of Signals

Leading Signalman

Signalman

Ordinary Signalman

Regulating :

Master-At-Arms

Regulating Petty Officer

Leading Patrolman

Naval Airman (All categories) :

Chief Airman

Petty Officer Airman

Leading Airman

Naval Airman 1st Class

Naval Airman 2nd Class

Section VI - Indian Navy, Army And Air Force

250.

Relative Rank-Indian Navy, Army and Air Force.

- The relative rank of members of the Indian Navy, the Army and the Air Force shall be as laid down in the following tables:-

Indian

Navy

Army

Indian

Air Force

Admiral

of the Fleet[*]

[These ranks do not exist at present]

Field

Marshal[*]

[These ranks do not exist at present]

Marshal

of the Air Force[*]

[These ranks do not exist at present]

Admiral[*]

[These ranks do not exist at present]

General

Air

Chief Marshal[*]

[These ranks do not exist at present]

Vice-Admiral

Lieut-General

Air

Marshal

Rear-Admiral

Major-General

Air

Vice Marshal

Commodore

Brigadier

Air

Commodore

Captain

Colonel

Group

Captain

Commander

Lieut,

Colonel

Wing

Commander

Lieutenant

Commander
Major
Squadron
Leader
Lieutenant
Captain
Flight
Lieutenant
Sub-Lieutenant
Lieutenant
Flying
Officer
Acting
Sub-Lieutenant
Senior
Commissioned Officer
Second
Lieutenant;
Pilot
Officer
Commissioned
Officer (Branch List)
No
equivalent
No
equivalent
Midshipman
(a)
Risaldar Major
Subedar
Major
(b)
Risaldar
Risaldar
Cl.I., RVFC
Subedar
Subedar
Cl.I., AMC
No
equivalent
(S.M.S.C.C.)
Master Warrant
(c)
Risaldar Cl. II., RVFC
Subedar
Cl.II., AMC
(S.M.S.C.C.)
(d)
Jemadar
Jemadar
Clerk

Jemadar
Bandmaster
No
equivalent
No
equivalent
Warrant
Officer
Chief
Petty Officer Dafadar or Havildar
No
equivalent
Flight
Sergeant
(a)
Regimental Dafadar Major
Regimental
Havildar Major
Havildar
Major Armament
Artificer
Regimental
Q.M. Dafadar
Regimental
Q.M. Havildar
Battalion
Havildar Major
Battalion
Q.M. Havildar
(b)
Farrier Dafadar Major
Squadron
Dafadar Major
Squadron
Q.M. Dafadar
Battery
Havildar Major
Battery
Q.M. Havildar
Company
Havildar Major
Company
Q.M. Havildar
Q.M.
Dafadar
Petty
Officer
(c)
Dafadar
Sergeant
Armourer

Dafadar
Havildar
Artisans
Gunner
Havildar
Driver
Havildar
Farrier
Havildar
Havildar
Havildar
Clerk
Armourer
Havildar
Brand
Havildar
Trumpet
Major
Drum
Major
Bugle
Major
Pipe
Major
Dafadar
Dresser
Dafadar
Rider
L/Dafadar/Naik
Lance
Dafadar
Lance
Havildar
Lance
Dafadar Rider R.V.F.C.
Lance
Dafadar Dresser R.V.F.C.
Naik
Artificer
Naik
[Leading
sailors]
[Substituted by S.R.O. 192, dated 10th September, 1978]
Driver
Naik
(but
junior to Army ranks)
Gunner
Naik
Naik
Clerk

Corporal

Band

Naik

Farrier

Lance Dafadar

(a)

Acting Lance Dafadar

Lance

Naik

Sowar

Gunner

Driver

Sapper

Signalman

(b)

Sepoy Rifleman Leading Air

[Able

and Ordinary sailor]

[Substituted by S.R.O. 192, dated 10th September, 1978]

Assistant

Armourer Trumpetor

craftsman

Aircraftsman I

Bugler

Class

Piper

Aircraftsman

II

Drummer

Class

Bandsman

Signaller

Sowar

Rider R.V.F.C.

Sowar

Dresser R.V.F.C.

Farrier

Craftsman

251.

Relative Seniority.

(1)

The relative seniority of officers of the Indian Navy, Army and Indian Air Force, holding equivalent ranks, who serve together in an Inter-Service Organisation shall be determined as follows:

(a)

Officers holding equivalent substantive rank (and no acting rank) shall rank according to their seniority in the substantive rank, and

(b)

Officers holding acting rank shall rank after officers holding corresponding substantive rank. Officers of equivalent acting ranks in relation to each other shall rank according to their seniority in the substantive rank.

(2)

Joint Service with Land or Air Forces. - When officers of the Navy are employed on shore, on joint service with the land

or air forces, their relative rank shall carry with it all the precedence and advantages, except command, attaching to the rank with which it corresponds, and shall regulate the choice of quarters.

252.

Power to exercise Command over Members of Naval Forces.

(1)

When members of the regular Army and the Air Force or of either of these forces are serving with members of the Indian Navy or Indian Naval Reserve Forces under conditions specified in sub-regulation (2), the members of the regular Army and the Air Force may, under section 7 of the Navy Act, 1957 exercise all powers of command other than powers of punishment, as if they were members of the Naval Forces of corresponding rank and seniority.

(2)

For the purposes of clause (24) of Section 3 and sub-section (1) of Section 7 of the Navy Act, 1957, the following shall be the conditions in which members of the regular Army and the Air Force or either of these forces serving with members of the Indian Navy or Indian Naval Reserve Forces may exercise the powers of command referred to in sub-regulation (1) or be superior officers in relation to members of the Indian Navy or Indian Naval Reserve Forces, namely-

(a)

When a member of the Naval Forces is acting with a body of the regular Army or the Air Force which is on active service;

(b)

When a member of the Naval Forces is being conveyed on any convoy of the Army;

(c)

When a member of the Naval Forces is on board an aircraft belonging to the Air Force;

(d)

When a member of the Naval Forces is attached to or serving in any Army or Air Force Unit;

(e)

When a member of the Naval Forces is serving in or is a patient in a hospital or medical unit, in which an officer of the regular Army or Air Force is on duty or is a patient;

(f)

Where a body of the Naval Forces is acting with a body of the regular Army or Air Force and an order in writing applying Section 7 of the Navy Act, 1957 while those bodies are so acting has been made by the officers in command of each such body, provided that

(i)

any such order may be made jointly by the respective officers in command of Naval, Army and Air Force formations;

(ii)

any such order may be limited to a specified period or to a particular situation;

(iii)

in no case, shall any Naval officer appointed to the command of any ship or ships of the Indian Navy, be superseded when afloat by an officer of the regular Army or Air Force and that in no case shall any officer of the regular Army or Air Force appointed to the command of any body of the regular Army or Air Force, be superseded when on land or air as the case may be, by any naval officer; and

(iv)

any such order, when made, shall be communicated as early as possible for the information of the Government, who shall have the power to revoke or vary the provisions of any such order when deemed advisable.

(g)

Where a body of Naval Forces is acting with a body of the regular Army or Air Force and the Government by special order have declared that it is necessary for officers of the regular Army or Air Force to exercise command over persons subject to the Navy Act, 1957 in a particular place with that body of the Naval Forces :

Provided that in no case shall any Naval officer appointed to the command of any ship or ships of the Indian Navy be superseded when afloat by any officer of the regular Army or Air Force and that in no case shall any officer of the regular Army or Air Force appointed to the command of any body of the regular Army or Air Force, be superseded when on land or air as the case may be, by any naval officer.

253.

Precedence in India.

- The table of precedence in India shall be [the table of precedence issued by the Presidents Secretariat]
[Sunstitued by S.R.O. 140, dated 26th May, 1978]

Chapter XII

Sailors-Conditions Of Service

Section I-General

254.

Appointment to other Navies.

- All sailors are liable for service with any other navy as may be directed by the Chief of the Naval Staff. In selecting sailors for such service preference shall be given to volunteers, but if the requisite number of suitable volunteers is not forthcoming, sailors may be [transferred]

[Substitued by S.R.O. 361, dated 19th November, 1975]

as for any other appointment.

255.

Liability of Sailors.

(1)

All sailors are liable for service in any military, civil or other appointment whether in India or abroad.

(2)

Sailors are liable to be transferred from one branch to another branch at the discretion of the Chief of the Naval Staff.

256.

[Transferring]

[Substitued by S.R.O. 361, Dated 10th November, 1975]

record.

(1)

The Captain Naval Barracks shall be responsible for keeping a complete and up-to-date record of the whereabouts of all sailors.

(2)

In overseas, when conditions render this desirable, the Senior Officer shall arrange for all temporary movements, or movements for which Genform will be some time in transit, to be recorded locally on the station, in such a way that he can inform the appropriate authority at home of any changes in personnel.

(3)

Enquiries as to the whereabouts of sailors shall be addressed to the Captain Naval Barracks.

257.

[Transferring]

[Substitued by S.R.O. 361, Dated 10th November, 1975]

- No sailor shall be prejudiced in his substantive [rank]

[Substitued by S.R.o. 192, dated 10th September, 1973]

by being discharged to another ship; should there be no equivalent [rank]

[Substitued by S.R.o. 192, dated 10th September, 1973]

open to him in the ship to which he may be sent as part complement, he will be borne as supernumerary provided that nothing in this Regulation shall effect the power to [reduced in rank]

[Substitued by S.R.o. 192, dated 10th September, 1973]

for punishment, or to revert for proved unsuitability.

258.

Discharge from ship.

- No person is to be discharged from the ship's books without the authority of the Chief of the Naval Staff or of the Administrative Authority except for one of the following reasons :

Death, desertion, transfer to some other ship, training, supersession, sickness, or dismissal by sentence of court-martial or, at home, discharge to shore on expiration of engagement.

259.

Disposal of sailors on discharge from ship's books.

- Unless orders are received to the contrary, all sailors on discharge from ship's books shall be [transferred]
[Substituted by S.R.O. 361, dated 10th November, 1975]
to Naval Barracks for disposal.

260.

Inability to report for duty.

- When a sailor is unable to report for duty due to any cause whatsoever, he shall report the fact to his Commanding Officer at the earliest.

Section II - Entry, Engagements And Re-Entry

Entry

261.

Recruitment.

(1)

The Chief of the Naval Staff may recruit sailors required for the Service.

(2)

Recruitment of sailors shall be made through boy entry, artificer apprentice entry, and direct entry as necessary. The recruitment shall be carried out by the Recruitment Organisation established for the purpose and by any other authority as may be decided upon by the Chief of the Naval Staff from time to time. Persons authorised to enrol sailors, the manner, procedure and terms and conditions of enrolment shall be as laid down in the appropriate Regulations.

(3)

Recruits shall conform to such physical and medical standards as may be prescribed by the Chief of the Naval Staff. The educational standards, as well as age limits and any other conditions of recruitment of sailors may be prescribed by the Government from time to time.

262.

Fraudulent Entry.

(1)

If a Man, Boy or Artificer Apprentice is found within the period of 3 months from the date of enrolment, to be ineligible by age, or to have entered the service by deception of any kind, he may be discharged by the Captain. Where, however, in such cases an application for discharge is received from the sailor, or in the case of one who is below 18 years, for his parent or guardian, within the said period of 3 months, the sailor shall be discharged by the Captain. After the lapse of the said period of 3 months, prior approval of the Chief of the Naval Staff shall be obtained for discharge of such persons.

(2)

If a person is found to have entered the Naval Service while belonging to the Army, Army Reserve, Indian Air Force or Indian Air Force Reserve, reference shall first be made to the Officer Commanding the Unit to which the man belonged, to ascertain whether it is desired to claim him under his original engagement. If he is not claimed, the question of his discharge shall then be decided as in sub-regulation (1).

(3)

Until an enrolled person is finally discharged, no irregularity or illegality in his enrolment or any other ground shall affect his position as an enrolled person or invalidate any proceedings against him under the Act.

(4)

The reasons for any discharge under the provisions of this Regulation will be 'Fraudulent Entry'.

263.

Service Certificates.

- All particulars required to be entered in the Service Certificate shall be so done, after tallying the same with the entries made in the Form of Enrolment, particular attention being paid to the verification from the person by personal interrogation, of his age and name, and the address of his next-of-kin, with correct spellings, etc.

264.

Instructions to Recruiting Authorities.

- Recruiting Officers shall be responsible for explaining clearly to the recruits the conditions of service in general, the duties of the Branch in which the person is being enrolled, the various items comprising 'Clean Ship' duties and for

giving any further information they may require. They shall ensure that the recruits fully understand and accept the conditions of and their liabilities to the Service, before they (the recruits) affix their signatures on the declarations in the Form of Enrolment contracting to serve the Navy for the period specified therein. The declaration shall be duly witnessed by a responsible person, like, Justice of Peace, Gazetted Officer, Headmaster of a school, Lambardar, Tehsildar, Naib Tehsildar or a Police Officer not below the rank of Assistant Sub-Inspector. The witness must be able to vouch for the relationship or the identity (in case of legal guardian) of the person who makes his signature or affixes his thumb impression on the declaration, in the Form of Enrolment, in regard to his willingness to permit his son or ward to be enrolled in the Indian Navy.

265.

Suspected Deserters.

- Should there be grounds for suspecting that a person offering himself for enrolment as a Man or Boy or Artificer Apprentice is a deserter from Government Service, the Captain shall deal with him in accordance with Regulation 262(2) if applicable.

266.

Adverse Verification.

- All enrolled persons who are found, on receipt of information in the post-enrolment verification rolls, to have unsatisfactory character or antecedents, shall be liable to be discharged as "Service No Longer Required". Each case shall be referred to the Chief of the Naval Staff for orders.

267.

Enrolment of former Government employees.

- Former employees of the Central or State Governments who have been dismissed or removed from service shall not be entered in the Navy.

268.

Engagements.

(1)

Boys, Artificer Apprentices and Direct Entry sailors shall be enrolled for Continuous Service as provided in sub-regulation (1) of regulation 269.

(2)

Re-enrolment of Continuous Service sailors shall be as provided in sub-regulation (3).

(3)

(a)

Except as provided in Regulation 270, Continuous Service men who, after completing the period of their initial Continuous Service enrolment, volunteer and are permitted to continue to serve, shall, subject to the provisions of Regulation 269(2), be re-enrolled by the Captain Naval Barracks, for a period not exceeding that required to complete the service necessary to qualify for the minimum pension. In exceptional cases, however, where the exigencies of the Service so warrant, the prior sanction of the Chief of the Naval Staff may be obtained instead for the re-enrolment of the sailor for a period not exceeding 8 years.

(aa)

[Re-enrolment of sailors who have been [promoted]

[Inserted by S.R.O. 309, dated 17th October, 1969]

to the [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

of Master Chief Petty Officers Class I and Class II shall be permissible upto 30 years of service in spells not exceeding five years at a time with the previous approval of the Chief of the Naval Staff. The total period of engagement shall not normally exceed 30 years. The Chief of the Naval Staff may at his discretion, grant extensions of engagement beyond 30 years upto a maximum of five years at a time until the prescribed age of compulsory retirement.]

(b)

Re-enrolment after completing the necessary qualifying service for minimum pension, shall normally be allowed for a period not exceeding 2 years at a time, subject to the proviso in Explanation (ii). Such re-enrolment for the first spell of 2 years shall be made by the Captain Naval Barracks, Bombay, but further re-enrolment of two years at a time may be made by the Captain Naval Barracks with the prior approval of the Chief of the Naval Staff. In cases, however, where

the exigencies of Service so warrant, re-enrolment on completion of the necessary qualifying service for minimum pension for a period not exceeding 5 years at a time may be made, subject to the proviso in Explanation (ii), by the Captain Naval Barracks, with the prior approval of the Chief of the Naval Staff.

(c)

Captains or Captain Naval Barracks are or is to forward their or his recommendations to the Captain Naval Barracks or the Chief of the Naval Staff, as the case may be, for re-enrolment of a sailor or his discharge to shore, not later than six months before the expiry of a sailor's current period of enrolment or re-enrolment. The exigencies of the Service permitting, the annual leave or accumulated annual leave to which he may be entitled shall be granted to a sailor in all cases of discharge, as distinct from dismissal, whatever may be the kind of discharge, subject to the proviso that his period of service shall not be extended for that purpose without the previous sanction of the Government except as provided in Regulation 270.

(d)

Even after orders have been passed for the discharge of a sailor, he may, if he has not previously volunteered, volunteer to re-enrol. In such cases, provided the re-enrolment can be effected before the expiry of his current period of enrolment or re-enrolment, and provided he satisfies the requirements of Regulation 269(2), he may be re-enrolled in accordance with cl. (a) or cl. (b).

Explanation (i). - Cases requiring approval of the Chief of the Naval Staff shall not be submitted unless further retention of the sailor concerned is specially desirable in the interests of the Service.

Explanation (ii). - No sailor shall be permitted to serve for more than the qualifying Service required for earning the maximum pension of his confirmed rate except as provided in Regulation 270 and Explanation (iii).

[Explanation (iii). - The Chief of the Naval Staff may sanction further extension of service for a period not exceeding three years at a time to a restricted number of sailors who have put in service for the period entitling them for maximum pension, subject to the following conditions, namely:

(a)

the individual satisfies the requirements of sub-regulation (2) of regulation 269;

(b)

the extension is certified to be in the interest of service; and

(c)

the extension is not beyond the age of compulsory retirement provided in regulation 287.]

(4)

Notwithstanding anything contained in these regulations, the Chief of the Naval Staff may, at any time, without assigning any reason, discharge a sailor from Service.

(5)

In all cases where the prior approval of the Chief of the Naval Staff is to be obtained for re-enrolment, applications for the requisite permission to re-enrol shall be made sufficiently before the expiry of the period of existing engagement in order that the decision arrived at may be received before completion of time.

(6)

The enrolment and re-enrolment form: of sailors must never be so worded that the enrolment or re-enrolment appears to commence at a date later than the date of their being signed.

(7)

Enrolment, Leave, and the like, of Sailors. - The Chief of the Naval Staff may delegate to the Captain, Naval Barracks, Bombay, the power to engage and [transfer]

[Substituted by S.R.O. 361, dated 10th November, 1975]

enrolled sailors to grant them prize money and medals.

269.

Continuous Service.

- [(1)]

[Substituted by S.R.O. 106, dated 28th March, 1978]

Old [Entrants]

[Substituted by S.R.O. 106, dated 28th March, 1978]

Boys, Artificer Apprentices and Direct Entry sailors may be enrolled for a period calculated to permit a period of 10

years' service to be completed from the date of attaining 17 years of age or from the date of being [ranked]
[Substituted by S.R.O. 150, dated 10th September, 1973]
in the Man is [ranked]

[Substituted by S.R.O. 150, dated 10th September, 1973]

on successful completion of initial training, whichever is later, provided their services are so long required.

Continuous Service sailors of all Branches shall be liable, if required, for a further 10 years' service in the Indian Fleet Reserve, subject to the provisions of the Regulations for the Indian Fleet Reserve.

(1A)

[New Entrants. - (a) Boys, [***]

[Substituted by S.R.O. 106, dated 28th March, 1978]

and Direct Entry sailors may be enrolled for a period calculated to permit a period of 15 years' service to be completed from the date of enrolment or from the date of attaining the age of 17 years, whichever is later, provided their services are so long required.]

[Substituted by S.R.O. 201]

(aa)

[Artificer Apprentices and Direct Entry (Diploma holders) Artificers may be enrolled for a period of 26 years to be completed from the date of enrolment or from the date of attaining the age of 17 years whichever is later, provided their services are so long required."]

[Omitted Inserted & Substituted by S.R.O. 363, dated 28th December, 1988]

(b)

All new entrants with 15 years' or 20 years' initial engagement, as the case may be, are to sign a declaration that they shall be liable to resign a declaration that they shall be liable to recall to active service after release upto two years in case of Non-Artificers and three years in case of Artificers":

Provided that during the said period they shall not be required to undergo refresher training or be entitled to any retaining fee, but when recalled they shall be entitled to normal pay and allowances :

Provided further that if recalled they shall be liable to serve for so long as their services are required :

Provided also that sailors released prematurely from service at their own request shall also be liable to active service upto the period stated above.

(1B)

(a)

In case of the existing sailors, their period of engagement shall be governed by sub-regulation (1), except that they shall not be transferred to Fleet Reserve.

(b)

The Existing Fleet Reservists shall not be required to undergo refresher training but shall be entitled to the retraining fee till they are wasted out.

(1C)

Persons joining service on or after 3rd July, 1976 shall be deemed the New Entrants.

(2)

No sailor shall be re-enrolled unless he fulfills the following conditions

(a)

Out of the three annual assessments immediately preceding re-enrolment, he must have had at least two assessments of character and efficiency not below 'VG' and 'Sat', respectively.

(b)

Must be recommended by his Captain as in all respects suitable to continue in Service.

(c)

Must have been declared medically fit for satisfactorily carrying out the duties required of him.

270.

Period of Compulsory Service.

- The period for which a sailor can be compelled to serve shall be reckoned from the date on which his enrolled period commenced without regard to any break in its continuity that may have been occasioned by desertion, invaliding, imprisonment or any other cause.

271.

Probationary Period.

- All service rendered as a Boy or Artificer Apprentice is on probation. Direct Entry sailors shall be on probation for the first two years of service [except in the case of Sick-Berth, Cooks (O) & (S). Steward and Topass Branches where the period is of one year only.]

Re Entry

272.

Re-entry.

(1)

No sailor shall be re-entered after a break in service without the prior approval of the Captain Naval Barracks, who may approve applications for re-entry, provided the individual is considered to be suitable in all respects for performing the duties of the [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

in which he is being re-entered. Any application that is required to be submitted to the Chief of the Naval Staff is to be accompanied by the recommendation of the Captain Naval Barracks.

(2)

Except with the prior approval of the Chief of the Naval Staff, no sailor with a break in service of more than 3 years (more than 5 years in the case of Fleet Reservists) shall be re-entered.

(3)

Except with the prior approval of the Chief of the Naval Staff, no man shall be permitted to re-enter unless he can complete time for pension (reckoning former service where permitted) before attaining the upper age limit prescribed for superannuation. The upper age limit for superannuation in each case shall be the age prescribed for the [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

in which the man is re-entered or to which he may be advanced by day-by-day advancement immediately after re-entry.

(4)

Sailors who have been invalided shall not be re-entered without the sanction of the Government. A full medical report shall be forwarded for consideration. All men invalided from the service whose re-entry is approved shall produce their invaliding or pension, certificate at the time of re-entry in order that their cases may be fully known.

(5)

Sailors discharged on compassionate grounds may be permitted to re-enter only exceptionally and with the approval of the Chief of the Naval Staff.

(6)

(a)

Ex-Servicemen re-entering after having been absent from the service for more than 3 years (more than 5 years in the case of Reservists) shall not be permitted to count their previous service and shall be treated as new entrants. Sailors re-entering within 3 years (5 years in the case of Reservists) will count their previous qualifying service for all purposes.

(b)

On re-entry Ex-Servicemen shall be required to sign a fresh engagement either to complete time for pension or to serve for a period of 10 years or up to the age of superannuation of the rate in which re-entered, whichever is least.

(7)

[(a) Sailors, who are allowed to count their previous service, shall be re-entered as follows:]

[Substituted by S.R.O. 152, dated 10th September, 1973]

Seaman

Class II or equivalent rank and below

Seaman

Class II or equivalent

Seaman

Class I and above of all branches other than the Regulating Branch

Seaman

Class I or equivalent of all Branches other than Regulating

Branch.

Leading

rank and above of the Regulating Branch

Leading

Patrol-man

Mechanician

4th Class and above

Machanician

4th Class

Artificer

4th Class and above

Artificer

4th Class

Artificer

5th Class

Artificer

5th Class

Acting

Artificer 4th Class

Acting

Artificer 4th Class

(b)

Sailors re-entering in a lower '[rank]' than that held at the time of discharge from service are to be advanced day-by-day in successive stages till they attain the '[rank]' held by them at the time of discharge.

(c)

Sailors re-entering in a different branch from that in which they previously served shall be re-entered in the lowest grade of that branch in which sailors are normally entered.

(8)

All Ex-Servicemen reporting for re-entry are to be victualled and accommodated in Naval Establishments for a period not exceeding two weeks while awaiting final selection or rejection.

(9)

Railway warrants shall be issued to Ex-Servicemen called to an establishment for selection for re-entry. In case of those who have to travel between places not connected by railway, travelling expenses by the shortest route in lieu of railway warrants will be given. Sailors who may subsequently be rejected will similarly be granted railway warrants or travelling expenses in lieu, as the case may be, for their return journey.

(10)

All sailors shall be medically examined before re-entry into the Navy, to ensure that they conform to the prescribed medical standards.

(11)

On re-entry, the re-entrant shall be required to refund any gratuity other than War Gratuity, received in respect of his former service within a period of 3 years from the date of his re-entry in not more than 36 monthly instalments from his pay. The first instalment shall be payable within three months from the date of re-entry.

(12)

The Controller of Defence Accounts (Navy) shall be informed after an Ex-servicemen is re-entered and an audit report shall be obtained on the previous service of the sailor before such service is accepted.

(13)

(a)

Sailors in receipt of ordinary pensions shall be liable for service in the Indian Navy Fleet Reserve, if required to join that reserve, and they may not be re-entered for active service other than under the Regulations for the Indian Fleet Reserve. Sailors in receipt of disability pensions shall not be re-entered. Exceptional cases in which it is desired to re-enter pensioner shall be submitted to the Government for approval.

(b)

The undermentioned categories of ex-sailors shall not be re-entered:

(i)

Those discharged unsuitable.

(ii)

Those discharged as "Service No Longer Required", provided that those discharged "Service No Longer Required" under Regulation 268 consequent on reduction of authorised establishment may be re-entered in accordance with the above provisions.

(iii)

Those dismissed from the Naval Service.

Section III. - Transfer Between Branches

273.

Transfer of men from one Branch to another.

(1)

Transfer from one Branch to another may be allowed only subject to the approval of the Chief of the Naval Staff, who will, however, not consider such applications unless :

(a)

there are vacancies in the branch to which transfer is desired, and the training of the applicant for the new branch can be arranged;

(b)

the applicant is recommended by his Captain and possesses the prescribed educational qualifications and medical standard for the new [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

, and

(c)

the transfer is otherwise in the interest of the Service.

(2)

All candidates for entry in the Indian Navy shall be required to sign an acknowledgement that they have not been induced to enter by the prospect of being transferred to another f[rank] at their own request. No application for transfer shall be entertained if made on the ground of such alleged inducement.

(3)

All applications submitted to the Chief of the Naval Staff under these regulations must be accompanied by the sailor's Service Documents.

(4)

Applications from sailors for transfer from one [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

to another shall be submitted through proper channels to the Captain Naval Barracks for onward transmission to the Chief of the Naval Staff. Applications shall be forwarded only when the man concerned is considered to possess particular aptitude for the new [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

or where there are exceptional circumstances known to his Captain, and in any case the transfer must be recommended as being clearly in the interests of the Service and of the man. The final decision shall depend upon the requirements of the Service in the branches to which transfer is desired.

(5)

Where necessary, the Chief of the Naval Staff shall issue instructions for the man to undergo a course of trial in the proposed new branch, the nature and duration of which shall be as directed by the Chief of the Naval Staff. Based on the results of the course and the other conditions in sub-regulation (4) being fulfilled, a final decision shall be conveyed by the Chief of the Naval Staff. Transfer shall generally be to the lowest [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

in which men are normally entered in the new branch but this may be relaxed at the discretion of the Chief of the Naval Staff. If transferred in equivalent [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

(but above O.D. [rank])

[Substituted by S.R.O. 192, dated 10th September, 1973]

the effective date of transfer shall be the date of commencement of the Conversion Course. The effective date of transfer if in O.D. [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

shall be the basic date of training of the batch with which a transferee is conjoined.

(6)

The Captain Naval Barracks, on recommendation from the Captain, Training Establishment, may grant reasonable requests from sailors to transfer from one branch to another while undergoing the New Entry Course. If found unsuitable during the New Entry Course, men may be transferred to another branch at the discretion of the Captain, Naval Barracks.

(7)

When transfer is necessary due to medical reasons (that is to say, a voluntary transfer as an alternative to invaliding, or where there is clearly a prospect of invaliding) sailors may normally be transferred subject to the above provisions in the equivalent [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

with seniority counting from the date of transfer, except that ordinary [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

shall retain existing seniority.

Section IV. - Discharges

274.

Discharges in India.

(1)

Except with the prior concurrence of the Captain Naval Barracks to the contrary, the discharge of all sailors on the expiration of their engagements shall be effected through the Naval Barracks at Bombay.

(2)

Ships and establishments shall ensure that sailors sent for discharge are accompanied by their Service Documents.

275.

Hospital patients due for discharge.

(1)

Any sailor who is under treatment in a hospital, for any disease other than Tuberculosis on the day he is due for discharge or release from the Service on completion of his engagement, shall be brought before a medical board and released on the due date. This board shall record the clinical condition of the individual, assess the percentage of disablement and express an opinion regarding attributability or aggravation of the disability. The medical board shall, however, assess the percentage of disablement of the individual for a period of six months.

(2)

The sailor concerned shall then continue to be given free medical treatment until medical or surgical finality is reached and he is fit for discharge from the hospital. Before final discharge from the hospital, he shall again be brought before a resurvey medical board which will record its findings on the clinical condition of the individual and assess the percentage of disablement at that time.

276.

Discharge overseas.

- Where a sailor is serving overseas at the time he becomes entitled to be discharged and he desires to be discharged overseas, his case shall be referred to the Chief of the Naval Staff for orders. The request to be discharged overseas shall be made at least six months before the due date.

277.

When discharged under 18 years of age.

- When a sailor under 18 years of age is discharged from the Service, the Commanding Officer of the ship or establishment from which he is discharged shall inform his parent or guardian of the date of discharge and the cause of discharge.

278.

Unsuitable, Incompetent or Undesirable Sailors.

(1)

If the Commanding Officer finds that any sailor of the ship's company is unable, either through mental or physical incapacity or through incompetence, to perform the duties of the lowest [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

in his branch to which he can be [reduced in rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

, or if the retention of any sailor is considered undesirable on grounds of conduct or character, he shall take the appropriate course among the following:

(a)

If the sailor volunteers for some other [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

the duties of which he is considered competent to perform, application for transfer is to be made in accordance with Regulation 273. When sailors, who are serving in a different branch from that in which they were entered, are found unsuitable for the duties of the lowest [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

to which they can be reverted in their present branch, application may be made for compulsory reversion to their original branch.

(b)

Full particulars accompanied by the sailor's service documents shall be forwarded to the Captain Naval Barracks through the Administrative Authority, for transmission to the Chief of the Naval Staff, should he think fit, with a recommendation for discharge as 'Unsuitable'.

(c)

Any sailor whose efficiency, physical condition or value to the Service becomes materially impaired may be recommended for discharge under this clause.

(2)

In all cases of recommendations for discharge of sailors as 'Unsuitable' on grounds of professional incompetence, Captains shall establish clearly the fact that the sailor recommended for discharge has been given suitable warning and opportunity to improve. Evidence to this effect shall accompany the recommendation.

(3)

Discharge 'Unsuitable' shall not be looked upon as a punishment, nor shall it be recommended for men who can properly be dealt with by a medical survey.

(4)

Any Boy, Artificer Apprentice or Man, during probationary service, shall be liable to be discharged as 'Unsuitable' under orders of the authorities herein stated, if his progress or conduct is unsatisfactory.

(a)

Boys at the Naval Training Establishments-by the Captain of the Training Establishment. In the case of Boys afloat, by the Captain Naval Barracks on the recommendation of the Captain of the ship in which the boy is borne.

(b)

Artificer Apprentices-by the Captain of the Training Establishment concerned, unless he can be absorbed in any other branch.

(c)

Direct Entry Sailors-by the Captain of the Training Establishment concerned during the period of training and thereafter by the Captain Naval Barracks.

279.

Discharge "S.N.L.R."

(1)

Discharge S.N.L.R. (Service no longer required) shall not be considered as a punishment but only as the appropriate method of dispensing with the services of a man:

(a)

who is surplus to requirements,

(b)

whose retention would be to the detriment of the Service but who has not recently committed a specific offence for which dismissal would be an appropriate punishment in addition to any other sentence awarded.

(c)

on whom an adverse report has been forwarded in the post-enrolment verification report.

(2)

Subject to the provisions of sub-regulation (1), if the retention of any sailor is considered undesirable on grounds of conduct or character, a report, accompanied by his Service Documents, shall be forwarded to the Administrative Authority, with a recommendation that the man be discharged 'Service No Longer Required'.

(3)

In all cases of recommendations for discharge of sailors as 'Service No Longer Required' except those who are to be discharged as being surplus to requirements, Captains shall establish clearly the fact that the sailor recommended for discharge has been given suitable warning and opportunity to improve. Evidence to this effect shall accompany the recommendation. In exceptional cases, when in the opinion of the Captain, the retention of a sailor is clearly undesirable, a recommendation may be forwarded and discharge may be approved although the sailor has not previously been warned.

(4)

The Administrative Authority, if satisfied that discharge 'Service No Longer Required' is appropriate, shall forward the application to the Chief of the Naval Staff through Captain Naval Barracks with his recommendation. It is essential. The man's Service Documents completed up-to-date shall accompany the application for discharge.

(5)

Abroad, sailors recommended for discharge 'Service No Longer Required' shall not be sent home until the approval of the Chief of the Naval Staff for discharge has been received. If in the interim, the man is transferred to another ship, the Service Document sent with the man shall be annotated to the effect that an application for his discharge has been made and a copy of the application shall accompany his papers.

280.

Discharge on compassionate grounds.

(1)

Sailors may, in exceptional cases, obtain their discharges in India on extreme compassionate grounds, that is to say, in cases in which it is clear that undoubted material hardship to the sailor or dependents is involved by his retention in the Service.

(2)

Discharge shall not be claimed as a right, however, and nothing in these regulations shall interfere with the power of the Government to suspend discharge on compassionate grounds or to refuse discharge in particular case.

(3)

Applications submitted other than by the serving individual shall not be considered, and the applicant informed accordingly. Service sailors in respect of whom an application is approved, wishing not to be discharged subsequently, shall be required to furnish a signed statement to this effect.

(4)

Applications for discharge on compassionate grounds shall be forwarded by the Commanding Officer through the Administrative Authority to the Captain Naval Barracks for transmission to the Chief of the Naval Staff. They shall be scrutinised and if the grounds appear to be reasonable reference shall be made by the Chief of the Naval Staff to the Deputy Commissioner or Collector of the district concerned for verification of the circumstances stated therein and for an opinion as to whether or not the application for discharge is justifiable.

(5)

Applications that have been subjected to investigation, and have received the recommendations of the civil authorities, shall be submitted to the Chief of the Naval Staff, who shall be the competent authority to determine whether or not the application for discharge on compassionate grounds is to be granted. Personnel whose request for premature discharge from service under such circumstances is granted by the Chief of the Naval Staff, shall, if required, be liable to serve for the unexpired portion of their original service engagement in the Fleet Reserve in addition to the period for which they

are normally required to serve in the Fleet Reserve under the terms of their original engagement. If the sailor is required for Reserve Service, the order granting the discharge shall clearly specify in each case :

(a)

that the discharge is restricted to his obligation to render service for the unexpired portion of such engagement, and

(b)

that he will be required to serve in the Fleet Reserve for-

(i)

the unexpired portion of the service engagement;

(ii)

and for the full period of his original Reserve Service engagement thereafter.

If he is not required for Reserve Service, the order granting the discharge shall so specify. A declaration in writing according to the above conditions shall be obtained from him prior to his actual discharge from service.

281.

Authorities empowered to authorise discharge.

- The authority mentioned in column 2 of the table appended below shall be the competent authority to authorise discharge from the service of sailors on the grounds stated in the corresponding entry in column 1 thereof.

Any power conferred by this regulation on any of the aforesaid authorities shall also be exercised by any other authority superior to it.

TABLE

Grounds

of Discharge

Competent

Authority to authorise Discharge

Manner

of Discharge

1

2

3

1.

On fulfilment of the conditions of his enrolment or having reached the stage at which discharge may be enforced.

Captain

Naval Barracks.

II.

On completion of the period of active service engagement or re-engagement, when the sailor is not eligible under the Fleet Reserve Regulations or is not required under the order of the Chief of the Naval Staff, to be transferred to the Fleet Reserve.

Captain

Naval Barracks

III.

Having been found medically unfit for further service.

Captain

Naval Barracks.

To

be carried out only on the recommendation of an Invaliding Board.

IV

Discharge at his own request before fulfilling the conditions of his enrolment.

Captain

Naval Barracks

With

the prior approval an the Chief of the Naval Staff.

V

Discharge as unsuitable or Service No Longer Required.

Captain

Naval Barracks

With

the prior approval the Chief of the Naval Staff.

VI.

Discharge 'Dead',

Captain

Naval Barracks

VII.

Discharge during the period of probation.

(a)

Boys and Artificers in training establishments - By the Captain of the training establishment concerned.

(b)Boys

at sea-By the Captain Naval Barracks on the recommendation of the Captain of the ship in which the boy is borne.

(c)

Direct entry sailors-By the Captain of the training establishment concerned during the period of training and thereafter by the Captain Naval Barracks.

VIII.

"Fraudulent Entry".

By

the Captain of the ship or establishment in which the sailor is borne.

With

the prior approval of the Chief of the Naval Staff if the discharge of such sailors is to be effected after a period of 3 months from the date of enrolment of sailor concerned.

Section V - Training-General

282.

New entries.

- The usages of the lower deck, the customs and routine of the Service, discipline, and the pay, pensions and badges to which sailors are entitled, shall be explained to all new entries. They shall be instructed to apply to the officer of their division should they require advice or information, and that they are responsible to him for the condition of their kits.

283.

Physical training.

(1)

Physical training shall be carried out by all except those who are exempted by the competent authority on grounds of age or physical unfitness. It shall be conducted in accordance with the instructions set forth in the Handbooks of Physical Training in force, by a Physical Training Instructor under the supervision of an officer, who shall be selected by the Captain.

(2)

Captains shall hold Divisional Officers and Petty Officers responsible for the physical efficiency and smartness of the men of their divisions. All officers shall make themselves familiar with the system of physical training laid down in the

Handbooks.

284.

Swimming.

(1)

Regular swimming classes shall be held in the training establishments. All boys and newly entered men shall be encouraged to learn swimming and to pass the Standard Test (which is a compulsory qualification for [Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

to Leading [Seaman]

[Substituted by S.R.O. 192, dated 10th August, 1973]

, Acting Artificer 4th class in the case of Artificers) before leaving the training establishments.

(2)

In all ships, instruction in swimming shall be given under proper supervision whenever suitable opportunity arises.

(3)

There are two tests of ability to swim, namely,

"Provisional Test"-To be carried out in a swimming bath, shallow water or suitable swimming pool.

"Standard Test"-To be carried out in the open sea.

Passing of any of these tests will be accepted as a "Pass" for 2[Promotion] purposes. In each case, the test consists of swimming 50 yards in a duck suit and remaining afloat thereafter for these minutes.

(4)

Qualifications in both tests shall be awarded as follows :-

"Fair"-Meaning the man only just managed to pass and should be given more practice.

"Good"-Meaning an average swimmer.

"Very Good"-Meaning a strong swimmer.

"Cannot Swim"-and the date.

(5)

Notations in respect of sailors who have passed either the Standard or Provisional Swimming Test shall be made on page (1) of their service certificates as follows :

"P.P.T"-(Passed Provisional Test) followed by qualification.

"P.S.T"-(Passed Standard Test) followed by qualification.

(6)

Sailors who have passed the Provisional Test shall be put through the Standard Test in the sea, when opportunity occurs. Failure shall not entail any penalty as regards [Promotion]

[Substituted by S.R.O. 106, dated 28th March, 1978]

, but the sailor concerned shall be given further instruction and opportunity to pass the test in sea.

(7)

The tests shall be supervised by an officer, who shall furnish to the Captain of the ship or establishment concerned a list showing the results and qualifications obtained by each candidate.

(8)

Life saving should be taught to the more proficient, [Promoted]

[Substituted by S.R.O. 361, dated 10th November, 1975]

classes being held for this purpose as opportunity occurs.

(9)

A record of swimming instruction showing the number of sailors who have passed the swimming test since the last inspection and the number of non-swimmers remaining in the ship shall be produced at all inspections, and shall be examined and signed by the Inspecting Officer who shall satisfy himself that junior sailors who have not passed the test are receiving all possible instruction.

Section VI - Training Of Sailors

285.

Training ashore.

- All training and courses of instruction whether professional, technical or educational held in shore establishments for boys and men of all branches, and all examinations, shall be organised and carried out under the direct supervision of

the Captain of the establishment concerned. The training shall be carried out in accordance with prescribed orders.
286.

Training afloat.

- So far as possible, every sailor is to receive such continuous and systematic instruction as will prepare him for higher rate.

Section VII. - Ages of Compulsory Retirement

[287. Age of compulsory retirement of sailors.

[Substituted by S.R.O. 106, dated 28th March, 1978]

- The ages of compulsory retirement of sailors shall be given below :

(a)

Sailors of all ranks upto and including the Chief Petty Officers rank 50 years;

(b)

Master Chief Petty Officers Class I and Class II 55 years.]

288.

No sailor shall be retained in the service beyond the age limit prescribed in Regulation 287 except with the prior sanction of the Government. Service rendered after completing the time for maximum pension of his substantive [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

shall not entitle a sailor to any further increase in the rate of pension already earned.

Section VIII - Promotion from the Lower Deck to permanent Commissioned Rank in the Executive, Engineering, Electrical, Supply and Secretariat Branches

289.

Eligibility, etc.

(1)

The sailors mentioned below are eligible for consideration for promotion to Acting Sub-Lieutenants in the branches as indicated:

(a)

Executive Branch. - Sailors of the Seaman, Communication and Naval Airman Branches (other than sailors of the Naval Airman Branch who have been transferred to Aircraft Mechanician Branch).

(b)

Engineering Branch. - Engine-room Artificers, Mechanics, Ordnance Artificers, Shipwright Artificers, Aircraft Artificers and Aircraft Mechanics.

(c)

To Electrical Branch - Artificers, Mechanician and Non-Artificers sailors of the Electrical and Air Electrical Branches.]

(d)

Supply and Secretariat Branch. - Sailors of the Writer and Stokers Branches. Sailors of Cook and Steward Branches, who are considered suitable candidates for promotion to the commissioned rank, shall first be transferred to the Writer or Stores branch before Form C.W. 1 shown in Appendix VI can be started on them. The Chief of the Naval Staff is authorised to effect the transfer of such Cook or Steward sailors to the Writer or Stores branches in [ranks]

[Substituted by S.R.O. 192, dated 10th September, 1973]

, equivalent to those held in the Cook or Steward branch provided they are recommended and have passed either,

(i)

the Matriculation or equivalent examinations, or

(ii)

the Higher Educational Test as stipulated in sub-regulation(7).

(2)

Sailors shall be selected as potential candidates for commissioned rank, as early as possible in their service careers, and Form C.W. 1 started as a general rule, before they reach the age limits given below:

(a)

Executive Branch - 22 years.

(b)

Engineering Branch - 25 years of age in case of Artificers and 28 years of age in case of Mechanics.

(c)

[Electrical Branch-25 years of age in the case of Artificers, 26 years of age in the case of non-Artificers of Electrical and Air Electrical Branches and 28 years of age in case of Mechanics of Electrical and Air Electrical Branches.]

[Substituted by S.R.O. 271, dated 9th September, 1969]

(d)

Supply and Secretariat Branch - 24 years.

(3)

When Form C.W. 1 is started, the Chief of the Naval Staff and the Captain Naval Barracks (Drafting Office) Bombay, shall be informed. This form shall be in the personal charge of the Commanding Officer. Quarterly reports on Form C.W. 1a shown in Appendix VII on sailors so selected shall be rendered to the Captain Naval Barracks (Drafting Office) on 1st January, 1st April, 1st July and 1st October each year. One copy of Form C.W. 1a shall be retained as an enclosure to Form C.W. 1.

(4)

When a candidate is discharged from a ship or establishment, the Commanding Officer shall ensure that the Form C.W. 1 is forwarded, without delay, to the Commanding Officer of the candidate's next ship or establishment, a copy of the covering letter being forwarded to the Captain, Naval Barracks (Drafting Office). If the candidate's next ship or establishment is not known, the Form C.W. 1 shall be forwarded to the Captain Naval Barracks (Drafting Office) for re-direction.

(5)

If at any stage a candidate is considered to be unsuitable for commissioned rank, his Form C.W. 1 shall be marked across "CANCELLED" and retained in the Service Documents. The sailor concerned shall be informed of the reasons for his failure and the notation "Form C.W. 1 Cancelled" made on page 3 of his Service Certificate. A report shall also be made to the Chief of the Naval Staff with a copy to the Captain Naval Barracks (Drafting Office). Cancellation shall not prevent Form C.W. 1 from being re-started if a sailor is still eligible and recommended again at a later date. This however, shall not apply in the case of sailors whose Form C.W. 1 is "DESTROYED".

(6)

Candidates for promotion to the Engineering and Electrical Branches only shall pass the preliminary examination for Upper Yardmen of the respective branches, before they are eligible to appear before a Preliminary Selection Board. The examination shall normally be held in January each year and once passed, need not be taken again. If a sailor who has passed the Preliminary Examination for Upper Yardmen (E) or Upper Yardmen (L), fails to be selected for further training at any stage, he shall be regarded as qualified educationally for promotion to Branch List but shall be required to take the annual Preliminary Professional Examination in competition with all other candidates for promotion to that rank. The Preliminary Examination may be taken at any time after being [ranked]

[Substituted by S.R.O. 192, dated 10th August, 1973]

as follows :

(a)

Acting Artificer 4th Class, or Mechanician 4th Class for promotion in the Engineering Branch.

(b)

[Acting Electrical Artificer (Power)/(Radio)/(Air) /(Air Radio) 4th Class in the case of Artificers, Electrical Mechanics (Power) /(Radio) /(Air)/ (Air Radio) 4th Class in the case of Mechanics and Electrical Mechanic (Power)/(Radio)/(Air)/(Air Radio) 1st Class in the case of non-Artificer sailors for promotion in the Electrical and Air Electrical Branches.]

[Substituted by S.R.O. 271, dated 9th September, 1969]

(7)

Candidates for promotion in the Executive and Supply and Secretariat Branches, shall obtain a second class pass in the Higher Educational Test, all the subjects being taken at one and the same examination, before they are eligible to appear before a Preliminary Selection Board.

(8)

All candidates for commissioned rank, irrespective of their Branch, shall be [transferred]

[Substituted by S.R.O. 361, dated 10th November, 1975.]

at the earliest possible opportunity to sea-going ships where training and encouragement in the development of

officer-like qualities shall be given. For the Executive Branch candidates, preliminary seamanship instruction as well as training in the duties of Officer of the Watch at sea and in harbour shall also be arranged.

(9)

Sailors of the Communication Branch and Naval Airmen, who are selected as candidates, shall be employed in sea-going ships on duties of Seaman sailors for a probationary period of 6 months in order that their seaman-like qualities may be assessed. If found unsuitable during this period, they shall be reverted to their original duties. Beyond this period those Communication sailors and Naval Airmen found suitable shall remain candidates, and they shall continue to be borne on the strength of their parent branches. They shall also continue to be eligible for all service benefits such as increments in pay '[Promotion]', etc. in their own parent branches in the normal course, the time spent as candidates being taken into account as having been served in their original branches for these purposes.

(10)

On expiry of 6 months referred to in sub-regulation (9)

(a)

sailors proving unsatisfactory shall return to their original duties, and

(b)

sailors who prove to be satisfactory shall continue to perform duties as Seaman Branch sailors.

(11)

Candidates shall be eligible to appear before the Preliminary Selection Board provided they

(a)

are recommended by their Commanding Officer;

(b)

have served for at least 12 months in a sea-going ship;

(c)

have passed the Provisional Swimming Test (P.P.T.); and

(d)

are medically fit for promotion to commissioned rank.

(12)

In addition to satisfying the conditions mentioned in sub-regulation (11) candidates shall also fulfil the following conditions before they are eligible to appear before the Preliminary Selection Board :

(a)

In the case of Executive Branch candidates:-

(i)

they must have passed the Higher Educational Test;

(ii)

they must not be older than 23 years on the 30th June of the year in which the Preliminary Selection Board is held;

(iii)

Seaman sailors must have passed for Leading Seaman;

(iv)

Communication sailors and Naval Airmen must have been employed for six months on the duties of Seaman sailors under sub-regulation (9) have passed professionally for Able Seaman (but need not hold any specialist qualification) and have held the Able '[Ranks]' in their respective branches at least for a period of one year. If such sailors fail in the Preliminary Selection Board or at any stage of their training, they shall revert to their original duties but shall retain their [Rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

. In the case of sailors who have not yet qualified professionally for the Leading [Rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

, special facilities shall be made available to them to qualify for that [Rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

(b)

In the case of Engineering Branch candidates :

(i)

They must have passed the Preliminary Examination for Upper Yardmen (E);

(ii)

Engine Room/Aircraft/Aircraft (Weapon) /Ordnance /Shipwright Artificers must have held the [Rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

of Artificer 4th Class (acting and confirmed) for 18 months, and must not be older than 26 years on the 30th June of the year in which the Preliminary Selection Board is held;

(iii)

Mechanicians and Aircraft Mechanicians must have served at least 18 months after successfully completing the Mechanician's course, and must not be older than 29 years on the 30th June of the year in which the Preliminary Selection Board is held.

(c)

In the case of Electrical Branch candidates:

(i)

They must have passed the Preliminary Examination for Upper Yardmen (L);

(ii)

Artificers must have held the 2[rank] of Electrical Artificer (Power)/(Radio)/(Air)/(Air Radio) 4th class (acting and confirmed) for 18 months; and must not be older than 26 years of age on the 30th June of the year in which the Preliminary Selection Board is held;

(iii)

Non-Artificers must not be older than 27 years of age on the 30th June of the year in which the Preliminary Selection Board is held, have held the [Rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

of Leading Electrical Mechanic (Power)/(Radio)/(Air)/(Air Radio), and have passed professionally for the [Rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

of Petty Officer Electrician (Power)/(Radio)/(Air)/(Air Radio) (Provisionally or otherwise). If an Electrical Mechanic (Power)/(Radio)/(Air)/(Air Radio) 1st class is delayed on the roster for [Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and is still recommended on Form C.W. 1a, he shall be specially advanced to Acting Leading [Rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

from the date of passing the Preliminary Examination.

(iv)

[Electrical Mechanicians (Power)/(Radio)/(Air)/(Air Radio) must have served at least 18 months after successfully completing the Mechanicians Course and must not be older than 29 years on the 30th June of the year in which the Preliminary Selection Board is held.]

[Substituted by S.R.O. 271, dated 9th September, 1969.]

(d)

In the case of Supply and Secretariat Branch candidates :

(i)

They must have passed the Higher Educational Test;

(ii)

They must not be older than 25 years on the 30th June of the year in which the Preliminary Selection Board is held; and

(iii)

They must have passed professionally for Leading Writer/Leading Stores Assistant.

(13)

Preliminary Selection Boards shall be convened by the Chief of the Naval Staff, normally in April of each year. Service Documents with all enclosures. Forms C.W. 1, C.W. 1a and Divisional Officers' record sheet containing an up-to-date report on the candidate countersigned by the Captain, shall be sent to the President of the Preliminary Selection Board for scrutiny by members of the Board.

(14)

The names of candidates interviewed by the Preliminary Selection Board shall be placed in the order of estimated relative suitability for promotion to commissioned rank and indicated as follows:

(a)

A

Highly
suitable.

(b)

B

Suitable.

(c)

C

Suitable,
subject to anticipated development under training.

(d)

D

Unsuitable

The relative order of merit within each of the first three categories shall also be shown. The results of the Preliminary Selection Board shall be forwarded to the Chief of the Naval Staff.

(15)

Candidates who are classified 'Unsuitable' by a Preliminary Selection Board as well as candidates who have been classified A, B or C by the Preliminary Selection Board but are not subsequently selected for further training, may appear again before a subsequent Preliminary Selection Board provided they are still eligible and recommended. No candidate, however, shall be permitted to appear more than twice before a Preliminary Selection Board.

(16)

Writer or stores sailors transferred from Cook or Steward branches who fail in the Preliminary Selection Board or at any other stage of their training for commissioned rank shall be given the option of remaining in the Supply and Secretariat Branch, in which case they shall be governed by the normal regulations of that branch and shall be required to qualify in all respects for the [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

they hold. Alternately, they can revert to their original branches within 3 months of failure, in which case their service shall be regarded as unbroken.

(17)

Preliminary Course-Candidates selected by the Chief of the Naval Staff for further training shall be [transferred]

[Substituted by S.R.O. 361, dated 10th November, 1975]

to Indian Naval Ship VENDURUTHY where they shall undergo a preliminary course of 4 weeks duration.

The purpose of the Preliminary Course is to develop the personality, officer-like qualities and general abilities of the sailors. On completion of this course, candidates shall be required to appear before a Service Selection Board. On conclusion of the Services Selection Board, candidates shall be required to appear before the Final Selection Board.

(18)

The Final Selection Board shall be convened by the Chief of the Naval Staff. All particulars of the candidates including the results of the Services Selection Board shall be made available to the Final Selection Board, which shall report upon the suitability of the candidates for further training for commissioned rank. The Final Selection Board shall place candidates in one of the following categories and forward its recommendations to the Chief of the Naval Staff :

(a)

Successful. - The order of merit of candidates declared successful shall also be shown. Those selected for further training for commissioned rank shall enter their next stage of training as Upper Yardmen.

(b)

Deferred. - Candidates who are considered suitable but have not reached the required standard maybe deferred for a further specified period of training. Their Forms C.W. 1 shall be retained and marked 'Deferred' together with a statement of the length and type of training recommended. They shall not appear again before a Preliminary Selection Board but shall be required to attend the next Preliminary Course after the recommended period of training and appear before the Final Selection Board, provided they are still within the age limits. They shall not, however, appear again before the Services Selection Board.

(c)

Unsuccessful. - Candidates who are not considered suitable shall be reverted to General Service in their existing [rank]
[Substituted by S.R.O. 192, dated 10th September, 1973]

; and Forms C.W. 1 destroyed, and a notation made accordingly on page 3 of the Service Certificate.

(19)

The number of commissions that may be granted under this scheme shall be decided each year by the Government. The number of 'Successful' candidates who shall be selected to undergo further training for commissioned rank shall depend upon the number of vacancies available. The names of selected candidates shall be announced by the Chief of the Naval Staff. The remainder, if any, of the successful candidates shall be treated in exactly the same way as those marked 'Deferred'. No candidate shall be allowed to appear before the Final Selection Board more than twice.

(20)

Candidates who are selected for further training shall remain in I.N.S. VENDURUTHY and undergo the Upper Yardmen Course as follows:

(a)

Upper Yardmen (E) and (L).-3 months educational course followed by the first term of Upper Yardmen Course lasting approximately 15 weeks.

(b)

Upper Yardmen of the Executive and Supply and Secretariat Branches.-3 months educational course followed by a course of approximately 12 months (that is to say, 3 terms of 15 weeks each plus annual leave, and the like). The candidates of the Executive Branch selected to undergo the course shall be rated Acting Leading Seaman or equivalent while those of Supply and Secretariat Branch shall be [ranked]

[Substituted by S.R.O. 192, dated 10th September, 1973]

Acting Leading Writer or Acting Leading Stores Assistant, if not already holding these or higher [ranks]

[Substituted by S.R.O. 192, dated 10th September, 1973]

, from the first day of the month in which the course begins.

(c)

3 months educational course and the first term, which will be common for Upper Yardmen of all branches, is designed to afford facilities for Upper Yardmen to reach the educational standards required for Acting Sub-Lieutenants and at the same time to develop their power of command and to broaden their general outlook, so as to fit them to take their places as officers. The other two terms for the Executive Branch and the Supply and Secretariat Branch candidates are also designed to afford the same facilities including the professional standards required of acting Sub-Lieutenants.

(d)

While undergoing the course, Upper Yardmen shall receive increments of pay or [Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

to higher rate, and the like, for which they are eligible under the normal regulations, but no change in uniform shall be allowed during the course. Every Upper Yardman is, however, entitled to the free issue of two blue cap bands.

(e)

Upper Yardmen of all branches shall be messed in a separate mess by themselves but the food and mess traps are to be provided to them from the Wardroom Mess. If, however, it is not considered practicable or feasible to make separate messing arrangements for them, they shall be messed in the Wardroom Mess. The Wardroom Mess shall be re-imbursed by the Government at a flat rate of Rs. 3.50 np. per head per diem. The amount shall be payable on a contingent bill, subject to post audit, to the Commanding Officer of the ship or establishment who shall re-imburse the officers' Mess for the expenses incurred. Normal rations shall not be admissible to the Upper Yardmen for such periods as this allowance may be claimed.

(21)

The names of sailors who successfully complete the Upper Yardmen course shall be forwarded to the Chief of the Naval Staff for approval of their promotion to Acting Sub-Lieutenant. A report on the sailors finally selected shall be made to the Government by the Chief of the Naval Staff. With effect from the date that the Chief of the Naval Staff approves of their selection, successful sailors shall be appointed as Acting Sub-Lieutenants in their respective branches.

(22)

Upper Yardmen whose progress during the Upper Yardmen Course is unsatisfactory shall be brought before a

Permanent Naval Board at I.N.S. VENDURUTHY. This Board shall be convened by the Commodore-in-Charge, Cochin, under his chairmanship.

(23)

The Board may remove any Upper Yardmen who fail to make satisfactory progress in the course. Such sailors shall be reverted to the General Service in their existing [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

and their Form C.W. 1 destroyed and a notation made accordingly on page 3 of the Service Certificate. In the case of sailors of Communication and Naval Aviation Branches, the provisions of sub-regulation (12)(a)(iv) shall apply.

(24)

Upper Yardmen who fail in the examination at the end of the course shall similarly be brought before the Permanent Naval Board, which shall make recommendations to the Chief of the Naval Staff as to their future. The Board may also make the following recommendations :

(a)

In the case of Executive Branch Candidates. - The Board may recommend such candidates as qualified educationally for Branch List if considered suitable. Sailors so recommended shall be [ranked]

[Substituted by S.R.O. 192, dated 10th September, 1973]

Acting Petty Officer if not holding that or a higher [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

.

(b)

In the case of Engineering and Electrical Branch Candidates. - The Board shall make recommendations to the Chief of the Naval Staff as to their future. Non-Artificer Electrical sailors so recommended shall be [ranked]

[Substituted by S.R.O. 192, dated 10th September, 1973]

Acting Petty Officer Electrician (Power)/(Radio)/(Air)/(Air Radio) if not already holding that or a higher [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

(c)

In the case of Supply and Secretariat Branch Candidates. - The Board may recommend such candidates as qualified professionally for the [rank]

[Inserted by S.R.O. 222, dated 29th June, 1972]

of P.O. Writer or Stores Petty Officer. Sailors so recommended shall be [ranked]

[Substituted by S.R.O. 192, dated 10th September, 1973]

Acting Petty Officer Writer or Acting Stores Petty Officer if not already holding that or a higher [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

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(25)

The Form C. W.1 of candidates mentioned in sub-regulation (24) shall also be 'DESTROYED' and a notation made accordingly on page 3 of the Service Certificate.

(26)

The names of any Upper Yardmen who are withdraw from the course at any time owing to sickness shall be reported to the Chief of the Naval Staff who shall decide whether they are to be allowed to continue in the next course.

[SECTION VIII - A - Honorary Commissions in the Special Duties List to the Servig Master Chief Petty Officers Class I and II.

289A.

Eligibility etc.

(1)

Honorary commissions in the Special Duties List may be granted to Master Chief Petty Officers Class I and II, who are on active list and have rendered specially distinguished service. The awards may be anounced twice a year i.e. on the independence Day and the Republic Day. The total number of honorary commissioned officers on the active list of the Navy shall not however, exceed the number fixed by the Government from time to time.

(2)

Rank on Commission and promotion. - Master Chief Petty Officers Class I and II shall be commissioned in the rank of

Honorary Sub-Lieutenant (Special Duties). An honorary Sub-Lieutenant (Special Duties), if recommended, shall be eligible for promotion to the rank of Honorary Lieutenant (Special Duties).

(3)

Method of Promotion. - Recommendations shall be submitted by the Commanding Officers of the Ships or the Establishments to Naval Headquarters through normal channel. The names of suitable candidates recommended by the Chief of the Naval Staff for the grant of honorary commission in the rank of Sub-Lieutenant (Special Duties) or for promotion from the honorary rank of Sub-Lieutenant (Special Duties) to the honorary rank of Lieutenant (Special Duties) shall be submitted to the Government for approval.

(4)

Seniority and Command. - Honorary Commissioned Officers irrespective of their rank shall be placed in the order of their Master Chief Petty Officer I or II rate, below regular commissioned officers of the General and Special Duties Lists but above the Master Chief Petty Officers. The granted of honorary commission does not confer any additional power of command.

(5)

Borne in Master Chief Petty Officer Cadre. - These officers shall hold honorary commission against the sanctioned strength of the Master Chief Petty Officers Class I and II of their Branch. No increase in the cadre of Master Chief Petty Officer Class I and II shall be made in the place of Master Chief Petty Officers Class I and II granted honorary commission.

(6)

Retirement. - Retirement shall be regulated by the rules of engagement or re-engagement and superannuation applicable to such persons prior to the grant of honorary commission to them.

Section IX - "Good Conduct Badges"

290.

Award of Good Conduct Badge.

- Good Conduct Badge shall not be awarded or restored as a matter of course merely because a man has avoided serious punishments. If the Captain is satisfied that a man is fully qualified in accordance with regulations 291 to 293 and sub-regulation (1) of regulation 294 and is deserving of the award, a badge shall be conferred, when due, under provisions of this Section. The maximum number of badges that a sailor may earn during his service shall be three.

291.

Service qualification.

(1)

Before a sailor can be considered for the award of a Good Conduct Badge, he must have completed the following periods of qualifying service :

For

1st Good Conduct Badge

4

years

For

2nd Good Conduct Badge

8

years

For

3rd Good Conduct Badge

12

years

(2)

The whole service in the Indian Navy, including mobilised service of a reservist, shall be reckoned as qualifying service, with the following exceptions-

(a)

Time served before attaining the age of 17 years;

(b)

Time for which pay is not allowed for example, time lost through imprisonment, detention, cells, custody of civil power, waiting trial for desertion or time during which a man has been out of the Service for any cause;

(c)

Time in the second class for conduct;

(d)

Time prior to desertion unless the notation "R" (Run) or "R, Q" (Run Query) is removed;

(e)

Fleet Reserve Service including time under training as a Reservist;

(f)

Time before absence from the Service for the period referred to in Regulations 298(1) and 300(1)(a).

Explanation. - In reckoning service towards badges, care shall be taken that the same period of time forfeited is not deducted more than once; for example, under "cells" and second class for conduct.

292.

Conduct qualification.

- In addition to fulfilling the condition regarding the period of qualifying service laid down in sub-regulation (1) of Regulation 291 a man must also qualify by conduct before being considered for the award of a badge. The minimum requirement for the award of each badge is continuous "Very Good" conduct during the two years of reckonable service immediately preceding the award of the badge.

293.

Additional qualification for the award of the 2nd and the 3rd Good Conduct Badges.

- In addition to satisfying the conditions laid down in sub-regulation (1) of Regulation 291 a man must have been properly in continuous possession of the preceding badge (or badges) for the 12 months of actual service immediately prior to the award of the second or the third badge, as the case may be, except when badges are awarded consequent on removal of notation "R" by the Captain or when, after removal of "R" by the captain the sailor becomes eligible by service and conduct for the award of the second or the third badge within 12 months of the date of removal of "R".

294.

Captain's decision regarding award or deferment.

(1)

When the man has qualified for consideration in accordance with Regulations 291 to 293 the Captain shall consider the award of a badge whether the sailor applies for the same or not. If the Captain decides that the sailor has maintained the requisite standard of conduct and is in all respects deserving of a badge he shall award the badge with effect from the due date and record his decision in pencil on the man's service certificate, form IN. 285 -"Recommendation for [Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet" shown in Appendix IX. On receipt of Form I.N. 14, duly verified by the Captain Naval Barracks, the date of award as confirmed on Form I.N. 14 shall be recorded on the man's Service certificate in ink.

(2)

If after considering the award of a badge, the Captain decides that the sailor has clearly failed to reach the necessary standard (his decision shall operate as a break in the continuity of "Very Good" conduct) the Captain's decision not towards the badge shall be recorded on the man's Form I.N. 285 in the appropriate column, together with a new date of recommencement of "Very Good" conduct, that is to say, the day after the man qualified for consideration. This shall be entered in red ink and signed by the Captain.

(3)

In appropriate cases, however, instead of deciding not to award the badge the Captain may direct the sailor to appear before him again after a period of not less than three or more than six months. This decision should be noted on the form I.N. 285, and during this period the sailor shall not be [promoted]

[Substituted by S.R.O. 361, dated 10th November, 1975.]

in [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973.]

.

(4)

Should the Captain decide at the end of the period of deferment that the sailor's conduct during the two years preceding that date may now be considered to have reached the qualifying standard, the badge shall be awarded from the date of such final decision and the entry on the man's service certificate as well as on Form I.N. 14 underlined to indicate that the deferment was intentional.

(5)

If, however, at the end of the period of deferment, the Captain decides that the sailor's conduct is still below the requisite standard the continuity of his "Very Good" conduct shall be regarded as broken on the day he qualified for consideration of the award in the first instance. The fresh date of recommencement of "Very Good" conduct, that is to say, the day after the man qualified for consideration in the first instance, shall be entered in red ink in the appropriate column of the man's Recommendation for [promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet and signed by the Captain.

(6)

A sailor who has received one or more minor punishments not involving a break in the continuity of his "Very Good" Conduct during the two years immediately preceding the award may nevertheless be deemed worthy of a badge, if his general conduct and bearing are of the requisite standard. Conversely, although a sailor may not have been punished, the Captain might, in certain circumstances, consider him below the requisite standard.

(7)

Before a sailor is deprived of a Good Conduct Badge, the Captain must invariably ascertain whether he is due for the award of any badges, and if he is due, then the Captain should consider the award of the badges with reference to the sailor's conduct prior to the commission of the offence with which he has been charged. If the conduct of the sailor so merits, the Captain should award the Good Conduct Badge due. The question of deprivation of a badge or badges shall then be considered on the merits of the case.

295.

Finality of awards by the Captain.

- An award or restoration of a badge authorised by the Captain in accordance with this section (duly verified by the Captain, Naval Barracks) shall be regarded as final and shall not be altered without the prior approval of the Chief of the Naval Staff.

296.

Good Conduct Pay.

- The possession of Good Conduct Badge in accordance with the provisions of this section shall entitle a sailor to the Good Conduct Pay attached to the award(s).

297.

Errors in award of Badges.

- If a badge has been awarded or restored from an incorrect date, the qualifying period during which that badge must have been held before a further badge can be awarded or restored shall commence from the correct date from which the said preceding badge ought to have been awarded or restored. Overpayments, if any, made consequent on erroneous award shall not be recovered.

298.

Former Service.

(1)

Ex-Servicemen other than pensioners who are re-entered in the Navy within three years (five years in the case of Reservists) of their discharge, shall be permitted by the Captain, Naval Barracks, if the Audit Report of the Controller of Defence Accounts (Navy), so justifies,

(a)

to resume any Good Conduct Badges they held on discharge; and

(b)

to reckon towards the acquisition of Good Conduct Badges under Regulations 290 to 291(1) to their former qualifying service, including mobilised service in the case of Reservists, with the exceptions detailed in Regulations 291(2) to 293: Provided that Ex-Army and Ex-Indian Air Force men refund any bonus or gratuity which they may have received on, or since, their discharge from the Army, Army Reserve, Indian Air Force or Indian Air Force Reserve in not more than 36

monthly instalments from their pay commencing from the date of their enrolment in the Indian Navy.

[Provided further that in the case of an Ex-Servicemen other than a pensioner, who is an ex-sailor, no audit report as aforesaid shall be necessary.]

[Inserted by S.R.O. 5-E, dated 16th April, 1968]

(2)

In the case of Ex-Army and Ex-Indian Air Force men any service in the Army or Indian Air Force below the age of 17 years shall not count.

299.

Pensioners and Reservists.

(1)

Pensioners and Reservists when called up shall resume their position as regards badges, and receive pay for the latter without reference to the time which may have elapsed since they last served.

(2)

Should any Pensioner or Reservist not have been in possession of three Good Conduct Badges when pensioned or discharged to the Reserve, his previous service, as well as Active Service as a pensioner or reservist after recall shall be allowed to reckon towards further badges.

300.

Sailors to be treated as new entrants.

(1)

Sailors in the following categories shall be considered in respect of the award of badges as fresh entries from the date of their return to the Service :-

(a)

Sailors who rejoin after an absence of three years (5 years in the case of Reservists), except as provided in sub-regulation (1) of regulation 299;

(b)

Recovered deserters, unless the 'R.' or 'R.Q.' is removed.

(2)

On the notation 'R.' or 'R.Q.' being removed from the record of a recovered deserter or when service which has been forfeited for any cause is restored any badge or badges forfeited in consequence of desertion or forfeiture of service, and any further badges for which the sailor may be eligible under ordinary rules, may be granted from the date of the order for removal or for restoration of forfeited service.

301.

Restoration of Good Conduct Badges.

(1)

Restoration of good conduct badges may be considered when it becomes due whether the sailor prefers his claim or not, the procedure in sub-regulation (1) of regulation 294 for the award of a badge being observed.

(2)

One badge may be regained by six months "Very Good" conduct, and additional badges by further periods of six months, reckoned in each case, from the date of the preceding restoration. If, however, a sailor has been sentenced to deprivation a second time within three years of service after the first deprivation, the qualification shall be 12 months for the first restoration and six months for each subsequent restoration.

Time which does not count for purposes of award shall not be reckoned towards restoration of badges.

(3)

It shall be within the discretion of the Captain to delay the restoration of a badge if, at the time restoration would normally be due, a sailor has failed to reach the requisite standard of conduct. When restoration of a badge is delayed under this sub-regulation, the continuity of "Very Good" conduct shall be regarded as broken on the date on which the sailor completed six months or twelve months, "Very Good" conduct and a fresh period of qualification commences the following day. This procedure may be repeated until the required standard of conduct is attained. The fact that the restoration of a badge has been delayed shall be noted on the sailor's Recommendations for '[promotion]' and Conduct Record Sheet.

(4)

When a badge is restored after the normal date, the notation of restoration on the Service Certificate shall be underlined to indicate that the restoration has been advisedly delayed.

Section X. - Long service and good conduct medal with or without gratuity

302.

Scale of Awards per annum.

- The Chief of the Naval Staff may sanction the grant of Long Service and Good Conduct Medal with or without gratuity to sailors of the Indian Navy. The number of medals to be awarded annually shall not exceed the maximum determined at the scale given below calculated to the nearest whole number :

(a)

Long Service and Good Conduct Medal with Gratuity. - 2 for every 900 men of the sanctioned strength as on 31st December of the year for which the medals are to be awarded.

(b)

Long Service and Good Conduct Medal without Gratuity. - One for every 900 men of the sanctioned strength as on 31st December of the year for which the medals are to be awarded.

303.

Gratuity.

- The award of the medal with gratuity will carry with it a gratuity of [Rs.100]

[Substituted by S.R.o. 56, dated 6th February, 1967]

. If an awardee dies before he could receive the gratuity, it shall be paid to his estate.

304.

Conditions for Award of the Medal with Gratuity.

(1)

For a sailor to be eligible for the award he must :

(a)

be a continuous service sailor of the rank of Petty Officer or below, excluding ordinary seamen and their equivalents in other branches,

(b)

have completed 15 years' pensionable service reckoned up to and for the 14th August of the year in which recommendations are submitted, the last 12 years of which carried a continuous "Very Good" character and with the previous character not inferior to "Good". Where character has been assessed on the sailor's Service Certificates "Good" on 31st December in any year, time reckoning for the Medal shall commence on the 1st January following,

(c)

be in possession of 3 Good Conduct Badges,

(d)

have been recommended for the award by the Captain on the sailor's Service Certificate for the 3 consecutive years immediately preceding his application,

(e)

be recommended by the Captain of the ship or establishment in which he is serving at the time of the application as in every respect deserving of the award.

(2)

Individuals who distinguish themselves in action after committing an offence which has rendered them ineligible for the award of the Medal, may be recommended for the award if otherwise qualified, at the discretion of the Captain.

(3)

Conviction for desertion, or reduction to second class for conduct, shall disqualify a sailor from being eligible for the award throughout his service, except under sub-regulation (2).

305.

Conditions for Award of the Medal without Gratuity.

- The Medal without gratuity may be awarded to those who are eligible for but have not received the Medal with gratuity.

306.

Break in Service.

(1)

A break in service not exceeding 3 years (5 years in the case of reservists) if due to any cause other than desertion, imprisonment, or misconduct, shall not break the continuity of "VG." character or of recommendations for the Medal.

(2)

Ex-servicemen who re-enter shall be permitted to reckon their former service which counts for pension towards the award of the Medal.

307.

Annual Recommendations.

(1)

After a sailor has been awarded a "Very Good" character for the 9th year in succession in service counting towards the medal, the Captain shall consider whether the sailor is also deserving of the recommendation for the Medal.

(2)

If the sailor is considered deserving of the medal, the Captain when recording the award of the 10th successive "Very Good" character on the Service Certificate shall also record the recommendation in the appropriate column by the notation "R.M.G." (Recommended for Long Service and Good Conduct Medal with gratuity).

(3)

If the sailor is not considered deserving of the medal, the fact shall be recorded by drawing a line across the recommendation column of the Service Certificate. The reason for so doing shall also be fully recorded by the Captain on the sailor's Recommendation for [promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet.

(4)

Where a sailor's character remains "Very Good" and he is still recommended, a record as provided for in sub-regulation (2) shall similarly be made at each subsequent annual assessment until the medal is awarded.

(5)

The recommendation, or otherwise, of a sailor shall also be noted on his Recommendation for [promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet whenever he is transferred to another ship or establishment after he has become eligible for recommendation.

308.

Notation of the Award in Service Certificate.

- The award of the Medal with or without gratuity shall be noted on the Service Certificate. In order that the possession of the Medal may not be overlooked when consideration is being given to deprivation of a good conduct badge, the award of the medal shall be noted at the foot of the badge column in addition to the Medal Section of the Service Certificate.

309.

Presentation of Medal and Gratuity.

- When the Chief of the Naval Staff has sanctioned the award and the medal has been received in the ship or establishment, the medal should, if possible, be presented by the Captain, before the ship's company.

310.

Misconduct pending presentation.

(1)

If a sailor's conduct should not have been satisfactory after his name has been forwarded to the Captain, Naval Barracks (Drafting Office) with the recommendation for the award of the medal, the Captain Naval Barracks (Drafting Office) and Naval Headquarters shall be informed by signal.

(2)

In cases where the Chief of the Naval Staff has already awarded the Medal:

(a)

if the report indicates that misconduct, or punishment awarded for it, would have involved a loss of the medal or that deprivation would have been proposed had the medal been in the sailor's possession at the time of the punishment, the medal should be regarded as awarded and shall be deprived in accordance with prescribed orders.

(b)

in other cases the medal shall be presented and retained by the awardee, despite the intervening misconduct.

(3)

A sailor who has been deprived of a "Good Conduct Badge" shall not be entitled to have the medal presented to him until the badge is restored.

(4)

In all cases mentioned in sub-regulation (2) the awardee will be paid the gratuity, if attached to the award.

Section XI - Meritorious Service Medal

311.

Scale of Awards per annum.

(1)

The Chief of the Naval Staff may sanction the award of Meritorious Service Medal, with annuity to men of the Indian Navy. The number of awards authorised in the Service shall be determined at the scale of one for every 900 men of the sanctioned strength as on 31st December of the year for which the Meritorious Service Medals are to be awarded.

(2)

A vacancy shall be considered to have occurred on the death, dismissal, discharge or disrating of the awardee or his transfer to pension establishment or promotion to commissioned rank or on forfeiture of the medal involving immediate stoppage of the annuity to the individual, and awards may be made against the vacancies thus caused in the permanent quota.

312.

Pecuniary Benefits.

- The award of the medal shall carry with it an annuity of [Rs. 100]

[Substituted by S.R.O. 56, dated 6th February, 1967.]

admissible with effect from the 15th August of the year for which the award is made. On the death of the awardee, the amount due to date shall be paid to his estate, otherwise the annual grant shall be paid in arrears on the 1st of April. On his transfer to the pension establishment or promotion to commissioned rank and medal may be retained by the awardee but the annual grant of [Rs. 100]

[Substituted by S.R.O. 56, dated 6th February, 1967.]

attached thereto, shall be stopped, and shall not be resumed by the pensioner in the event of his re-entry in Service.

313.

Conditions for the Award.

(1)

For a sailor to be eligible for the award of the Medal he must:

(a)

hold the [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

of Chief Petty Officer or Petty Officer and their equivalents in any branch of the Indian Navy;

(b)

have completed 18 years pensionable service reckoned up to and for the 14th August of the year in which the recommendations are submitted, with a continuous record of "Very Good" character;

(c)

be in possession of 3 Good Conduct Badges;

(d)

have been recommended for the award by the Captain on the sailor's Service Certificate for the 3 consecutive years immediately preceding his application;

(e)

be recommended by the Captain of the ship or establishment in which he is serving at the time of the application as in every respect deserving of the award.

(2)

Individuals who distinguish themselves in action after committing an offence which has rendered them ineligible for the award of the Medal, may be recommended for the award if otherwise qualified, at the discretion of the Captain.

(3)

Conviction for desertion, or reduction to second class for conduct shall disqualify a sailor from being eligible for the award of the Medal throughout his service, except under sub-regulation (2).

314.

Break in Service.

(1)

A break in service not exceeding 3 years (5 years in the case of reservists) if due to any cause other than desertion, imprisonment or misconduct, shall not break the continuity of "V.G." character or of recommendations for the Medal.

(2)

Ex-servicemen who re-enter may be permitted to reckon their former service which counts for pension towards the award of the Medal.

315.

Annual Recommendations.

(1)

After a sailor has been awarded a "Very Good" character for the 15th year in succession in the service counting towards the medal, the Captain shall consider whether the sailor is also deserving of the recommendation for the award.

(2)

If a sailor is considered to be deserving of the Medal, the Captain when recording the award of the 16th successive "Very Good" character on the Service Certificate shall also record the recommendation on the sailor's Service Certificate in the appropriate column by the notation "R.M.M." (Recommended for Meritorious Service Medal).

(3)

If a sailor is not considered deserving of the Medal, the fact shall be recorded by drawing a line across the recommendation column on the Service Certificate. The reason for so doing shall also be fully recorded by the Captain on the man's Recommendation for [Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975.]

and Conduct Record Sheet.

(4)

Where a sailor's character remains "Very Good" and he is still recommended, a record as provided for in sub-regulation (2) shall similarly be made at each subsequent annual assessment of character until the medal is awarded.

(5)

The recommendation or otherwise, of a sailor shall also be noted on his Recommendation for [promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and Good Conduct Record Sheet whenever he is transferred to another ship or establishment after he has become eligible for recommendation.

316.

Notation of the Award in Service Certificate.

- The award of the Medal shall be noted in the Service Certificate. In order that the possession of the medal may not be overlooked when consideration is being given to deprivation of a Good Conduct Badge, the award of the medal shall be noted at the foot of the badge column in addition to the Medal Section of the Service Certificate.

317.

Presentation of the Medal.

- When the Chief of the Naval Staff has sanctioned the award and the medal has been received in the ship or establishment, the Medal should, if possible, be presented by the Captain before the ship's company.

318.

Misconduct pending presentation.

(1)

The provisions of regulation 310 shall apply to award of Meritorious Service Medal as they apply in relation to Long Service and Good Conduct Medal with or without gratuity.

(2)

The annuity attached to the award shall in any case be paid to the Awardee for the year to which the award relates, but shall not be admissible again until the medal is restored.

Section XII - Assessment of Character and "Very Good" Conduct

319.

Assessment of Character.

(1)

Sailors shall be assessed for character by the Commanding Officer under one of the following terms on the occasions prescribed in Regulation 326:

Very

Good, to be written

V.G.

Very

Good (Star) to be written

V.G

Good,

to be written

Good

Fair,

to be written

Fair

Indifferent,

to be written

Indifferent

Bad,

to be written

Bad

(2)

In assessing the character of a sailor, the Commanding Officer shall consult the Executive Officer and the officer of the sailor's division, as well as any other officer who may have special knowledge of the sailor. He shall fully consider all the entries against the sailor on his Record of Offences Sheet since the date of the last character assessment on his service certificate and his general character and efficiency, so that this duty, so important both to the sailor and to the Service, may be performed justly and with proper deliberation.

(3)

Where a sailor has been transferred from another ship, or has been embarked, since the immediately preceding 31st December, the Commanding Officer shall take into consideration the assessments made on the sailor's Recommendation for [promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet since that date.

(4)

Where a sailor has been temporarily transferred for any course and is to return to the parent ship, the assessment shall be made by the parent ship.

(5)

The actual character assessment to be given to any sailor shall be at the discretion of the Commanding Officer subject to the maximum assessments prescribed in Regulations 320 to 325 and to any inferior assessment already approved following conviction by the civil power. Any assessment which is below the maximum allowable, for example, "Good" when "V.G." or "V.G.*" is permissible or "Fair" when "Good" is permissible, shall be underlined by the Commanding Officer in order that there may be no question that the assessment has been made advisedly. When considering such discretionary assessments the Commanding Officer shall bear in mind that

(a)

any discretionary assessment involves a break in the continuity of the sailor's "Very Good" conduct and therefore has an adverse effect on the award or restoration of badges, and on [promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

(b)

a "Good" assessment unless awarded within the first three years of pensionable service shall render the sailor ineligible to be considered, on completion of time for minimum pension, for the award of the Long Service and Good Conduct Medal with or without gratuity;

(c)

a "Fair" or lower assessment shall render a sailor ineligible to be considered, for all time, for the award of the long service and good conduct medal with or without gratuity.

(6)

When assessing the character of a sailor who is in the second class for conduct on the immediately preceding 31st December and may be restored to the first class at the end of the first or second months, the Commanding Officer may award the highest character permissible, for example, "VG.*" if appropriate or "Good", but if restoration is deferred beyond the first or second months, the assessment must be altered to "Good" or "Fair" as the case may be. Such alterations shall be reported to the Captain, Naval Barracks.

(7)

If a sentence be quashed, the sentence originally awarded shall not affect the maximum character assessment for which the sailor is otherwise eligible.

(8)

If a sentence be reduced, the sailor shall be eligible for the maximum character assessment applicable to the reduced sentence.

(9)

If a sentence be suspended before a committal order is issued, the effect upon character entailed by the inflection of the suspended sentence shall also be regarded as suspended.

(10)

With the exceptions in sub-regulations (7) to (9) the maximum character assessment shall be governed by the sentence as awarded and shall not be affected by remission earned by the offender or granted by the Government, or by discharge of the offender from prison or detention under section 154.

(11)

A conviction by the civil power shall not be taken into consideration in the assessment of character, unless an inferior character was either specifically approved or was entailed by any other consequential naval penalty following conviction by the civil power.

320.

"V.G."

- "V.G." is the highest character assessment attainable even by the sailor whose behaviour has been exemplary throughout the year. It shall not, therefore, be awarded automatically to a sailor whose general behaviour has not been satisfactory, merely because he has avoided major punishments.

321.

"V.G."

(1)

The privilege of a "VG.*" character is granted in order that a sailor may not, by one slip, forfeit the rewards due to an otherwise unblemished record. The Commanding Officer may assess a sailor's character as "V.G.*" once during the sailor's career, notwithstanding that an assessment of "V.G." has been precluded by one of the following punishments:

(a)

in the first four years of sailor's time

(i)

Cells for a period not exceeding five days;

(ii)

reduction to the second class for conduct if restored at the end of one month; or,

(b)

by the following punishment at any time-Deprivation of one Good Conduct Badge.

(2)

This privilege shall not be allowed unless the Commanding Officer is entirely satisfied with the behaviour, conduct and work of the sailor for the year, apart from the offence which resulted in one of the punishments mentioned in

sub-regulation (1).

(3)

When an offender's sentence is suspended before committal, he has, having been convicted, made the one slip which the privilege of "V.G.*" is intended to cover, and consequently the character assessment of such a sailor for the year in which he has received a suspended sentence shall not be "VG.". The assessment may be "VG.*" subject to:

(a)

the provisions of the relevant Regulations regarding effect of suspension of sentences upon consequential penalties;

(b)

the provisions of sub-regulation (2) and sub-regulation (4);

(c)

the effect of any other punishment awarded during the year;

(d)

the award of "V.G.*" not being precluded by a previous award of "V.G."

A sailor with a previous assessment of "VG.*" or below, whose character is being assessed for a year in which he had received a suspended sentence, shall not receive a character higher than "Good".

(4)

Sailors who have previously received a character below "V.G." in man's time are not eligible for the concession, nor are sailors who have had an inferior assessment specially altered with the prior approval of the Chief of the Naval Staff to "V.G." unless the alteration followed automatically upon the cancellation of a punishment, and then only with the prior approval of the Chief of the Naval Staff.

(5)

"V.G.*" shall be regarded as equivalent to "V.G." for all purposes which entail consideration of character the asterisk being placed against the award to ensure that no sailor receives such special consideration more than once during his service.

(6)

"V.G.*" cannot be awarded as a discretionary assessment to a sailor whose general behaviour during the year is considered by the Commanding Officer not to warrant an assessment of "VG.".

322.

"Good".

(1)

Subject to the provisions of Regulation 321 for the award of "VG." a higher character than "Good" shall not be given to any sailor if during the period for which his character is being assessed he has been awarded any of the following punishments, namely :

(a)

[Reduced in rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

(b)

Deprived of one or more Good Conduct Badges or of the Long Service and Good Conduct Medal.

(c)

Sentenced to cells, detention or imprisonment or any two or more of these punishments for less than 22 days in the aggregate.

(d)

Reduced to 2nd class for conduct, provided he is restored within the first or second months from the date of reduction See Regulation 319(5)].

(2)

If a sailor has been awarded two or more of the above punishments during the year, it shall be open to the Commanding Officer to award an assessment lower than "Good" if he thinks fit. Such a lower assessment shall be underlined.

(3)

A higher character than "Good" shall not ordinarily be awarded to any sailor who is discharged from the service "Services no longer required".

323.

"Fair".

- A higher character than "Fair" shall not be given to any sailor if during the period for which his character is being assessed he has been sentenced to be punished in any of the following ways, namely :

- (a)
Reduced to the second class for conduct on one or more occasions for a period exceeding two months in the aggregate but not exceeding six months.
- (b)
Sentenced to cells, detention or imprisonment, or any two or more of these punishments, for 22 days or more in the aggregate but less than 61 days.
- (c)
Dismissed without disgrace or without any additional punishment that could affect his character.

324.

"Indifferent".

- A higher character than 'Indifferent' shall not be given to any sailor if during the period for which his character is being assessed he has been sentenced to be punished in any of the following ways, namely:

- (a)
Reduced to the second class for conduct on two or more occasions for a period exceeding six months in the aggregate.
- (b)
Sentenced to cells, detention or imprisonment, or any two or more of these punishments, for 61 days or more in the aggregate.

325.

"Bad".

- "Bad" character may be given only on discharge from the service to sailors who have been

- (a)
dismissed with disgrace;
- (b)
dismissed or discharged after conviction for particularly vicious offences;
- (c)
dismissed or discharged for misconduct after long records of previous misconduct with several earlier assessments of "Fair" or "Indifferent".

326.

Record of Character Assessment.

- (1)
The character of every sailor borne on the books of a ship shall be recorded on his service certificate by the Commanding Officer, who shall insert the entry in his own handwriting and write his signature on the same line as the character awarded, as follows :

- (a)
On 31st December in each year, except where sailors are waiting trial for desertion.
- (b)
On being marked "RUN", but not to be recorded until final discharge from ship's books unless the sailor is in desertion on 31st December of the year in which he is marked "RUN".
- (c)
On discharge from the Service, except where a sailor sentenced to imprisonment is to be discharged direct from the prison to civil life. In such circumstances, his character shall be assessed on the date he is discharged from ship's books.

- (2)
If a sailor dealt with under clause (b) or clause (c) of sub-regulation (1) rejoins the Service within the year, the assessed character awarded on 31st December shall cover the whole year, the intermediate character awarded on desertion or discharge being ruled through. This does not apply to recovered deserters awaiting trial at the end of the year; their characters shall not be assessed on 31st December.

- (3)

A sailor's character since the previous 31st December shall also be recorded on his Recommendation for [promotion] [Substitued by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet on discharge or on transfer to another ship, or on being marked "RUN".

(4)

Any person who may be on passage, in prison, under detention, imprisoned by the civil authority, or in hospital, on 31st December in any year, shall have his character to that date assessed from his Recommendation for [promotion]

[Substitued by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet on his arrival on board the ship to which he is sent or to which he may returnn, the assessment being made by the Commanding Officer of such ship.

(5)

A sailor invalided out of the Service shall have his character assessed to date from the entries on his conduct sheet by the Commanding Officer of the ship upon whose books the sailor is borne.

327.

Character Assessment of Artificer Apprentices and Boys.

(1)

The character of all Artificer Apprentices shall be assessed on the day they attain the age of 17 years and thereafter anually on 31st December.

(2)

The character of Boys shall be assessed upon their final discharge from the Boy's Training Establishment or on the day they attain the age of 17 years whichever is earlier, and thereafter annually on 31st December.

328.

Re-assessment of Character.

(1)

Assessments higher than those permitted by Regulations 320 to 325 shall be corrected, with approval of the Chief of the Naval Staff but those properly made by the Commanding Officer in accordance with sub-regulation (5) of Regulation 319 are final and shall not be subject to review unless one of the following conditions is fulfilled, when application may be made to the Chief of the Naval Staff for re-assessment:

(a)

The assessment has come to have an effect which could not have been foreseen at the time it was awarded and which, taking into consideration also the length and quality of subsequent service, is now unduly severe. An application for review on these grounds may be forwarded only within the last year before completion of time for pension or on discharge if earlier. No application shall be entertained when the character record during pensionable service includes an assessment below "Good" or more than one assessment other than "V.G." (for example one "VG.*" and one "Good") except in very exceptional circumstances (for example because of recognition given for an act of personal gallantry).

(b)

There is good reason to believe that a character assessment which is lower than the highest assessment which could have been given, under Regulations 320 to 325 was not given advisedly. An application for review on these grounds may be made as soon as possible after the assessment has been communicated. If the application is not made within a reasonable period, it shall include the reasons for the delay.

(c)

The assessment was unfair or the punishment which affected the assessment was unjust or unduly serve in itself or in its immediate effects. An application for review on these grounds shall follow the procedure prescribed for making complaints. Any such complaints shall be made as soon as possible, while the facts are still ascertainable.

(2)

The only applications for the review of character assessments which may be considered after a sailor has been released are those relating to the final assessment on discharge and such applications shall be considered only if appeal is made on discharge or within three months after the date of discharge. Any sailor who expresses dissatisfaction with the assessment given on his discharge shall be warned that any appeal to the Chief of the Naval Staff must be made within three months.

(3)

Application under clauses (b) and (c) of sub-regulation (1) from pensioners, reservists, or sailors re-entered, for review

of character assessments during previous periods of service shall not be entertained.

329.

"Very Good Conduct"

(1)

(a)

The standard required for the maintenance of "Very Good" Conduct is not the same as that for an award of "V.G." character, but is a higher and more exacting one. To maintain the standard a sailor must have conducted himself with sobriety, diligence and attention.

(b)

"Very Good" conduct is not governed by a sailor's character as assessed on his service certificate, except as in clause (c) of sub-regulation (2) and, subject to the provisions of the following rules, the latter part of a year for which a character lower than "VG." has been awarded may be regarded by the Commanding Officer as a period of "Very Good" conduct.

(2)

A break in continuity of "Very Good" conduct is obligatory under the circumstances stated below :

(a)

When a sailor is punished by warrant or receives a sentence by court-martial which is at least the equivalent of a warrant punishment. The mere fact of conviction shall constitute a break in the continuity of "Very Good" conduct, regardless of the fact that a sentence is suspended before committal and subsequently remitted partially or wholly. If however a sentence is proved to be wholly unjustified and is quashed, break in the continuity of "Very Good" conduct shall not be obligatory.

(b)

When a discretionary character lower than "V.G." is awarded advisedly as a consequence of a number of minor offences, none of which of itself necessitated a break in continuity of "Very Good" conduct.

(c)

When a badge is intentionally not awarded when due or after the period of deferment.

(d)

When restoration of a badge has been intentionally delayed.

(e)

When on conviction by the civil authority any of the naval penalties, other than forfeiture of pay and time and stoppage of leave, are awarded.

(3)

In addition, a break in "Very Good" conduct may be imposed as a separate naval penalty. Further, it is within the discretion of the Commanding Officer to regard any reprehensible act, for example a repeated contraction of venereal disease, any particular naval offence or a series of minor offences as breaking the continuity of "Very Good" conduct, even though a character assessment below "V.G." is not involved. A break shall not be awarded as a punishment or as a substitute, but it may accompany any punishment if the Commanding Officer considers that the circumstances justify such a course.

(4)

When a break in continuity of "Very Good" conduct is obligatory under sub-regulation (2) the break need not be specially recorded on the sailor's Record of Offences Sheet because it will be obvious why it has been incurred but in all other circumstances the break shall be recorded in the "Remarks" column of the Sailor's Record of offences Sheet, and not in the "Punishment Awarded" column.

(5)

The date on which "Very Good" conduct is broken and the reasons thereof shall be intimated to the Captain, Naval Barracks (Drafting Office) by issue of a Genform immediately on occurrence.

(6)

(a)

The date of recommencement of "Very Good" conduct after a break in its continuity shall be recorded in the appropriate column of the sailor's Recommendation for [Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet. The date of recommencement of "Very Good" conduct shall in all cases be inserted in red

ink.

(b)

If a sailor is transferred to another ship while in prison or detention or in the second class for conduct, the date of recommencement of "Very Good" conduct will not be known and the words "not V.G." shall be inserted in the appropriate column of his Recommendation for [Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet.

(c)

When a sailor joins from another ship, "V.G." time for badge purposes shall be reckoned from the date entered on the Recommendation for [Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet.

(7)

When a break has been incurred :

(a)

under clause (2) (a) (dis-rating, deprivation of subject to the Good Conduct Badges and of Good Conduct Medal, and the like.)

Exceptions

"Very

Good" conduct shall recommence on the day after the date of sentence or warrant following exceptions.

Exceptions

(i)

Reduction to second class for conduct.

"Very

Good" conduct shall recommence on the day after the expiration of the period in the second class for conduct.

(ii)

In the case of sailors committed to cells, detention or prison.

"Very

Good" conduct shall recommence on the day after release from such cells, detention or prison, but see sub-clause (iv).

(iii)

When a sentence of cells, detention or imprisonment is postponed under section 151(2), Navy Act, 1957.

The

date of recommencement of "Very Good" conduct shall be antedated by the number of days of postponement.

(iv)When

a sentence of cells, detention or imprisonment is suspended.

"Very

Good" conduct shall recommence on the following day, but would again be broken if the sentence were subsequently enforced on account of further misconduct.

(b)Under

clause(2)(b)

The

date of recommencement of "Very Good" conduct shall be the day following the date of the discretionary character assessment (usually 1st January).

(c)Under

clause(2)(c):

(i) Good

Conduct Badge not awarded when due.

The

date of recommencement of 'Very Good' conduct is the day after the sailor completed the necessary period of service with 'Very Good' conduct to qualify for consideration for the award.

(ii) Good

Conduct Badge is not awarded even after the period of deferment.

The

date of recommencement of 'Very Good' conduct is the day after the sailor completed the necessary period of service with 'Very Good' conduct to qualify for consideration for award of the badge in the first place.

(d) Under

clause(2)(d).

The

date of recommencement of 'Very Good' conduct is the day after the sailor completed the necessary period of service with 'Very Good' conduct to qualify for consideration for the restoration of the badge in the first place.

(e) Under

clause(2)(e), or otherwise as a Naval Penalty.

'Very

Good' conduct shall recommence on the day after the date on which the offence was found proved against the sailor, unless a sentence of imprisonment (or detention in a Reformatory Jail) is awarded in which case the date of recommencement of 'Very Good' conduct shall be the day after release. When a sailor forfeits time and pay for the period in civil custody but a break in continuity of 'Very Good' conduct is not involved as a naval penalty, his existing date of recommencement of 'Very Good' conduct shall be post-dated by the number of days forfeited and the new date shall be inserted in red ink.

(f) Under

clause(3)

'Very

Good' conduct shall recommence the following day.

Chapter XIII

Regulations For The Indian Naval Reserve And Indian Naval Volunteer Reserve

Section I - Preliminary

330.

Composition of Indian Naval Reserve.

- The Indian Naval Reserve shall comprise officers who have taken to the sea as a profession.

331.

Composition of Indian Naval Volunteer Reserve.

- The Indian Naval Volunteer Reserve shall comprise officers who, although they may not have taken to the sea as a profession are keenly interested in yachting or similar pursuits connected with the sea and in the Navy.

332.

Definition.

- In the chapter, unless the context otherwise requires:

(a)

'Active List' means the list of Reserve Officers other than those who are placed on the Special List and Retired List;

(b)

'Emergency' means any period during which a proclamation of Emergency issued under clause (1) of Article 352 of the Constitution is in operation;

(c)

'Qualified Officer' means an officer who acquires or possesses such qualifications as may be laid down by the Chief of the Naval Staff and which, in his opinion, qualify the officer to perform the ordinary duties of an officer of the Indian Navy of corresponding rank and seniority in the class of vessel in which he is serving;

(d)

'Registrar of Reserves' means an officer appointed as such by the Chief of the Naval Staff and includes an officer performing the duties of the Registrar of Reserves in his absence due to sickness or otherwise;

(e)

'Retired List' means the list of officers who have retired from the Reserves, but are liable to be called up for actual service in the Indian Navy, if under 50 years of age, when an Emergency is declared;

(f)

'Special List' means the list of Reserve Officers transferred from the Active List before being due for retirement and liable to be called up for actual service in the Indian Navy, if under 50 years of age, when an Emergency is declared.

333.

Correspondence to be addressed to Registrar of Reserves.

- All correspondence regarding the Indian Naval Reserve and the Indian Naval Volunteer Reserve shall be addressed to the Registrar of Reserves.

Section II - Cadre of Officers and Types of Commission

334.

Cadre.

- The cadre of officers in the Indian Naval Reserve and the Indian Naval Volunteer Reserve shall be as authorised by the Government.

335.

Branches.

- The Indian Naval Reserve shall comprise Executive, Engineering, Electrical and Supply and Secretariat Branches. The Indian Naval Volunteer Reserve shall, in addition, have the Instructor Branch, and Medical Branch. For terms and conditions of Medical Officers of the Naval Reserve, see Appendix X.

336.

Ranks.

(1)

The following ranks are authorised to be held by officers in the Indian Naval Reserve and the Indian Naval Volunteer Reserve namely-

(a)

General List

(i)

Executive Branch :

Captain, Commander, Lieutenant-Commander, Lieutenant, Sub-Lieutenant, Acting Sub-Lieutenant, Midshipman.

(ii)

Engineering Branch :

Captain, Commander, Lieutenant-Commander, Lieutenant, Sub-Lieutenant.

(iii)

Electrical Branch :

Captain, Commander, Lieutenant-Commander, Lieutenant, Sub-Lieutenant.

(iv)

Supply and Secretariat Branch :

Captain, Commander, Lieutenant-Commander, Lieutenant, Sub-Lieutenant.

[***]

[Omitted by S.R.O. 55, dated 2nd February, 1967]

(2)

The following additional ranks are authorised to be held by officers in the Indian Naval Volunteer Reserve, namely :

(a)

Instructor Branch :

Instructor Captain, Instructor Commander, Instructor Lieutenant-Commander, Instructor Lieutenant, Instructor Sub-Lieutenant.

(b)

[***]

[Omitted by S.R.O. 55, dated 2nd February, 1967]

337.

Rank and Precedence.

(1)

The order of precedence in the Indian Naval Forces shall be, Indian Navy, Indian Naval Reserve and Indian Naval Volunteer Reserve. Except as provided hereinafter as regards "Qualified Officer" of the rank of Lieutenant or Lieutenant-Commander, all officers shall take precedence in the order given above, rank for rank, irrespective of seniority.

(2)

Qualified officers of the Indian Naval Reserve and Indian Naval Volunteer Reserve shall take precedence with but after officers of the Indian Navy of the same rank and seniority and before officers (other than qualified officers) of the Reserves of the same rank, irrespective of seniority. Among themselves, qualified officers shall take precedence according to their respective seniority.

(3)

Officers holding equivalent acting higher rank shall rank among themselves according to the date of their substantive seniority.

338.

Types of Commission.

- There shall be three types of commissions in the Indian Naval Reserve and Indian Naval Volunteer Reserve :

(a)

Permanent Reserve Commissions. - Officers granted permanent Reserve Commissions shall undergo specified training in the Indian Naval Reserve or Indian Naval Volunteer Reserve, as the case maybe, in peace time and be liable to be called up into actual service in the Indian Navy in case of an Emergency.

(b)

Temporary Reserve Commissions. - Officers granted temporary Reserve Commissions shall serve only for the duration of an Emergency or for the period specified in their appointment letter and shall be entitled to all the rights and privileges of permanent Indian Naval Reserve and Indian Naval Volunteer Reserve officers of equivalent ranks whilst holding such commissions.

(c)

Honorary Commissions. - Honorary Commissions may be granted to those gentlemen who in the opinion of the Government, are rendering or have rendered such exceptional service in promoting the interests of the Reserve as to merit such recognition. Honorary officers shall receive no remuneration whatsoever.

Section III - Entry, Confirmation, Promotion and Retirement

339.

Applications.

(1)

All applications for commissions or appointments in the Indian Naval Reserve and Indian Naval Volunteer Reserve shall be made to the Registrar of Reserves together with a letter from the employer of the applicant, if any, permitting him to join the Reserve and fulfil all his obligations as a member thereof.

(2)

Eligible candidates shall be required to appear before a Board of Selection and to undergo a medical examination; provided that Cadets about to pass out from the Training Ship "Dufferin" or any other recognised Merchant Navy Training Centre may be accepted without being required to appear before a Board of Selection.

340.

Change of Nationality.

- In the event of an officer becoming a naturalised foreign subject (other than a subject of Nepal) after appointment, he shall inform the Registrar of Reserves forthwith of the fact and resign his commission.

341.

Liability for actual service in the Indian Navy.

- All officers holding permanent Reserve Commission or temporary Reserve Commission, shall be liable to be called up for actual service in the Indian Navy in Emergency and shall undergo such training as may be prescribed. When so called up, they shall be liable to serve in any part of the world.

342.

Qualifications for entry into the Indian Naval Reserve.

- Candidates for commissions and appointments other than in the Engineering Branch must have served at sea, produce satisfactory record of service at sea, and certify that they intend following the sea as their profession. In addition, candidates for commissions and appointments in the Reserves must have the following qualifications-

(A)

Executive Branch

(a)

Midshipman. - In order to qualify for appointment as Midshipman, a candidate must :

(i)

have attained the age of 17' and be less than 19½ years of age; and

(ii)

must have passed a Deck Officers' Course of instruction for two years on board one of the approved Mercantile Marine Training Ships or Establishments or have served for one year at sea on board a ship in the Merchant Navy as a Cadet or apprentice.

(b)

Acting Sub-Lieutenant. - A direct entrant in this rank must :

(i)

have attained the age of 21 and be less than 24 years of age; and

(ii)

hold a First or Second Mate's Certificate of Competency (Foreign Going).

(c)

Sub-Lieutenant. - A direct entrant in this rank must:

(i)

have attained the age of 22 and be less than [24]

[Substituted by S.R.O. 244, dated 2nd August, 1973]

years of age; and

(ii)

[Hold a First Mate's Certificate for Competency (Foreign Going) or be a Mate Pilot in the Hooghly Pilot Service or be an Assistant River Surveyor with at least three years' service under Calcutta Port Commissioners.]

[Substituted by S.R.O. 244, dated 2nd August, 1973]

(d)

Lieutenant. - A direct entrant in this rank must:

(i)

have attained the age of 24 and be less than 30 years of age, and-

(ii)

(ii)

Hold a [First Mates or]

[Substituted by S.R.O. 244, dated 2nd August, 1973]

Master's Certificate of Competency (Foreign Going) or be a Master Pilot in the Hooghly Pilot Service or be an Assistant River Surveyor with at least six years of service in the River Survey Service under Calcutta Port Commissioners.]

(e)

[Lieutenant Commander.-In special cases a candidate who holds a Ministry of Transport and Communication Master's Certificate (Foreign Going), has been Master of a ship of not less than 2,000 tons for one year and is less than 35 years of age.]

[Substituted by S.R.O. 55, dated 2nd February, 1967]

or

A candidate who is a Branch Pilot in the Hooghly Pilot Service and is less than 35 years of age.

or

A candidate who has held command of a River Survey Vessel in the River Survey Service under the Calcutta Port Commissioners for at least one year and is less than 35 years of age, may be appointed Lieutenant Commander."

(f)

[***]

[Omitted by S.R.O. 55, dated 2nd February, 1967]

Note. - Officers of the Hooghly Pilot Service and River Survey Service will not be eligible for Regular Commission (Permanent or S.SC.).

[Note

(1)

Those in possession of Master's Certificate of Competency (Foreign Going) with experience of 2 years as Chief Officer of ships of not less than 2000 tons and those who are Master Pilot in the Hooghly Pilot Service and over 28 years of age may be given 2 years antedated seniority in the rank of Lieutenant.

(2)

Those in possession of Master's Certificate of Competency (Foreign Going) may be given one year antedated seniority in the rank of Lieutenant if over 26 years of age.]

[Inserted by S.R.O. 224, dated 2nd August, 1973]

(B)

Engineering Branch

(a)

Sub-Lieutenant. - In order to qualify for appointment as Sub-Lieutenant, a candidate must :

(i)

have attained the age of 22 and be less than 25 years of age;

(ii)

hold a 2nd Class Ministry of Transport and Communications Certificate of Competency as a Second Class Engineer; and

(iii)

certify that it is his intention to follow the sea as a profession until he has attained his Ministry of Transport and Communications 1st Class Certificate of Competency.

(b)

Lieu tenant. - A direct entrant in this rank must:

(i)

have attained the age of 24 and be less than 30 years of age; and

(ii)

hold a Ministry of Transport and Communications Certificate of Comptency as a 1st Class Engineer of a steamship or of a motorship bearing an endorsement to the effect that the holder has passed for a certificate as a First Class Engineer of a steamship :

Provided that an engineer employed in a factory or workshop may be accepted in the Indian Naval Reserve as Lieutenant if being qualified as above, he is employed on practical engineering work of use in the Indian Navy.

[Note :-

[Inserted by S.R.O. 244, dated 2nd August, 1973]

(1) Those who are in possession of the above certificate and have two years experience as Chief Engineer of ship of

2000 tons or more may be given antedated seniority of two years in the rank of Lieutenant provided they are over 28 years of age.

(2)

Those who are in possession of the above certificate and are over 26 years of age may be given one year antedated seniority in the rank of Lieutenant.]

(c)

Lieutenant-Commander. - In special cases a candidate who has some special qualifications in addition to those required of a Lieutenant and is less than 35 years of age may be appointed Lieutenant-Commander.

[***]

[Omitted by S.R.O. 55, dated 2nd February, 1967]

(C)

Electrical Branch

(a)

Sub-Lieutenant. - In order to qualify for appointment as Sub-Lieutenant, a candidate must :

(i)

have attained the age of 22 and be less than 25 years of age and

(ii)

hold qualifications recognised by the Ministry of Transport and Communications for executing duties of an Electrical and/or a Radio Officer of a merchant ship fitted with wireless and radar equipment.

(b)

Lieutenant. - A direct entrant in this rank must:

(i)

have attained the age of 24 and be less than 30 years of age;

(ii)

be a graduate of a recognised University in Electrical Engineering or of the Institute of Electrical Engineers, London, or of the Institute of Engineers (India) in Electrical Engineering subjects; and

(iii)

hold qualifications recognised by the Ministry of Transport and Communications for executing duties of an Electrical and/or a Radio Officer of a merchant ship fitted with radio equipment.

(D)

Supply and Secretariat Branch

(a)

Sub-Lieutenant. - In order to qualify for appointment as Sub-Lieutenant, a candidate must :

(i)

have attained the age of 22 and be less than 25 years of age; and

(ii)

have two years' service as a Purser or Assistant Purser of a merchant vessel.

(b)

Lieutenant. - A direct entrant in this rank must:

(i)

have attained the age of 24 and be less than 30 years of age;

(ii)

be a chartered accountant or a graduate of a recognised University preferably in law or commerce; and

(iii)

have two year's service as a Purser or Assistant Purser of a merchant vessel :

Provided that the Chief of the Naval Staff may relax the upper age limit up to five years in the case of candidates with sea experience who are considered suitable for entry in the Indian Naval Reserve.

343.

Qualifications for confirmation in the Indian Naval Reserve.

(1)

No officer shall be confirmed in the Indian Naval Reserve unless he has successfully completed his initial training of 2

months and is recommended by the Commanding Officer under whom such training is completed.

(2)

Confirmation shall be with retrospective effect from the date of entry in the Indian Naval Reserve.

(3)

On confirmation, Direct Entry Sub-Lieutenants shall be given one year's additional ante-dated seniority for holding a First Mate's Certificate.

344.

Promotion in the Indian Naval Reserve.

- Officers on the Active List of the Indian Naval Reserve who have a satisfactory record of service in the Indian Naval Reserve and Merchant Navy, possess the qualifications mentioned below and are recommended by the Commanding Officer will be eligible for promotion to higher ranks.

(A)

Executive Branch

(a)

Midshipman to Acting Sub-Lieutenant. - An officer must :-

(i)

have attained the age of 21; and

(ii)

hold a Ministry of Transport and Communications 2nd Mate's Certificate of Competency (Foreign Going).

(b)

Acting Sub-Lieutenant to Sub-Lieutenant. - An officer must:

(i)

have one year's seniority as an Acting Sub-Lieutenant, promotion being ante-dated to cover the period spent as an Acting Sub-Lieutenant;

(ii)

hold a Ministry of Transport and Communications first Mate's Certificate-of Competency (Foreign Going) in which case he will be given a year's additional seniority.

(c)

Sub-Lieutenant to Lieutenant. - An officer must have attained the age of 24 and have three years' seniority as Sub-Lieutenant which may include seniority gained for obtaining first Mate's Certificate.

(d)

Lieutenant to Lieutenant-Commander. - An officer must :-

(i)

have 8 years' seniority as Lieutenant;

(ii)

hold a Master's Certificate of Competency (Foreign Going); and

(iii)

hold a Naval Watchkeeping Certificate in. the Indian Naval Reserve.

(e)

Lieutenant-Commander to Commander. - Promotion shall be by selection from officers of outstanding merit of at least three years' seniority as Lieutenant-Commander who have held command of a large foreign-going merchant vessel for not less than one year.

(f)

Commander to Captain. - Promotion shall be by selection from officer of outstanding merit of at least four years' seniority as commander who have held command of a large foreign going merchant vessel for not less than three years.

(B)

Engineering Branch

(a)

Sub-Lieutenant to Lieutenant. - An officer must have either three years' seniority as Sub-Lieutenant; or attained the minimum age of 24, hold a Ministry of Transport and Communications Certificate of Competency as first class Engineer of a steamship and have two years' seniority as Sub-Lieutenant.

(b)

Lieutenant to Lieutenant-Commander. - An officer must :-

(i)

have 8 years' seniority as Lieutenant; and

(ii)

hold a Naval Engine-Room Watchkeeping Certificate in the Indian Naval Reserve.

(c)

Lieutenant-Commander to Commander. - Promotion shall be by selection from officers of outstanding merit, of at least three years' seniority as Lieutenant-Commander.

(d)

Commander to Captain. - Promotion shall be by selection from officers of outstanding merit, of at least four years' seniority as Commander.

(C)

Electrical Branch

(a)

Sub-Lieutenant to Lieutenant. - An officer must have three years' seniority as Sub-Lieutenant.

(b)

Lieutenant to Lieutenant-Commander. - An officer must have 8 years' seniority as Lieutenant.

(c)

Lieutenant-Commander to Commander. - Promotion shall be by selection from officers of outstanding merit and qualifications, of at least 3 years' seniority as Lieutenant-Commander.

(d)

Commander to Captain. - Promotion shall be by selection from officers of outstanding merit and qualifications, of at least 4 years' seniority as Commander.

(D)

Supply and Secretariat Branch

(a)

Sub-Lieutenant to Lieutenant. - An officer must have 3 years' seniority as Sub-Lieutenant.

(b)

Lieutenant to Lieutenant-Commander. - An officer must have 8 years' seniority as Lieutenant.

(c)

Lieutenant-Commander to Commander. - Promotion shall be by selection from officers of outstanding merit and qualifications, of at least 3 years' seniority as Lieutenant-Commander.

(d)

Commander to Captain. - Promotion shall be by selection from officers of outstanding merit and qualifications, of at least 4 years' seniority as Commander.

345.

Qualifications for entry into the Indian Naval Volunteer Reserve.

- Candidates must be persons who are interested in yachting or similar pursuits connected with the sea and in the Indian Navy. In addition, they must have the following qualifications-

(A)

Executive Branch

(a)

Midshipman. - In order to qualify for appointment as Midshipman, a candidate must :

(i)

have attained the age of 17½ and be less than 19½ years of age; and

(ii)

hold a 'B' Certificate in the Naval Wing of the National Cadet Corps or having passed a Deck Officer's course of not less than 2 years' duration in one of the recognised training ships, not have followed the sea for a career.

(b)

Acting Sub-Lieutenant. - A direct entrant in this rank must :

- (i)
have attained the age of 21 and be less than 23 years of age; and
- (ii)
possess qualifications required by a Midshipman, or
- (iii)
be a graduate of a recognised University having taken Mathematics and Physics as two of his subjects in the Intermediate Class; or have associations with the sea.
- (c)
Sub-Lieutenant. - A direct entrant in this rank must have attained the age of [23 years]
[Substituted by S.R.O. 55, dated 2nd February, 1967]
and be less than 26 years of age and hold the qualifications required of an Acting Sub-Lieutenant.
- (B)
Engineering Branch
 - (a)
Sub-Lieutenant. - In order to qualify for appointment as Sub-Lieutenant, a candidate must :
 - (i)
have attained the age of 22 and be less than 26 years of age; and
 - (ii)
hold a 2nd Class Ministry of Transport and Communications Certificate of Competency or the "DUFFERIN" Final Passing Out Certificate in Engineering followed by two years' practical experience at sea or in a Marine Engineering concern; or hold a degree in Marine or Mechanical Engineering of a recognised University, or equivalent qualifications recognised by the Institute of Engineers (India) as exempting from Sections 'A' and 'B' of their Associate Membership Examination in Mechanical Engineering; or hold a certificate awarded after completion of five years' apprenticeship (which should have included both theoretical and practical training) as an Engineer in some Marine Engineering concern of standing.
- (C)
Electrical Branch
 - (a)
Sub-Lieutenant. - In order to qualify for appointment as Sub-Lieutenant, a candidate must :
 - (i)
have attained the age of 22 and be less than 26 years of age; and
 - (ii)
hold a degree in Electrical Engineering of a recognised University or equivalent qualifications in Electrical Engineering recognised by the Institute of Engineers (India) as exempting from Sections 'A' and 'B' of their Associate Membership Examination; or hold a certificate awarded after completion of 5 years' apprenticeship (which should include both theoretical and practical training) as an Electrical Engineer in an Electrical Engineering concern of standing.
- (D)
Supply and Secretariat Branch
 - (a)
Sub-Lieutenant. - In order to qualify for appointment as Sub-Lieutenant, a candidate must :
 - (i)
have attained the age of 22 and be less than 26 years of age; and
 - (ii)
be a graduate of a recognised University preferably in Law or Commerce, or be a member of the Institute of Chartered Accountants; or have held a responsible post in a business concern with such experience as would be of use in the Indian Naval Volunteer Reserve.
- (E)
Instructor Branch
[Instructor Sub-Lieutenant]
[Substituted by S.R.O. 55, dated 2nd February, 1967]
- In order to qualify for appointment as Instructor Sub-Lieutenant, a candidate must :

- (i)
have attained the age of 21 and be less than 25 years of age; and
- (ii)
be a 1st Class pass or 1st Class or 2nd Class Honours Graduate of a recognised University with Mathematics or Physics as principal subject in the Degree examination; or
- (iii)
be a graduate in Engineering from a recognised University: Provided that the Chief of the Naval Staff may relax the upper age limit up to five years in the case of candidates who are otherwise considered suitable for entry in the Indian Naval Volunteer Reserve.

346.

Confirmation in the Indian Naval Volunteer Reserve.

(1)

No officer shall be confirmed in the Indian Naval Volunteer Reserve unless he has successfully completed his initial training of two months and is recommended by the Commanding Officer under whom such training is completed.

(2)

Confirmation shall be with retrospective effect from the date of joining the Service.

347.

Promotion in the Indian Naval Volunteer Reserve.

- Officers on the Active List of the Indian Naval Volunteer Reserve who have a satisfactory record of service in the Indian Naval Volunteer Reserve, possess the qualifications mentioned below and are recommended by the Commanding Officer will be eligible for promotion to higher rank:

Provided that promotion from Lieutenant-Commander to Commander and from Commander to Captain in all Branches shall be by selection from officers of outstanding merit who have at least 3 years' seniority as Lieutenant-Commander and 4 years' seniority as Commander respectively.

(a)

Executive Branch

(i)

Midshipman to Acting Sub-Lieutenant. - An officer must have attained the minimum age of 21 and have a seniority of 21h years as Midshipman.

(ii)

Acting Sub-Lieutenant to Sub-Lieutenant. - An officer must have one year's seniority as Acting Sub-Lieutenant. Promotion shall be ante-dated to cover the period spent as an Acting Sub-Lieutenant.

(iii)

Sub-Lieutenant to Lieutenant. - An officer must have 3 years seniority as Sub-Lieutenant.

(iv)

Lieutenant to Lieutenant-Commander. - An officer must have 8 years seniority as Lieutenant in the Indian Naval Volunteer Reserve and hold a Naval Watchkeeping Certificate.

(b)

Engineering Branch

(i)

Sub-Lieutenant to Lieutenant. - An officer must have 3 years seniority as Sub-Lieutenant.

(ii)

Lieutenant to Lieutenant-Commander. - An officer must have 8 years seniority as Lieutenant and hold a Naval Engine-Room Watchkeeping Certificate.

(c)

Supply and Secretariat Branch

(i)

Sub-Lieutenant to Lieutenant. - An officer must have 3 years seniority as Sub-Lieutenant.

(ii)

Lieutenant to Lieutenant-Commander. - An officer must have 8 years seniority as Lieutenant.

(d)

Electrical Branch

(i)
Sub-Lieutenant to Lieutenant. - An officer must have 3 years seniority as Sub-Lieutenant.

(ii)
Lieutenant to Lieutenant-Commander - An officer must have 8 years seniority as Lieutenant.

(e)
[Instructor Branch. - (i) Instructor Sub-Lieutenant to Instructor Lieutenant-An officer must have three years' seniority as Sub-Lieutenant."

[Substituted by S.R.O. 55, dated 2nd February, 1967]

(ii)
Instructor Lieutenant to Instructor Lieutenant Commander.-An officer must have 8 years' seniority as Instructor Lieutenant.]

348.

Previous Naval Service.

- Subject to satisfactory record of service, Ex-Royal Indian Naval Reserve and Ex-Indian Naval Reserve Officers may be accepted in the Indian Naval Reserve and Ex-Royal Indian Naval Volunteer Reserve and Ex-Indian Naval Volunteer Reserve officers in the Indian Naval Volunteer Reserve up to the age of 40, with the seniority held at the time of their release :

Provided that the Chief of the Naval Staff may relax the upper age limit up to five years in the case of candidates who are otherwise considered suitable for entry in the Indian Naval Reserve or the Indian Naval Volunteer Reserve.

349.

Retirement.

- The ages of retirement in all Branches of the Indian Naval Reserve and Indian Naval Volunteer Reserve shall be as follows: Lieutenants and Lieutenant-Commanders 48 years. Commanders 50 years.

Captains

55

years.

Branch

List Officers

50

years.

On attaining the above age limits, officers will ordinarily be placed on the Retired List.

Section IV - Training and Service in Peace-Time

A - Obligatory Training

350.

Obligatory Training.

- Officers on the Active List holding Permanent Reserve Commissions shall be required to undergo the following obligatory training in the Indian Navy, exclusive of the time spent in travel :

(a)
two months initial training on joining the Reserve or soon thereafter as ordered by the Registrar of Reserves;

(b)

(i)

biennial training of one month; or

(ii)

where Naval ships are able to provide training on Sundays, holidays or part of a day for the benefit of those residing in the vicinity, biennial training of 30 days may be given in broken periods provided at least 2 weeks training is given in a continuous spell. When a full day's training is not undergone, every six hours of training shall for all purposes be counted as one day.

Explanation. - This facility will normally be restricted to officers residing within a distance of 15 miles from their training centres; and

(c)

an aggregate period of three months sea training for Indian Naval Reserve Officers and of six months sea training for Indian Naval Volunteer Reserve Officers who are required to obtain a Naval Watchkeeping Certificate before promotion to the rank of Lieutenant-Commander, and an aggregate period of six months training to obtain an Engine-Room Watchkeeping Certificate before promotion to the rank of Lieutenant-Commander in the Engineering Branch.

(d)

[Provided that in deserving cases the Chief of the Naval Staff may relax the rules of initial and obligatory training if he considers that such relaxation is necessary. Applications for such relaxation may be made through the Registrar of Reserves stating full reasons for the relaxation.]

[Inserted by S.R.O. 244, dated 2nd August, 1973]

(a)

[Initial Obligatory Training will, as far as possible, comprise of 2 weeks' Divisional Course which is to include Seamanship; in addition the following periods are allocated for other subjects:]

[Substituted by S.R.O. 55, dated 2nd February, 1967]

(i)

Executive Branch

Navigation

1

week.

Gunnery

1

week.

TAS

1

week.

Communication

1

week.

Attached

to ships

2

weeks.

(To include practical seamanship, Navigation, NBC and ship administration)"

(ii)

Engineering Branch

A.B.C.D.

and Acquaintance Course

2

weeks.

Attachment

in ships

4

weeks

(iii)

Electrical Branch

Acquaintance

Course in Electrical Equipment

2

weeks

Attachment

in Ships

4

weeks

(iv)

Supply and Secretariat Branch

Pay

and allowances

2

weeks

Stores

2

weeks

Secretariat

and Discipline

1

week

Victualling

1

week

(v)

Instructor Branch

Theory

Course

6

weeks

(b)

Syllabus for the obligatory biennial training will be as specified from time to time.

352.

Messing and Accommodation while undergoing training.

- Arrangements for the messing and accommodation of officers undergoing training shall be made by the Commanding Officer of the ship to which they are attached. The expenses shall be defrayed by the officers themselves.

353.

Exemption from Obligatory Training.

(1)

Officers who undergo voluntary specialist training or temporary service specified in Part B of this Section shall be exempted from obligatory biennial training for the period specified in that Section.

(2)

Officers who are permitted to undergo a further voluntary specialist training or temporary service as specified in Part B of this Section before the expiry of their exemption from biennial obligatory training, shall be allowed, on completion of such voluntary training or service, either the balance of the period of exemption to their credit or the exemption they will gain as a result of the further voluntary training or service, according to the officers' choice.

(3)

[The excesses or shortages of all training periods upto seven days may be regularised under the powers of the Chief of the Naval Staff.]

[Inserted by S.R.O. 244, dated 2nd August, 1973]

(4)

Officers who do not wish to avail themselves of exemptions may be permitted to resume their biennial training.

354.

Failure to undergo Obligatory Training.

- Officers who fail to report for their obligatory initial training or for their obligatory biennial training without obtaining the necessary exemption will render themselves liable to punishment under section 73 of the Act. Without prejudice to such disciplinary action, they may be :-

(a)

transferred to the Special List; or

(b)

discharged from the Reserves.

355.

Medical Examination.

- Before commencing their obligatory training, all Reserve Officers shall undergo a medical examination which shall be in accordance with the rules governing the annual medical examination of Regular Officers of the Indian Navy.

356.

Orders for joining.

- As far as possible, orders for joining service or training will be issued by the Registrar of Reserves two months before the due date.

357.

Requests for training during particular periods.

- Officers may request the Registrar of Reserve by the 1st of January each year for a particular period during which it would be most convenient for them to present themselves for training. As far as possible, endeavour will be made to comply with these requests.

358.

Discharge on completion of training.

- During the period of training, officers shall be borne on the books of the ship or establishment concerned. On completion of the period of training, officers shall be discharged from the ships' books unless suffering from a disability attributable to naval service, in which case the rules for Regular Officers of the Indian Navy shall apply.

359.

Reckoning of period of training.

- Periods of training shall be reckoned as follows :

1

month

30

days

2

months

61

days

3

months

91

days

6

months

182

days

B-Voluntary Specialist Training and Temporary Service in the Indian Navy

360.

Specialist Courses.

- Whenever it is possible to conduct Specialist Courses for confirmed Reserve Officers, volunteers, may, if selected, undergo such courses in addition to obligatory training.

361.

Types of Specialist Courses.

- The following specialist courses shall be conducted when convenient :

Executive Branch - Gunnery, Torpedo and Anti-Submarine, Communication, Navigation.

Engineering Branch - Naval Engineering.

Electrical Branch - High and low power Electrical Course, Radio Course including W/T and Radar.

Supply and Secretariat Branch - Supply and Secretariat Course.

Instructor Branch - A course in subjects taught in the Navy.

362.

Exemption for undergoing Voluntary Training.

- On successful completion of a voluntary specialist course, officers shall be exempted from any obligatory biennial training they may have been due to undergo during that year and the next two financial years.

363.

Applications for Voluntary Training.

- Any officer desiring to undergo voluntary specialist training shall apply to the Registrar of Reserves within a week after the course is notified, mentioning his address and the nearest railway station from which he is to commence his journey.

364.

Temporary Service in the Indian Navy.

(1)

Officers who have passed a voluntary specialist course or are otherwise considered suitable may volunteer for temporary service in the Indian Navy, should their services be required in lieu of Regular Officers of the Indian Navy.

(2)

No temporary appointment shall, however, be made without the prior approval of the Government of India and the number of such appointments and the periods for which they are made shall depend on vacancies available in the authorised cadre of the Indian Navy.

365.

Appointments during Fleet Exercises, Cruises and the like.

- Any officer of the Reserves may volunteer for service in the Indian Navy during Fleet Exercises, Firing Exercises, Cruises, and the like, if his services are required.

366.

Exemption for Temporary Service with the Indian Navy.

(1)

Officers who complete six months continuous temporary service with the Indian Navy shall be exempted from undergoing obligatory biennial training for three years thereafter, and those who complete continuous 9 months or more of such service, shall be so exempted for 4 years.

(2)

Officers who have served at Fleet Exercises, Firing Exercises, Cruises, and the like, for a period of less than 6 months shall be exempted from any obligatory biennial training they may have been due to undergo during that year and may also be so exempted for the next two financial years.

Section V - Service during an emergency

367.

Mobilization Warning.

- Officers shall be given warning of impending mobilization by telegram or public notification. Officers shall then immediately communicate to the Registrar of Reserves their addresses and probable movements for the next three months. Every change of address shall be immediately intimated.

368.

Mobilization.

- When mobilization is ordered, officers shall proceed immediately to the ship as instructed by the Registrar of Reserves.

369.

Action to be taken by Officers who are abroad on date of call up.

- When the Reserves are called up, officers if abroad, shall receive notice thereof from the Registrar of Reserves or the nearest Indian representative. They shall then present themselves abroad the first Indian Naval Ship they meet and also report by letter to the Registrar of Reserves in India and to the nearest Indian representative. No further action is required until receipt of summons calling them up for actual service in the Indian Navy.

370.

Transfer from Indian Naval Volunteer Reserve to Indian Naval Reserve.

- Officers who after joining the Indian Naval Volunteer Reserve obtain qualifications required for entry into the

corresponding rank of the Indian Naval Reserve may, if they desire, be transferred to the Indian Naval Reserve.
371.

Honours and Awards.

- Officers while in actual service in the Indian Navy are eligible for the same Honours and Awards as for Regular Officers.

Section VI - Uniform

372.

Uniform.

- The uniform to be worn by officers shall be of the same pattern as for officers of the Indian Navy but with the following differences :

Indian

Naval Reserve and Indian Naval Volunteer Reserve Officers holding Permanent Reserve Commissions other than those employed on aviation duties.

As

for Indian Navy Officers, but with the letter 'R' in the curl.

During mobilized service, Qualified Officers shall omit the 'R' from the curl.

(ii)

Indian Naval Volunteer Reserve Officers holding Permanent Reserve Commissions employed on aviation duties.

As

for Indian Naval Officers, but with the letter 'A' in the curl.

During mobilized service, Qualified Officers shall omit 'A' from the curl. Midshipmen of the Indian Naval Volunteer Reserve employed on aviation duties shall wear the letter 'A' on the twist instead of on the cuff of the sleeve. During mobilized service. Qualified Officers shall omit the letter 'A' on the twist.

(iii)

Officers holding temporary commissions in the Indian Naval Reserve.

(a)

The distinctive stripe of gold lace round the sleeves of the coat and on epaulettes is substituted by two waved lines of gold lace each of one half the width prescribed for officers of the Indian Navy one line superimposed upon the other so that 1/8 inch of blue cloth shows between the curves. The half stripe, however, is a single straight line of 1/8 inch gold lace. In war time, on becoming Qualified Officers the navy curl will be replaced by a plain curl as for Indian Navy Officers.

(b)

The white patches and notched holes of twist in the case of Midshipmen will be as for Midshipmen in the Indian Navy except that for officers holding temporary appointment, the notched holes of twist are to be waved instead of straight.

(iv)

Officers holding temporary commissions in the Indian Naval Volunteer Reserve

(a)

The distinctive stripe of gold lace round the sleeves of the

coat and on epaulettes is substituted by a stripe of waved line of gold $\frac{3}{8}$ inch in width. The half stripe, however, is a single straight line of gold lace $\frac{1}{8}$ inch in width. In war time on becoming Qualified Officers the Navy curl shall be replaced by a plain curl as for Indian Navy Officers.

(b)

The white patches and notched holes of twist for Midshipmen shall be as in the Indian Naval Reserve.

(v)

Honorary Officers.

As

for Indian Navy Officer, but with the letter 'H' in the curl.

373.

Occasions on which uniform is worn.

(1)

Officers on the Active List shall wear naval uniform when borne on the books of one of Indian Navy Ships.

(2)

Officers on the Active or Retired List may wear the prescribed naval uniform on occasions of State or Ceremony within India. Such occasions may be deemed to include Reviews, official functions or entertainments given by Army, Naval or Air Force authorities or by civil functionaries.

(3)

Officers shall not wear naval uniform at other times.

374.

Wearing of Medals and Decorations.

(1)

Only medals and decorations authorised to be worn in the naval service or the appropriate ribbons thereof shall be worn by officers when in uniform.

(2)

The regulations regarding the acceptance and wearing of foreign Orders, medals and decorations are as for Regular Officers of the Indian Navy.

375.

Scale of Uniform.

- All Reserve Officers shall provide themselves with their badges of rank and the following uniform :

Blue

Uniform

Trousers,

Blue (Plain)

1

pair

Shoes,

Black (leather)

1

pair

Socks,

Black

1

pair

Cap,

Blue, Uniform

1

Badges,

Uniform for Cap

1

White

Uniform

Tunics

white

3

Trousers

white

3

Shirts,

white, uniform (half sleeves)

6

Shorts,

white uniform

6

Socks,

white

2

pairs

Stockings

white

2

pairs

Stockings,

Blue

2

pairs

Shoes,

white canvas (Leather soles)

1

pair

Cap

covers, white

3

Mess

jackets (white)

1

Evening

Waist Coat (white).

1

Kamarbund

1

Buttons,

gilt for white tunic.

1

set

Buttons,

gilt for Mess jacket.

1

set

Shirts

white, long sleeves .

2

Collars

white stiff, turned down .

2

Necktie,

Black

1

Bow

Tie, Black

1

Section VII - Retirement, Resignation, Discharge

376.

Retirement, Resignation and Discharge Liability of Retired Officers.

(1)

Officers placed on the Special List or Retired List and under 50 years of age may be called up for actual service in the Indian Navy in the event of an Emergency provided they are medically fit.

(2)

Officers so called up cannot claim to be discharged during an Emergency merely on account of attaining the age of 50 years.

377.

Resignation.

- Officers of the Naval Reserve Forces may, at the discretion of the Government, be permitted to resign or retire.

378.

Medical Fitness.

(1)

Officers who become medically unfit due to reasons not attributable to service in the Reserves will be brought before a Medical Board in order to ascertain whether or not the disability is of a permanent or temporary nature.

(2)

In the case of a permanent disability, an officer will be placed on the Retired List if he has been confirmed in his rank. If he has not been confirmed in his rank, he shall be discharged from the Reserve.

(3)

In the case of a temporary disability, an officer shall be temporarily placed on the Retired List up to a maximum period of two years. During such period, he may be required to appear before a Medical Board from time to time as may be directed. On expiry of two years from the date of being temporarily placed on the Retired List or on the recommendation of the medical board an officer, if fit for service, shall be taken back on the Active List, or if still unfit for service, be dealt with as in sub-regulation (2).

379.

Discharge from the Reserves.

(1)

An officer will, at the discretion of the Government, be liable to be discharged upon his certificate of competency under the Merchant Shipping Act 1958 being suspended or cancelled.

(2)

An officer who takes up an appointment either afloat or ashore which, in the opinion of the Government, is not consistent with his status as an officer in the Reserves will be so notified, and if he fails to relinquish such appointment thereafter, he will be liable to be discharged from the Reserves.

380.

Transfer to Special List and Discharge.

(1)

An officer who fails to undergo the requisite obligatory training may, without prejudice to any action which may be taken

under section 73 of the Act, be transferred to the Special List at the discretion of the Chief of the Naval Staff or be discharged from the Reserves at the discretion of the Government.

(2)

An officer who fails to qualify for promotion within a reasonable length of time may either be transferred to the Special List at the discretion of the Chief of the Naval Staff or be discharged from the Reserves at the discretion of the Government.

(3)

An officer who may be found unsuitable for retention in the Reserves on account of any of the undermentioned causes shall be liable to immediate discharge or transfer to the Special List, as the case maybe, after having been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him:

(a)

unsatisfactory conduct whilst serving in any of Indian Navy Ships or Establishments.

(b)

unsatisfactory conduct as naval officer while on the active list;

(c)

unsatisfactory conduct whilst serving the Merchant Service or elsewhere in civil life :

Provided that it shall not be obligatory to give an opportunity of showing cause where the Government or the Chief of the Naval Staff, as the case maybe, is satisfied that in the interests of the security of India or for some reason to be recorded in writing, it is not expedient to do so.

Section VIII - Leave, Pay and Allowances

381.

Travelling Allowance and Daily Allowance for candidates called up before the Board of Selection.

- Candidates called up before the Board of Selection for admission into the Reserves will be granted travelling allowance and daily allowance as follows :

(a)

(i)

By rail, river or sea. - Travelling allowance as for candidates for commission in the Indian Navy, between the place of permanent residence in India and the place of interview and back.

(ii)

By road. - Travelling allowance for the journey or portion of the journey between points where there is no rail, river or sea connection, at the rates admissible for third grade individuals in the Indian Navy.

(b)

If the candidate is away from his permanent place of residence when called up before the Board of Selection, travelling allowance will be admissible for the journey actually performed limited to travelling allowance from the permanent place of residence in India to the place of selection.

(c)

If accommodation and board are not provided at Government expense, daily allowance for each day of detention at the place of selection will be admissible as for civilian candidates for admission to the National Defence Academy, Khadakvasla.

(d)

[Civilian Gazetted Officer Class I and Civilians in Central Government Service or those employed in local bodies or reputed firms and in receipt of basic pay exceeding Rs. 800/- per month, will be entitled to the grant of first class fare by rail or highest class fare by steamer, as the case may be, when called up before the Board of Selection for commission in the Indian Naval Reserve or the Indian Naval Volunteer Reserve. They will also be entitled to road mileage and daily allowance as admissible to officers of Grade I if in receipt of pay of Rs. 800/- p.m. on above. Those drawing pay upto Rs. 799/- per month will be entitled to such allowance as are admissible to officers of Grade II.]

[Inserted by S.R.O. 244, dated 2nd August, 1973.]

382.

Pay and Allowances for Reserve Officers who are not employees of Central Government or State Government.

(1)

When called up for training of service, officers shall receive pay and allowances at the rates admissible at the time to

regular officers of the Indian Navy of equivalent rank and seniority :

Provided that no Kit Maintenance Allowance or Special Disturbance Allowance will be admissible in peace time.

(2)

Officers undergoing training as provided for in Regulation 350(b)(ii) and residing at a distance between 5 and 1.5 miles from their training centre shall be paid the actual cost of travel by rail or road, the upper limit for road fare being fixed by Government from time to time for such journeys. Officers residing beyond a distance of 15 miles from the training centre may only claim their fare for a maximum distance of 15 miles.

383.

[Commencement and Cessation of full pay.

[Substituted by S.R.O. 244, dated 2nd August, 1973]

- When called up for training or service, pay shall commence from the date officer actually starts his journey to report for duty and shall cease from the date the return journey ends and they will be entitled to the same' travelling allowances on joining first appointment and termination of their active service as admissible to regular officers of the Indian Navy of equivalent rank.

Provided that pay and allowances for travelling time for each journey from or to the place of residence shall be restricted to ten days in case where the period of such journey exceeds that limit.]

384.

Interrupted Training.

- An officer who is permitted to interrupt his period of training at his own request, before completion of the time for which he was called up, shall not be eligible for any travelling allowance for the return journey and, if subsequently permitted to rejoin in order to complete his training, shall do so at his own expense. Travelling allowance shall, however, be admissible for the final return journey on completion of the full training period for which the officer was called up.

385.

Travelling Allowance Claims.

(1)

The Commanding Officer of the ship on whose books the officer is borne, shall be the competent authority to countersign travelling allowance claims before forwarding them to the Controller of Defence Accounts (Navy) for payment.

(2)

Officers undergoing obligatory training as provided for in regulation 350(b)(ii) shall submit their travelling allowance claims at the end of the calendar month.

386.

Allowances in aid of purchase of uniform.

- A uniform allowance of Rs. 400 shall be payable on entry to assist officers in the purchase of uniform.

387.

Uniform allowance payable to officers with previous naval service.

- Officers with previous service in the Indian Navy, Indian Naval Reserve or Indian Naval Volunteer Reserve shall receive uniform allowance as follows:

(a)

Those who enter or re-enter the Reserve after a break of at least seven years from the time they left the Indian Navy or its Reserves shall receive uniform allowance in full.

(b)

Those who enter or re-enter the Reserves before the expiry of seven years from the time they left the Indian Navy or its Reserves shall receive a uniform allowance as follows :

In

case of break not exceeding three years

Nil

[In

case of break exceeding three years but not exceeding five years]

[Substituted by S.R.O. 17-E, dated 5th July, 1967]

Rs.

125

In

case of break exceeding five years but not exceeding seven years

Rs.

250

(c)

Officers appointed for temporary service of 12 months or more shall be required to provide themselves with the complete uniform required of an Indian Navy Officer, and shall be given for this purpose the difference between the uniform allowance payable at the time for regular officers of the Indian Navy entering service and Rs. 400.

(d)

[Officers will be entitled, with effect from the 1st January, 1970, to renewal of outfit allowance under the same conditions as are applicable to regular officers of the Indian Navy on the basis of call up service.]

[Inserted by S.R.O. 244, dated 2nd August, 1973]

Explanation. - Uniform allowance is granted for the sole purpose of assisting officers in providing themselves with the necessary articles of uniform. An account of expenditure maybe asked for by Naval Headquarters and the payment of uniform allowance restricted to the amount for which proof of expenditure is produced but not exceeding that admissible as above.

'Sic. The second and third items should read as follows :

"In case of break exceeding three years but not exceeding five years Rs. 125.

In case of break exceeding five years but not exceeding seven years Rs. 250."

388.

Payment of Uniform Allowance.

(1)

Applications for uniform allowance shall be made by officers on contingent bills to the Registrar of Reserves together with an undertaking, in writing, that they will spend the entire amount in providing themselves with uniform.

(2)

Payment of uniform allowance shall be made by the Controller of Defence Accounts (Navy) on the authority of Registrar of Reserves.

389.

Refund of Uniform Allowance.

- An officer who fails to serve for a period of two years shall be required to refund 25 per cent, of the uniform allowance received for each period of six months (or part of such period) by which his service falls short of 2 years :

Provided that the refund may be waived in whole or part at the discretion of the Chief of the Naval Staff if the failure to complete the prescribed period of service is due to death, ill health due to causes beyond the officer's own control or other special circumstances.

Explanation. - This regulation will be applicable separately to the uniform allowance received under regulation 386 and Cls. (a), (b) and (c) of regulation 387.

390.

Accounts of Reserve Officers shown separately.

- Accounts of Reserve Officers borne on ships' books shall be shown separately from those of Indian Navy Officers.

391.

Payment of Mess Bills, Rent etc.

- During the period of training or service, payment for messing, accommodation and allied charges shall be governed by the same rules as applicable to regular officers of the Indian Navy.

392.

Leave and Sick List Concessions for officers in continuous service.

- Officers who have completed one year's continuous actual service in the Indian Navy shall be entitled to [60 days]

[Substituted & Inserted by S.R.O. 55, dated 2nd February, 1967]

annual leave on full pay and allowances. If, on expiry of leave, the officers are to return to appointments, leave travel concessions shall be permissible while proceeding to and returning from leave as for regular officers of the Indian Navy.

Explanation I. - Casual leave may be granted on compassionate grounds but such leave shall not exceed twenty days in

a calendar year.

Explanation II. - For the purpose of sick list concessions, sick leave and allowances during this period, officers shall be governed by the rules applicable to regular officers of the Indian Navy.

[Explanation III.

[Substituted & Inserted by S.R.o. 55, dated 2nd February, 1967]

- The annual leave of 60 days will fall due only after completion of each year of actual service with the Navy.]

393.

Leave and Sick List Concessions for Officers undergoing training.

(1)

Officers who are called up for obligatory training shall not be entitled to any leave.

(2)

During period of sickness or injury attributable to naval service they shall be governed by the same rules as applicable to regular officers.

(3)

In case of sickness or injury not attributable to naval service, no leave or pay and allowances shall be admissible.

394.

Medical Attendance.

(1)

When called up for service, including temporary service, officers will be entitled to medical (in-door and out-door) attendance for themselves and their families to the extent admissible to regular officers of the Indian Navy.

(2)

When called up for training, medical attendance will be restricted to officers alone.

395.

Death.

- If death occurs while serving in the Indian Navy ships or establishments or when seconded to the Army or Air Force, the deceased officers will be given a State funeral/funeral allowance in the same manner and to the same extent as admissible to regular officers of the Indian Navy.

396.

Retaining Fee.

- A midshipman shall draw a retaining fee of Rs. 100 per annum and an officer holding a commission [Rs. 300]

[Substituted by S.R.O. 55, dated 2nd February, 1967]

per annum, subject to the conditions prescribed in Regulation 397.

397.

Retaining Fee may be paid to officers at the scale mentioned in Regulation 396, provided the following conditions are fulfilled:

(a)

the officer has completed the prescribed obligatory training;

(b)

he has maintained a satisfactory standard of efficiency whilst borne in the Indian Naval Ships; and

(c)

his conduct during the actual service in the Indian Navy and in civil life is satisfactory.

398.

Payment of Retaining Fee.

(1)

The training fee shall be payable in arrears.

(2)

The first payment shall be made on 1st April of the year following that in which the officer satisfactorily completes his initial obligatory training. It shall be calculated as a proportion of the full annual retaining fee, that is to say, the proportion which the number of days subsequent to the date of entry bears to the number of days in the financial year.

(3)

Subsequent retaining fee shall be paid on the 1st of April each year provided that the conditions specified in Regulation

397 are satisfied.

399.

Cessation of Payment of Retaining Fee.

(1)

In the event of mobilization or an Emergency when the Reserves are called up, payment of retaining fee shall cease as from that date, and no subsequent payment shall be made in respect of such officers as are called up. Payment may be resumed, however, on the authority of the Chief of the Naval Staff, when the state of Emergency is declared to have ceased and officers are released from actual service and retransferred to the Reserves.

(2)

Officers on temporary service with the Indian Navy in accordance with the conditions set forth in Section N of this chapter shall not draw retaining fee during such periods of service.

400.

Retaining fee when payable though obligatory training not carried out.

- Where the Chief of the Naval Staff is satisfied that owing to active employment in his profession in the Merchant Navy, an officer, who has undergone his initial training, has been unable to carry out his other obligatory training as laid down in these Regulations, he may be allowed to draw his retaining fee.

401.

Applications for Payment.

(1)

Applications for payment of retaining fee accompanied by training certificates shall be made to the Registrar of Reserves on whose authority the Controller of Defence Accounts (Navy) shall make the necessary payments.

(2)

No application shall be made prior to the date on which the retaining fee falls due.

(3)

Retaining fee may be paid, if due, to the legal heir of an officer who may die whilst a member of the Reserves.

Section IX - Reports and Correspondence

402.

Six monthly Reports to be made to the Registrar of Reserves.

- Every officer on the active list shall report himself by letter once every six months (during March and September of each year) to the Registrar of Reserves.

Such reports shall contain the following information :-

(a)

his present employment in detail :

(i)

if employed afloat, particulars of the vessels and rank in which serving;

(ii)

if not employed afloat, date of last sea service and particulars of any subsequent appointments held on shore; and

(b)

the address to which any communications for him may be sent.

403.

Change of names.

- Officers wishing to amend or change their names shall follow the procedure laid down for regular officers of the Indian Navy.

404.

Change of Address.

- Officers shall keep the Registrar of Reserves fully informed of any changes of address subsequent to the last six monthly report rendered.

405.

Retired Officers.

- Retired Officers shall communicate their address to the Registrar of Reserves annually between 1st January and 31st March. Changes, if any, shall also be immediately communicated to him.

406.

Applications for civil jobs.

- An Officer, before signing a ship's article of agreement or accepting any employment shall inform his employer in writing that he is a member of the Indian Naval Reserve or Indian Naval Volunteer Reserve, as the case may be.

407.

Next of Kin.

- The name and address of the next of kin shall be communicated to the Registrar of Reserves on the 1st of April each year. Changes, if any, shall be immediately communicated to him.

408.

Official correspondence, etc. addressed to Registrar of Reserves through Commanding Officers of Ships where serving.

- An Officer serving in one of the Indian Naval Ships shall address all correspondence of an official nature to the Registrar of Reserves through the Commanding Officer of the Ship in which he is serving at the time.

409.

Certificate Books.

(1)

Each officer shall be provided with a Certificate Book on first appointment.

(2)

This book shall accompany all applications for training courses or service, which are addressed to the Registrar of Reserves.

(3)

The Certificate Book shall be forwarded by the Registrar of Reserves to the Commanding Officer of the ship in which the officer is appointed for duty. On completion of such duty, the Commanding Officer of the ship shall return the Certificate Book duly completed to the Registrar of Reserves who, on verification shall return it to the officer concerned.

(4)

On discharge from the Reserves, the Certificate Book shall be returned to the officer concerned.

410.

Reports on officers.

- A report will be rendered by the Commanding Officer of a ship in which an officer has carried out training or service.

411.

Publications and Lectures.

(1)

An Officer belonging to the Reserves shall not publish or cause to be published either directly or indirectly any manner or information relating to the naval service without the permission of the Government or any officer specified by them in this behalf.

(2)

An officer belonging to the Reserves shall not deliver any lecture or read in public any paper on any subject connected with the naval service without having previously submitted a copy of such lecture or paper to the Government or any other officer specified by them in this behalf and obtain necessary permission.

(3)

An officer belonging to the Reserves who may wish to publish an article or deliver a lecture on naval matters shall apply for permission in accordance with this regulation to the Registrar of Reserves who will inform him in due course whether or not such permission has been granted by the Government or the officer specified by them in this behalf.

412.

Repeal.

- The Regulations for the Indian Naval Reserve and the Indian Naval Volunteer Reserve published with the notification of the Government of India in the Ministry of Defence No. S.R.O. 53 dated the 23rd January 1960 are hereby repealed.

[Chapter XIV]

[Inserted by S.R.O. 268, dated 16th September, 1983]

Terms And Conditions Of Service In Respect Of Persons Not Otherwise Subject To Naval Law During Active Service

413.

Application of Chapter XIV.

- All persons who, not being members of the Armed Forces of the Union, are attached to or employed with or following any portion of the Indian Navy shall be subject to naval law during any period declared by the Central Government by a notification in the Official Gazette under clause (b) of sub-section (1) of Section 3 of the Act as a period of active service with reference to the area mentioned in the said notification in respect of the matters contained in this Chapter.

414.

Any person referred to in Regulation 413 shall not, without the express sanction of the Central Government.

(1)

be a member of, or be associated in any way with any trade union, labour union, political association or with any class of trade unions, labour unions or political associations, or

(2)

be a member of, or be associated in any way with any other society, institution, association or organisation that is not recognised as part of the Armed Forces of the Union or is not of a purely social, recreational or religious nature.

Explanation. - If any question arises as to whether any society, institution, association or organisation is of a purely social, recreational or religious nature the decision of the Central Government thereon shall be final.

(3)

attend or address any meeting or take any part in any demonstration organised by any body or persons for any political purposes or for such other purposes as may be specified in this behalf by the Central Government.]

Appendix I

(Regulation 20)

List of Saluted Rulers in order of Seniority with hereditary titles

Sl.No.

Gun

Salutes

Name

of State

Hereditary

title of the Ruler

Date

of succession (unless otherwise stated)

1

2

3

4

5

1

21

Hyderabad

H.E.H.

the Nizam of

29-8-11

2

21

Gwalior

H.H.

the Maharaja of

05/06/25

3

21

Jammu

& Kashmir

H.H.

Maharaj Sir Hari Singh
23-9-25
4
21
Mysore
H.H.
the Maharaja of
03/08/40
5
21
Baroda
H.H.
the Maharaja of
12/04/51
6
19
Travancore
H.H.
the Maharaja of
01/09/24
7
19
Indore
H.H.
the Maharaja of
26-2-26
8
19
Bhopal
H.H.
Nawab of
17-5-26
9
19
Kolhapur
H.H.
Maharaja of
31-3-47
10
19
Udaipur
(Mewar)
H.H.
Maharana of
04/07/55
11
17
Jaipur
H.H.
Maharaja of
07/09/22

12

17

Bharatpur

H.H.

Maharaja of

27-3-29

13

17

Patiala

H.H.

Maharaja of

24-3-38

14

17

Kotah

H.H.

Maharao of

27-12-40

15

17

Bundi

H.H.

Maharao Raja of

23-4-45

16

17

Rewa

H.H.

Maharaja of

30-1-46

17

17

Karauli

H.H.

Maharaja of

06/04/47

18

17

Tonk

H.H.

Nawab of

23-5-47

19

17

Kutch

H.H.

Maharao of

26-2-48

20

17

Cochin

H.H.
Maharaja of
08/07/48
21
17
Bikaner
H.H.
Maharaja of
25-9-50
22
17
Jodhpur
H.H.
Maharaja of
22-2-52
23
17
Dholpur
H.H.
Maharaj Rana of (2 Personal)
01/01/21
24
15
Dungarpur
H.H.
Maharaja of
15-11-18
25
15
Dhar
H.H.
Maharaja of
31-7-26
26
15
Orchha
H.H.
Maharaja of
03/03/30
27
15
Rampur
H.H.
Nawab of
20-6-30
28
15
Idar
H.H.
Maharaja of
14-4-31

29

15

Alwar

H.H.

Maharaja of

22-7-37

30

15

Kishengarh

H.H.

Maharaja of

24-4-39

31

15

Dewas

(Junior)

H.H.

Maharaja of

02/12/43

32

15

Banswara

.

H.H.

Maharaja of

20-11-44

33

15

Dewas

(Senior)

H.H.

Maharaja of

31-3-47

34

15

Jind

H.H.

Maharaja of

01/04/48

35

15

Partabgarh

H.H.

Maharawat of

08/01/49

36

15

Jaisalmer

H.H.

Maharawal of

27-8-50

37
15
Sirohi
H.H.
Maharao of
07/10/50
38
15
Datia
H.H.
Maharaja of
22-12-51
39
15
Kapurthala
H.H.
Maharaja of
19-7-55
40
13
Porbandar
H.H.
Maharaj Rana Saheb of
10/12/08
41
13
Palanpur
H.H.
Nawab of
28-9-18
42
13
Bhavnagar
H.H.
Maharaja of
17-7-19
43
13
Cooch
Behar.
H.H.
Maharaja of
20-12-22
44
13
Nabha
H.H.
Maharaja of
19-2-28
45
13

Nawanagar.

H.H.

Maharaja Jam Saheb of

02/04/33

46

13

Banaras

H.H.

Maharaja of

05/04/39

47

13

Dharangadhra

H.H.

Maharaja Raj Saheb of

03/02/42

48

13

Jhalawar

H.H.

Maharaj Rana of

02/09/43

49

13

Ratlam

H.H.

Maharaja of

03/02/47

50

13

Tripura

H.H.

Maharaja of

17-5-47

51

13

Jaora

H.H.

Nawab of

August

1948

52

13

Rajpipla

H.H.

Maharaja of

29-4-51

53

11

Sitamau

H.H.

Raja of
11/05/00
54
11
Panna
H.H.
Maharaja of
20-6-02
55
11
Baoni
H.H.
Nawab of
28-10-11
56
11
Mandi
H.H.
Raja of
28-4-13
57
11
Cambay
H.H.
Nawab of
01/01/15
58
11
Faridkot
H.H.
Raja of
23-12-18
59
11
Sailana
H.H.
Raja of
14-7-19
60
11
Suket
H.H.
Raja of
13-10-19
61
11
Janjira
H.H.
Nawab of
02/05/22
62

11
Narsingarh
H.H.
Raja of
23-1-24
63
11
Bilaspur
H.H.
Raja of
18-11-27
64
11
Sangli
H.H.
Raja of (2 Personal)
12-27*
65
11
Pudukkottai.
H.H.
Raja of
24-10-28
66
11
Barwani
.
H.H.
Rana of
22-4-30
67
11
Chhatarpur
.
H.H.
Maharaja of
05/04/32
68
11
Sirmur
H.H.
Maharaja of
13-8-33
69
11
Samthar
H.H.
Raja of
09/10/35
70
11

Chamba
H.H.
Raja of
07/12/35
71
11
Rajgarh
H.H.
Raja of
18-12-36
72
11
Radhanpur
H.H.
Nawab of
07/04/37
73
11
Bijawar
H.H.
Maharaja of
11/03/41
74
11
Ajaigarh
H.H.
Maharaja of
11/07/42
75
11
Charkhari
H.H.
Maharaja of
07/09/42
76
11
Jhabua
H.H.
Raja of
11/09/43
77
11
Tehri-Garhwal
H.H.
Maharaja of
27-5-46
78
11
Malerkotla
H.H.
Nawab of

16-10-47

79

11

Morvi

H.H.

Maharaja of

21-1-48

80

11

Alirajpur

H.H.

Raja of

01/05/48

81

11

Baria

H.H.

Raja of

07/09/49

82

11

Dharampur

.

H.H.

Raja of

05/05/52

83

11

Gondal

H.H.

Maharaja of

31-7-52

84

11

Wankaner

H.H.

Maharana Raj Saheb of

28-6-54

85

11

Manipur

H.H.

Maharaja of

09/12/55

86

9

Palitana

H.H.

Thakur Saheb of

29-9-05

87

9
Maihar
H.H.
Raja of
16-12-11
88
9
Patna
H.H.
Maharaja of
16-1-24
89
9
Nagod
H.H.
Raja of
26-2-26
90
9
Lonaru
H.H.
Nawab of
30-10-26
91
9
Jawahar
H.H.
Raja of
10/12/27
92
9
Mayurbhanj.
H.H.
Maharaja of
21-4-28
93
9
Lunawada
H.H.
Raja of
27-4-29
94
9
Sachin
H.H.
Nawab of
20-11-30
95
9
Baraunda
H.H.

Raja of
08/04/33
96
9
Wadhwan
H.H.
Thakore Saheb of
27-7-34
97
9
Sonepur
H.H.
Maharaja of
29-4-37
98
9
Sawantwadi.
H.H.
Raja of
05/10/37
99
9
Mudhol
H.H.
Raja of
09/11/37
100
9
Kalahandi
H.H.
Maharaja of
19-9-39
101
9
Dhrol
H.H.
Thakur Saheb of
20-10-39
102
9
Rajkot
H.H.
Thakur Saheb of
12/06/40
103
9
Limbd
H.H.
Thakur Saheb of
06/01/41
104

9
Khilchipur
H.H.
Raja of
21-9-42
105
9
Balasinor
H.H.
Nawab of
02/02/45
106
9
Chhota
Udepur
H.H.
Raja of
15-2-46
107
9
Shahpura
H.H.
Raja of
03/02/47
108
9
Bansda
H.H.
Raja of
15-2-48
109
9
Banganapalle
H.H.
Nawab of
01/07/48
110
9
Sant
H.H.
Raja of
30-8-48
111
9
Danta
H.H.
Maharana of
15-10-48
112
9
Bhor

H.H.

Raja of

09/10/54

Appendix II

State Funeral

(Regulation 108)

General-

1. A State Funeral, as apart from a purely Military Funeral, will be accorded to any dignitary when ordered by the Government of India.

2. The main procession will normally start from the residence of the deceased or the place where the body is lying. But if the mortuary is too far away from the place of burial/ cremation or is unsuitable for the procession to form up, another suitable place will be selected where the main procession will form up. The body up to this selected place will be brought escorted by a small party in vehicles.

Procedure before procession starts

3. The order of forming up at deceased's residence is given at Annexure A. Following points are for classification :

(a)

The main procession will normally be formed up on the road.

(b)

The Chief mourners, bearers and Pall bearers will be inside the building.

(c)

The carriage will be just outside the building with the firing party or a detachment from the leading escort, as the case may be, on the right or left of the carriage depending on the direction in which the carriage is to move.

(d)

Mourners who have to lay wreaths will be behind the carriage and the firing party.

(e)

Part of the escort will line the whole route.

4. The coffin suitably draped by a National Flag of the country of the deceased will be brought out by the bearers, accompanied by Pall bearers and followed by the chief mourners.

5. As the body is brought out of the building, all those near the carriage will come to attention. The firing party will "Present Arms" when officers in uniform will salute. The firing party will then "Reverse Arms" as the coffin is placed on the carriage. Officers in uniform shall come to attention at the last movement of line "Reverse Arms". When the coffin has been properly placed on the carriage the mourners will lay the wreaths in order of precedence and then proceed to join the mourners lining the road.

6. The cortege is now ready to move off. The firing party of leading detachment and the remainder of the leading portion of the procession will pass through the mourners and band and drummers (with drums muffled), who will have formed up in two ranks, facing inwards, 2 paces interval between men and 8 paces distance between ranks.

7. If the procession is to start from a selected place, the procedure will be as follows:

(a)

The order of forming up is given at Annexure B.

(b)

The order of march from the residence of the deceased to the selected place will be as follows :

Motor

Cyclists.

Escort-max,

two jeeps.

Vehicle

carrying body.

Bearers.

In

Vehicles.

Pall

Bearers.

Chief

mourners.

Rear

escort-max. two jeeps.

(c)

The rest of the procedure will be the same as in para 5 and 6 above.

The Procession

8. The order of march of the procession is given at Annexure C.

9. After laying the wreaths, the mourners will join the other mourners lining up the road. The Officer or N.C.O. in charge of firing party will give the command "right" or "left turn"- "slow march". The carriage will follow the firing party.

10. The front escort will move off in "slow time" and resume its correct position, that is, in front of the firing party.

11. The mourners, and band and drummers will get into their proper position in the procession as the firing party or leading detachment and the remainder of the leading portion of the procession passes between their ranks. The officers in uniform will salute as the carriage carrying the body passes them.

12. The band and drums will begin to play the "Dead March" after joining the procession and when 300 Yds. from the mortuary and continue for such a distance as the officer-in-charge may have ordered before marching off. The firing party or leading detachment will receive the command "Quick March" (the remainder conforming) when the band or drummers cease playing.

When at a convenient distance from the cemetery or cremation ground and at the instance of the officer-in-charge, the Officer or N.C.O. in charge of the firing party or leading detachment will give the command "Slow march" and the band or drummers will again begin playing.

13. Troops lining the route will be at the "Order Arms". As the funeral procession comes into view they will "Rest on your Arms Reversed". They will "Present Arms" as the head of the funeral procession approaches them and return to "Rest on your Arms Reversed", when the procession has passed. When the procession is well clear they will resume the position of "Order Arms" and await further instructions for disposal.

14. Troops lining up, who are part of the Escort, will join in behind the rear Escort, as it passes through them.

15. When marching in slow time, arms will be carried at the reverse, in quick time at the reverse trail (but forward, sling uppermost). During the march, arms may be changed, but the party will NOT march at ease.

Procedure at Burial/Cremation Ground

16. Arrival to the place of Cremation/Burial

(a)

When the head of the procession arrives near the cremation/burial grounds, the ranks of the firing party or leading detachment and the band and drums will open out to 6 pace distance, and on order of the officer or N.C.O. in charge "halt"- "turn inwards"- "rest on their arms reversed."

(b)

Leading motor cyclist will move to the car park.

(c)

Front escort will line up the remainder of the route and thicken the cordon around the cremation/burial ground. The rear Escort may also be used for cordoning the area.

(d)

The coffin is then moved by the bearers and carried feet-end foremost.

(e)

The vehicle of the VIP accompanying the procession will proceed to the car park.

17. The order of the procession will now be:-

Pandit or Granthi or Moulvi, and the like.

Coffin with bearers and Pall bearers.

Mourners.

Band and drums:

Firing Party or Detachment.

18. The order of forming up at the cremation/burial ground is given at Annexure.

D. Procedure during Cremation/Burial

19. Before fire is set to the pyre or the coffin lowered into the grave the flag, head dress, side arms and wreaths will be removed.

20. During this time, if the deceased is a Hindu or Sikh selected bhajans may be sung by the bhajan party.

21. For those entitled to it, the appropriate number of Gun Salutes will be given when the coffin is taken off the carriage and is being carried to the place of burial/ cremation. Three volleys of small arms fire will be fired when fire is being set to the pyre or when the body has been lowered into the grave.

22. After the volleys of small arms fire, and when authorised the Gun Salute, have been fired, the buglers will sound the "last post"-a short interval of approximately 5 seconds' duration then the "Reveilled". During the sounding of these calls, all will stand to attention. Firing Party or Detachment will fix-bayonets and present arms. Officers will remain at the Salute during the sounding of the Last Post and the Reveille.

Procedure at the Conclusion of the Ceremony

23. The band and drums will move off followed by the firing party, detachment, mourners and the rest inside the enclosure in that order. Service personnel when marching off the enclosure will get into three without any word of command having been given.

24. The firing party will unfix bayonets at the first opportunity after leaving the burial or cremation ground. The band will NOT play, nor the drums beat until the party is entirely clear of the cremation or burial ground.

25. The mourners will move off to their respective car parks after coming out of the enclosure.

26. The portion of Escort not required for cordoning any more will also move off.

General Instructions

27. Bearers and Pall bearers. - The Pall bearers will march immediately on either side of the carriage, and the bearers on the outer flanks at 2 paces interval. The position of the Pall bearers will be in order of seniority alternately on either side of the coffin, the senior being in rear on the right hand side, the next senior in rear on the left hand side, and so on. If the space does not permit, the bearers and/or Pall bearers will march behind the coffin.

The Firing Party-

28. The constitution of the Firing Party will be as laid down by the Services concerned.

Escort-

29. The strength of the Escort will be as laid down in Annexure E.

Standards, Guidons, or Colours

30. These will be carried by units forming part of the Escort irrespective of whether the Escort is wholly included in the procession or is partially employed in lining the routes. No compliments will, however, be paid to them during the procession.

Dress-

31. (a) Service Personnel. - (As for State Functions).

(b)

Government Civil Official. - Formal dress or official dress, if any, laid down.

Annexure E To Appendix II

Strength of the Escort

President

and visiting Heads of Foreign States and Governors General of Commonwealth countries.

1500

Prime

Ministers of Foreign and Commonwealth States, heads of Foreign and Commonwealth Missions of the rank of Ambassador or High Commissioner or Minister Plenipotentiary accredited to India.

1000

All

others

500

Appendix III

(Regulation 181)

I.N. 708

[S. 198 (Revised 195)]

Confidential Report On A Candidate For Branch Rank

(On no account to be sent through the ship's office)

(for instructions, see pages 3 and 4)

Name

in full (Surname in Block letters)

'[Rank]

and Seniority

Official

Number

Date

of Birth

Date

joined Service

Date

on which completes time for pension if within five years

.....

Occasion

for report.....Ship/Establishment

.....

Duties

on which employed.....

Period

of report

from.....to.....

Section

I

(a)

Branch Rank to which this report refers.....

(b)

Qualifications :

(i)

Passed educationally (date)

(ii)

Passed Professionally (date)

(iii)

Whether fully qualified

Section

II

If

candidate is eligible for promotion

If

candidate is not yet eligible for promotion

(c)

Is he recommended for promotion to Branch Rank

(d)

Is he likely to merit promotion to Branch Rank :

NOW,

NOT YET. NO[*]

[Delete as necessary]

EARLY.

IN ORDINARY COURSE LATE. NOT AT ALL.[*]

[Delete as necessary]

Section

III Character :

(e)

Power of Command or

Leadership.....

(f)

Zeal and

energy.....

(See

Instructions 7,8 & 9 on page 4)

(g)

Judgment(h)

Reliability.....

(i)

Initiative.....

Section

IV

(j)

Social Qualities (to include personal appearance and manners and likelihood of candidate being able to take his place in the Wardroom Mess).

Section

V

Physical

Fitness :

(k)

Whether medically fit for Branch

Rank.....

(l)

Any remarks on physique generally.

Section

VI

(m)

General Opinion of candidate (to be filled in by Divisional Officer):

Date

Signature and Rank of Head of Department or Reporting Officer.

General Opinion of candidate by Commanding Officer, if any :

Date

Signature and Rank of Commanding Officer.

1. This return is to be rendered for all candidates for Branch Rank eligible under Clause 6 below.

2. If a candidate for Branch Rank is not recommended, the reasons should briefly be given [Regulation 181(5) Regs. Navy]. Sections I to IV are not to be completed unless the candidate has served at least three months in the Ship. Where no recommendation is made, "Under three months" is to be inserted on the form.

3. Reports are required on candidates who leave the ship or shore establishments in addition to those sent in regularly each half year. The first report is to be rendered as soon as sailors become eligible, without waiting for 31st May or 30th November.

4. On the occasion of the first inclusion of a candidate's name in the return a copy of his Service Certificate is to be attached, also a copy of his History Sheet where applicable, and Certificate of Medical and Visual Fitness.

5. On the first occasion of a candidate being recommended for Branch Rank a notation of the fact is to be made on his Service Certificate in the space provided for special recommendation.

6. The returns are to be rendered to the Chief of the Naval Staff through [Transferring]

[Substituted by S.R.O. 361, dated 10th November, 1975]

Office on 31st May and 30th November, subject to the candidate being qualified by service where necessary.

Rank

Recommendations

to commence

Commissioned

Gunner

After

passing examination in Seaman-ship for Branch Rank and educational test.

After

passing educational test and examination in Air Administration.

Commissioned

Gunner (T.A.S.)

Commissioned

Boatswain

Commissioned

Boatswain (P.R.)

Commissioned

(P.T. & W.) Officer

Commissioned

Boatswain (Q.D.D.)

Commissioned

Airman

Commissioned

Communication Officer

After

passing educational test and confirmation as L. Sig./L.Tel.

Commissioned

Master-at-Arms

After

passing educational test and professional examination.

Commissioned

Shipwright

After

passing educational test and professional examination.

[*]

[The recommendation for Commissioned Electrical Officer should record ability as a practical workman and power of organisation.]

Commissioned

Electrical Officer (L)/(R)/(AL)/(AR)

After

passing educational test and preliminary professional examination.

Commissioned

Wardmaster

Commissioned

Writer Officer

After

passing educational test and professional examination.

Commissioned

Stores Officer

Commissioned

Stores Officer (Catering)

Commissioned

Engineer

After

passing educational test and. professional examination.

Commissioned

Mechanician

Commissioned

Air Engineer

After

passing educational test and professional examination.

Commissioned

Ordnance Engineer

After

passing educational test and professional examination.

Commissioned

Bandmaster

After

passing educational test and professional examination.

Section III

7. Comparative qualities fall naturally into 5 main categories, Exceptional, Above the average, Average, Below the average, and Poor.

8. The term "Average" refers to the average of all sailors holding a similar [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973.]

in the Service and not only to other sailor holding Confidential History Sheets.

9. Corresponding to Exceptional.

8.

, 7 or 6 corresponding to Above the average rating.

5. corresponding to the Average rating 4,3 or 2 corresponding to Below the average rating.

1. corresponding to Poor.

Section VI

10. Here insert any amplifying remarks which may facilitate comparison of potential Officer-like qualities with other men for whom forms IN-708 (late S. 198) have been forwarded. Reporting Officers are reminded that promotion to Branch Officer is by selection from those fully qualified, the remarks on Form IN-708 are therefore of the highest importance.

Appendix IV

Classification and Relative Ranks of Officers

(See Regulation 205)

Executive

Officers

Engineer

Officers

Electrical

Officers

[**]

[omitted by S.R.O. 50, dated 19th February, 1981]

Instructor

Officers

Medical

Officers

Shipwright

Officers

1

2

3

4

5

6

7

1[*]

[These do not exist at present]

Admiral of the Fleet

2[*]

[These do not exist at present]

Admiral

3

Vice-Admiral

4

Rear-Admiral

Rear-Admiral

5

Commodore

Commodore

Surgeon

Commodore

6

Captain

Captain

Captain

Instructor

Captain

Surgeon

Captain

7

Commander

Commander

Commander

Commander

Instructor

Commander

8

Lieutenant Commander

Lieutenant

Commander

Lieutenant

Commander

Lieutenant
Commander
Lieutenant
Commander
Surgeon
Lieutenant-Commander (D)
9
Lieutenant
Lieutenant
Lieutenant
Instructor
Lieutenant
Surgeon
Lieutenant
Surgeon
Lieutenant(D)
10
Sub-Lieutenant Act. Sub-Lieutenant
Sub-Lieutenant
Act
Sub-Lieutenant
Sub-Lieutenant
Act Sub-Lieutenant
11
Senior Commissioned Gunner
Senior
Commissioned Engineer
Senior
Commissioned Electrical Officer(P)
Senior
Commissioned Instructor Officer
Senior
Commissioned Wardmaster
Senior
Commissioned Shipwright Officer
Senior
Commissioned Gunner (T.A.S.)
Senior
Commissioned Air Engineer
Senior
Commissioned Electrical Officer(R)
Senior
Commissioned Boatswain
Senior
Commissioned Ordnance Engineer
Senior
Commissioned Electrical Officer(AL)
Senior
Commissioned Boatswain(Q.D.D.)
Senior
commissioned Electrical Officer (AR)

Senior
Commissioned Boatswain(P.R.)
Senior
Commissioned P.T. Officer
Senior
Commissioned
Communication
Officer
Senior
Commissioned
Master-At-Arms
Senior
Commissioned
Airman
Senior
Commissioned
Bandmaster
[Senior
Commissioned Write Officer. Senior Commissioned Stores Officer.]
[Inserted by S.R.O. 50, dated 19th February, 1981]
Senior
Commissioned
Stores
Officer (Catering)?
12
Commissioned Gunner
Commissioned
Engineer
Commissioned
Electrical Officer(P)
Commissioned
Instructor Officer
Commissioned
Wardmaster
Commissioned
Shipwright Officer
Commissioned
Gunner (T.A.S.)
Commissioned
Air Engineer
Commissioned
Electrical Officer (R)
Commissioned
Boatswain (Q.D.D.)
Commissioned
Electrical Officer (AR)
Commissioned
Boatswain (P.R.)
Commissioned
P.T. Officer
Commissioned

Communication Officer

Commissioned

Master-at-Arms

Commissioned

Airman

Commissioned

Bandmaster

Commissioned

Writer Officer.

Commissioned

Stores Officer.

Commissioned

Stores Officer (Catering)?]

13

Midshipman

Midshipman

Midshipman

14

Cadet

Cadet

Cadet

Note. - Officers of the various branches included in each numbered group rank with each other according to seniority subject to the provisions of Regulations 209 and 246.

Appendix V

[***]

[Omitted by S.R.O. 140, dated 26th May, 1973]

Appendix VI

[Regulation 289(1)]

Confidential

I.N. 369

Selected Sailor's Strictly Confidential History Sheet

[The date of issue of this sheet is to be reported as soon as possible to the Chief of the Naval Staff, and the Captain, Naval Barracks (Drafting Office), Bombay.]

NOTE.-This sheet is to follow the Sailor named below to all ships or establishments to which he may be [transferred]

[Substituted by S.R.O. 361, dated 10th November, 1975]

. It should invariably be kept locked up and in the charge of the Commanding Officer. It should on no account be allowed to pass through the ship's office. It is to be treated as a secret document.]

Name in full (Surname in Block letters).....Date of birth..... Official Number..... [Rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

to be filled in as necessary).

.....Date of [promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

.....

..... , ,

..... , ,

Standard on passing out of Training Establishment (only required for History sheets started in the Training Establishments) :

(a)

Notation.....

(b)

Place in Final Examinationout of.....

(c)

Percentage of Total Marks.....

Date of acquiring a Confidential History Sheet.....

Signature of Commanding Officer.

Date.....

General Instructions

1. A confidential report on C.W. Form No. I. N. 369-A is to be rendered on this Sailor quarterly on the 1st January, 1st April, 1st July and 1st October to the Chief of the Naval Staff, and the Captain, Naval Barracks '[Transferring Office] Bombay.

2. The possession of this sheet means that this Sailor is well above the average of his contemporaries in most if not all of the qualities enumerated on C.W. Form No. I.N. 369-A and is considered by his Commanding Officer to be potentially suitable for promotion to commissioned rank. Should he fall below this standard in any respect, his Commanding Officer should consider the advisability of destroying this sheet, which is only to be held by him as long as he is considered a worthy candidate for commissioned rank. It may be destroyed at any time under these circumstances. Such action should be reported at once to the Chief of the Naval Staff, and the Captain, Naval Barracks [Transferring Office]

[Substituted by S.R.O. 361, dated 10th November, 1975]

, Bombay together with an explanation of the reasons.

3. The destruction of this sheet would not in any way imply that the above named Sailor could not reacquire a Confidential History Sheet, should he at any future time be considered sufficiently promising.

4. This sheet should also be destroyed if the holder is selected for, or becomes ineligible under the regulations for commissioned rank.

5. Reports on C.W. Form No. I.N. 369-A will automatically cease should this sheet be destroyed.

6. If the Sailor to whom this sheet belongs goes before a Selection Board for commissioned rank this sheet should be sent to the Captain, Naval Barracks [Transferring Office]

[Substituted by S.R.O. 361, dated 10th November, 1975]

, Bombay. It should subsequently be sent to the Commanding Officer of the Ship or Establishment in which the Sailor is then serving.

Appendix VII

[Regulation 289(3)]

Confidential

Report On A Candidate For Commissioned Rank

[On no account to be sent through the Ship's Office]

(For instructions see over and Confidential History Sheet)

Name in full (Surname in Block letters)..... Date of birth.....[Rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

with seniorityOfficial Number.....Occasion for Report.....

Ship or Establishment.....Station.....

Section I.(a) General conduct*

(b)

Of temperate habit. Yes or No.

Section II. Character

(c)

Power of Command or leadership

(d)

Zeal and Energy

(e)

Judgment

(j)

Reliability

(g)

Initiative

Section III. Social qualities

(h)

Speech

(i)

General appearance

(j)

Manners

(k)

Facility in games and sports

Section IV. Physical Qualities-(General remarks on physique generally, health and bearing, sight and hearing).

[*]

[Delete as requisite.]

If the report under Section (a) or (b) is unsatisfactory, a separate sheet is to be attached stating in what respect it is so, and what action, if any, has been taken in consequence.

7. Commanding Officers who make reports on the holder of this sheet should place their signatures below :

Date

of Report

Ship

or Establishment

Signature

of Reporting Officer

Section V. Educational and Professional Qualifications

(l)

If passed H.E.T.....Date.....

(m)

If passed professionally for Able/Leading/Petty Officer rating.....

(n)

If appeared before.....Section Board ResultDate

(o)

Other Educational attainments.....

Section VI. General opinion of Sailor :

Date

Signature and Rank of Commanding Officer

Instructions

(See also Confidential History Sheet)

Sections II and III (c) to (k)

1. Comparative qualities fall naturally into five main categories:- Exceptional, Above the average, Average, Below the average and Poor.

2. The term "Average" refers to the Average of all Sailors holding a similar [rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

in the Service and not only to other Sailor holding Confidential History Sheets.

3. To facilitate election distinctions finer than those indicated in paragraph 1 must be employed. Consequently assessment in Sections I and III is to be made by numerical notation on the following lines :

9. Corresponding to Exceptional.

8.

, 7 or 6 corresponding to Above the average rating.

5. corresponding to the Average rating.

4.

,3 or 2 corresponding to Below the average rating.

1. corresponding to Poor.

4. Section VI.-Here insert any amplifying remarks which may facilitate comparison of potential officer-like qualities with other men holding Confidential History Sheets.

Appendix VIII

[Regulation 294(1)]

IN. 285

Recommendations for [Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet

(To be kept with the Sailor's Service Certificate and handed to him on final discharge from the Service)

NAME.....

(Surname first in Block Letters)

Specialist

[RANK]

[Substituted by S.R.O. 192, dated 10th September, 1973]

.....QUALIFICATION.....

(in Pencil)

(in Pencil)

Official Number.....I.N.S.....

(in Pencil)

To

be completed when Drafted to or from Foreign Service

Date

left India

Date

of arrival in India

Number

of days

Leave

granted outside India

To

be completed for Sailors shown in Note 6 on page 4

[Promoted]

[Substituted by S.R.O. 361, dated 10th November, 1975]

to

Date

actually advanced :

With

seniority of :

Recommendations Awarded For [Promotion]

[Substituted By S.R.O. 361, Dated 10th November, 1975]

On Form I.N. 350 (See Note 9 On Page 4)

MARCH

MARCH

MARCH

19

19

19

SEPT.

SEPT.

SEPT.

MARCH

MARCH

MARCH

19

19

19

Sept.

SEPT.

SEPT.

March

March

March

19

19

19

SEPT.

SEPT.

SEPT.

March

March

March

19

19

19

Sept.

Sept.

SEPT.

MARCH

March

March

19

19

19

SEPT.

SEPT.

SEPT.

March

March

March

19

19

19

SEPT.

SEPT.

SEPT.

March

March

March

19

19

19

Sept.

Sept.
Sept.
March
March
March
19
19
19
SEPT.
SEPT.
SEPT.
NAME
OF SHIP
(Parent
ship to be shown in brackets)
Date
of Joining
No.
of G.C. Badges held on discharge
Date
of Commencement of "Very Good" conduct Regulation 329).
If conduct is not "Very Good" insert "not VG"
Class
for Conduct. If in 2nd class insert (1) Date of reduction, (2)
Date of proposed restoration.
Character
since last assessment of Service Certificate of Conduct Sheet.
[Regulation 326(3)]
Character
Assessment (See note 11)
Efficiency
(See note 11)
Whether
recommended for (a) [Promotion] (b) confirmation (See Notes 4 &
11)
Whether
recommended for accelerated
Promotion
Ship
Discharged to (giving date, if it differs from date of assessment
of character and, in the case of an N.C.S. [Rank] discharged to
Shore, the cause of discharge)
Whether
recommended for (a) Boys Training Service (b) Other Instructional
Duties (See Notes 7 and 11)
R.M.G.
or R.R. (where applicable)(See Notes 8 & 11)
Commanding
Officer's Signature and Rank
From
To

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15

Notes

1. Destruction of "Record of Offences Sheet". - (Appendix I to Recommendations for [Promotion] and Conduct Record Sheet). For the destruction of "Record of Offences Sheet" showing the record of offences in a previous ship see Regs., Navy, Part I, Regulation 2521 (6).

2. Date of commencement of "Very Good" Conduct. - When the date of commencement of "Very Good" conduct differs from that which would normally appear from the Service Certificate, the date is to be inserted in red ink. A note is to be made when the award of a badge is delayed under Regulation 301(3).

3. Class for conduct. - The date of proposed restoration may be any date not less than one month and not more than six calendar months from the date of reduction.

4. Recommendations for [Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

Confirmation or Re-[Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

- The recommendation columns (Nos. 11 and 12) of the "Recommendations for [Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

and Conduct Record Sheet" are to be completed in respect of all sailors concerned in one of the following ways (See Note 11):

Column

11

Column

12

Signification

(See

Note 5)

Yes

Yes

Recommended

for accelerated [Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

and fully qualified.

Yes

No

Recommended

for [Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

and fully qualified.

Yes

(N.Q.)

Yes

(N.Q.)

Recommended

for accelerated[Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

, but not fully qualified.

Yes

(N.Q.)

No

Recommended

for[Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

, but not fully qualified.

N.Y.

No

Not

yet recommended, owing to inexperience.

N.Y.

(N.Q.)

No

Not

yet recommended, owing to inexperience and not fully qualified

for[Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

No

No

Not

recommended, whether qualified or not. Recommended (or not) for confirmation in the ordinary course.

R.C.O.C.

N.R.C.O.C.

Notation,

in red ink, to be made across both columns after completion of a minimum period of three months' acting time.

S.G.R.

or H.R.

To

be inserted for Leading Seamen, Leading Signal men, Leading Telegraphists, Able Seamen, Signalmen and Telegraphists, according to whether the ship is, or is not, a "seagoing ship" (N.I.7/S/47, Appendix II, paragraph 8) in relation to the individual concerned.

[The

notation "No (N.Q.)" is not to be used.]

5. Accelerated [Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

- Recommendations are not to be made in column 12 unless the sailor was likely to have been recommended for accelerated '[Promotion] on the next return I.N. 350 had he remained in the ship. This column is intended to assist the Captain of the ship to which the sailor is discharged in rendering I.N. 350 at the end of the half-year, by bringing to his

notice sailors of more than ordinary merit, who should be specially considered when making the special recommendations on Form I.N. 350 for the accelerated [Promotion] of a limited proportion of the ship's company. When recommending Leading Seamen, Leading Signalmen, Leading Telegraphists, Able Seamen, Signalmen, and Telegraphists and "S.G.R." or "H.R." as directed in Note 4 above. (See Note 11.)

6. [Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

to Acting [Rank]

[Substituted by S.R.O. 192, dated 10th May, 1973]

- The date on which a man is actually [Promoted]

[Substituted by S.R.O. 192, dated 10th May, 1973]

to any of the following sailors is to be noted in the space provided on the front of his "Recommendations for [Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

and Conduct Record Sheet", in order that the commencing date of actual service required for confirmation or of sea service required for further [Promotion]

[Substituted by S.R.O. 61, dated 10th November, 1975]

may be correctly computed.

(a)

Acting Leading and Acting Petty Officer, [Rank]

[Substituted by S.R.O. 192, dated 10th May, 1973]

in all branches except those of Artificers and Mechanics.

(b)

Confirmed Able Seaman, either direct from Ordinary Seaman or from the acting [Rank]

[Substituted by S.R.O. 192, dated 10th May, 1973]

, or confirmed equivalent [rank]

[Substituted by S.R.O. 361, dated 10th November, 1975]

(c)

Acting Chief rates in the Engine-Room Artificer, Ordnance Artificer, Electrical Artificer, Electrical (Air) Artificer, Shipwright Artificer, Radio Electrical Artificer, Radio Electrical (Air) Artificer, Mechanician, Air Mechanician, and Air Artificer branches.

7. Instructors. - Column 14 of the "Recommendations for [Promotion] and Conduct Record Sheet" is always to be completed for Engine-Room Artificers, Aircraft Artificers, Electrical Artificers, Radio Electrical Artificers, Electrical Artificers (Air), Radio Electrical Artificers (Air), Ordnance Artificers, Chief Petty Officers, Petty Officers and Leading Ratings of the Seaman, Signal, Telegraphist, Stoker Mechanic and Supply and Secretariat Branches, and Chief Petty Officers and Petty Officers of the Naval Aviation Branches, irrespective of whether or not the sailor is a volunteer for instructional duties. The words "Yes" or "No" are to be used, followed by "(a)" or "(b)" (or both), as required. (See Note 11).

8. Long Service & Good Conduct Medal and Gratuity. - Recommendations are to be made in accordance with Regulation 307. If the recommendation is intentionally withheld, a statement to that effect should be inserted vide Regulation 307(3). (See Note 11).

9. Recommendations on Form I.N. 350. - On each occasion on which a sailor is recommended or not recommended on Form I.N. 350 a record is to be made in the space provided on the front of the "Recommendations for [Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

and Conduct Record Sheet". The following notations are to be used :

Signification

REC.

Recommended

and considered fit for [Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

in the ordinary course.

REC.

AA.

Recommended

and considered fit for accelerated[Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

NOT

REC.

Not

recommended or considered fit for[Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

N.Y.

REC.

Not

yet recommended for[Promotion]

[Substituted by S.R.O. 361, dated 10th November, 1975]

due to inexperience.

(All sailors recommended should be considered fit for immediate '[Promotion] REC.A.A. notation should be made in Red ink.)

10. Offences and Punishments. - Details of all offences and punishments awarded are to be recorded on the "Record of Offences Sheet". (Form I.N. 286), Appendix I to the "Recommendations for' [Promotion] and Conduct Record Sheet".

11. In seagoing ships, Columns 10, 11, 12, 14 and 15 are to be completed for periods of one month or more, the notation "I. K." (insufficient knowledge) being used if necessary; in depots and other establishments these columns are to be completed, for periods of three months or more. In either case, the columns maybe completed for shorter periods if there is sufficient knowledge of the men concerned. Column 9 is to be completed without exception on each occasion of discharge from a ship or shore establishment irrespective of the length of time to which the assessment refers.

Appendix IX

[Regulation 294 (1)]

Monthly Return of G.C.Bs. Awarded Restored Deprived

No.

Name

[Rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

Date of Birth

Date when first[ranked]

[Substituted by S.R.O. 192, dated 10th September, 1973]

Date of attaining

badge[rank]

[Substituted by S.R.O. 192, dated 10th September, 1973]

Details of Service

Date of

commencement of V.G. Conduct

No. of G.C. Bs.

Previously awarded

Date of award of

last G.C.B.

Date of

Deprivation of last G.C.B.

I.N.S.

Date of G.C.B.

Allowed to count

Not allowed to

count

Awarded

Restored
Deprived and No.
of Warrant
Remarks

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16

Appendix X

Terms and Conditions of Service of Medical Officers of the A.M.C. (Reserve) on secondment to the Indian Naval Volunteer Reserve.

(Regulation 335)

1. A.M.C. (Reserve) Officers seconded to the Indian Navy for (Reserve) service shall be granted temporary commissions in the Medical Branch of the Indian Naval Volunteer Reserve, which shall be superimposed on their A.M.C. (Reserve) Commissions.

2. Medical Examination. - Before receiving a commission in the Indian Naval Volunteer Reserve, an officer must be passed medically fit by the Naval Medical Board to perform the duties of a Medical Officer in the Navy.

3. Probation. - Officers on their first appointment shall be on probation for 12 months, except in the case of those officers who, while holding a Permanent Regular Commission/ Short Service Regular Commission in the A.M.C., had already served in the Indian Navy.

4. Training. - Officers shall be given initial and recurring training as under:- (a) For civilian doctors recruited in the A.M.C. for the Indian Naval Volunteer Reserve-

Initial training

(i)

Two weeks training in the Basic and Divisional School, COCHIN.

(ii)

Two weeks training at I.N.H.S. ASVINI.

(iii)

Two weeks training afloat.

Recurring training

(i)

Two weeks training biennially ashore (I.N.H.S. ASVINI).

(ii)

Two weeks training biennially afloat.

(b)

For released Reserve Officers commissioned in the Indian Naval Volunteer Reserve-

Initial training.

(i)

If officers are commissioned within 4 years of relinquishment of commission-No training.

(ii)

If commissioned after 4 years of relinquishment of commission-2 weeks training in the Basic and Divisional School, Cochin.

Recurring training

(i)

2 weeks training biennially ashore (I.N.H.S. ASVINI).

(ii)

2 weeks training biennially afloat.

(c)

For permanent Naval Medical Officers who are retired on pension or gratuity before attaining the age of superannuation for their respective rank and remain liable for Naval Service

(i)

Initial training.-

Nil.

(ii)

Recurring training.

Two weeks training biennially ashore (I.N.H.S. ASVINI).

5. Rank and Promotion. - During the period of secondment, the A.M.C. (Reserve) officers shall be governed by the rules applicable to the A.M.C. (Reserve) in the matter of promotion, acting ranks and relinquishment of commission and equivalent ranks shall be given in the Navy. Acting promotion shall, however, be made by Naval Headquarters.

6. Pay and Allowances, Pensions and other terms and conditions of Service. - Pay, special pay, allowances, retaining fee, pensions, gratuities and other conditions of service of the officers shall be governed by the rules laid down for the A.M.C. (Reserve) Officers.

7. Uniform. - While serving with the Navy officers shall wear Naval Uniform. The rate of uniform allowance shall be the same as laid down for the other officers of the Indian Naval Volunteer Reserve.

8. Travelling Allowance. - For purpose of travelling allowance, officers shall be governed by the rules laid down in Travel Regulations (India), as amended from time to time.

9. Leave and Leave Travelling Allowance. - These shall be the same as for officers of the A.M.C. (Reserve) recalled for colour service in the Army.

10. Liability. - (a) Officers shall be required to serve anywhere, both afloat and ashore and fly as passengers when required in IAF or Naval service aircraft. They shall be liable to have their services terminated on account of any of the following reasons :

(i)

If found unsuitable during the period of probation.

(ii)

On recall to the A.M.C. (Reserve).

(iii)

On account of permanent medical unfitness.

(iv)

On account of unsatisfactory service.

(b)

An officer who is declared temporarily unfit by a Medical Board, shall be governed by the rules applicable to other officers of the Indian Naval Volunteer Reserve in the similar circumstances.

[Ministry of Defence.]

Appendix XI

Declaration

Bond To Be Signed By Parent/guardian And The Candidate Selected For Initial Training With A View To Being Commissioned In The Regular Navy

1. This agreement dated...date of..between...son of...resident of..... (hereinafter called the "the Guarantor" which expression shall include his personal representative when the context so admits) of the first part and.... son/ward of the aforesaid Guarantor (hereinafter called 'the Officer') of the second part and the President of India (hereinafter called "the

Government" which expression shall include a successor and assigns where the context so admits) of the third part.

2. Whereas the Officer has been selected by the Government on the terms hereafter appearing for the purpose of receiving initial training with a view to being Commissioned as an Officer in the Regular Navy, provided he is considered by the Government to be suitable in all respects.

3. Now it is agreed between the parties referred to above that in consideration of the Officer being selected by the Government for the purpose of the aforesaid training, the guarantor covenants with the Government that the officer will attend the aforesaid training, as the Government may determine from time to time for the prescribed periods or until he is declared fit (as to which the decision of the appropriate authority prescribed by the Government for the time being shall be final) to hold the assigned appointment and also complete the prescribed period of probationary period, unless he, the Officer is prevented from doing so by death or on account of ill health or some other reason over which the officer has no control or by being removed on the ground that the Officer is considered by the said appropriate authority to be unfit to continue as an officer on probation.

4. If for any reason not beyond the control of the officer, he does not complete the prescribed period of his training and probation or does not hold appointment assigned to him then the guarantor and the officer shall jointly and severally, be liable to pay forthwith to the Government in cash such sum as the Government shall fix, but not exceeding such expenses as shall have been incurred by the Government on account of the officer on his training and all monies received by the officer as pay and allowance from the Government together with interest on the said months calculated at the rate in force for Government loans.

5. The guarantor further agrees that the guarantor shall not be relieved from his liability by reason of any variation of the terms or of any indulgence by the Government to the Officer or by any such matter or thing whatsoever which under the law relating to sureties would but for this provision have effect of so relieving the guarantor.

6. And it is lastly agreed that if there is any dispute as to the effect or meaning of these presents, the decisions of which has not been expressly hereinbefore provided for, the same shall be referred to the decision of the Secretary to the Government of India in the Ministry of Defence, whose decision shall be final. In witness whereof the parties have thereto set their respective hands the day and year first before written.

Signed by the Guarantor in the presence of

Signed by the said Officer in the presence of

Signed on behalf of the President of India in the presence of]

Related AI tags, queries and research notes

Translation